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PRAHAAR

MAINS WALLAH

Final Hit To CSE Mains 2026

INDIAN POLITY AND CONSTITUTION

(STATIC + CURRENT)

Features

- Comprehensive and Concise Notes
- Inter-linking of Current and Static Topics
- Updated Data, Facts and Examples
- Keywords for Quality Answers
- Integration of Last 13 Years PYQs

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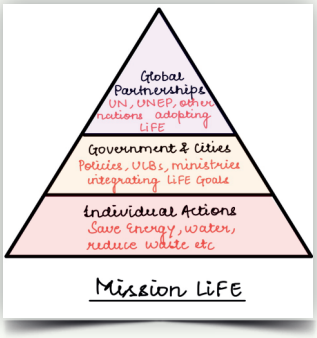
SRIJAN ENROLLMENT

Replicable Diagrams

HUB-AND-SPOKE DIAGRAM

- **Details:** A central idea with branches leading to sub-themes or dimensions.
- **Used For:** Components of Citizen Charter etc.

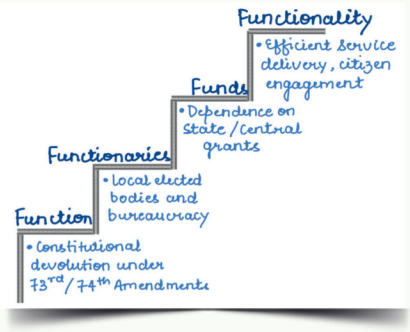


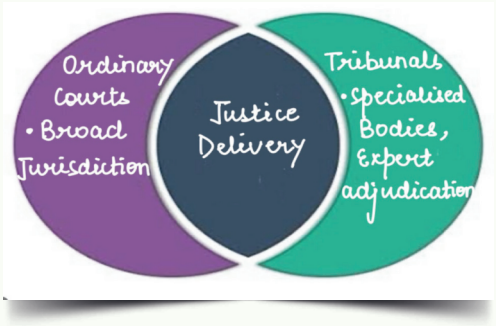
PYRAMID/HIERARCHY

- **Details:** A hierarchical diagram with levels from base to top.
- **Used For:** Constitutional Morality in Practice etc.

LADDER DIAGRAM

- **Details:** Step-by-step hierarchical diagram showing progression over stages.
- **Used For:** 4 F's of Local Governance etc.





VENN DIAGRAM

- **Details:** Showing overlap between two or three ideas.
- **Used For:** Justice delivery, , Trickle down effect, Food chain, etc.

INPUT-PROCESS-OUTPUT (IPO) MODEL

- **Details:** A three-part diagram showing what goes into a system, how it's processed, and the result.
- **Used For:** Cash tranfers under Government Schemes etc.

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SRIJAN MAINS PROGRAM+ 2026

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2025

DELIVERING CONSISTENT RESULTS OVER THE YEARS

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1 Historical Background

The Indian Constitution serves as a lasting testament to India's successful transformation from a colony to a sovereign republic. This dynamic document guides the democratic operation of the nation. It embodies an inclusive vision that has steered India's immense diversity towards a unified national identity.

The evolution of the Indian Constitution began with the Regulating Act, 1773 began British control over the Company and created the Governor-General of Bengal. The Pitt's India Act, 1784 introduced dual control of India through the British government. The Charter Act, 1813 ended trade monopoly (except tea) and supported education. The Charter Act, 1833 centralised administration and ended Company trade. The Charter Act, 1853 introduced civil service competition and separated legislative and executive functions. The Indian Councils Act, 1861 included Indians in councils by nomination. The Indian Councils Act, 1892 expanded councils and introduced limited elections.

SOME IMPORTANT ACTS DURING BRITISH PERIOD IN INDIA

Indian Councils Act, 1909 (Morley-Minto Reforms) (Separate Electorates Introduced)

- **Separate Electorates:** For Muslims; start of communal politics.
- **Elected Indians:** Entry of elected Indians in legislative councils. (First time indirect elections were introduced in India)
- **Executive Councils Expanded:** Indian nominated to Viceroy's executive council. (Satyendra Prasanna Sinha, he became the first Indian to enter the Viceroy's Executive Council as Law Member)

Government of India Act, 1919/Montague-Chelmsford Reforms (Dyarchy Introduced)

- **Indian Members in Executive Council:** The Act mandated the inclusion of three Indians in the Viceroy's executive Council.
- **Bicameral Legislature:** The Central legislature now had two houses.
- **Decentralization:** The Act relaxed the central control over the provinces by demarcating and separating central and provincial subjects.
- **Dyarchy at Provinces:** Subjects divided into reserved and transferred.
- **Central Public Service Commission:** The Act provided for the establishment of a public service commission, leading to the establishment of the Central Public Service Commission in 1926.
- **Significance:** It increased Indian participation, introduced dyarchy in provinces, and expanded legislative reforms, marking a gradual step toward self-governance and political awareness.

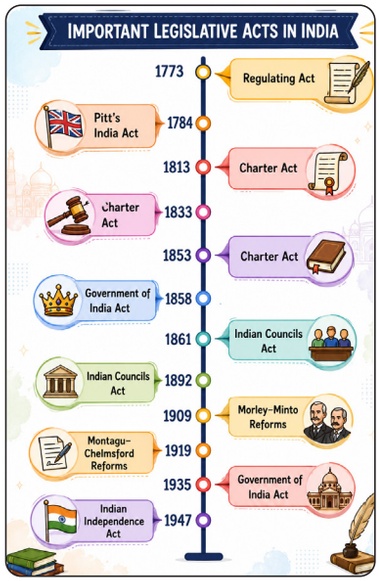


Fig. 1.1: Historical Evolution of Indian Constitution

Government of India Act of 1935 (Blueprint for Constitution)

- **Division of power between Centre and Provinces:** Federal List, Provincial List and Concurrent list.
- **Dyarchy at Center (Not Implemented):** Divided central subjects into reserved and transferred categories, but never implemented.
- **Bicameral Legislatures (Limited):** Introduced upper houses in some provinces with restrictions.
- **Expanded Representation:** Increased voting rights (around 10% of population) and separate electorates for specific groups.
- **Restructured Administration:** Abolished Council of India, established advisors for the Secretary of State, and created Public Service Commissions (Federal, Provincial, Joint).
- **Federal Court:** The Act provided for the establishment of a Federal Court with both original and appellate jurisdictions.
- **Significance:** This act was the most comprehensive and extensive legislation enacted by the British Parliament for the governance of India. Despite its limitations, it marked a milestone towards a completely responsible government in India and provided Indians with practical experience of running the government.

Is the Indian Constitution a Carbon Copy of the Government of India Act, 1935?

Similarities

- **Administrative Structure:** The federal structure with a strong Centre, provincial autonomy, and the Governor's powers are retained.
- **Emergency Provisions:** The emergency framework in the Constitution closely resembles the 1935 Act.
- **Institutional Continuity:** Offices like Governor, Federal Court (now Supreme Court), and Public Service Commissions were continued.

Differences

- **Democratic Foundation:** Unlike the 1935 Act (an imposed colonial law), the Constitution was made by a sovereign Constituent Assembly. Indian constitution established sovereign, democratic republic, unlike colonial control.
- **Fundamental Rights & Duties:** The 1935 Act lacked any guarantee of rights, while the Constitution enshrines justiciable rights and duties and introduced Directive Principles of State Policy (DPSP)..
- **Elected Institutions:** The Constitution provides for universal adult franchise and parliamentary democracy, unlike the limited representation under the 1935 Act.
- **All-India Federation:** Proposed (never implemented) with princely states.

Indian Independence Act of 1947 (End Of British Rule)

- **Salient Features of the Act:**
  - **End of British Rule:** British control ended; Dominion status granted, **Power to the Constituent Assemblies:** The Act gave the constituent assemblies of India and Pakistan the power to frame their respective constitutions, **Partition Approved:** India and Pakistan to be created.
- **Significance:** The Indian Independence Act of 1947 marked the end of British rule in India and declared India and Pakistan as two separate dominions.

CONSTITUENT ASSEMBLY OF INDIA

The Constituent Assembly of India, formed under the 1946 Cabinet Mission Plan, initially had 389 members (later 299 post-Partition) comprising indirectly elected representatives and princely state nominees. Working for nearly three years, with key contributions from leaders like B.R. Ambedkar, it adopted the Constitution on 26 November 1949, which came into effect on 26 January 1950.

Key Members of the Constituent Assembly

- **Dr. B.R. Ambedkar:** Chairman, Drafting Committee
- **Jawaharlal Nehru:** Moved the Objectives Resolution
- **Sardar Vallabhbhai Patel:** Integration of princely states
- **Rajendra Prasad:** President of the Constituent Assembly
- **Maulana Abul Kalam Azad:** Advocate of education and minority rights
- **Sarojini Naidu:** Prominent woman member.

Women in the Indian Constituent Assembly

- **Representation:** Out of 299 members, **15 were women**—a small but powerful presence.
- **Diverse Backgrounds:** Many had faced **child marriage, caste barriers, widowhood, and limited education**, yet rose to lead.
- **Some of the notable figures were:**
  - **Begum Aizaz Rasul:** Only Muslim woman member; **opposed religious reservations**, supported secularism and women's rights.
  - **Vijaya Lakshmi Pandit:** Stressed **India's global role** and **citizens' rights**, later became **UNGA President**.
  - **Ammu Swaminathan:** Supported adult franchise, Hindu Code Bills, and anti-child marriage laws. Championed removal of untouchability in the Constituent Assembly.
  - **Durgabai Deshmukh:** Advocated lowering ministerial age limit from 35 to 30. Served in the Planning Commission and chaired the Central Social Welfare Board.
  - **Rajkumari Amrit Kaur:** Supported Uniform Civil Code; wanted "freedom of religious worship" in the Constitution.
- **Impact:** These women strongly advocated for **gender equality, fundamental rights**, and **minority protection**, leaving a lasting legacy in the Constitution.

CRITIQUES OF THE INDIAN CONSTITUTION

1. **Length & Detail:** Though complex, its detail ensures clarity and accommodates India's diversity.
2. **Rigidity vs Flexibility:** Balances stability with adaptability through amendments.
3. **Borrowed Constitution:** Adapts global ideas to India's unique context.
4. **Legal Language:** Technical, but necessary for precision in governance.
5. **Unitary Bias:** Strong Centre ensures unity while enabling cooperative federalism.
6. **1935 Act Influence:** Only administrative structures borrowed; democratic principles are original

BRITISH LEGACY IN THE INDIAN CONSTITUTION

- **Parliamentary System:** India adopted the British **Westminster model** of a **bicameral legislature** and a **cabinet system**.
- **Judicial System:** The structure of India's judiciary mirrors the **British hierarchical system**, with the **Supreme Court** at the top.
- **Rule of Law:** The principle of the **rule of law** was inherited from British legal traditions, ensuring equality before the law.
- **Governor's Role:** The **Governor** in Indian states is modeled on the **Governor-General** of British India.
- **Civil Services:** The Indian **IAS** system is based on the British **Indian Civil Services (ICS)**.

Key Words

Carbon copy, Lawyer's Paradise, Bag of borrowings, Excessive length, Dual government, Centralisation of Power, limited Governance, Indirect Representation, Communal Electorate, All India Federation, Dyarchy, Provincial Autonomy

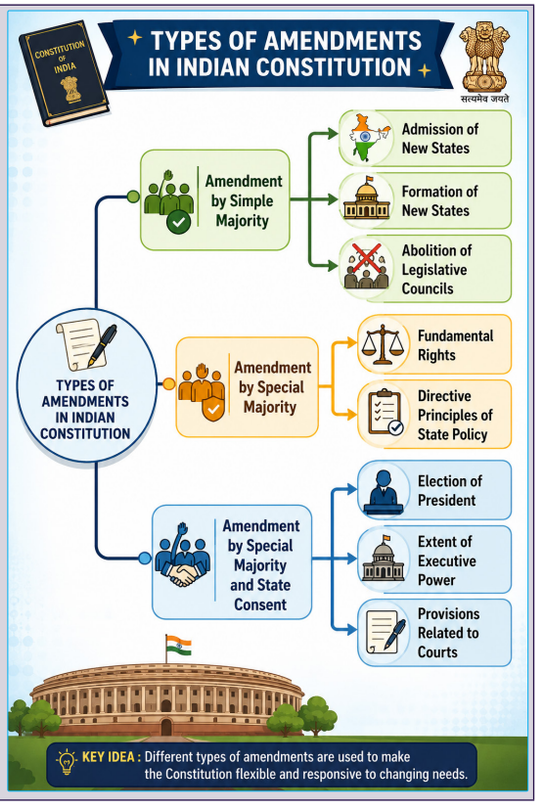
2 Constitutional Amendments in India

The Indian Constitution reflects the journey of India from a colony to a sovereign republic. As Pandit Nehru aptly noted, a constitution must be both rigid and flexible to meet a nation's evolving needs. Guided by this vision, Article 368 empowers Parliament to amend the Constitution, balancing continuity with change. With 106 amendments so far, this process has enabled the Constitution to adapt to social, political, and economic transformations while preserving its core ideals.

PROCESS OF CONSTITUTIONAL AMENDMENT

1. **Introduction of Amendment Bill**
   - In either House of Parliament
   - By a minister or private member
   - No President's prior permission needed
2. **Passage in Parliament**
   - Passed in each House separately
   - Special majority:
     - Majority of total membership
     - Two-thirds of members present & voting
   - No joint sitting allowed if disagreement
3. **Ratification by States (if required)**
   - Applicable only for amendments affecting federal provisions
   - Requires approval by 50% of state legislatures
   - Simple majority in each state suffices
4. **Presidential Assent**
   - President must give assent
   - Cannot return or withhold the bill

As **Dr. Bhimrao Ambedkar noted**, the Indian constitution is a living document, and it must evolve with the changing times, challenges, and aspirations of the nation. If it isn't allowed to change, it could hinder the growth of the nation.



THE NECESSITY OF CONSTITUTIONAL AMENDMENTS

- **Evolving social order:** Protect weaker sections and ensure social justice (e.g., 106th Amendment, women's reservation).
- **Strengthening institutions:** Improve governance and political stability (e.g., 52nd Amendment, Anti-Defection Law).
- **Technological changes:** Address new issues like digital privacy and data protection.
- **Fulfilling social contracts:** Implement constitutional ideals like Gram Swaraj (73rd & 74th Amendments).
- **Structural adjustments:** Modify fundamental provisions as per changing economic needs (e.g., abolition of Right to Property).
- **Administrative efficiency:** Simplify systems and reduce complexity (e.g., GST through 101st Amendment).

ISSUES AND CRITICISMS OF THE CONSTITUTIONAL AMENDMENT PROCESS

Limitations in Amendment Process & Suggested Improvements (UPSC 2025)

Procedural Limitations

1. **Absence of Dedicated Body:** No constitutional review body leads to fragmented amendments (e.g., frequent amendments without holistic review)

   Improvement: Establish a dedicated review mechanism/committee

2. **Parliamentary Deadlocks:** No provision to resolve Lok Sabha–Rajya Sabha disagreements (e.g., potential stalling of contentious amendments)

   Improvement: Introduce a deadlock resolution mechanism
3. **State Ratification Issues:** No time limit or clarity on withdrawal of consent (e.g., delays in amendments requiring state approval)

   Improvement: Fix a clear ratification timeframe
4. **Limited Public Participation:** Lack of wider consultation reduces legitimacy (e.g., 103rd Constitutional Amendment Act passed with limited consultation)

   Improvement: Ensure greater stakeholder participation and transparency

Substantive Limitations

1. **Federal Imbalance:** Amendments may disturb Centre–State relations (e.g., "One Nation, One Election" proposal impacting regional autonomy)

   Improvement: Strengthen the role of State legislatures
2. **Majoritarian Concerns:** Dominant governments may overlook minority rights (e.g., rapid passage of key amendments affecting representation)

   Improvement: Introduce procedural safeguards and stricter scrutiny
3. **Basic Structure & Institutional Balance:** Undefined scope creates legal uncertainty (e.g., evolving interpretation after Kesavananda Bharati v. State of Kerala)

   Improvement: Use review mechanisms to maintain Parliament–Judiciary balance

IMPORTANT AMENDMENTS

42nd Constitutional Amendment Act, 1976 (Mini Constitution)

- Inserted "Socialist" and "Secular" in the **Preamble**.
- Added **Fundamental Duties** (Part IVA).
- Curtailed Fundamental Rights during Emergency.
- Strengthened Parliament vis-à-vis Judiciary and States.
- **Significance:** Centralized power, weakened judiciary and federalism, emphasized socio-economic justice.

44th Constitutional Amendment Act, 1978

- Restored **Fundamental Rights** curtailed during Emergency.
- Made national emergency provisions more stringent (Art. 352, 356).
- Reclassified **Right to Property** as a legal right (Art. 300A).
- Restored judicial review and checks on Parliament.
- **Significance:** Strengthened democracy and protected the Constitution's basic structure.

106th Constitutional Amendment Act, 2023 (Women's Reservation)

- Reserved **1/3rd seats for women** in Lok Sabha, State Assemblies, and Delhi Assembly (including within SC/ST seats).
- **Significance:** The amendment promotes gender equality by increasing women's political participation and representation in policymaking.
- However, the rotational system may affect continuity, and concerns remain over its impact on SC/ST reservations and the effectiveness of sub-quotas.

LIMITS ON PARLIAMENT'S AMENDING POWER UNDER ARTICLE 368

Article 368 of the Indian Constitution empowers the Parliament to amend the Constitution. However, this power is **not absolute.** **(UPSC 2019)**

- In Keshavnanda Bharti Case, the Supreme Court held that **Parliament has the power to amend any part of the Constitution**, including Fundamental Rights.
  - However, it ruled that **this power is not unlimited** and **cannot be used to alter or destroy the 'Basic Structure' of the Constitution**.
- Similarly, in the Minerva Mill case, the Supreme Court examined the **validity of certain provisions of the 42nd Constitutional Amendment**, which sought to enhance Parliament's powers to amend the Constitution.
  - It held that **granting unlimited amending powers to Parliament would itself violate the Basic Structure** of the Constitution.

- The judgment **reaffirmed the Basic Structure Doctrine** and emphasized the importance of **maintaining a balance between Fundamental Rights and Directive Principles**.

Thus, Parliament cannot use Article 368 to expand its powers in a way that damages the core values of the Constitution like democracy, rule of law, separation of powers, and judicial review. The amending power is inherently limited and subject to constitutional checks.

❖ **Doctrine of Severability and Constitutional Amendments**
- The doctrine of severability allows courts to invalidate unconstitutional parts of a law or amendment while upholding the rest. It ensures that legislative intent is preserved. In constitutional amendments, if a provision is unconstitutional, only that part is struck down, leaving the rest intact.
- Key cases like **Shankari Prasad vs. Union of India (1951)** and **Kesavananda Bharati vs. State of Kerala (1973)** showcase its application. This doctrine balances judicial review with legislative intent.

Key Words

Judicial Interpretation, Conventions, basic structure, majoritarianism, public deliberation, Dedicated Committee, Deadlock Resolution Mechanism, Constitutional Machinery; Constitutionality; Authoritarianism

Previous Year Questions	Year
1. "Parliament's power to amend the constitution is a limited power and it cannot be enlarged into absolute power". In the light of this statement explain whether parliament under article 368 of the constitution can destroy the Basic structure of the constitution by expanding its amending power?	**2019**
2. What was held in the Coelho case? In this context, can you say that judicial review is of key importance amongst the basic features of the Constitution?	**2016**

❖ ❖ ❖

3 Preamble

The Constitution's Preamble outlines its core principles and purpose. Drafted by Vengalil Krishnan Krishna Menon, it establishes the "We the People" source of authority and defines India's character along with the Constitution's objectives.

THE PREAMBLE: CORE VALUES AND THE 'REPUBLIC' FRAMEWORK (UPSC 2016)

The Preamble serves as the horizontal identity of the Indian Constitution, defining the nature of the Indian State and the objectives of its citizens.

- **Sovereign:** India is both internally and externally sovereign, meaning no external power can dictate Indian policies and the state holds supreme authority internally.
  - **Core Value:** Reflects independence in foreign policy, treaty-making, and legislative autonomy while reinforcing the supremacy of the Constitution.
  - **Defendability & Recent Context:** India maintains **Strategic Autonomy** (e.g., navigating the US-China conflict and Russia-Ukraine crisis independently) and achieves self-reliance through defense milestones like the **Agni and BrahMos missiles**.
- **Socialist:** India adopts a "Democratic Socialism" aimed at ending poverty, ignorance, and inequality of opportunity.
  - **Core Value:** Emphasizes a mixed economy with both public and private sectors, manifested through welfare schemes and land reforms to ensure social justice.
  - **Defendability & Recent Context:** In the era of LPG (Liberalization, Privatization, Globalization), socialism is defended through massive welfare interventions like **PM-KISAN** (direct income support for farmers) and **MGNREGA**. Public sector giants like **LIC and SBI** continue to uphold socialist ideals by ensuring financial inclusion.
- **Secular:** The State maintains neutrality in religious matters, treating all religions equally (Sarva Dharma Sambhava).
  - **Core Value:** Unlike the Western model of total separation, India guarantees equal protection for all religions, reinforced by Articles 25–28 and the S.R. Bommai case.
  - **Defendability & Recent Context:** Secularism is sustained through the nationwide celebration of diverse festivals and judicial protection of religious freedoms. Striking a balance between market forces and religious public welfare remains a modern challenge.
- **Democratic:** Ensures a government "of the people, by the people, and for the people," encompassing political, social, and economic democracy.
  - **Core Value:** Focuses on electoral accountability, rule of law, and fair representation for marginalized communities.
  - **Defendability & Recent Context:** Democracy is defended through regular, high-participation elections and judicial interventions, such as **striking down Section 66A of the IT Act** to protect free speech.
- **Republic:** The head of the State (President) is elected, not hereditary, ensuring that power resides with the people rather than a monarchy.
  - **Core Value:** Prevents the concentration of power and privilege based on birth.
  - **Modern Challenge:** As a Republic, India grapples with widening socio-economic disparities; achieving substantive equality for all citizens remains the critical objective.

Objectives of the Preamble: Justice, Liberty, Equality, and Fraternity

The adjectives above define the *nature* of the Republic, while the following values define its *objectives*:

- **Justice (Social, Economic, Political):**
  - **Social:** Ending discrimination.
    - *Recent Context:* The **Karnataka High Court** recognized transgender rights to inherit ancestral property.
  - **Economic:** Equitable wealth distribution.
    - *Recent Context:* **PM-KISAN** provides financial security to marginal farmers.
  - **Political:** Equal access to power.
    - *Recent Context:* The **106th Constitutional Amendment** provided women's reservation in the Lok Sabha and State Assemblies.
- **Liberty:** Empowers citizens to think freely and follow personal beliefs, protected by Articles 19 and 25–28.
  - *Recent Context:* Judicial interpretations of **Article 21** have expanded the **Right to Privacy**.

- **Equality:** Guarantees equal status and opportunity (Articles 14–18).
  - Abolishes untouchability (Article 17) and prohibits titles (Article 18).
  - *Recent Context:* The **PM Gramin Digital Saksharta Abhiyan** promotes digital equality in rural areas.
- **Fraternity:** Promotes a sense of common brotherhood to overcome barriers of caste and religion.
  - *Recent Context:* Former CJI D.Y. Chandrachud emphasized that **without fraternity, equality and justice remain hollow**, as it is essential for a pluralistic ethos.

SIGNIFICANCE OF PREAMBLE

- **Source of Authority:** It declares the source of the Constitution's authority as "We, the People of India," establishing a democratic foundation.
- **Defines the Nation:** It defines India as a Sovereign, Socialist, Secular, Democratic Republic, outlining the core principles of the nation.
- **Sets Goals:** It lays out the fundamental goals of securing justice (social, economic, and political), liberty, and equality for all citizens.
- **Guiding Light for Interpretation:** Courts use the Preamble to interpret the Constitution's provisions during legal disputes.
- **Reflection of Ideals:** It reflects the idealistic vision of the Constitution's framers for a just and equitable society.

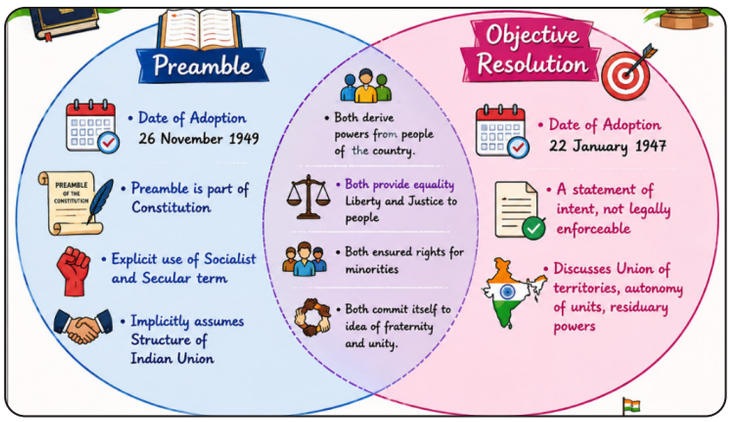


Fig. 3.1: Preamble and Objective Resolution

AMENDABILITY OF PREAMBLE

- **Limited Amendment View (Berubari Case, 1960):** Initially, the Supreme Court, in the Berubari Case (1960), held that the Preamble wasn't part of the Constitution and therefore couldn't be amended.
- **Preamble as Amendable (Kesavananda Bharati Case, 1973):** However, a landmark shift occurred in the Kesavananda Bharati Case (1973). The Court reversed its position, declaring the Preamble to be part of the Constitution and amendable, provided the amendment does not violate the "basic structure" of the Constitution.
  - **42nd Constitutional Amendment Act**, added three words, **socialist, secularism and integrity** in the Preamble.
- **Recent Proposals:** In light of this, recent proposals have included one to replace the word "socialist" with "equitable" in the Preamble, sparking debate about the potential exercise of this amendability.

The Preamble embodies the values that guided India's freedom struggle and serves as the foundation for the country's democratic structure. These values are crucial to the nation's progress and the pursuit of justice, liberty, equality, and fraternity.

DIFFERENCES BETWEEN INDIAN, FRENCH AND USA SECULARISM

Basis	India	France	United States
Core Principle	"Sarva Dharma Samabhava" – equal respect for all religions; inclusive and accommodative approach	Laïcité – strict separation of religion from state and public sphere	Negative secularism – strict church-state separation under the Establishment Clause
Religious Expression	Generally permits religious symbols in public spaces; e.g., turbans exempt from helmet laws	Bans conspicuous religious symbols in public institutions like schools	Allows individual expression of religion; public officials and institutions must remain neutral
State Funding	Permits state funding of religious institutions	Prohibits state funding as part of Laïcité	Prohibits direct state funding of religious institutions
Personal Laws	Allows separate personal laws for different communities (e.g., Hindu, Muslim personal laws)	Enforces a uniform civil code regardless of religion	No separate personal laws based on religion
State Involvement	State engages with and supports various religious institutions for social reform and welfare	Public institutions must remain strictly secular	Government refrains from involvement in religious matters
Secularism Nature	Positive secularism – inclusive and reformist	Assertive secularism – exclusion of religion from public affairs	Negative secularism – non-interventionist and individual-centric

What France can learn from Indian Secularism? **(UPSC 2019)**

- **Equal State Distance:** Respect all religions while ensuring justice (e.g., *abolition of Triple Talaq in Shayara Bano case, 2017).*
- **Religious Freedom Protection:** Allow religious practices unless they harm public order, health, or morality. (Article 25)
- **State Intervention for Reform:** Correct regressive practices for social justice (e.g., *Hindu Code Bills modernizing marriage and inheritance laws*).
- **Recognition of Religious Pluralism:** Accommodate diverse customs within a constitutional framework.
- **Anti-Discrimination Laws:** Ban religious bias in education and employment to ensure equality.
- **Public Space Inclusivity:** Permit religious symbols and attire (e.g., *Sikh soldiers allowed turbans in Indian Army)*.
- **Dynamic Judicial Interpretation:** Evolve secular principles with changing social needs. (e.g., *abolition of Triple Talaq*)

Key Words

Source of authority, Identity card, Guiding Light, Reflection of Ideals, inclusive and accommodative approach.

Previous Year Questions	Year
1. Discuss India as a secular state and compare it with the secular principles of the US constitution.	2024
2. What can France learn from the Indian Constitution's approach to secularism?	2019
3. Discuss each adjective attached to the word 'Republic' in the 'Preamble'. Are they defendable in the present circumstances?	2016

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4 Fundamental Rights

Fundamental Rights are enshrined in Part III (Articles 12-35) of the Indian Constitution. These are basic human rights guaranteed to all Indian citizens, essential for a life of dignity and freedom. They act as limitations on the power of the government, ensuring that the government cannot arbitrarily deny these rights to individuals. These rights are guaranteed to all Indian citizens, irrespective of caste, religion, gender, or social status. They are inspired from the Bill of Rights of the American Constitution.

FEATURES OF FUNDAMENTAL RIGHTS

- Protection against arbitrary power of the State; ensures dignity, liberty, and minority protection.
- Justiciable and enforceable through courts via writs.
- Not absolute; subject to reasonable restrictions in public interest.
- Judicially dynamic; scope expanded through interpretations (e.g., Right to Privacy under Article 21).
- Emergency flexibility; some rights can be suspended, but Articles 20 and 21 remain protected.

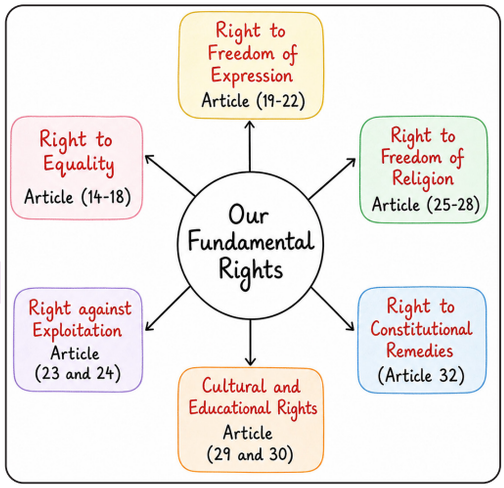


Fig 4.1: Fundamental Rights

ARTICLE 12

- Article 12 defines **'State'** for the purpose of **Part III (Fundamental Rights)** of the Constitution. It includes:
  - Central and State Governments (Executive and Legislature),
  - Local Authorities (e.g., Municipalities, Panchayats),
  - Other Authorities (including statutory bodies and government-controlled institutions).
- **Judiciary & Article 12:** The judiciary is excluded **when acting in its judicial capacity** but is included for **administrative actions** (e.g., recruitment), which can be challenged under Article 226.
- **Exclusions & Recent Judicial Interpretation: International bodies** like the **United Nations** are excluded and cannot be challenged under Article 226.
- **In recent rulings:** The Kerala High Court (2024) held that Unit-Run Canteens not financed or controlled by the government are not 'State'.
  - The Allahabad High Court (2025) clarified that private companies are not 'State' merely for adhering to government regulations.

ARTICLE 13

- **Article 13:** Article 13 establishes that any law contradicting or weakening Fundamental Rights is invalid. This explicitly lays the foundation for judicial review.
  - **Power of Judicial Review:** The Supreme Court (Article 32) and High Courts (Article 226) hold the power of judicial review. They can declare any law unconstitutional and void if it violates Fundamental Rights.
- **What can be Challenged?** The term "law" has a broad interpretation.
  - Permanent laws passed by Parliament or state legislatures.
  - Temporary laws like ordinances issued by the President or state Governors.
  - Secondary legislation (delegated legislation) by the executive, including orders, bylaws, rules, regulations, or notifications.
  - Non-legislative sources of law such as established customs or practices with legal force.
- **Exceptions to Judicial Review:** Constitutional amendments are not considered "laws" and cannot be directly challenged.
  - However, a landmark Supreme Court ruling in the **Kesavananda Bharati case (1973)** established that a constitutional amendment can be challenged if it violates a fundamental right deemed part of the Constitution's "basic structure."

RIGHT TO EQUALITY (ARTICLE 14 -18)

This fundamental right enshrined from Article 14 to 18 in the Constitution of India guarantees equal treatment before the law, prohibits discrimination based on factors like religion, caste, or sex, and ensures equal access to public spaces and government jobs.

Article 14: Equality Before Law

- Article 14 asserts that no person will be denied Equality before Law or Equal Protection of Law within Indian territory.
- Article 14 permits reasonable classification but prohibits arbitrariness.
- Classification is valid only when it is reasonable, based on intelligible differentia, and has a rational nexus with the objective.
- Today, it guarantees substantive equality, dignity, and inclusiveness, expanded in Navtej Singh Johar v. Union of India.

Equality Before Law	Equal Protection of Laws
British concept	American concept
No special privileges; all are equal before law	Equal treatment in similar circumstances
Subjects everyone to the same law	Ensures same laws apply consistently to similar groups
No one is above the law	Protects against discriminatory application of laws
Example: A politician and a commoner stealing face the same legal process	**Example:** Tax benefits must apply equally to all qualifying small businesses

Exceptions under Article 14

- **Immunities of High Offices:** Article 361 grants certain immunities from legal proceedings to the President and Governors to ensure they can perform their duties without undue pressure.
- **Parliamentary Privileges:** Members of Parliament (MPs) and state legislative assemblies enjoy certain privileges and immunities (Articles 105 and 194 respectively) to allow for free and independent discharge of their legislative responsibilities.

Equality in USA vs India (UPSC 2021)

- **Constitutional Basis:** India guarantees equality under Article 14–18, while USA ensures equality under the 14th Amendment (Equal Protection Clause, 1868).
- **Approach to Equality:** India follows "reasonable classification + anti-arbitrariness" (e.g., E.P. Royappa case), while USA applies strict/intermediate scrutiny in discrimination cases (e.g., Brown v. Board of Education, 1954).
- **Scope of Equality:** India allows affirmative action under Article 15(4), 16(4) for weaker sections; USA allows limited affirmative action but often faces strict judicial review (e.g., University admissions cases).
- **Judicial Interpretation:** Indian courts expanded equality to include fairness and non-arbitrariness (Maneka Gandhi case), whereas US courts focus more on anti-discrimination in specific protected categories like race and gender (Loving v. Virginia, 1967).

Constitutional Perspective on Gender Justice (UPSC 2023)

Gender justice in India is rooted in the Constitution's commitment to equality and dignity.

- **Preamble:** Ensures a society based on justice, equality, and dignity, supporting equal rights for all genders.
- **Fundamental Rights:** Article 14, Article 15, 15(3), and Article 16
- **Article 51A(e):** Encourages respect for women's dignity.
- **DPSPs (Articles 39(a), 39(d), 42):** Advocate for gender justice in employment, pay, and working conditions.

Supreme Court Cases

- In ***Vishaka v. State of Rajasthan***, the Supreme Court framed guidelines to prevent sexual harassment at workplaces.
- In ***Air India v. Nargesh Meerza***, challenged gender discrimination in the work place, termination based on pregnancy was struck down as unconstitutional.
- ***Joseph Shine v. Union of India***, it struck down the adultery law as discriminatory. These illustrate the evolving constitutional commitment to gender justice.
- **Voluntary Health Association of Punjab (2013):** Addressed female foeticide and sex selection.
- **Marital Rape Ruling:** Granted equal abortion rights to married and unmarried women.
- **Anuj Garg vs. Hotel Association (2008):** Ensured women's equality in workplaces like liquor-serving establishments.

Gender justice in India is supported by constitutional provisions and judicial rulings, promoting ongoing legal and societal reforms.

Article 15: Prohibition of Discrimination

- **Prohibition of Discrimination:** Article 15 prohibits the state (government) from discriminating against any citizen only on grounds of religion, race, caste, sex, or place of birth.
- **Access to Public Places and Amenities:** It ensures citizens can access shops, restaurants, hotels, places of public entertainment, wells, tanks, bathing ghats, roads, and places of public resort without discrimination.
- **Janhit Abhiyan v. Union of India (2022):** It upheld the constitutionality of the 103rd Constitutional Amendment, which introduced 10% reservation for EWS in education and public employment. The Supreme Court ruled that EWS reservation does not violate the basic structure of the Constitution.

Exceptions Under Article 15

- **Affirmative Action:** The Constitution allows the state to make special provisions for disadvantaged groups like women, children, Scheduled Castes (SCs), Scheduled Tribes (STs), and Socially and Economically Backward Classes (SEBCs) in public educational institutions (1st Constitutional Amendment Act, 1951).
- **Reservations in Education:** The state can reserve seats in educational institutions, including private ones (except for minority institutions), for backward classes, SCs, and STs to promote their educational advancement (93rd Constitutional Amendment Act, 2005).

Article 16: Equality of opportunity in Public Employment

- **Equality of Opportunity in Public Employment:** It guarantees equal opportunity for all citizens in matters relating to government jobs and appointments.
- **Non-Discrimination:** No citizen can be discriminated against based on religion, race, caste, sex, descent, place of birth, residence, or any of them for government jobs.
- **Exceptions:** The article allows some exceptions:
  - **Residential Requirements:** Parliament can make laws requiring citizens to have a residency period within a state for government jobs there.
  - **Reservation Policy:** The government can reserve appointments for backward classes (Scheduled Castes, Scheduled Tribes) and Other Backward Classes to promote social equality.
  - **Reservation for Economically Weaker Sections:** A 10% reservation for economically weaker sections of society has been added through a recent amendment.

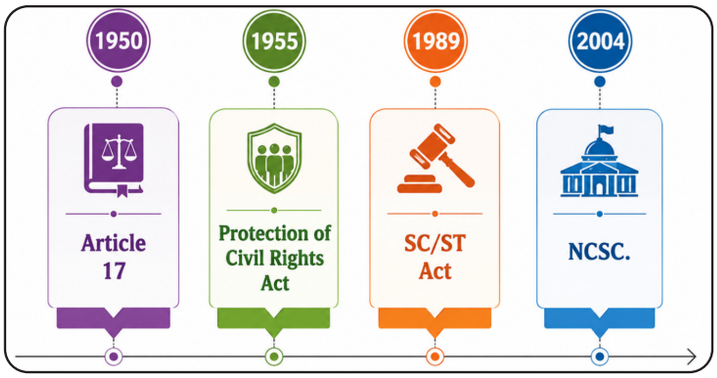


Fig. 4.2: Initiatives against Untouchability

Cases Related to Reservation

- **Indra Sawhney Case (1992) –** Capped reservation at **50%**, introduced the **creamy layer** for OBCs, and disallowed **reservation in promotions** for OBCs.
- **M. Nagaraj Case (2006) –** Allowed reservation in promotions for SC/STs but mandated proof of **backwardness, inadequate representation**, and **administrative efficiency**.
- **Jarnail Singh Case (2018) –** SC modified its previous verdict in M. Nagaraj case. **No need to prove backwardness** for SC/STs in promotions; upheld **creamy layer** principle for SC/STs.

The **Justice Rohini Commission**, set up in 2017, aimed to sub-categorize OBCs for fairer distribution of the 27% central reservation. It found that a few dominant OBC groups were cornering most benefits and recommended dividing OBCs into categories to ensure equitable access. The report was submitted in July 2023 but hasn't been made public yet.

- **Significance:** Article 16 promotes meritocracy and aims to eliminate social inequalities in government employment.
- **Challenges:** Despite the article, issues like caste-based discrimination in recruitment persist.
  - Misuse of reservation policy. **Example:** IAS Puja Khedkar Case.
  - Domino effect. **Example:** Demand of reservation by Maratha's in Maharashtra and Jats.
  - Undermines meritocracy. **Example:** Brain drain from India.

Demand for Local Reservation in Private Sector Jobs

The demand for local reservation in private jobs aims to empower locals and reduce unemployment but raises concerns over meritocracy and constitutionality (Article 19(1)(g)). States like **Haryana and Maharashtra** attempted such laws, but they faced legal challenges. A balanced approach through skill development and flexible policies may offer a better solution.

Article 17: Abolition of Untouchability

- **Outlaws Untouchability:** Article 17 abolishes untouchability in all its forms. It prohibits caste-based denial of access to public spaces, services, or jobs.
- **Legal Enforcement:** Makes practicing untouchability a punishable offense under the Protection of Civil Rights Act, 1955

Article 18: Abolition of Titles

- The state is prohibited from conferring any titles except military and academic distinctions (e.g., Param Vir Chakra). This aimed to create a society based on equality and merit, not inherited titles.
- Abolition of hereditary titles of nobility conferred by colonial States.

RIGHT TO FREEDOM (ARTICLES 19-22)

Article 19: Protection of Six Rights

- **Article 19** of the Indian Constitution guarantees **six fundamental freedoms** to all citizens. These freedoms are crucial for a functioning democracy.
  - These are protected against state action and are available to citizens and shareholders of a company but not to foreigners or legal persons such as companies or corporations.
  - These freedoms under Article 19 are not absolute. Reasonable restrictions can be imposed in the interest of public order, national security, and other legitimate concerns.

Rights under Article 19(1):

Freedom of Speech and Expression: Fundamental right to articulate one's opinions and ideas without fear of retaliation, censorship, or legal sanction.

Hate Speech and Fundamental Rights (UPSC 2014)

- **Freedom of Speech (Article 19(1)(a)):** Covers all forms—verbal, written, artistic, digital expression.
- Upheld in Shreya Singhal v. Union of India (2015) by striking down Sec 66A of the IT Act as unconstitutional. The court found it to be violative of Article 19(1)(a).
- **Reasonable Restrictions (Article 19(2)):** Speech can be restricted to maintain public order, decency, or morality.
- **BNS 2023 provisions: Section 194:** Prohibits promoting enmity between groups and Section 197: Penalises acts outraging religious feelings.
- **Hate Speech:** Not protected under Article 19(1)(a).In Amish Devgan v. Union of India (2020): SC held hate speech promoting violence/discrimination is excluded from free speech.
- **Pravasi Bhalai Sangathan v. Union of India (2014):** SC urged Parliament to enact specific hate speech laws.
- **Bezbaruah Committee (2014):** Recommended stronger laws against hate speech, especially targeting North-Eastern citizens.

Why Films Stand on a Different Plane?

- **Mass Influence:** Films have wider reach and shape public perception rapidly (e.g., Article 15 on caste).
- **Emotional Sensitivity:** Visual medium can trigger religious or political unrest (The Da Vinci Code, Padmaavat).
- **National Security:** Films like Kashmir: The Story banned due to potential to disturb unity/order.
- **Greater Impact:** Visual imagery has stronger emotional impact than text, requiring careful regulation.

- The **Right to Information** was recognized as a **fundamental right under Article 19(1)** in the **Raj Narain vs State of Uttar Pradesh (1976)** case, where the Supreme Court held that **citizens have the right to know** about the functioning of the government.
- **Right to Assemble Peaceably and without Arms:** The right to come together and collectively express, promote, pursue, and defend common interests.
- Supreme Court in Kameshwar Prasad v. State of Bihar held that peaceful demonstrations are protected under Article 19, and a blanket ban on government employee protests is unconstitutional.
- **Right to Form Associations or Unions or Co-operative Societies:** The right to join with others to collectively express, promote, pursue, and defend common interests.
- The Supreme Court in Board of Control for Cricket in India v. Cricket Association of Bihar held that the right to form associations under Article 19(1)(c) does not include an absolute right to manage them free from reasonable regulation. This builds on Damyanti Naranga v. Union of India, which protected the right to form associations with chosen membership.

- **Right to Move Freely throughout the Territory of India:** Allows citizens to move freely within the territory of India– though this right can be restricted in the interests of the general public or Scheduled Tribes.
- **Right to Reside and Settle in any Part of the Territory of India:** The right to live and settle in any part of the territory of India.

Right to Movement and Residence – Article 19(1)(d) & (e) **(UPSC 2019)**

State of Uttar Pradesh v. Kaushal Kishore (1999): The Supreme Court has upheld that the Right to Movement and Residence under Article 19(1)(d) and (e) is not absolute. The restrictions on movement and residence can be imposed for public order, national security, or protection of tribal areas, as allowed under Article 19(5).

Right to Movement: Reasonable Restrictions

- **Public Order and Health:** Lockdowns during COVID-19 prioritized public safety.
- **National Security:** AFSPA restricts access in conflict zones for security.
- **Environmental Protection:** Restricted access to areas like Sentinelese zones to protect tribes and ecosystems.
- **Protection of Others' Rights:** Prevents movement that infringes others' rights.

Right to Residence: Reasonable Restrictions

- **Protection of Scheduled Tribes:** ILP system in states like Arunachal Pradesh preserves tribal culture.
- **Property Laws:** States like Himachal Pradesh restrict outsider land ownership.
- **Public Health and Safety:** Zoning laws prevent hazardous setups in residential areas.
- **Economic Well-being:** Regulates land use to manage public resources effectively.

- **Right to Practice any Profession, or to Carry on any Occupation, Trade or Business:** The right to conduct any lawful profession, or to carry on any occupation, trade, or business.
  - **In the Anuradha Bhasin v. Union of India case (2020),** the Supreme Court held that access to the internet is essential for the exercise of the right to trade and business under Article 19(1)(g). The Court emphasised that suspension of internet services affects freedom of trade, and such restrictions must be reasonable, necessary, and proportionate.
- **Article 19(2)** permits the State to impose **'reasonable restrictions'** on these rights based on the grounds mentioned in the Article.

Article	Restrictions
Article 19(1)(a) – Freedom of Speech	Can be restricted for reasons like public order, decency, or defamation (Article 19(2)).
Article 19(1)(b) – Right to Assemble	Can be curtailed to maintain public order, sovereignty, or national security (Article 19(3)).
Article 19(1)(c) – Right to Form Associations	Can be restricted in the interest of state security or public morality (Article 19(4)).
Article 19(1)(d) – Freedom of Movement	Can be limited for reasons of national security, public order, or protection of Scheduled Tribes (Article 19(5)).
Article 19(1)(e) – Right to Reside Anywhere	Can be restricted for public interest or protection of Scheduled Tribes (Article 19(5)).

Article 20: Protection in Respect of Conviction for Offences

Article 20 of the Indian Constitution is a crucial safeguard against arbitrary punishments and unfair trials. It guarantees certain rights to individuals accused of crimes.

- **Protection from Retrospective Punishment:** This principle ensures a person cannot be convicted for an act that wasn't illegal when he committed it. Laws cannot be applied retroactively.
- **Double Jeopardy Prohibition:** A person cannot be prosecuted and punished for the same offense more than once.
- **No Self-Incrimination:** No person accused of a crime can be forced to be a witness against themselves. This protects individuals from being compelled to provide evidence that could incriminate them.

Article 20 lays the foundation for fair trials by ensuring these safeguards. It restricts the government's ability to arbitrarily convict or punish citizens. These rights ensure fair treatment within the legal system and protect individuals from potential misuse of power.

Article 21: Right to Life and Personal Liberty

- Article 21 of the Indian Constitution is considered the cornerstone of fundamental rights. It guarantees the most basic human right.
- It advocates that **no person can be deprived of their life or personal liberty** except according to a procedure established by law.
- It's the foundation for a broad range of human rights, including the right to privacy and the right to live with dignity.

Expanding Scope of Article 21 in a Living Document (UPSC 2023)

Constitution of India: A Living Instrument of Dynamism

- **Flexible Amendment:** 101st Amendment introduced GST adapting to economic needs.
- **Preamble Update:** 42nd Amendment (1976) added Secular and Socialist values.
- **Fundamental Rights Expansion:** Maneka Gandhi case (1978) broadened Article 21.
- **Judicial Review:** Kesavananda Bharati case (1973) upheld basic structure doctrine.
- **Emergency Safeguards:** 44th Amendment (1978) strengthened protection against misuse.

Adaptability to a Progressive Society

- **Right to Privacy:** Recognized in K.S. Puttaswamy case (2017).
- **Right to Education:** Article 21A added by 86th Amendment (2002).
- **Decriminalization of Homosexuality:** Navtej Johar case (2018).
- **Gender Justice:** Vishaka Guidelines (1997) against workplace harassment.

Expanding Right to Life and Personal Liberty

- **Right to Clean Environment:** M.C. Mehta case (1988).
- **Right to Information:** RTI Act (2005) enhanced transparency.
- **Right to Die with Dignity:** Aruna Shanbaug case (2011) allowed passive euthanasia.
- **Right to Internet:** Recognized in Anuradha Bhasin case (2019).

From mere protection against arbitrary action, it now encompasses rights like privacy, health, shelter, and dignity. This judicial expansion reflects the progressive vision of the Constitution and its ability to respond to contemporary societal needs, reinforcing its role as a guardian of human liberty.

Crucial Cases under Article 21

- **The A.K Gopalan Case (1950)** interpreted 'procedure established by law' narrowly, ruling that protection under Article 21 is only against arbitrary executive action, not arbitrary legislative action.
- **In Menaka Gandhi Case (1978)**, the Supreme Court widened the interpretation of 'procedure established by law' to include protection against arbitrary legislative action as well, similar to the American concept of 'due process of law'.
- **In the Puttaswamy judgment (2017)**, a landmark ruling, the Supreme Court held that privacy was intrinsic to freedom of life and personal liberty. It played a pivotal role in decriminalising homosexuality and abolishing provisions related to adultery.
- **Supriyo @ Supriya Chakraborty & Anr. v. Union of India, 2023**, in this case, the Court held that there is no fundamental right to marry under the Constitution and declined to legalize same-sex marriages, stating that such decisions fall within the purview of Parliament.

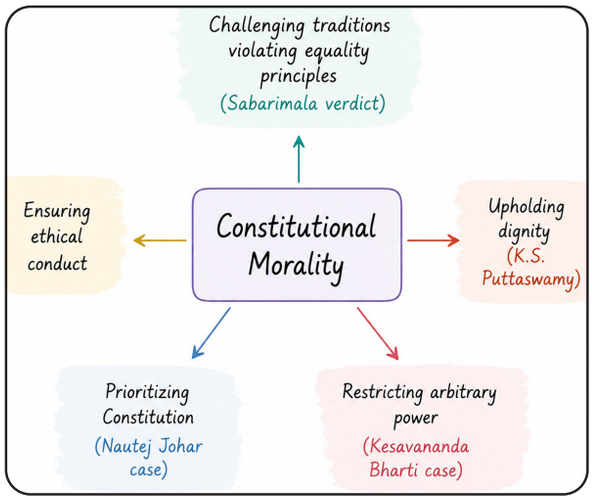


Fig. 4.3: Key Tenets of Constitutional Morality

- In Amar Jain v. Union of India, 2025, the Supreme Court held that meaningful and inclusive digital access is part of the fundamental right to life under Article 21. The Court directed reforms in e-KYC and digital systems to ensure accessibility for persons with disabilities, emphasising substantive equality and State obligation to ensure non-discriminatory digital governance.

Right to Clean Environment and Diwali Firecrackers (UPSC 2015)

The right to a clean environment, under Article 21, extends to regulating firecracker pollution. The Supreme Court balances festive traditions with environmental health.

Supreme Court's Role

- **Arjun Gopal v. Union of India (2017):** Temporary ban on firecracker sales in Delhi-NCR.
- **SC Guidelines (2018):** Allowed only green crackers, restricted timing, designated bursting zones.
- **Directive (2020):** Barred online sale of firecrackers to curb illegal trade.

Legal Regulation Beyond Firecrackers

- **Environmental Protection:** M.C. Mehta case (1987) – Relocation of polluting industries.
- **Pollution-Free Water and Air:** Subash Kumar case (1991) – Right to clean resources upheld.
- **Polluter Pays Principle:** Vellore Citizens Forum (1996) – Polluters held financially liable.

Concerns

- **Enforcement Issues:** Illegal firecracker sales despite bans.
- **Cultural Sentiment:** Some argue that blanket bans are excessive and that regulated use of green crackers should suffice
- **Economic Impact:** Firecracker industry and worker livelihoods hit.

Recent Issues and their Linkage to Article 21: Right to Life and Personal Liberty

Event/Issue	Linkage to Article 21	Significance
Right to Maternity Leave, 2025	In a **2025 Supreme Court judgment**, the Court held that **maternity leave is a legal right, not a discretionary benefit**, flowing from a woman's **reproductive autonomy and dignity under Article 21**.	It struck down denial of maternity leave based on the **two-child policy**, affirming that it is integral to **health, equality, privacy, and non-discrimination rights**.
Right to Menstrual Health, 2026	The Supreme Court recognised **menstrual health as part of Article 21** and directed schools and the State to ensure **sanitary pads, toilets, and hygiene facilities**.	It strengthens **gender justice and substantive equality**, and promotes **dignified, barrier-free access to education for girls**, reducing dropout rates and social stigma.
Right to Clean Environment (SC, April 2022)	SC recognized the right to a clean environment as integral to the right to life, balancing it with industrial development.	Reflects the court's approach to sustainable development, balancing environmental protection and economic growth.
Right to Be Forgotten (Aug 2024)	The right to be forgotten was linked to privacy and personal liberty under Article 21, highlighting the need for data protection.	Demonstrates how digital rights are integral to privacy, challenging traditional notions of freedom of expression.
Right to Disconnect (Dec 2024)	Framed as part of personal liberty, recognizing mental well-being as essential to the right to life under Article 21.	Highlights the shift towards recognizing mental health and work-life balance as components of personal liberty.
Right to Access Justice (Jan 2025)	SC observed that access to justice is not absolute, subject to practical constraints like infrastructure.	Reflects the tension between ideal access to justice and the reality of judicial capacity, highlighting the need for reform.
Right to Free Food (Oct 2024)	Emphasized as part of the right to life, reinforcing food security as a critical welfare responsibility of the state.	Reinforces the state's duty to ensure basic needs like food, essential for dignity and survival, as part of the right to life.

Right to Privacy and the Legal Dimensions of Prenatal DNA Testing (UPSC 2024)

The Supreme Court in Justice K.S. Puttaswamy (2017) held that the right to privacy is intrinsic to life and personal liberty under Article 21.

Right to Privacy under Article 21

- **Interlinked with Other Rights:** Supports freedom of speech (Art 19) and religion (Art 25).

- **Individual Autonomy:** Shields personal choices from interference.
- **Check on State Power:** Prevents arbitrary surveillance; requires legality and proportionality.
- **Supreme Court Ruling:** Puttaswamy case (2017) affirmed privacy as a fundamental right.
- **Reproductive Autonomy:** Safeguards family planning decisions.

DNA Testing and Paternity

- **Section 112, Indian Evidence Act:** Presumes legitimacy; DNA testing allowed only when essential.
- **Goutam Kundu Case (1993):** DNA tests to be sparingly used.
- **DNA Technology Bill, 2019:** Regulates DNA use, balances privacy and legal needs.
- **Constitutional Safeguard:** DNA testing must respect privacy under Article 21.
- **Consent Requirement:** Informed consent mandatory before DNA tests.
- **Supreme Court Judgements:**
  - In *Selvi v. State of Karnataka* (2010), it was held that **compulsory DNA testing violates privacy rights unless sanctioned by law** and justified by a larger public interest.
  - In *Dipanwita Roy v. Ronobroto Roy* (2015), the Court allowed DNA testing only with the woman's consent, safeguarding her dignity and privacy.

Scope of Fundamental Rights in the light of the Supreme Court on Right to Privacy. (UPSC 2017)

Expanding Scope of Fundamental Rights

- **Data Protection as a Right:** Basis for privacy laws. Eg: Digital Personal Data Protection Act (2023).
- **Limits on State Surveillance:** Due process mandatory. Eg: Anuradha Bhasin case (2020) on internet freedom.
- **Socio-Economic Rights:** Privacy ensures dignity in health, education, welfare. Eg: MTP (Amendment) Act, 2021 enabling safe abortions.
- **Judicial Safeguards:** Laws must meet necessity, legitimacy, proportionality. Eg: Impact on Transgender Persons Act (2019).
- **Expanded Article 21:** Privacy linked to human dignity. Eg: Common Cause case (2018) on passive euthanasia.

Key Concerns in Privacy and Data Protection

- **State Surveillance:** Balancing national security with individual privacy remains contentious. Eg, Pegasus spyware controversy
- **Private Sector Compliance:** Risks of data misuse and profiling by tech giants. Eg, WhatsApp–Facebook data sharing.
- **Judicial Consistency:** Lack of uniform application of privacy principles across cases. Eg, Variations in rulings on Aadhaar's use across sectors.
- **Public Awareness:** Low digital literacy hampers demand for privacy safeguards. Eg, Users often consent to data terms without understanding implications.

Do you know?

The **Bilkis Bano** case highlighted the clash between **right to liberty** and the **rule of law**. The Supreme Court emphasized that liberty cannot be exercised in a way that undermines justice and set aside the remission of convicts, upholding the **principle that no one is above the law**. The case serves as a reminder that individual rights must be balanced with constitutional morality and due process.

Article 21A Right to Education

Education is a fundamental building block for individual growth and societal development. Recognizing this importance, the Indian Constitution was amended in 2002(86th Amendment) to include Article 21A as part of the Fundamental Rights.

Key Points of Article 21A

- Article 21A mandates the State to provide free and compulsory education to all children aged 6–14 years, making education a justiciable fundamental right implemented through legislation like the RTE Act, 2009. It also promotes access and quality education, significantly improving enrolment rates in India.

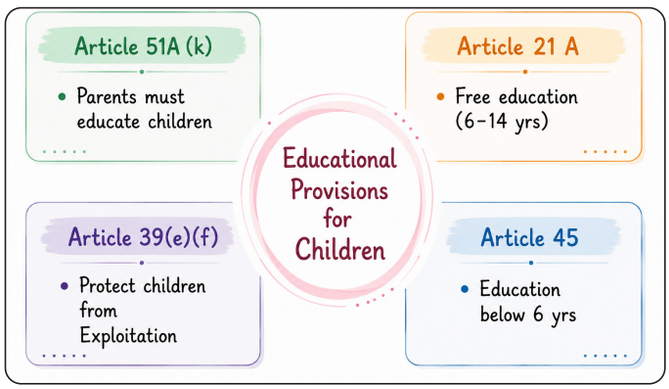


Fig 4.4: Educational Provisions for Children

- **Significance:** The NEP 2020 extends focus toward early childhood care and education (3–18 years), strengthening the continuum of school education.

Article 22: Protection against Arrest and Detention in Certain Cases

Article 22 of the Indian Constitution is a crucial safeguard against arbitrary arrest and detention. It guarantees certain rights to any person who is arrested, protecting them from misuse of power by the authorities.

- **Ordinary Law Conditions:**
  - **Protection from Uninformed Detention:** No person can be arrested and held in custody without being informed promptly about the reasons for the arrest.
  - **Right to Legal Counsel:** The arrested person has the fundamental right to consult and be defended by a lawyer of their choice.
  - **Magisterial Production:** The arrested individual must be produced before a magistrate within 24 hours of their arrest (excluding travel time).
  - **Right to be released after 24 hours unless authorised by a magistrate:** This continues the protection against arbitrary detention.
- **Preventive Detention Conditions:**
  - **Detention of a person cannot exceed three months without an advisory board report:** Prevents prolonged detention without adequate justification.
  - **Grounds of detention should be communicated to the detenu:** Ensures transparency and gives the detained person an opportunity to dispute the grounds of their detention.

Knowledge Nuggets

Preventive Detention: In September 2024, Supreme Court reaffirmed that under Article 22(5), a detenu must be promptly provided with not just the grounds of detention but also all documents relied upon.

- Any delay or denial in furnishing these hampers the detenu's constitutional right to make an effective representation.
- This reassertion reflects the judiciary's emphasis on **procedural fairness and checks against arbitrary detention**, reinforcing that even in preventive detention, constitutional safeguards must not be diluted.
- Article 22 protections apply to all persons, not just citizens: Karnataka High Courts, reaffirmed that Article 22's safeguards (informing grounds of arrest) extend to foreign nationals within India, and failure to do so can vitiate custody/remand.

RIGHT AGAINST EXPLOITATION (ARTICLE 23 -24)

Article 23: Prohibition of Traffic in Human Beings and Forced Labour

Article 23 of the Indian Constitution is a fundamental right that safeguards individuals from two key forms of exploitation: trafficking in human beings and forced labor.

- **Prohibition:** The article clearly prohibits practices such as
  - **Trafficking in human beings:** Buying and selling people as commodities.
  - **Begar:** Unpaid forced labor, often associated with historical practices like bonded labor for debt repayment.
  - **Other similar forms of forced labor:** Any situation where a person is compelled to work against their will, with threats or coercion.
- **Offense and Punishment:** Violations of this article are punishable by law, ensuring legal recourse for victims.
- **State's Power:** The article doesn't prevent the state from imposing compulsory service for public purposes (like national service in some countries). However, such service cannot discriminate based on religion, race, caste, or class
- **PUDR vs. Union of India:** A landmark judgement reinforcing the right against forced labour, ruling that economic compulsion that leaves no choice for a person and compels them to provide labour or service also constitutes forced labour.

Article 24: Prohibition of Employment of Children in Factories, etc.

Article 24 specifically safeguards children from hazardous work.

- **Prohibition on Child Labor:** It prohibits the employment of children below 14 years old in factories, mines, or any other hazardous work.
- **Doesn't Ban All Work:** It's important to note that Article 24 doesn't restrict children from all types of work. Non-hazardous or age-appropriate work might be permissible.
- **Complementary Laws:** Several laws have been enacted by the Parliament to enforce this provision, such as the Child Labour (Prohibition and Regulation) Act of 1986.

- **M.C. Mehta v. State of Tamil Nadu (1997):** Prohibited employment of children in hazardous industries like firecrackers and directed strict enforcement of Article 24 with rehabilitation measures.
- **People's Union for Democratic Rights v. Union of India (1982):** Held that child labour in hazardous work violates fundamental rights and mandated effective enforcement of Article 24.
- **Bachpan Bachao Andolan v. Union of India (2011):** Reaffirmed eradication of child labour and directed rescue, rehabilitation, and compulsory education of children.

Article 24 is a crucial step towards ensuring a childhood free from exploitation and promoting education. It empowers children to develop their full potential in a safe environment.

RIGHT TO FREEDOM OF RELIGION (ARTICLE 25 - 28)

- The Indian Constitution guarantees the right to freedom of religion in Articles 25 to 28. This enshrines the principle of religious tolerance and pluralism in India's diverse society.
  - Embodying the **principles of secularism**, these rights allow individuals and communities to practise their faith without fear of discrimination, subject to public order, morality, and health.

Article 25: Freedom of Conscience and Free Profession, Practice, and Propagation of Religion

Article 25 is a cornerstone of India's secular democracy, guaranteeing freedom of religion to all individuals.

- **Freedoms Guaranteed:** It enshrines four freedoms. (given in image)
- **Equality for All:** These freedoms apply equally to all persons in India, regardless of citizenship.
- **Reasonable Restrictions:** These freedoms are subject to "public order, morality and health" and other provisions of the Constitution. This allows the government to impose some limitations in the interest of social harmony and well-being.
- **State and Religion:** The government cannot promote any particular religion or discriminate on religious grounds.
- **Significance:** Article 25 promotes religious tolerance, pluralism, and peaceful coexistence of diverse faiths in India.

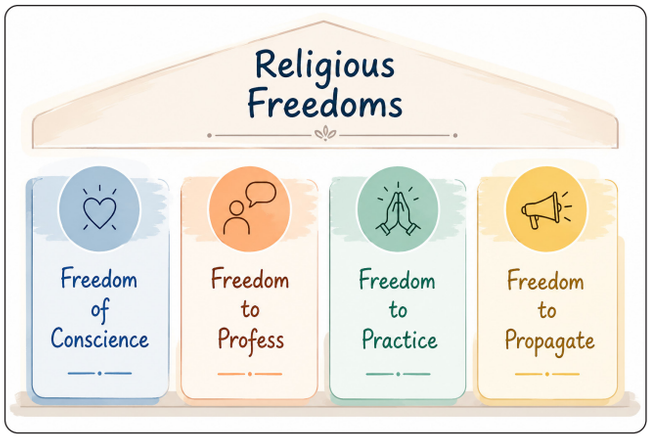


Fig 4.5: Right to Freedom of Religion

Freedom of Religion & Right to Privacy are interlinked

- The Supreme Court in *Rajendra Bihari Lal vs State of Uttar Pradesh* held that **Right to Privacy (Article 21)** is closely linked with **Freedom of Religion (Article 25)**.
- The Court stated that the freedom of conscience includes the right to choose, change, and keep one's religion private, and forcing public disclosure of faith can violate privacy.
- It also emphasized that laws like anti-conversion laws must satisfy the privacy standard laid down in *K.S. Puttaswamy case*, and reaffirmed individual autonomy in matters of faith as held in *Shafin Jahan case*.

Significance:

- Strengthens **individual autonomy in matters of faith**, as affirmed in *Rajendra Bihari Lal* and **K. S. Puttaswamy (2017)**.
- Protects against **forced disclosure or coercion in religious choice**, upholding dignity and freedom of conscience.

Limitations:

- Subject to **reasonable restrictions** like public order, morality, and health under Article 25.
- Tension with **anti-conversion laws**, where State regulation may conflict with privacy rights.

Reservation and Religious Conversion

- In the *Chinthada Anand case (March 2026)*, the Supreme Court ruled that **SC status is lost upon conversion to Christianity or Islam**, as these religions do not recognise the caste system.
- It held that "profess" under Article 25 implies openly practicing a religion, and SC benefits cannot continue if a person adopts a religion outside the caste framework.
- The Court observed that reservation is a remedy for caste-based discrimination and is not required after conversion.
- However, the issue remains contested due to claims that **Dalit converts still face discrimination**, and the **K.G. Balakrishnan Commission (2022)** is examining the extension of SC status to such converts.

Significance:

- Ensures reservation remains a **remedy for caste-based discrimination**, as clarified in *Chinthada Anand (2026)*.
- Maintains **constitutional intent of affirmative action** linked to social oppression within the caste framework.

Limitations:

- Ignores continued **social discrimination faced by Dalit converts**.
- Ongoing debate (e.g., **K.G. Balakrishnan Commission, 2022**) creates **policy uncertainty**.

RTE Act vs Minority Rights

The Supreme Court has referred the Pramati Educational & Cultural Trust (2014) judgment for reconsideration, which had excluded minority institutions from the RTE Act.

- The key issue is whether Article 21A (Right to Education) and Article 30(1) can coexist, as exclusion of minority schools may undermine the goal of inclusive and universal elementary education.
- **Significance:**
  - Promotes **universal elementary education (Article 21A)** and inclusivity.
  - Re-examination of *Pramati (2014)* may ensure **better balance between equality and minority rights**.
- **Limitations:**
  - Conflict with **Article 30(1)** may dilute minority institutions' autonomy.
  - Risk of **over-regulation of minority schools**, affecting cultural and educational rights.

Article 26: Freedom to Manage Religious Affairs

- **Rights Granted:** This article confers on every religious denomination the freedom to manage its religious affairs, own and acquire movable and immovable property, and administer it according to law.
- **Different from Article 25:** The contrast between Articles 25 and 26 is noteworthy: while Article 25 protects individual religious rights, Article 26 safeguards collective religious freedoms.
- **Not Absolute:** These rights are subject to public order, morality, and health. The state can regulate activities to ensure these are not compromised.
- **Significance:**
  - Protects religious denominations from government interference in their internal affairs.
  - Allows religious groups to manage their institutions, finances, and practices freely.
- **Examples:** This right allows temples to appoint priests, churches to conduct religious services, and religious trusts to manage their properties.

Article 27: Freedom as to Payment of Taxes for Promotion of any Particular Religion

- **Rights Granted:** Article 27 prevents an individual from being compelled to pay taxes for the promotion or maintenance of a particular religion.
- **No Bias:** This provision ensures the state doesn't favor or patronize one religion over another, maintaining its secular character.
  - **Example:** If the government proposed a tax specifically to fund the renovation of temples, this would violate Article 27 as it singles out a particular religion.

Article 28: Freedom as to Attendance at Religious Instruction or Religious Worship in Certain Educational Institutions

- **Rights Granted:** It prohibits religious instructions in any educational institution that is wholly funded by the state.
- **Exception:** This doesn't apply to educational institutions administered by the state but established under endowments or trusts requiring religious instruction.
- This article safeguards the right to education free from religious bias while allowing some institutions to maintain their religious character with complete transparency and freedom of choice for students.

CULTURAL AND EDUCATIONAL RIGHTS (ARTICLE 29 -30)

The Constitution, appreciating India's vast cultural diversity, also protects cultural and educational rights under Articles 29 and 30, ensuring that no minority group is alienated or marginalised.

Article 29: Protection of Interests of Minorities

Article 29 of the Indian Constitution is a crucial safeguard for the nation's rich diversity. It guarantees the cultural and educational rights of minorities, ensuring India's unique languages, scripts, and traditions can flourish.

- **Right to conserve culture:**
  - Any group of citizens with a distinct language, script, or culture has the right to preserve and promote it.
  - This empowers minority communities to maintain their heritage and customs.
- **Non-discriminatory education:**
  - No citizen can be denied admission to a state-run or state-funded educational institution solely based on religion, race, caste, language, or any of them.
  - This ensures equal access to education regardless of background, fostering inclusivity

Article 29 promotes national unity by celebrating diversity and guaranteeing cultural protections for minority groups.

Article 30: Right of Minorities to Establish and Administer Educational Institutions

Article 30 of safeguards the educational rights of minorities

- **Establishment and Administration:** Religious and linguistic minorities have the right to establish and manage educational institutions of their choice.
- **Limitation on Minority Educational Rights (Articles 29–30):** Recently, Patna High Court held that right to establish and administer educational institutions under Articles 29 and 30 is not absolute and must be exercised with transparency and accountability. It quashed irregular appointments, stating constitutional protection cannot be used to justify maladministration.
- **Education in Mother Tongue:** This right extends to providing education to their children in their own language.
- **Regulation for Quality:** This right is not unrestricted. The government can implement regulations to ensure the educational quality and academic excellence of these institutions.
- **RTE Act vs Minority Rights:** Recently, the Supreme Court has referred the Pramati Educational & Cultural Trust (2014) judgment for reconsideration, which had excluded minority institutions from the RTE Act. The key issue is whether Article 21A (Right to Education) and Article 30(1) can coexist, as exclusion of minority schools may undermine the goal of inclusive and universal elementary education.
  - **Significance:**
    - Promotes universal elementary education (Article 21A) and inclusivity.
    - Re-examination of Pramati (2014) may ensure better balance between equality and minority rights.
  - **Limitations:**
    - Conflict with Article 30(1) may dilute minority institutions' autonomy.
    - Risk of over-regulation of minority schools, affecting cultural and educational rights.
    - **Non-discrimination in Funding:** The state cannot discriminate against minority-run educational institutions when granting financial aid.
    - **Fair Acquisition of Property:** Article 30(1A) ensures fair compensation when acquiring property belonging to a minority educational institution.

AMU Minority Status and Constitutional Interpretation

- In November 2024, the Supreme Court revisited AMU's minority status under Article 30, leaving the final decision to a separate bench.
- The Court suggested a broader interpretation of "established" by the community, which raises concerns about the balance between minority rights and state involvement.
  - The term "established" in Article 30(1) must be understood broadly, focusing on the actual creators and purpose behind the institution rather than relying solely on statutory language.
- This judgement could allow AMU to retain its minority character, potentially influencing its administration and admission policies.
- It may lead to a more flexible approach in governance, enabling Muslim representation while also possibly affecting the extent of reservations or preferences given to Muslim students in admissions.
- This case highlights the tension between institutional autonomy and constitutional guarantees.

RIGHT TO CONSTITUTIONAL REMEDIES (ARTICLE 32)

Article 32 is a cornerstone of India's Fundamental Rights, ensuring the judicial enforcement of these rights. Dr. Ambedkar called it "the most important article of the Constitution," describing it as the "very soul" and "heart" of the Constitution. It allows individuals to approach the Supreme Court for the protection of their fundamental rights, making it a crucial safeguard for democracy and justice.

- **Empowering Individuals:** It empowers every citizen to directly approach the Supreme Court of India if they believe their fundamental rights have been violated by the government or any other authority.

- **Fundamental Rights Enforcement:** It provides a mechanism to ensure these fundamental rights aren't just written words, but enforceable legal guarantees.
- **Writs for Enforcement:** The Supreme Court has the power to issue writs, such as habeas corpus, mandamus prohibition, certiorari, and quo warranto to rectify the violation.
- **Parliamentary Power:** Parliament can authorize other courts (like High Courts) to issue similar writs under Article 226. However, the Supreme Court's power to issue writs remains supreme.
- **Significance:**
  - **Strengthens Rule of Law:** It ensures the government respects fundamental rights and acts within its legal boundaries.
  - **Provides Legal Recourse:** It empowers individuals to fight for their rights and seek justice.
  - **Protects Vulnerable Citizens:** It acts as a safeguard against arbitrary actions of the state.

WRITS

In case of the enforcement of Fundamental Rights, the jurisdiction of the Supreme Court is original but not exclusive. It is concurrent with the jurisdiction of the High Court under Article 226.

Fig 4.6: Writs

Habeas Corpus Petition & NSA – Sonam Wangchuk Case

Sonam Wangchuk was detained under the National Security Act (NSA), 1980, and a habeas corpus petition has been filed in the Supreme Court challenging his detention. NSA permits preventive detention up to 12 months to maintain public order and national security. The Supreme Court has held that such detention must strictly comply with Article 21 safeguards, be based on relevant material, and is subject to judicial review against arbitrariness or misuse.

Significance:

- Reinforces judicial review over preventive detention, protecting Article 21 rights.
- Ensures executive accountability in cases of national security laws like NSA.

Limitations:

- Broad discretionary powers under NSA (1980) may lead to misuse.
- Preventive detention can undermine personal liberty, with limited immediate remedies.

RESTRICTIONS ON FUNDAMENTAL RIGHTS OF MEMBERS OF ARMED FORCES (ARTICLE 33)

- **Purpose:** It empowers the Parliament to restrict some fundamental rights for members of the Armed Forces, paramilitary forces, and potentially intelligence agencies (though not explicitly mentioned).
- **Justification:** The limitations are intended to ensure the proper discharge of duties and maintain discipline within these forces.

- **Rights Potentially Affected:** While not explicitly stated, any fundamental right could be restricted under Article 33, depending on the situation. However, this power is not absolute and courts might intervene if the restrictions are deemed excessive.
  - **Example:** The right to freedom of speech and expression (Article 19) might be restricted for soldiers to maintain operational secrecy or prevent insubordination.

RESTRICTION OF FUNDAMENTAL RIGHTS WHILE MARTIAL LAW IS IN FORCE (ARTICLE 34)

- **Martial Law:** This article applies when martial law is imposed in any part of India. Martial law is a situation where the military takes control of civilian authority to maintain order.
- **Restriction on Rights:** During martial law, Parliament can pass laws that restrict the fundamental rights guaranteed by Part III of the Constitution.
- **Protection for Actions:** The article also allows Parliament to indemnify (protect from legal action) government officials or any other person who takes actions "in connection with the maintenance or restoration of order" while martial law is in force.
- **Significance:** Article 34 creates a balance between national security and individual rights. In extreme situations, some rights might need limitations to restore order.
  - Ensures discipline and effective discharge of their duties which are crucial for national security
  - Protects government officials who take actions to maintain order in such situations.
  - These articles acknowledge the need to temporarily limit some rights for the greater good of national security and public order.

EXCEPTIONS TO FUNDAMENTAL RIGHTS

- **Article 31A:** This article protects five categories of laws related to agricultural land reforms and industry/commerce from being challenged for violating the rights to equality (Article 14) and freedom (Article 19).
- **Article 31B:** Laws and regulations listed in the Ninth Schedule are shielded from challenges based on fundamental rights violations.
  - However, the Supreme Court's 2007 ruling in the **I.R. Coelho case** clarified that this immunity isn't absolute. Laws added to the **Ninth Schedule after April 24, 1973**, can be challenged if they violate fundamental rights or core constitutional principles.
- **Article 31C (Introduced by 25th Amendment):** This article aimed to:
  - Protect laws implementing socialist directive principles (Article 39(b) and (c)) from challenges based on Articles 14 (equality) and 19 (freedom).
  - Prevent courts from questioning whether a law claiming to implement socialist policies actually achieves that goal.
- The Supreme Court's landmark Kesavananda Bharati case (1973) declared the second provision of Article 31C unconstitutional. Judicial review is a fundamental aspect of the Constitution, and Parliament cannot take it away. However, the first provision of Article 31C protecting laws implementing socialist directive principles was upheld.
- By 42nd Amendment, 1976, Article 31C extended protection to all Directive Principles, not just Article 39(b) and 39(c). It barred judicial review even if laws made to implement any DPSP violated Articles 14 and 19.
- Thus, the Supreme Court in Minerva Mills (1980) struck it down, holding that it violated the basic structure by upsetting the balance between Fundamental Rights and DPSPs and limits amending powers of government to protect fundamental rights.

REMOVAL OF RIGHT TO PROPERTY AS FUNDAMENTAL RIGHT

The 44th Amendment (1978) significantly altered the status of the right to property in India.

- **From Fundamental Right to Legal Right:** Prior to the amendment, the right to property was a fundamental right under Article 31. This meant it received the highest legal protection, and any government acquisition required strict procedures and fair compensation. The amendment downgraded it to a legal right under Article 300A.
- **Easier Land Acquisition:** The government now has greater flexibility in acquiring land for public purposes. This can expedite infrastructure development and social welfare projects.
- **Judicial Scrutiny Remains:** Though not a fundamental right, Article 300A still mandates following "due process" and fair treatment when acquiring property. Courts can intervene if these principles are violated. Further, courts can still interpret "fair" treatment under Article 300A to include reasonable compensation

- **Right to Compensation:** It guaranteed right to compensation-
  - When the State acquires the property of a minority educational institution (Article 30)
  - When the State acquires the land held by a person under his personal cultivation and the land is within the statutory ceiling limits (Article 31 A).

Supreme Court Upholds Right to Property

- In January 2025, the Supreme Court upheld the constitutional protection of the right to property under Article 300-A, highlighting that individuals cannot be deprived of their property except by law.
  - The Court's ruling was triggered by delays in compensation for land acquisitions, stressing the need for timely and just compensation.
  - This decision reinforces the importance of due process in property matters. It reaffirms that property rights are essential for upholding the rule of law in India.

Historical Perspective of Right to Property in India

- **Kesavananda Bharati Case (1973):** The Supreme Court held that Right to Property is not a part of the Basic Structure of the Constitution and therefore, Parliament can acquire or take away private property of the persons for concerned good and in public interest.
- **44th Amendment Act of 1978:** It removed the right to property from fundamental rights and placed it under Article 300A as a legal right
- **Article 31C: Protection of Laws Implementing DPSP**
  - Under Article 31C, laws implementing the directive principles in Articles 39(b) and 39(c) cannot be challenged on the grounds of violating Article 14 or Article 19.
  - **In the Kesavananda Bharati case (1973)**, the Court upheld the validity of Article 31C but clarified that such laws are still subject to judicial review.
- **Supreme Court On Compensation:** The State can take a person's property for a public purpose, but it must pay fair compensation.

Key Words

Arbitrary State Power, Majoritarian Rule, online privacy, dignity and Individual liberty, Writs, habeas Corpus, mandamus, certiorari, quo warranto, prohibition, martial law, right to Compensation, Secularism, State Religion, Minority Rights, Religious and linguistic Minorities, Freedom of speech, Sedition, Protection of life and Personal liberty, Right to Privacy.

Previous Year Questions	Year
1. The right to privacy is intrinsic to life and personal liberty and is inherently protected under Article 21 of the constitution. Explain. In this reference, discuss the law relating to D.N.A. testing of a child in the womb to establish its paternity.	2024
2. The Construction of India is a living instrument with capabilities of enormous dynamism. It is a constitution made for a progressive society". Illustrate with special reference to the expanding horizons of the right to life and personal liberty.	2023
3. "Right of movement and residence throughout the territory of India are freely available to the Indian citizens, but these rights are not absolute." Comment.	2019
4. Examine the scope of Fundamental Rights in the light of the latest judgement of the Supreme Court on Right to Privacy.	2017
5. Does the right to clean the environment entail legal regulations on burning crackers during Diwali? Discuss in the light of Article 21 of the Indian Constitution and Judgement(s) of the Apex Court in this regard.	2015
6. What do you understand about the concept "freedom of speech and expression"? Does it cover hate speech also? Why do the films in India stand on a slightly different plane from other forms of expression? Discuss.	2014
7. Discuss Section 66A of IT Act, with reference to its alleged violation of Article 19 of the Constitution.	2013
8. Explain the constitutional perspectives of Gender Justice with the help of relevant Constitutional Provisions and case laws.	2023

5 Directive Principles of State Policy

The Indian Constitution's **Directive Principles of State Policy (DPSPs)** are a **set of guidelines** that outline the government's vision for promoting **social and economic justice** for all citizens. They were inspired by similar principles found in the **Irish Constitution**. Unlike Fundamental Rights, which are **justiciable** (enforceable by courts), DPSPs are not legally enforceable. However, they play a crucial role in shaping government policies and legislation.

FEATURES/SIGNIFICANCE OF THE DPSPs

- **Framework for Governance:** Provides long-term vision for creating an egalitarian society.
- **Bridges Gap:** Connects Fundamental Rights with their practical realisation.
- **Ensures Justice:** Aims at social, economic, and political justice.
- **Non-Justiciable:** Not enforceable by courts.
- **Directive Nature:** Guides the state in policy-making and governance.

CLASSIFICATION OF DPSPs

1. **Socialist Principles: Articles: 38, 39, 41, 42, 43, 43A, 47**
   - **Key Provisions:** Social justice, right to livelihood, equal pay, humane work, co-ops, public health
   - **Insights:** Reflect welfare state goals and economic equity
   - **Examples:** PM Vishwakarma Yojana (Art. 43), E-Shram (Art. 41), Labour Codes (Art. 42, 43A), PM-GKAY (Art. 47)
2. **Gandhian Principles: Articles: 40, 43B, 46, 47, 48**
   - **Key Provisions:** Panchayats, cottage industries, SC/ST upliftment, prohibition, animal care
   - **Insights:** Emphasize Gram Swaraj, moral governance, rural development
   - **Examples:** SVAMITVA (Art. 40), SHGs & Khadi (Art. 43B), PM JANMAN (Art. 46), Prohibition drives (Art. 47)
3. **Liberal-Intellectual Principles: Articles: 44, 45, 48A, 49, 50, 51**
   - **Key Provisions:** UCC, early education, environment, heritage, judicial independence, global peace
   - **Insights:** Promote secularism, scientific outlook, global cooperation
   - **Examples:** NEP (Art. 45), Mission LiFE (Art. 48A), PRASHAD/HRIDAY (Art. 49), G20 role (Art. 51)

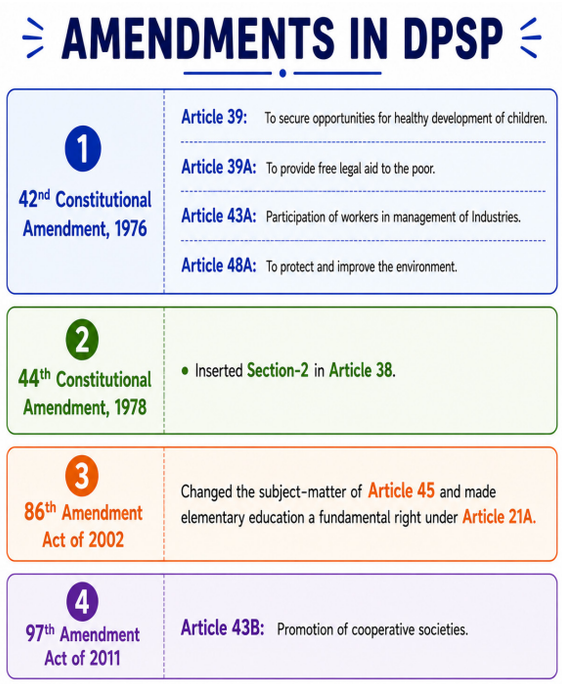


Fig 5.1: Additions in the DPSPs

UNIFORM CIVIL CODE: A PATH TOWARDS A UNIFIED NATION

The UCC is a directive principle in the Indian Constitution that calls for the creation of a **common set of laws governing personal matters** for all Indian citizens, regardless of their religion, ethnicity etc.

Key Developments and Legislation

Pre-Independence

- **Lex Loci Report (1840):** Emphasized the need for uniform codification of laws, but suggested exclusion of personal laws.
- **Queen's 1859 Proclamation:** Promised non-interference in religious matters.
- **BN Rau Committee (1941):** Established to codify Hindu law due to increasing legislation on personal matters.

Post-Independence

- **Inclusion in DPSP (Directive Principles of State Policy):** Indicated the aspiration for UCC. (Article-44)
- **Hindu Succession Act 1956:** Codified law for intestate succession among Hindus, Buddhists, Jains, and Sikhs.
- **Special Marriage Act 1954:** Provided a legal framework for civil marriages outside religious personal law.

Supreme Court Verdicts

- **Shah Bano Case (1985):** Called for Parliament to outline the UCC.
- **Sarla Mudgal Case (1995):** Addressed the issue of bigamy and conflict between personal laws on matters of marriage.
- **Shayara Bano Vs. Union of India Case (2017):** Challenged the practice of Triple Talaq and declared it unconstitutional.

Need for Uniform Civil Code

- **Strengthening Secularism:** A UCC aligns with India's secular principles by establishing a common set of laws applicable to all citizens, regardless of religion.
- **Freedom of Choice:** A UCC based on civil law principles would provide greater freedom for individuals to choose their partners without religious or caste restrictions.
- **Equality for All:** A UCC would eliminate discriminatory practices based on religion in personal laws, guaranteeing equal rights and opportunities for all citizens.
- **Promoting Gender Equity:** By overriding existing personal laws, a UCC could remove gender-based biases, promoting a more just society.
- **Protecting Vulnerable Groups:** A UCC could offer stronger safeguards for the rights of women and religious minorities who might be disadvantaged by existing personal laws.
- **Recent Developments:** Uttarakhand (first state to implement UCC, 2024) and Gujarat (UCC Bill, 2026) reflect the move towards uniformity in personal laws like marriage, divorce, succession, and live-in relationships.

Challenges and Way Forward for Uniform Civil Code (UCC)

Challenges (UPSC 2015)	Way Forward/Solution
Religious Interference: UCC may be perceived as an infringement on religious freedom, restricting personal matters traditionally governed by religious codes.	Gradually introduce the UCC in stages (piecemeal approach) to minimize disruption and allow smoother adaptation.
Minority Apprehensions: Minority communities may fear the imposition of a majority-driven code, leading to the erosion of their unique cultural and legal traditions.	Prioritize equity and equal treatment for all citizens during the codification process.
Threat to Diversity: Enforcing uniformity could undermine India's rich tapestry of cultural and religious practices, potentially diminishing pluralism.	Foster public debate and open discussions to ensure transparency and address concerns of all communities.
Drafting Difficulties: Creating a universally acceptable UCC poses challenges due to the diversity of religious, ethnic, regional traditions and personal laws in India.	Include legal and social experts in the drafting process to represent diverse perspectives.
6th schedule and Autonomous District Council: ADC have right to make laws on marriage, succession etc with the assent of Governor.	Develop the UCC based on universal principles of fairness, equality, and justice, while considering existing personal laws.
Potential Constitutional Conflict: A UCC might raise concerns regarding balancing equality (Article 14) with the freedom to practice and propagate religion (Article 25).	Launch educational campaigns and engage with different communities through consultations and outreach programs to build awareness, address concerns, and garner support for the UCC.

CONFLICT BETWEEN DPSP AND FR

The Indian Constitution creates a potential clash between fundamental rights (FRs) and Directive Principles of State Policy (DPSPs). FRs are enforceable by courts, while DPSPs are guidelines for the state. This conflict can be understood with key Supreme Court judgements:

Champakam Dorairajan Case 1951	❖ **Court's Ruling:** The Supreme Court acknowledged Article 37, which states that Directive Principles are not enforceable by courts. ❖ **Fundamental Rights Take Priority:** The Court declared that the chapter on Fundamental Rights is paramount. Directive Principles must be compatible with and subordinate to the Fundamental Rights. ❖ **Precedence Established:** This landmark judgment established the principle that Fundamental Rights take precedence over Directive Principles of State Policy (DPSPs) in cases of conflict.

Golak Nath Case 1967	❖ The court in this case laid down that **Fundamental Rights cannot be abridged/diluted** to implement the directive principles.
Kesavananda Bharati Case 1973	❖ **Basic Structure Doctrine:** The Supreme Court ruled that Parliament can amend the Constitution (including FRs) to implement DPSPs, but the "basic structure" of the Constitution (including FRs) cannot be destroyed.
Minerva Mills Case 1980	❖ **Balance Between FR and DPSP:** The Supreme Court held that the Constitution exists on the **balance of Part III and Part IV**. Giving absolute primacy to one over another will disturb the harmony of the Constitution. The Constitution Bench had held that the Fundamental Rights and the Directive Principles are two wheels of the chariot in establishing the egalitarian social order.
Olga Tellis v. Bombay Municipal Corporation (1985)	❖ Integration of Fundamental rights and DPSP. Interpreted Right to livelihood part of Right to life (A-21).
Unikrishnan vs State of A.P (1992):	❖ Read erstwhile Article 45 of fundamental duties as part of Right to life.
I.R.Coelho vs Union of India (2007):	❖ Laws which violate fundamental rights and are protected by the 9th schedule are subject to judicial review in the context of Basic Structure Doctrine if they were so placed after K.Bharti Judgement.

LIMITATIONS & WAY FORWARD OF DIRECTIVE PRINCIPLES OF STATE POLICY (DPSPs)

Limitations of DPSPs	Improvements / Way Forward
Non-justiciable in nature; not enforceable by courts (e.g., Champakam Dorairajan case)	Ensure harmonious interpretation with Fundamental Rights (Kesavananda Bharati case principle)
Lack of legal sanction; implementation depends on political will	Convert important DPSPs into enforceable laws (e.g., Right to Education Act)
Vague and idealistic provisions like “social justice” or “adequate livelihood”	Clear articulation through policy guidelines and measurable targets
Conflict with Fundamental Rights (earlier judicial conflicts like Minerva Mills case)	Maintain balance and constitutional harmony between Part III and Part IV
Financial constraints in a developing economy like India	Strengthen fiscal capacity and efficient resource mobilisation for welfare schemes

The judiciary has strived to maintain a balance between individual rights and the state's welfare goals. While FRs prevail, DPSPs can guide legislation as long as they don't unreasonably restrict fundamental rights. In recent times Supreme Court by expanding Right to life has Integrated various DPSP within the ambit of Fundamental rights. This ongoing dialogue ensures the Constitution remains relevant and adaptable.

Key Words

Instrument of Instructions, non-justiciable, Framework for Governance, Welfare State; Economic democracy; Social and Economic, Democracy.

Previous Year Questions	Year
1. Discuss the possible factors that inhibit India from enacting for its citizens a uniform civil code as provided for in the Directive Principles of State Policy.	2015

❖ ❖ ❖

6 Fundamental Duties

Fundamental Duties, enshrined in Article 51A of Part IV-A of the Constitution, were introduced by the **42nd Amendment Act in 1976** on the recommendation of Swaran Singh Committee instill a sense of moral obligation and responsible citizenship. Though **not legally enforceable**, these duties aim to promote patriotism, uphold the Constitution, and respect national symbols like the Flag and Anthem. They also emphasize the importance of preserving India's rich cultural heritage, fostering social harmony, protecting the environment, and encouraging citizens to strive for excellence in all spheres, thereby contributing meaningfully to national development.

RIGHTS AND DUTIES

The concept of interconnected rights and duties is a cornerstone of a healthy society and political system. This principle is enshrined in India's Constitution, which outlines both fundamental rights – what citizens can expect from the state – and fundamental duties – the responsibilities citizens owe to the state and society.

Supreme Court Verdicts Related to Fundamental Duties

- **The case of A.I.I.M.S. Student's Union v. A.I.I.M.S** affirmed that fundamental duties are equally important as fundamental rights.
- **Rural Litigation and Entitlement Kendra v. State of Uttar Pradesh** expanded the concept of duties to include environmental responsibilities for both the government and individuals.
- **The Supreme Court's Ranganath Mishra judgement (2003)** argued for the enforcement of fundamental duties through both legal and social sanctions.

BENEFITS, CHALLENGES AND CRITICISMS OF SYNCHRONIZING RIGHTS AND DUTIES

Aspect	Key Points
Benefits of Synchronizing Rights and Duties	
Reminder of responsibility	Encourage accountability and constructive use of rights.
Safeguard Individual Liberties	Responsible participation ensures mutual respect and protection of rights.
Promote Social Capital	Fosters cooperation and builds a strong, respectful social fabric.
Support State Goals & Voluntary Service	Helps achieve common good and inspires civic engagement.
Ensure Peace and Harmony	Balanced exercise of rights and duties leads to social harmony.
Challenges in Balancing	
Justiciability vs. Enforcement	Rights are legally enforceable; duties are mostly moral, creating imbalance.
Nature of Rights and Duties	Rights and duties may differ in scope or even conflict in some cases.
Vagueness and Subjectivity	Some duties are vague or subjective, risking conflict with beliefs or norms.
Rights as Preconditions	Certain rights (e.g., education) are needed to effectively fulfill duties.
Criticisms of Fundamental Duties	
Incomplete List	Doesn't cover all responsibilities of a modern citizen.
Unclear Wording	Some duties are ambiguously worded, allowing misinterpretation.
Questionable Inclusion	Viewed by some as unnecessary since they reflect widely accepted moral values.
Limited Weight	Lack legal enforceability, reducing their practical significance compared to Fundamental Rights.

LAWS THAT SUPPORT FUNDAMENTAL DUTIES

The Fundamental Duties, while not directly enforceable by law, find echoes in various existing legislations. Here are some examples:

- **Prevention of Insults to National Honour Act, 1971:** This law aligns with the duty to uphold and protect the sovereignty and integrity of India.
- **The Protection of Civil Rights Act, 1955:** This act prohibits discrimination based on religion, race, caste, sex, or place of birth, upholding the duty to promote harmony and the spirit of common brotherhood amongst all Indians.
- **Bharatiya Nyaya Sanhita, 2023:** Several sections of the BNS, like those against theft or vandalism, indirectly reinforce the duty to respect the rights of others and the property of the public.
- **Wildlife (Protection) Act, 1972:** This act protects wildlife, corresponding to the duty to protect and improve the environment and to have compassion for all living creatures.
- **Forest (Conservation) Act, 1980:** This act safeguards forests, aligning with the duty to protect and improve the natural environment.
- **Other Key Acts:** Prevention of Damage to Public Property Act, 1984/UAPA(1967) for protecting Integrity and Sovereignty of India/Dowry Prohibition act, 1961, Sita act, 1956 etc to abolish practices derogatory to women's dignity etc.

Limitations of Fundamental Duties with Committee Recommendations:

- **Non-justiciable nature:** Not enforceable by courts; Swaran Singh Committee (1976) recommended making some duties legally binding.
- **Low awareness:** Weak civic sense among citizens; Verma Committee (1999) suggested inclusion in education and public awareness.
- **Vague provisions:** Broad and moralistic wording; Swaran Singh Committee suggested clearer and actionable formulation.
- **Weak enforcement mechanism:** No penalties for non-compliance; Verma Committee (1999) recommended linking duties with existing laws.
- **Suggested additional duties:** Swaran Singh Committee also proposed inclusion of casting vote, paying taxes, and family planning as part of Fundamental Duties to strengthen civic responsibility.

Key Words

Social and political life; Harmonious society; Judicial interpretations; Democratic society

7 Citizenship (Part II, Article 5-11)

The concept of citizenship forms the foundation of a democratic nation. It defines the relationship between an individual and the state, outlining the rights, privileges, and duties that bind them. The Indian Constitution dedicates a significant portion to this topic, with **Part II and Articles 5-11** providing detailed provisions on citizenship. These provisions initially established automatic citizenship rights, outlined methods for acquiring and relinquishing them, and empowered the Parliament to legislate further on this subject.

EVOLUTION OF CITIZENSHIP IN INDIA

Citizenship Act 1955

- The Act consolidated the law relating to citizenship in India and outlined five ways for acquiring citizenship: Birth, Descent, Registration, Naturalization, and Incorporation of territory. The Act also lays down provisions for renunciation, termination, and deprivation of citizenship. This act has been amended in 1986, 2003 and recently in 2019.

Citizenship Amendment Act (CAA) of 2019

- **Objective:** The CAA amends India's Citizenship Act to offer a path to citizenship for specific religious minorities.
- **Beneficiary:** The law expedited citizenship for Hindus, Sikhs, Buddhists, Jains, Parsis, and Christians who entered India from Pakistan, Bangladesh, or Afghanistan before December 31, 2014, if they faced religious persecution in their home country.
- **Exemptions:** These minorities are exempt from certain provisions of the Foreigners Act and Passport Act if they entered India before the cut-off date.
- **Reduced Residency Requirements:** The CAA reduces the residency requirement for citizenship by naturalization from 11 years to 5 years for these groups.

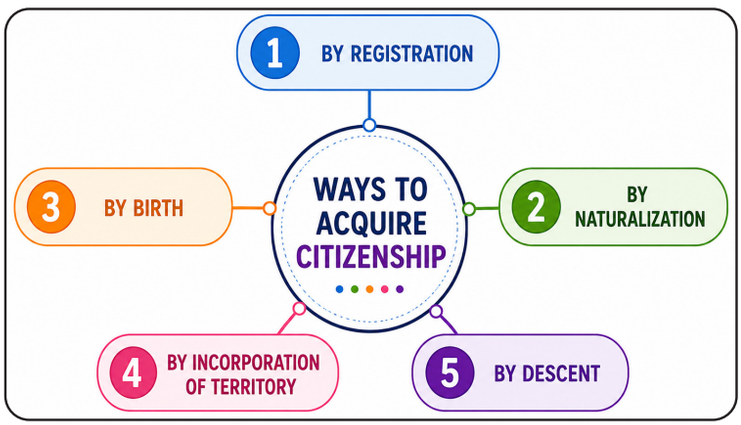


Fig. 7.1: Ways to obtain Indian Citizenship

Arguments in Favour of the Act

- **Humanitarian Relief:** The CAA offers a pathway to citizenship for persecuted minorities facing religious discrimination in Pakistan, Afghanistan, and Bangladesh.
- **Distinguishing Immigrants:** The Act aims to identify and provide a legal path for refugees while managing illegal immigration.

Concerns and Criticisms

- **Date of Entry:** The cut-off date for eligibility (December 31, 2014) seems arbitrary.
- **Potential Discrimination:** The Act's focus on religion might violate India's commitment to equality and secularism.
- **Proof of Persecution:** Concerns exist regarding the lack of a clear system to verify claims of religious persecution.
- **Unequal Treatment:** The exclusion of persecuted minorities from other countries and religions raises questions of fairness.
- **International Relations:** The Act could strain relations with neighboring countries.

Citizenship (Amendment) Rules, 2024

- MHA notified the Citizenship (Amendment) Rules, 2024, enabling the implementation of the CAA passed in 2019.

Highlights of Rules 2024

- **Who Can Apply? -** The Citizenship (Amendment) Rules, 2024 offer a path to citizenship for several categories of people, including: Individuals with Indian heritage, Spouses of Indian citizens, Children of Indian citizens ,Individuals with historical ties to India.
- **Additional Requirements:** Applicants seeking citizenship by naturalization will need to:
  - Submit statements verifying their application details and character references
  - Demonstrate proficiency in an Indian language mentioned in 8th Schedule
- **Simplified Proof:** The new rules ease the burden of proving nationality. Applicants can now use various documents as entry proof, including visas, residence permits, and even Aadhaar cards.
- **Renouncing Prior Citizenship:** If granted Indian citizenship, applicants must renounce any existing citizenship.
- **Application Process:** Applications are submitted electronically to an Empowered Committee via a designated District Level Committee.

Knowledge Nuggets

- The government issued the first set of citizenship certificates under the new rules in May 2024, covering applicants from states like Delhi, West Bengal, Haryana, and Uttarakhand.
- The Supreme Court (4:1) upheld the constitutional validity of Section 6A of the Citizenship Act, 1955, which grants citizenship to Bangladeshi immigrants who entered Assam before 25 March 1971 under the Assam Accord, balancing regional concerns with national integration.

DUAL CITIZENSHIP

- India does not allow dual citizenship—any Indian who acquires foreign citizenship automatically loses Indian citizenship under Article 9 of the Constitution. However, the OCI (Overseas Citizen of India) scheme provides limited rights to the diaspora.
  - In 2024, the issue gained traction: in Goa, leaders demanded dual citizenship after local cases of Portuguese registration.
- India's rejection of dual citizenship stems from concerns over national security, political allegiance, and administrative complexity.,
  - Though many argue it could enhance diaspora ties and boost remittances, the government maintains that divided loyalties and legal ambiguities outweigh these benefits, reflecting a cautious but deliberate policy stance.

OVERSEAS CITIZENSHIP OF INDIA (OCI)

- Introduced by The Citizenship (Amendment) Act, 2005.
- Allows foreigners of Indian origin and spouses of Indian citizens or OCI cardholders to work and live in India indefinitely.
- Benefits include lifelong visa, exemption from FRRO registration, rights to study, work, own residential/commercial property, adopt, and invest in India.
- Restrictions include OCI holders are restricted form voting, holding government posts, contesting elections, owning agricultural land, or holding an Indian passport.
- The 2021 guidelines introduced specific requirements for OCI cardholders, such as obtaining prior permission for activities like missionary work, journalism, research, and visits to restricted areas.
- OCI cardholders are considered foreign nationals and are not entitled to certain rights, including voting, holding constitutional positions, or government employment.

Simplified OCI Re-issuance Rules

In a major relief to Overseas Citizens of India (OCI), the 2023 amendment simplified re-issuance guidelines. Now, OCI cardholders are required to re-issue their card only once after obtaining a new passport post 20 years of age. For passports issued before 20 and after 50, only uploading a new passport copy and recent photo on the OCI portal suffices. This move reduces procedural burden and enhances ease for diaspora citizens.

- The Ministry of Home Affairs (MHA) has issued a notification under Section 7D of the Citizenship Act, 1955 strengthening conditions for cancellation of Overseas Citizen of India (OCI) registration.
- As per the notification, an OCI card can be revoked if the holder is convicted and sentenced to at least two years of imprisonment, or if a chargesheet is filed for an offence punishable with seven years or more imprisonment. This move aims to ensure stricter compliance with Indian laws by OCI holders.

8 Scheduled and Tribal Areas (Part X, Article 244-244 A)

Part X of the Indian Constitution, specifically Article 244, outlines a special administrative system for designated regions known as "scheduled areas" and "tribal areas." These areas are home to a significant tribal population and require a unique approach to administration to ensure their welfare and development:

1. **Scheduled Areas:** These are regions with a significant tribal population. They are given special provisions for self-governance and cultural protection under the **Fifth Schedule** of the Constitution.
2. **Tribal Areas:** These areas, located in the states of Assam, Meghalaya, Tripura, and Mizoram, are administered by the central or state government with a focus on tribal welfare. The **Sixth Schedule** of the Constitution deals with the administration of these Tribal Areas

FIFTH SCHEDULE

- Fifth Schedule Areas receive special administrative provisions due to the socio-economic vulnerabilities of tribal communities. The system provides greater protection of land, culture, and resources, with a significant role of the Governor and Union government to ensure welfare, prevent exploitation, and promote inclusive development.

Key Features of Scheduled Areas Administration

- **Identifying Scheduled Areas:** The President has the authority to designate specific areas as "Scheduled Areas" based on several factors:
  - **Large Tribal Population:** The area should have a significant concentration of tribal communities.
  - **Geographical Considerations:** The area should be geographically compact and of a reasonable size.
  - **Administrative Unit:** The area should be a viable administrative unit like a district, block, or a smaller tribal unit.
  - **Economic Disparity:** The area should be economically disadvantaged compared to surrounding regions.
- **Shared Governance:**
  - **State Administration:** State governments have executive power over Scheduled Areas within their borders.
  - **Central Oversight:** The Governor of the state is accountable to the President for the administration and must submit annual reports. The central government can also issue directives to the state regarding the management of these areas.
- **Tribal Advisory Council:** States with Scheduled Areas must establish a Tribes Advisory Council. This council, can have upto 20 members Up to 20 members with atleast ¾ (minimum 15 members) must be from Scheduled Tribes in the state Legislative Assembly. It advises the Governor on matters related to the welfare and development of Scheduled Tribes.
- **Legal Framework**
  - **Adapting Existing Laws:** The Governor can modify or exclude the application of specific central or state laws within a Scheduled Area.
  - **Creating Custom Regulations:** The Governor, with the Tribes Advisory Council's consultation, can make regulations for maintaining peace and good governance within the Scheduled Area.
- **Appointment of commission:** The President may at any time and shall, at the expiration of ten years from the commencement of this Constitution by order **appoint a Commission** to report on the administration of the Scheduled Areas and the welfare of this Scheduled Tribes in the States **(Article 339)**
- **Amendment to 5th & 6th schedule:** Any amendment can be done without invoking Article 368 for both fifth and Sixth Schedule.
- **Direction to states:** Article 339(2) allows centre to give directions to state to implement schemes for the welfare of tribal people.

PANCHAYATS (EXTENSION TO THE SCHEDULED AREAS) ACT, 1996

- PESA extended the provisions of **Part IX** to the Constitution relating to the panchayats to the scheduled areas with certain modifications.
- The Provisions of Panchayat (Extension to Scheduled Areas) Act, 1996 is applicable in Fifth Schedule Areas.

- Mandatory consultation with Gram Sabhas before any land acquisition or development plans, ensuring their consent and participation in planning.
- Proportional Reservation of Seats: STs are guaranteed at least 50% of the seats.
- Every Chairperson position at all levels of Panchayats in these areas must be held by an ST.
- Full control over minor forest produce (MFP) and local resources, reinforcing their traditional rights.
- Recognizes and protects their customs, traditions, and religious practices, safeguarding their cultural identity.
- It also Enables Gram Sabhas to regulate money lending and local trade to prevent exploitation.
- It extends self-governance rights to tribal communities in designated areas of India.
- 9 of the 10 states with tribal Scheduled Areas have framed their PESA rules, while Odisha has created draft rules.

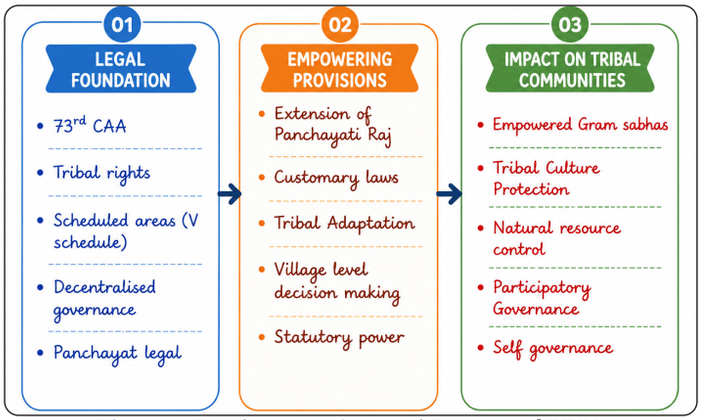


Fig. 8.1: Implementation and Impact of PESA

- Recently, the Ministry of Panchayati Raj celebrated 30 years of the Panchayats (Extension to Scheduled Areas) Act (PESA), 1996.

Challenges to PESA Implementation and the Way Forward

Challenges	Way Forward
Lack of 3 Fs (Funds, Functions, Functionaries).	Train Elected Leaders for effective Gram Sabha functioning.
Bureaucratic Interference undermines Gram Sabha decisions.	Legal Awareness for officials and communities.
Low Public Awareness on PESA roles and rights.	Promote Tribal Rights via civil society initiatives.
Land Acquisition without Consent of Gram Sabha.	Strict PESA Implementation through state law amendments.
Conflicting State Laws dilute PESA's intent.	Resource Control to Tribals via reforms in forest and land laws.

Forest Rights Act vs PESA

- Forest Rights Act, 2006 (FRA) focuses on recognising individual and community forest rights of STs and OTFDs over land, forest produce, and resources.
- PESA Act, 1996 focuses on decentralised governance, empowering Gram Sabhas in Scheduled Areas to manage resources, land acquisition, and local development.
- **Scope:** FRA applies to forest areas across India, while PESA applies only to Fifth Schedule (Scheduled) Areas.
- **Core difference:** FRA is rights-based (land & forest access), whereas PESA is governance-based (self-rule and decision-making powers).

SIXTH SCHEDULE

The sixth schedule contains special provisions for the administration of tribal areas in the four north-eastern states of **Assam, Meghalaya, Tripura and Mizoram (All four border Bangladesh)**.

Why Special Arrangements for Assam, Meghalaya, Tripura & Mizoram?

- **Distinct Cultural Identity:** The Constitution grants special autonomy to these four northeastern states (Assam, Meghalaya, Tripura, and Mizoram) due to their unique cultural identity.
- **Different from Other Tribes:** Unlike tribal communities in other parts of India who have assimilated with the dominant culture, the tribes in these states have largely preserved their traditional way of life, customs, and civilization.
- **Protecting Cultural Roots:** This distinct cultural identity necessitates special arrangements to ensure self-governance and autonomy, allowing these tribes to preserve their heritage.

Constitutional Provisions

- **Article 244(2):** The provisions of the **Sixth Schedule** shall apply to the **administration of the tribal areas in the States of Assam, Meghalaya, Tripura and Mizoram**.

- **Article 244A** deals with the formation of an autonomous state consisting of certain tribal areas in **Assam** and the creation of a local legislature or Council of Ministers or both therefore.
- By default central and State law does **not** apply, and needs to be explicitly applied. It has provisions for **Autonomous Districts** (District Council) and **Autonomous Regions** (Regional Council).
- **District Council:** It has not more than 30 members of which not more than 4 can be nominated by Governor. It is a product of the Constitution and has financial power to prepare a budget.

Features of Administration in 6th Schedule Areas

- **Governor's Authority:** The Governor holds the power to:
  - Define and modify the boundaries of autonomous districts.
  - Divide districts with diverse tribes into separate regions.
- **Autonomous districts:** The tribal areas in these states have been constituted as autonomous districts, each of which has an autonomous district council and each autonomous region has a separate regional council consisting of not more than 30 members (elected members for 5 year term through adult suffrage). These districts exist within the states but have some self-governing powers.
- **District and Regional Councils:** Elected representatives form these councils to manage their respective areas.
- **Legislative Powers:** Councils can make laws on specific matters like land management, social customs, and village administration. However, these laws require the Governor's approval.
- **Judicial Powers:** Councils can establish courts to handle tribal disputes within their jurisdiction, with limitations set by the Governor on appeals reaching the High Court.
- **Development Initiatives:** Councils can undertake activities like building schools, healthcare facilities, and infrastructure within their districts. They can also regulate business activities by non-tribals.
- **Financial Autonomy:** Councils have the power to collect taxes.

Reasons for Ladakh Demanding Inclusion under the 6th Schedule

- **Protection of Tribal Identity:** A large part of Ladakh's population, including Buddhists and other tribes, fears losing their cultural identity, land, language, and customs after the removal of Article 370. Inclusion under the 6th Schedule would help safeguard tribal rights.
- **Autonomous Governance:** People want greater local autonomy in governance through Autonomous District Councils (ADCs) to ensure decisions reflect local needs and aspirations, especially after Ladakh became a Union Territory.
- **Concerns over Resource Exploitation:** There is fear of unregulated industrial and tourism development, which may harm Ladakh's fragile environment and tribal communities without constitutional safeguards.

CHALLENGES IN SIXTH SCHEDULE AREAS AND THE WAY FORWARD

Challenges in Sixth Schedule Areas	Way Forward
Limited financial autonomy: ADCs depend on state grants (e.g., Bodoland Territorial Council funding issues)	Ensure assured devolution through State Finance Commission
Governor's overriding authority: Discretionary powers dilute autonomy (e.g., Assam Governor's control)	Limit discretionary powers to strengthen ADC autonomy
Uneven power distribution among ADCs: Variation in powers (e.g., Khasi Hills vs smaller councils)	Standardize powers and departmental allocation
No timeline for reconstitution: Delay in ADC elections (e.g., Assam/Meghalaya delays)	Mandate elections within 6 months of dissolution
Delay in transfer of departments: Slow devolution (e.g., education/health not fully transferred)	Ensure time-bound and streamlined transfer of subjects
Poor representation of women & smaller tribes: Dominance of major tribes	Reserve seats for women and smaller tribal groups
Lack of role for traditional bodies: Village institutions sidelined (e.g., tribal councils in Meghalaya)	Recognize grassroots tribal institutions in governance

Key Words

Tribal areas, tribal rights, autonomous districts, regional and district councils

9 Indian Federal Structure and Devolution of Powers

Federalism is a system of government where power is shared between a central authority and its constituent political units, such as states or provinces.

INDIAN FEDERALISM

- The Indian Constitution adopts a federal structure with a strong Centre to ensure unity in diversity and effective governance.
  - While the Centre holds overriding powers in areas like finance and emergencies, states enjoy autonomy in several domains.
  - This structure allows coordinated national development while accommodating regional interests. Indian federalism reflects a balance between unity and diversity. ***(UPSC 2014)***
- The Constitution establishes a dual polity with clear demarcation of powers between the Union and the States, yet allows flexibility to adapt to changing political, social, and economic needs. This model of cooperative and asymmetric federalism aims to balance national interests with regional aspirations.

Fig. 9.1: Indian Federalism

- While the USA is often regarded as the classical model of federalism with clear-cut division of powers, India has adopted a **quasi-federal system** with a strong unitary tilt. Indian federalism is described as "cooperative and competitive," aiming to balance unity with diversity in a vast and plural society.

Federal Principles in the Indian Constitution (UPSC 2014)

- **Dual Government System:** Separate governments at Centre and State levels.
- **Division of Powers:** Seventh Schedule defines Union, State, and Concurrent Lists.
- **Written constitution:** Written constitution with tough process to amend articles related to sphere of state (A-368 (2)).
- **Independent Judiciary:** Resolves Centre-State disputes (e.g., State of Karnataka v. Union of India, 1977).
- **Bicameralism:** Rajya Sabha represents states (e.g., GST Bill debates).
- **Inter-State Relations Mechanisms:** Inter-State Council under Article 263 for coordination.

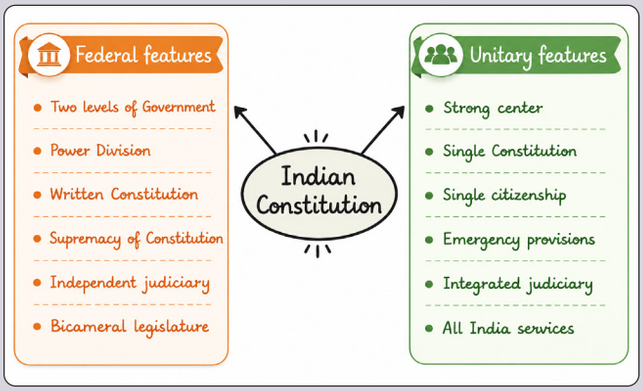


Fig. 9.2: Federal and Unitary Features

Centralising Provisions in the Indian Constitution (UPSC 2020)

- **Indestructible Union of Destructible States (Article 1 and 3):** India is a Union of States, with a strong central structure having power to destruct, merge vary existing states area, name, boundaries without their consent.
- **Residuary Powers (Article 248):** Centre controls subjects not listed in the State or Concurrent List.
- **Emergency Provisions (Articles 352, 356, 360):** Centre gains power over State subjects during emergencies.(e.g., Uttarakhand 2016, Maharashtra 2019).

- **Central Laws on State Subjects:** Centre can legislate on State List subjects under specific conditions. More subjects under Union List.
- **Binding Directives (Articles 256, 257):** Centre issues directives to ensure state compliance with Union laws.
- **Financial Imbalance:** Most revenue generating heads are under Union List while more expenditure responsibilities are under state list.
- **Control over All-India Services:** Centre governs IAS, IPS, IFS (e.g., Delhi-Centre IAS officer dispute).
- **Other Features:** Single Constitution, single citizenship, and all-India services reinforce central authority.

Centralising Tendencies

- **Epidemic Diseases Act, 1897:** Minimal State Autonomy: Centre controls public health during emergencies, overriding state jurisdiction (COVID-19 lockdown).
- **Disaster Management Act, 2005:** Overriding Power: NDMA issues binding directions to states, overriding local disaster management policies (Kerala floods).
- **Farm Acts (2020):** State Encroachment: Centre legislates on agricultural markets (traditionally a State subject), leading to protests.

INDIAN VS USA MODEL OF FEDERALISM

Feature	India	USA
Nature of Federalism	Quasi-federal / Federal with unitary bias	True federalism / Dual federalism
Source of Authority	Constitution is federal; states derive power from it	Constitution is federal; states pre-existed union
Formation of States	Parliament can create, rename, or alter state boundaries	States joined voluntarily; equal status post union
Distribution of Powers	Three lists: Union, State, Concurrent (7th Schedule)	Only two levels; clear division of powers
Supremacy	Constitution is supreme; Centre has overriding powers	Constitution is supreme; federal and state powers are sovereign in their domains
Role of Judiciary	Supreme Court is the guardian of Constitution	US Supreme Court enforces federal balance
Amendment Process	Mostly requires special majority in Parliament only	Requires approval of 3/4th of states
Emergency Provisions	Centre can override state powers during emergencies	No such provision; states retain autonomy
Single/Double Citizenship	Single citizenship for all Indians	Dual citizenship – federal and state
Financial Powers	Centre has greater financial power	States have more fiscal autonomy
Inter-governmental Relations	Promotes cooperative and competitive federalism (e.g., NITI Aayog)	Federal-state cooperation exists, but competitive federalism is dominant

Role Of Cooperation And Competition In India's Federal Structure **(UPSC 2020)**

1. **Cooperation**
   - **Inter-State Coordination:** Eg: Tamil Nadu, Puducherry, Odisha, Andhra Pradesh during Cyclone Michaung.
   - **Centre-State Welfare Initiatives:** Joint implementation of schemes like the National Health Mission.
2. **Competition**
   - **Economic Growth:** States compete in Ease of Doing Business and aim for the first $1 trillion economy.
   - **Social Sector Innovations:** States innovate in education and health. Eg: Delhi's School Management Committees involve parents in school governance.
3. **Confrontation**
   - **Tax Revenue Disputes:** States oppose GST revenue delays.
   - **Governor-State Conflicts:** Disputes over bill approvals (e.g., *Delhi Govt vs Lt Governor*).
   - **Rise of Regional Parties:** Coalition politics shaped by parties like Shiv Sena, AIADMK.
   - **Regionalism:** Violence over language, Inter state water disputes, issue of official language and three language formula of NEP.

Limitations

1. **Limitations of Cooperation**
   - **Lack of Consensus:** Delayed implementation of policies (e.g., *NEP 2020*).
   - **Inequitable Resource Distribution:** GST compensation dissatisfaction.
   - **Overlapping Jurisdictions:** Creates inefficiency in governance.
2. **Limitations of Competition**
   - **Unequal Development:** Regional disparities, especially between southern/western and northeastern states.
   - **Fragmentation of National Goals:** Excessive competition undermines unity.
   - **Poor Coordination:** Eg: Cauvery dispute reflects failure in inter-state cooperation.
3. **Limitations of Confrontation**
   - **Erosion of Federal Harmony:** States like West Bengal, Chhattisgarh withdrew CBI consent.
   - **Legal Disputes and Instability:** Prolonged Centre-State conflicts impact governance and stability.

ASYMMETRIC FEDERALISM IN INDIA

Asymmetric federalism refers to a system where different constituent units of a federation (like states or provinces) have unequal powers and relationships with the central government. In India, it means that some states enjoy **special powers or privileges** not available to others, based on historical, cultural, or political reasons.

Why India Needs Asymmetric Federalism

- **Strengthens Unity:** Autonomy fosters a sense of ownership and reduces separatist movements, promoting national unity.
- **Promotes Social Justice:** Special provisions help achieve social justice by addressing historical disadvantages.
- **Strengthening Democracy and Representation:** Asymmetric federalism ensures representation of minority areas, thereby reinforcing democracy.
- **Preserves Culture:** Provisions like Article 371 empower northeastern states to maintain their unique customs, laws, and traditions.
- **Counters Radicalization:** Increased regional control helps counter radicalization and integrate communities into national development.

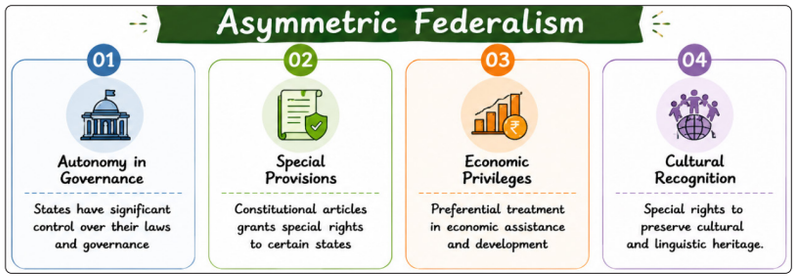


Fig. 9.3: Asymmetric Federalism

Asymmetrical provisions in the Indian Constitution

1. **Article 370 (Now Abrogated):** Gave **special autonomous status to Jammu & Kashmir**, allowing it to have its own Constitution and autonomy over all matters except foreign affairs, defense, and communications.
2. **Article 371 and its Sub-clauses:** Provide **special provisions for states like Nagaland (371A), Mizoram (371G), Maharashtra & Gujarat (371), etc.** — often related to land rights, cultural preservation, and local governance.
3. **Sixth Schedule:** Applies only to **certain tribal areas in Assam, Meghalaya, Tripura, and Mizoram**, allowing them **Autonomous District Councils** with legislative and judicial powers.
4. **Fifth Schedule:** Governs **Scheduled Areas** in other states (like Jharkhand, Chhattisgarh, Odisha), giving **Governor special powers** and recognizing **tribal customary law** to an extent.

CENTRE-STATE RELATIONSHIP

- In India, the Centre-State relationship is defined by the distribution of powers and responsibilities between the Union Government and the State Governments, as laid out in the Constitution. This relationship is largely asymmetric, with the Centre holding more power, particularly in areas such as defense, foreign affairs, and finance, as defined under the Union List.
- Over the years, there has been a shift towards cooperative federalism, with mechanisms like the Finance Commission and NITI Aayog aiming to foster collaboration. However, tensions persist due to issues like financial devolution, interstate disputes, and control over resources.

Cooperative Federalism **(UPSC 2015)**

Cooperative federalism involves collaboration between central and state governments to address common issues and promote national development. Despite constitutional roles, challenges persist, highlighting the need for stronger governance mechanisms.

Drawbacks in Cooperative Federalism

- **Centralization of Power:** Strong central tendency despite federal structure. Eg.: *Frequent use of Article 356 (President's Rule).*
- **Politicization of Issues:** Political differences hamper cooperation. Eg.: *Opposition to 2020 Farm Laws by states.*
- **Financial Imbalance:** Centre controls more resources, creating state dependency. Eg.: *Centre has 100 subjects; states only 61 under 7th Schedule.*
- **Ineffective Coordination:** Leads to inefficiencies and duplication of efforts.
- **Governor's Role:** Often seen as politically aligned to the Centre, interfering in state affairs.

Ways to Address Shortcomings

- **Collaborative Policy-Making:** Involve states through NITI Aayog's bottom-up approach.
- **Enhanced Coordination:** Make central schemes flexible to local needs.
- **Financial Devolution:** Empower states via equitable resource distribution. Eg.: *GST ensures equal Centre-State representation.*
- **Conflict Resolution:** Strengthen Inter-State Council (Article 263) for dispute settlement.

Current Challenges to Centre-State Federalism

Key Challenge	Explanation	Relevant Examples
Fiscal Centralisation	States lack independent revenue sources, relying heavily on Centre-led mechanisms like GST.	Delay in GST compensation; Centre dominates GST Council decisions.
Conflicting Jurisdictions	Overlap of powers in Concurrent List areas causes Centre-State disputes.	National Education Policy (NEP) 2020 opposed by Tamil Nadu citing intrusion into the state's education domain.
Inefficient Coordination	Lack of institutional collaboration leads to duplicated efforts and poor policy execution.	During COVID-19, states often complained of insufficient coordination in vaccine distribution and lockdown planning.
Politicisation of Federal Roles	Governors and central agencies allegedly used for political interference in state matters.	Governors delaying assent to Bills; CBI/ED probes in opposition-ruled states.
Assertion of Cultural Identity	Central policies perceived as imposing cultural homogeneity, prompting states to assert local identity.	Tamil Nadu Budget 2024-25 used a separate rupee symbol as symbolic resistance to central cultural dominance.
Planning Without Local Context	Top-down schemes often ignore state-specific developmental needs, hindering regional progress.	Centrally sponsored schemes often lack flexibility; NITI Aayog plans are criticized for a one-size-fits-all approach.

Recent Changes and the Strengthening Centre-State Relations **(UPSC 2024)**

Recent Changes in Centre-State Relations

- **Finance Commission:** States' tax share reduced from 42% to 41%, adjusting for J&K's UT status.
- **GST:** Unified market but caused financial stress due to delayed compensation.
- **Farm Laws:** Central laws on state subjects triggered protests and were later withdrawn.
- **NITI Aayog:** Seen as promoting cooperative federalism, but criticised for centralised decision-making.
- **Centrally Sponsored Schemes (CSS):** Increased conditionalities limit state flexibility.

Measures to Strengthen Federalism

- **Strengthen Inter-State Council (ISC):** Boost dialogue and inclusiveness.
- **Deepen Cooperative Federalism:** Involve states more in NITI Aayog decisions.
- **Clear Division of Powers:** Respect state authority, especially in agriculture.
- **Fiscal Empowerment:** Revisit Finance Commission recommendations for better state autonomy.
- **Collaborative Policymaking:** Engage states early for stronger cooperation.

Ways and Means to Better Manage Centre-State Relationship

Numerous commissions have offered **recommendations** to improve Centre-State relations in response to the country's evolving needs. **(UPSC 2024)**

First Administrative Reforms Commission (ARC):

- Establish an Inter-State Council (Article 263).
- Appoint Governors with strong public experience.
- Maximize delegation of power to states.
- Increase financial resources for states.

National Commission to Review the Working of the Constitution (NCRWC):

- Establish an Inter-State Trade and Commerce Commission (Article 307).
- Offer states a chance to address political breakdowns before invoking Article 356.

Sarkaria Commission:

- Make the Inter-State Council permanent.
- Limit use of President's rule (Article 356).
- Strengthen All-India Services and consider creating more.
- Improve communication on withheld assent to state bills.
- Revive Zonal Councils.
- Consult states on security deployment, concurrent list subjects, and Governor appointments.

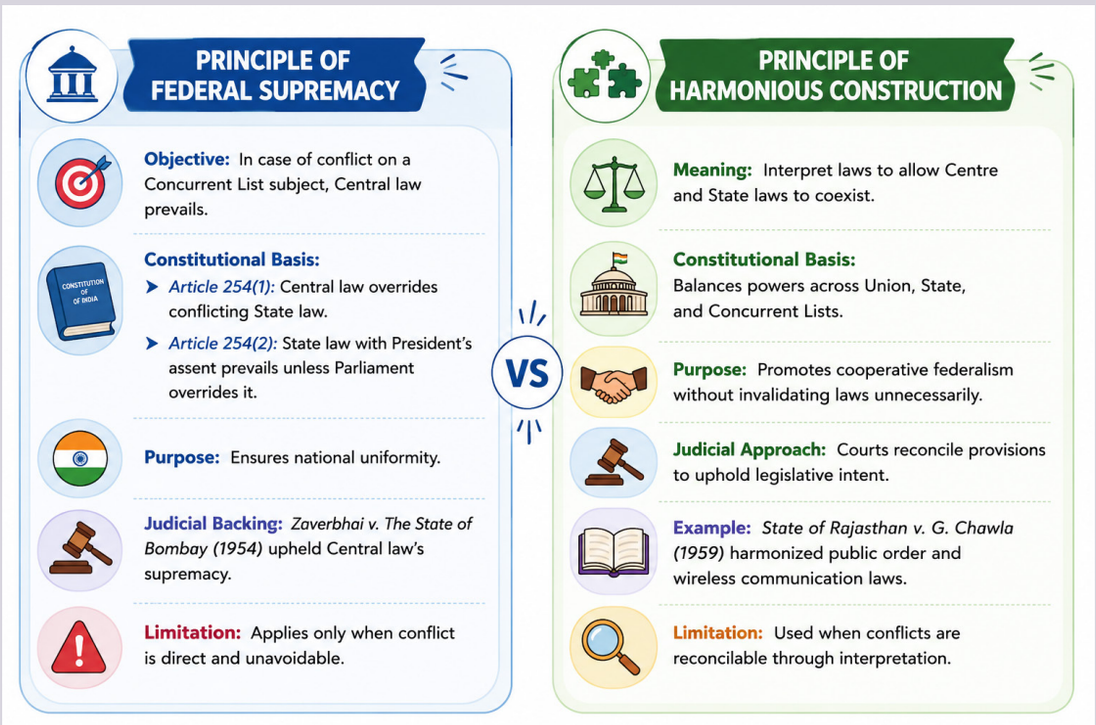
M.M. Punchhi Commission:

- Improve communication between the President and states on pending bills.
- Grant states greater flexibility on state list subjects and concurrent list items.
- Limit discretionary powers of Governors under Article 163.
- Establish guidelines for Chief Minister appointments in hung assemblies.
- Make the Finance Commission permanent with rotating membership.
- Provide equal seats in the Rajya Sabha for all states.

16th Finance Commission: Recommendations

- **Vertical Devolution:** Retained at 41% share of divisible tax pool for States; excludes cesses and surcharges.
- **Horizontal Devolution Criteria:** Horizontal devolution includes income distance (42.5%), population (17.5%), and a new 10% weight for GDP contribution.
- **Grants-in-Aid (₹9.47 lakh crore):** It recommended ₹9.47 lakh crore grants, including ~₹7.9 lakh crore for local bodies.
- Sector-specific grants discontinued.
- Higher allocation for urban bodies (45%); tied to sanitation, water, and performance-based reforms.
- **Disaster Management Funding:** ₹2.04 lakh crore corpus for SDRF/SDMF; differentiated Centre–State sharing ratio (90:10 NE & Himalayan states).
- **Key Additions:** Heatwaves and lightning proposed as national disasters; upgrade of disaster management systems using technology.
- **Reform Conditions:** Fiscal deficit targets (Centre 3.5%, States 3%), power sector reforms, subsidy rationalisation, and PSE restructuring/disinvestment.
- Reducing combined debt to ~73.1% of GDP by 2030-31.
- Revenue deficit grants are discontinued, and transfers are now more performance-based.
- Overall, it marks a shift toward compliance-driven fiscal federalism with emphasis on efficiency and urbanisation (41% urban population by 2031)

Principle of Federal Supremacy and Principle of Harmonious Construction **(UPSC 2019)**



INTER-STATE RIVER WATER DISPUTE

Constitutional and Statutory Provisions on Inter-State Water Disputes

- **Article 262(1):** This article empowers the Parliament to enact legislation for the adjudication of inter-state river waters dispute.
- **Article 262(2):** This clause grants Parliament the authority to exclude the Supreme Court or any other court from exercising jurisdiction over inter-state river waters disputes.
- **Rivers Board Act, 1956:** This Act was established with the intent that the Centre would regulate and develop interstate rivers and valleys in the public interest.
- **Inter-state River Water Disputes Act, 1956:** This Act allows Parliament to establish a tribunal to settle interstate river water disputes. It also excludes the Supreme Court from jurisdiction over such cases.

Reasons Behind Rising Inter-State River Water Disputes

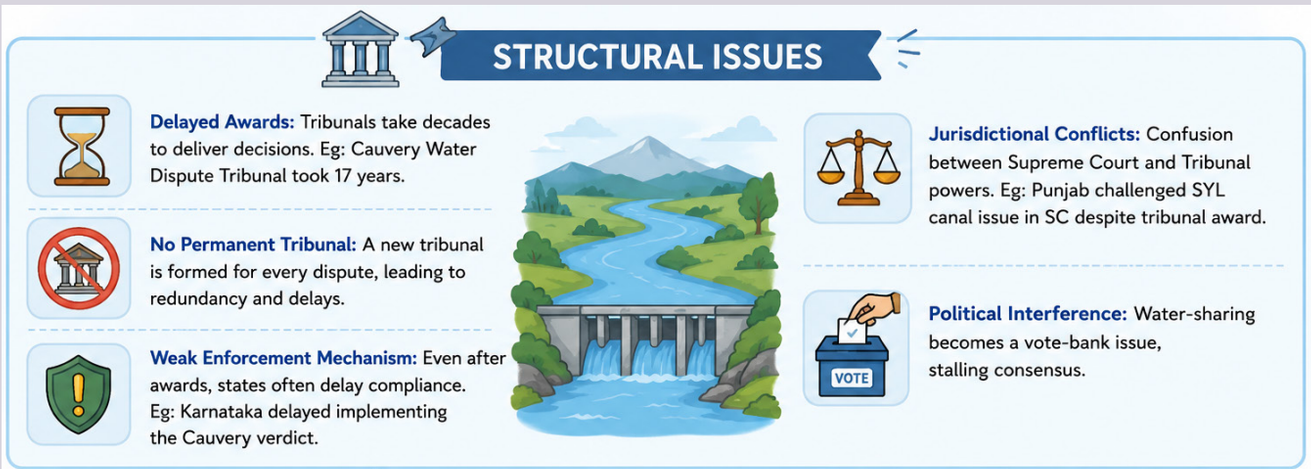
- **Political Interference:** Politicians sometimes exploit public emotions during river disputes, creating obstacles to resolution (e.g., Cauvery water dispute).
- **State Bifurcation:** Dividing states, like Andhra Pradesh and Telangana, leads to new water-sharing disputes over rivers like the Godavari.
- **Water Scarcity:** India faces a critical water shortage, with just 4% of global water resources despite housing 18% of the world's population.
- **Competing Interests:** Disputes erupt when one state's actions, such as water usage, negatively impact another.
  - Rising industrialisation, Urbanisation and affluent lifestyle, Climate change and extreme weather events, increasing intensity of agriculture etc. are creating genuine pressure on existing water resources of the government

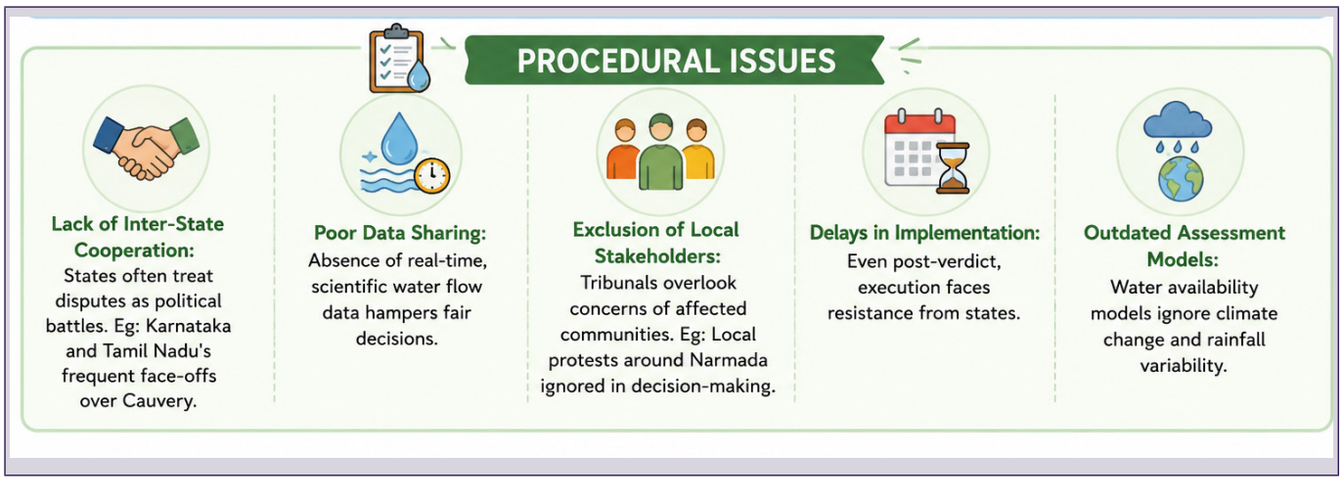
Challenges and Way Forward For Resolving Inter-State Water Disputes

Challenges (UPSC 2013)

- **Historical and Geographic Confusion:** Redrawn state boundaries often disregard natural water flow patterns, leading to disputes about water rights based on historical usage or geography.
- **Constitutional-Legal Ambiguity:** The division of power creates ambiguity. While states manage water use, the central government regulates interstate river waters. This overlapping authority complicates dispute resolution.
- **Institutional Uncertainty:** Article 262 restricts the Supreme Court's involvement in water disputes, but Article 136 allows them to review tribunal decisions. This inconsistency creates uncertainty about the final legal authority.
- **Implementation Hurdles:** Failure to implement tribunal awards by the executive branch significantly hinders the resolution of disputes, leaving conflicts unresolved. Eg., Haryana, Punjab and Satluj-Yamuna Canal issue.
- **Challenges with the Interstate Water Disputes Act, 1956**
  - **Inefficient Dispute Resolution:** New tribunals for each dispute create redundancy and undefined timeframes lead to delays.
  - **Weak Enforcement:** Tribunal decisions lack a mechanism for implementation.
  - **Protracted Appeals:** Appeals against decisions can further stall resolutions.

Reasons for Ineffectiveness of Inter-State River Dispute Resolution





Way Forward

- **Robust Mechanism:** Establish a strong mechanism to enforce tribunal awards.
- **Legal Clarity:** The Supreme Court should provide clear legal guidance on mechanisms for implementing tribunal awards.
- **Holistic Basin Management:** Develop comprehensive strategies for river basin issues, including long-term sustainability.
- **Sharing During Scarcity:** The Supreme Court should guide states towards a workable formula for sharing water in times of shortage.
- **Moving Beyond Politics:** Find an alternative to political negotiation for a lasting solution to water conflicts.
- **Balancing Needs:** Integrate ecological restoration, aquatic biodiversity preservation, and sustainable water management practices into basin plans.

Water is a vital resource, and inter-state disputes can significantly impact livelihoods. A multifaceted approach is needed to achieve sustainable solutions. Including water in the concurrent list can provide greater clarity, while establishing River Basin Organizations can improve river management. Ultimately, a cooperative approach to water governance is essential.

DEMAND FOR SMALLER STATES

In India, discussions about federalism often weigh the need for independent state power against maintaining a unified nation. This has led to growing calls for the creation of smaller states, like Vidarbha and Purvanchal. These demands are driven by a desire for greater control over regional affairs, preserving cultural identities, improving administrative effectiveness, and achieving fairer development across the country.

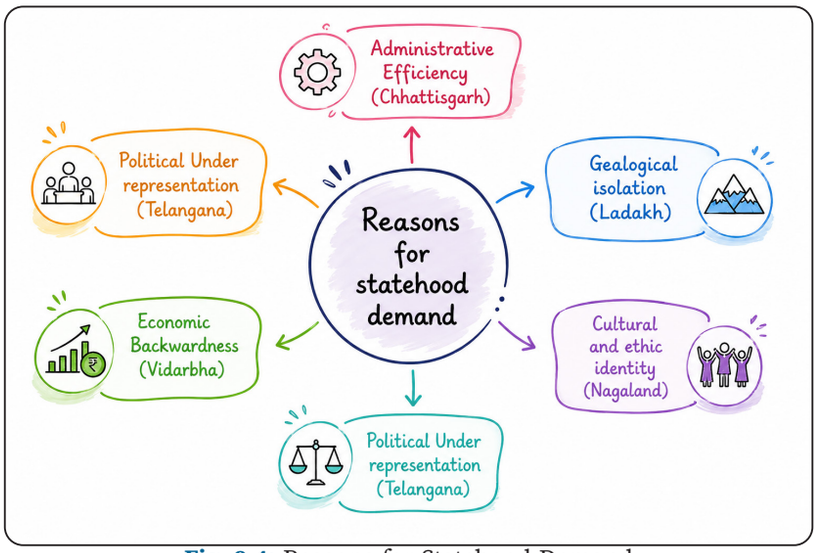


Fig. 9.4: Reasons for Statehood Demand

Potential Benefits of Small States (UPSC 2013)

- **Efficient Administration:** Smaller size can streamline administration and resource allocation.
- **Stronger Fiscal Management:** Focused governance can lead to better financial management.
- **Addressing Regional Needs:** Smaller states can tailor policies to address specific regional issues.
- **Optimal Resource Use:** Reduced administrative costs can free up resources for development projects.
- **Inclusive Growth:** Smaller states may promote balanced development across regions and empower minorities (as envisioned by Dr. B.R. Ambedkar).

Challenges of Creating Smaller States

- **Mixed Performance:** Some newly formed states haven't shown significant improvement in development. Example: Jharkhand, Chhattisgarh
- **Leadership Issues:** Lack of experienced leadership can hinder governance in new states.
- **Financial Strain:** Setting up new administrative structures can strain financial resources. Example: Andhra Pradesh decision to form three capitals.
- **Central Dependence:** Smaller states may rely heavily on central financial assistance. Examples: Jharkhand, Chhattisgarh.
- **Infrastructure Gap:** Developing necessary infrastructure in new states can be time-consuming and expensive.

Way Forward

- **Objective Criteria:** Establish a clear set of objective criteria, such as population size, economic viability, and administrative efficiency, to guide decisions on statehood demands. This could help prevent purely political considerations from driving the process.
- **Comprehensive Needs Assessment:** Conduct thorough needs assessments that consider the developmental goals, cultural identity, and economic realities of the region seeking statehood.
- **Focus on Decentralization:** Explore alternative solutions like strengthening existing local governance structures through decentralization. This could empower regions without resorting to full statehood.
- **Fiscal Responsibility:** Ensure any new state has a sound financial plan that demonstrates its ability to be self-sustaining and manage its resources effectively.
- **Inter-State Cooperation:** Encourage collaboration among states, especially when dealing with shared resources or regional development challenges.

National Political Parties in India Favour Centralisation, the Regional Parties are in Favour of State autonomy (UPSC 2022)

National Parties Favor Centralisation

- **National Unity:** Prevents regional fragmentation. Eg: UCC and One Nation, One Election promote coherence.
- **Economic Efficiency:** Simplifies taxation and trade. Eg: GST streamlined multiple taxes.
- **Safeguarding National Interest:** Strengthens stability. Eg: Abrogation of Article 370.
- **Uniform Welfare Delivery:** Ensures consistent service across states. Eg: PM-KISAN and Ayushman Bharat schemes.
- **Reducing Regional Disparities:** Targets lagging areas. Eg: Aspirational Districts Program by NITI Aayog.

Regional Parties Favor State Autonomy

- **Protecting Local Identity:** States manage regional issues better. Eg: Tamil Nadu's stand against NEET.
- **Fiscal Independence:** Demand for greater control over revenues. Eg: Higher GST compensation sought by states.
- **Cultural Preservation:** Defends languages and traditions. Eg: Resistance to Hindi imposition.
- **Resource Control:** Preference for autonomy in policymaking. Eg: State demand for control over mining and industries.
- **Opposing Governor's Overreach:** Resisting Centre's influence through Governors. Eg: TN Governor's bill clearance disputes.

CENTRE-STATE FINANCIAL RELATIONS: EVOLUTION & REFORMS (UPSC 2025)

The Indian fiscal landscape has evolved from "Centralized Planning" to "Cooperative & Competitive Federalism."

The Planning Era (1950–2014): Centralized Control

- **Dual Channel:** Funds flowed via the Finance Commission (statutory) and Planning Commission (discretionary).
- **Top-Down Approach:** The Planning Commission often overshadowed constitutional bodies, using Plan Grants to enforce central priorities.
- **Rigidity:** The Gadgil-Mukherjee Formula provided a fixed structure but left states with little fiscal autonomy.
- **Era of Reforms (Post-2014):** The Structural Shift
- **Institutional Shift:** Replacement of the Planning Commission with NITI Aayog (Think Tank) removed discretionary plan grants, fostering a "Bottom-Up" approach.
- **Enhanced Devolution:** The 14th Finance Commission increased the states' share of the divisible pool from 32% to 42%, providing more "untied" funds.
- **GST & Pooled Sovereignty:** The GST Council created a platform where Centre and States decide taxes together, though it curtailed individual state taxing powers.

Emerging Trends & Challenges

- **Competitive Federalism:** Introduction of performance-based grants (e.g., 15th Finance Commission) rewards states for efficiency in health, education, and fiscal discipline.
- **Vertical Imbalance:** A growing concern as the Centre increasingly uses Cesses and Surcharges (non-shareable) to bypass the divisible pool.
- **Post-Compensation Era:** The end of GST compensation in 2022 has created a "fiscal cliff" for several manufacturing states.

The **101st Constitutional Amendment Act, 2016** paved the way for the introduction of the Goods and Services Tax (GST) in India

Significance of the 101st Constitutional Amendment Act (CAA) **(UPSC 2023)**

- **Economic Integration:** GST enabled "One Nation, One Market," reducing tax barriers.
- **Improved Tax Collection:** Unified system boosted compliance and revenue for Centre and States.
- **Enhanced Transparency:** Technology-driven GST reduced tax evasion.
- **Equitable Revenue Distribution:** Fairer allocation of tax revenue among States.

Reflection of Cooperative Federalism

- **Unanimous Passage:** States' consensus reflected accommodative federal spirit.
- **GST Council (Article 279A):** Central and State representatives jointly decide GST matters. Eg: Kerala allowed to impose flood cess post-2018 floods.
- **Consensus-Based Decisions:** 3/4th majority required; first 37 meetings saw full consensus.
- **Addressing Regional Imbalances:** Compensation Cess and GST Fund helped revenue-deficit states.

Challenges to Fiscal Federalism

- **Compensation Issues:** Delay in payments strained Centre-State relations.
- **Vertical Inequity:** Centre continues to levy exclusive cess and surcharges, limiting States' fiscal powers.

NATURE OF THE LEGISLATIVE ASSEMBLY UNDER THE J&K REORGANISATION ACT, 2019 (UPSC 2025)

- Under the J&K Reorganisation Act, 2019, the region was transitioned from a State to a Union Territory with a Legislature. Its nature is characterized by:
- **Unicameralism:** The Legislative Council was abolished; only the Legislative Assembly remains.
- **Composition:** 114 total seats (90 for J&K, 24 reserved for PoK).
- First-time reservation for Scheduled Tribes (9 seats).
- **LG Nominations:** The Lieutenant Governor (LG) has the power to nominate members (Kashmiri Migrants, Displaced Persons, and Women) if they are under-represented.
- **Term:** A fixed five-year tenure, aligning it with the rest of India.

Powers and Functions

- **Legislative:** The Assembly can make laws for the UT on subjects in the State List (except 'Public Order' and 'Police') and the Concurrent List. Unlike Delhi, the J&K Assembly retains power over "Land."
- **Executive Control:** The Council of Ministers, headed by a Chief Minister, is collectively responsible to the Assembly.
- **Financial:** The Assembly has the power to pass the UT's budget and control expenditures through the Consolidated Fund of the UT.
- The Assembly's authority is significantly circumscribed, as the Lieutenant Governor retains discretionary powers over critical administrative matters, and any law passed may require the President's assent in specific cases.

J&K VS DELHI

Feature	Jammu & Kashmir (UT)	Delhi (NCT)
Constitutional Basis	Article 239A (via J&K Reorganisation Act, 2019)	Article 239AA (via 69th Amendment Act, 1991)
Exempted Subjects	Police and Public Order.	Police, Public Order, and Land.
Power over Land	Legislative Assembly has power over land.	Central Government (via LG) controls land.
Anti-Corruption Bureau	Under the Lieutenant Governor.	Under the Lieutenant Governor.
Services (Bureaucracy)	Under the Lieutenant Governor (as per 2024 amendments).	Under the Elected Government (subject to Parliamentary law/LG oversight).

69TH AMENDMENT (1991)- (UPSC 2016)

Inserted **Article 239AA**, granting Delhi "Special Status" as the National Capital Territory (NCT).

- **Structure:** Created an elected Legislative Assembly and a Council of Ministers.
- **Excluded Subjects:** The Assembly has powers over the State and Concurrent Lists
- **Except**: **Public Order, Police and Land**
- **The LG's Role:** The Lieutenant Governor (LG) is the Administrator. While generally acting on "aid and advice," the LG can refer any dispute with Ministers to the President.

The Shift: GNCTD (Amendment) Act, 2023

Following a 2023 Supreme Court ruling that gave the elected government control over "Services," the Centre enacted this law to re-establish oversight.

- **Removal of Services:** Explicitly removes "Services" (Entry 41) from the Delhi Assembly's legislative competence.
- **NCCSA (National Capital Civil Services Authority):** * **Composition:** CM (Chair), Chief Secretary (Central appointee), and Principal Home Secretary (Central appointee).
  - **Function:** Recommends transfers and postings of bureaucrats via **majority vote**.
- **LG Supremacy:** The LG has the final say over NCCSA recommendations and expanded discretionary powers over the bureaucracy.

Core Issues & Implications

- **Triple Chain of Accountability:** Critics argue the Act breaks the link where **Civil Service** is accountable to **Ministers**, who are accountable to the **Legislature**, who are accountable to the **Voters**.
- **Administrative Friction:** Terms like "sole discretion" and "controversial matters" lead to frequent "governance by litigation."
- **Federal Tension:** Highlights the struggle between the Union's need to secure the National Capital and the democratic mandate of its 20 million residents.

Key Words

Unitarian Constitution, federalism, cooperative federalism, competitive federalism, financial decentralization, regional autonomy

Previous Year Questions	Year
1. What changes has the Union Government recently introduced in the domain of Centre-State relations? Suggest measures to be adopted to build the trust between the Centre and the States and for strengthening federalism.	2024
2. Explain the significance of the 101st Constitutional Amendment Act. To what extent does it reflect the accommodative spirit of federalism?	2020
3. While the national political parties in India favour centralisation, the regional parties are in favour of State autonomy." Comment.	2022
4. How far do you think cooperation, competition and confrontation have shaped the nature of federation in India? Cite some recent examples to validate your answer.	2020
5. From the resolution of contentious issues regarding distribution of legislative powers by the courts, 'Principle of Federal Supremacy' and 'Harmonious Construction' have emerged. Explain.	2019
6. The concept of cooperative federalism has been increasingly emphasized in recent years. Highlight the drawbacks in the existing structure and the extent to which cooperative federalism would answer the shortcomings.	2015
7. Though the federal principle is dominant in our Constitution and that principle is one of its basic features, it is equally true that federalism under the Indian Constitution leans in favour of a strong Centre, a feature that militates against the concept of strong federalism. Discuss	2014
8. Constitutional mechanisms to resolve the inter-state water disputes have failed to address and solve the problems. Is the failure due to structural or process inadequacy or both? Discuss.	2013
9. The Indian constitution exhibits centralising tendencies to maintain unity and integrity of the nation. Elucidate in the perspective of the Epidemic Diseases Act, 1897; The Disaster Management Act, 2005 and recently passed Farm Acts.	2020

10 Separation of Power and Functional Overlapping

India's democratic system reflects the idea of Separation of Powers, even without explicitly mentioning it. This principle, championed by Montesquieu, divides government into legislative, executive, and judicial branches to prevent any single group from holding too much power. While India's Constitution allows some overlap between these branches, it also ensures a complex interplay with checks and balances.

CONSTITUTIONAL PROVISIONS

- **Article 50:** This urges the state to strive for a distinct separation between the judiciary and the executive.
- **Part V and Part VI:** They delineate the roles and responsibilities of the Executive, Legislature, and Judiciary at the Union (federal) and State levels, respectively.
- **Article 121 and Article 211:** No discussion on the conduct of Supreme Court and High Courts judges in discharge of their duties in Parliament or State legislatures.
- **Articles 122 and 212:** These prevent courts from questioning parliamentary and legislative proceedings, effectively separating the judicial and legislative domains.
- **Article 98 and 146:** Under A - 98 Parliament has its own secretariat and recruits its officers and decides their terms and conditions of work independent of the executive. Similarly under A-146 CJI has power over appointments, terms of service etc. of the officers of the court unless parliament makes a law and rules regarding service except for salary etc. are decided by CJI.

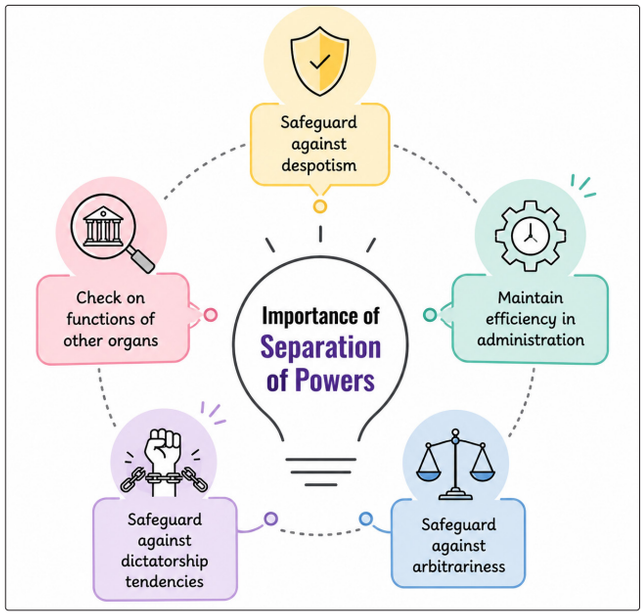


Fig. 10.1: Importance of Separation of Powers

DIFFERENT MODELS OF SEPARATION OF POWERS

The principle of separation of powers, dividing government functions among distinct branches, is implemented differently across countries.

- **Strict Separation:** The United States exemplifies a rigid model with clear lines separating the legislative, executive, and judicial branches.
- **Flexible Model:** In countries like the UK and India, the branches exhibit more overlap in functions and personnel, fostering a more collaborative approach.

Executive-Legislature Overlap & Reform Measures

Functional Overlap Between Executive and Legislature	Solutions to Minimize Overlap & Ensure Accountability
President acts as head of both executive and legislature	Empower independent institutions like Lok Sabha Secretariat & CAG
President's ordinance power—a legislative function	Strengthen parliamentary scrutiny through committees
Ministers are legislators heading executive departments	Revitalise Parliamentary Committees for detailed oversight
Delegated legislation by executive	Define clear limits on delegated powers; enhance legislative oversight
Party in power influencing no-confidence motion	Encourage electoral reforms, promote inner-party democracy

Whip system limits independent voting in legislature	Reform party system to allow freer voting and reduce executive dominance
Weak scrutiny of executive actions	Support growth of Public Interest Groups for independent checks
Potential overreach in legislative-executive boundaries	Ensure judicial review and uphold constitutional objectivity

Principle of Constitutional Objectivity

In the NCT vs UOI case, Justice Chandrachud emphasized "constitutional objectivity" as the core principle to balance legislature and executive interactions. It helps ensure that each branch operates within its designated sphere, thereby preventing absolute power accumulation.

Functional Overlap Between Judiciary and Legislature

Overlap Between Judiciary and Legislature	Solutions to Minimize Overlap
Judiciary can strike down laws passed by the legislature under the power of judicial review	Judiciary should show due deference to legislative intent and use judicial review sparingly when laws clearly violate the Constitution
Public Interest Litigations allow judiciary to intervene in policy matters traditionally handled by the legislature	Establish clear and strict guidelines for PILs to ensure they are used for genuine public interest without interfering with legislative domains
Legislature may pass laws to limit judicial activism or curb judicial review	Legislature should acknowledge and respect the role of the judiciary in upholding constitutional values and avoid enacting laws that undermine its independence
Judiciary issues guidelines in absence of legislation which may resemble law-making, leading to judicial overreach	Encourage timely and proactive legislation by the legislature to fill policy gaps so judiciary is not compelled to step in repeatedly
Judiciary's intervention in executive decisions like cancellation of 2G licenses affects legislative and policy directions	Ensure better coordination among branches with regular consultative mechanisms and clarify roles through constitutional conventions

Supreme Court Checks Parliament's Power **(UPSC 2013)**

- **Judicial Review of Amendments:** Invalidates amendments violating fundamental rights. Eg: Golaknath case (1967).
- **Basic Structure Doctrine:** Prevents altering the Constitution's core principles. Eg: Kesavananda Bharati (1973), Minerva Mills (1980).
- **Ensuring Separation of Powers:** Stops Parliament from undermining other organs. Eg: *NJAC Act struck down (2015).*
- **Safeguarding Federalism:** Protects state autonomy against central overreach. Eg: S.R. Bommai case (1994).

Concerns

- **Judicial Overreach:** Courts sometimes blur separation of powers.
- **Undefined Basic Structure:** Leads to inconsistent interpretations.
- **Limits on Progressive Reforms:** Blocks widely supported changes. Eg: Scrutiny of Right to Education Act (2009).
- **Political Influence on Judiciary:** Collegium system faces transparency issues.

Functional Overlap Between Judiciary and Executive

Overlap Between Judiciary and Executive	Solutions to Minimize Overlap
The executive has a role in appointing judges through the collegium system which raises concerns about possible bias.	Introduce a transparent and independent mechanism for judicial appointments that includes wider participation beyond the executive.
Tribunals set up by the executive often perform judicial functions which blurs the distinction between the two branches.	Define the jurisdiction of tribunals clearly and ensure they are headed by qualified judicial members to maintain independence.

Overlap Between Judiciary and Executive	Solutions to Minimize Overlap
The President and Governors enjoy immunity from court proceedings for their official actions which limits judicial scrutiny.	Revisit immunity provisions to ensure executive accountability especially when public rights are impacted.
The power to grant mercy rests with the executive and may overlap with the judiciary's sentencing authority.	Ensure the mercy process follows judicial recommendations and involves a reasoned and transparent decision-making process.
Courts have the authority to punish for contempt which may sometimes curb valid criticism or dissent.	Develop clear and objective standards for invoking contempt to prevent misuse and protect democratic values.

WHY COORDINATION BETWEEN LEGISLATURE, EXECUTIVE AND JUDICIARY IS NECESSARY?

While the separation of powers ensures checks and balances, effective governance requires a degree of coordination between the legislature, executive, and judiciary:

- **Informed Lawmaking:** Judiciary identifies legal gaps and legislature addresses them through laws.
  - **Example:** Puttaswamy (2017) laid foundation for the Digital Personal Data Protection Act, 2023.
- **Policy Certainty:** Coordination reduces conflict between interpretation and implementation, preventing policy paralysis.
  - **Example:** GST and Labour Code consultations between judiciary and executive reduce litigation during rollout.
- **Rapid Crisis Response:** Inter-branch coordination ensures rights + governance during emergencies.
  - **Example:** During COVID-19, executive imposed restrictions while judiciary safeguarded fundamental rights.
- **Public Trust:** Cooperation improves institutional credibility and reduces friction (e.g., issues around Collegium and judicial appointments).
- **Global Challenges:** Requires synergy—legislature for treaties, executive for enforcement, judiciary for compliance (e.g., cybercrime, climate change).

IMPROVING COORDINATION BETWEEN LEGISLATURE, EXECUTIVE AND JUDICIARY

The Indian Constitution embodies the concept of separation of powers, but effective governance necessitates a degree of coordination between the branches. Here are some ways to achieve this:

1. **Inter-Branch Communication:** Regular consultative meetings between organs to improve understanding and cooperation.
2. **Secondment Programs:** Temporary exchange of personnel to understand each other's functioning and challenges.
3. **Joint Conferences:** Periodic meetings on national issues to encourage dialogue and collaborative solutions.
4. **Strengthening Parliamentary Committees:** Enhancing oversight role for better executive accountability and scrutiny.
5. **Respect for Judicial Review:** Executive must respect court judgments and ensure timely and bona fide implementation.

Role of Judicial Activism in Achieving Ideals of Democracy **(UPSC 2014)**

Positive Role:

- **Constitutional Supremacy:** Protects core values. Eg: NJAC struck down (2015).
- **Fundamental Rights Expansion:** Broadened Right to Life. Eg: Puttaswamy judgment (2017).
- **Strengthening Electoral Democracy:** Enhances transparency. Eg: NOTA introduced (PUCL case, 2013).
- **Social Justice via PILs:** Easier public access to justice. Eg: Vishaka Guidelines.
- **Curbing Executive Overreach:** Invalidates unconstitutional laws. Eg: Section 66A struck down (Shreya Singhal, 2015).

Concerns:

- **Breach of Separation of Powers:** Judiciary intervenes in executive or legislative domain. Eg, Supreme Court's ban on firecrackers (2018) was criticized as policy overreach.
- **Subjectivity and Inconsistency:** Activism depends on individual judges' interpretation. Eg, Different benches have delivered conflicting judgments on same-sex marriage rights.
- **Judicial Delays and PIL Overload:** Excessive activism burdens courts and affects pendency. Eg, Over 81,000 cases pending in Supreme Court (as of 2025).

DOCTRINE OF CHECKS AND BALANCES (UPSC 2019)

The doctrine of checks and balances in India ensures that the Legislature, Executive, and Judiciary limit and regulate each other's powers. India follows a flexible separation of powers with functional overlap for effective governance. Each organ has control mechanisms like judicial review, legislative oversight, and executive powers such as ordinances. This system prevents concentration of power and protects democracy, though occasional overlap and judicial activism can create friction between institutions.

Indian Constitutional Provisions

The Indian Constitution embodies this principle through various provisions. These include:

- **Judicial Review (Article 13):** The judiciary can review laws passed by the legislature and strike them down if found unconstitutional.
- **Judicial Limitations:** The judiciary itself is bound by established legal procedures.
- **Executive Appointments:** The executive appoints judges, with the President playing a role.
- **Parliamentary System:** India follows a parliamentary form of government, where the executive is drawn from the legislature.

Examples of Checks and Balances

- **Legislative vs. Executive:** The President can summon, prorogue (adjourn for a brief period), or dissolve Parliament (Article 85). Conversely, Parliament can impeach the President for violating the Constitution (Article 61).
- **Executive vs. Judiciary:** The executive appoints judges, but the judiciary can review the executive's actions through judicial review (e.g., Kesavananda Bharati v. State of Kerala & Minerva Mills v. Union of India).
- **Legislative vs. Judiciary:** Parliament can remove judges through impeachment, but the judiciary can invalidate laws they deem unconstitutional (e.g., Kesavananda Bharati case).

Recent Issues: Separation of Powers

- The Issue of timelines for President/Governor assent to Bills sparked debate on institutional limits.
- Centre cautioned SC against judicial overreach and assuming non-constitutional powers.
- Government stressed need to maintain balance between Legislature, Executive, and Judiciary.
- Judiciary reiterated its role to intervene when constitutional duties are not performed.
- Reflects ongoing tension due to functional overlap in India's system of checks and balances.

Key Words

Checks and Balances; Constitutional Objectivity; Executive, Legislative, and Judicial Overlap; Judicial Overreach; Harmonious Coordination; Doctrine of Prospective Overruling; Ultra vires' (Beyond the powers); Rule of Law and Equality

Previous Year Questions	Year
1. Explain the significance of the 101st Constitutional Amendment Act. To what extent does it reflect the accommodative spirit of federalism?	2020
2. Do you think the Constitution of India does not accept the principle of strict separation of powers rather it is based on the principle of 'checks and balance'? Explain	2019
3. Resorting to ordinances has always raised concern on violation of the spirit of separation of powers doctrine. While noting the rationales justifying the power to promulgate ordinances, analyze whether the decisions of the Supreme Court on the issue have further facilitated resorting to this power. Should the power to promulgate ordinances be repealed?	2015
4. Starting from inventing the 'basic structure' doctrine, the judiciary has played a highly proactive role in ensuring that India develops into a thriving democracy. In light of the statement, evaluate the role played by judicial activism in achieving the ideals of democracy.	2014
5. The Supreme Court of India keeps a check on the arbitrary power of the Parliament in amending the Constitution. Discuss critically.	2013

11 Parliament and State Legislatures

The strength and effectiveness of any democratic political system largely rests on its legislative bodies' functional efficacy. In India, the essence of democracy is upheld by our Parliament and State Legislatures. As the institutional pillars of the world's largest democracy, they are instrumental in upholding constitutionalism, law-making, holding the executive accountable, and representing the will of the people.

FUNCTIONS OF THE PARLIAMENT

- **Law-Making:** Enacts, amends laws and can amend the Constitution.
- **Executive Control:** Ensures accountability via Question Hour, No-Confidence Motion, etc.
- **Electoral Role:** Participates in election of President & Vice-President; elects presiding officers and committee heads.
- **Financial Control:** Authorizes expenditure from Consolidated Fund; scrutinizes Budget through committees.
- **Quasi-Judicial Role:** Handles impeachment of President, removal of judges, and breach of privileges.
- **Information Role:** Seeks information from executive through questions, debates, and committees.

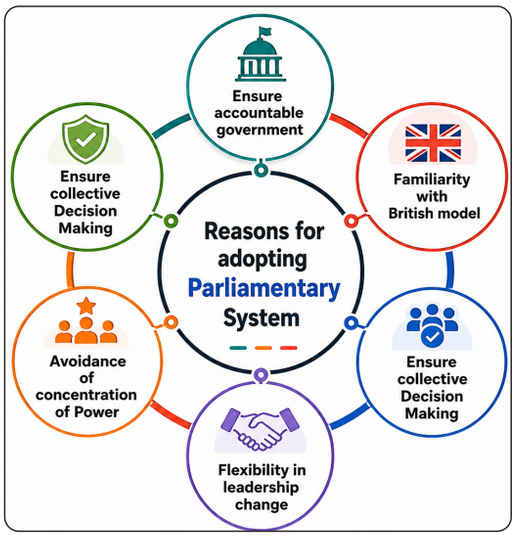


Fig. 11.1: Reasons for Adopting Parliamentary System

CHALLENGES IN THE FUNCTIONING OF INDIAN PARLIAMENT

1. **Declining Productivity**
   - The 17th Lok Sabha held only 274 sittings (1,354 hours), lower than previous full-term Lok Sabhas.
   - Frequent disruptions over issues like farm laws, Pegasus, inflation, etc., reduce effective working hours.
   - Key posts like Deputy Speaker and Leader of Opposition remain vacant, affecting institutional balance.
2. **Erosion of Parliamentary Norms**
   - Rising instances of indiscipline and disorderly conduct during sessions.
   - Lack of prompt disciplinary action encourages repeated disruptions.
3. **Inadequate Legislative Scrutiny**
   - Bills are often passed quickly, with minimal debate or discussion, sometimes through voice votes.
   - Sharp fall in the referral of bills to Parliamentary Committees – only 27% in the 16th Lok Sabha compared to 60–71% in earlier terms.

Fig. 11.2: Key Features of Parliamentary System

4. **Bypassing Legislative Process**
   - The Ordinance route is being increasingly used, weakening parliamentary oversight.
   - Money Bill provisions have been misused to sidestep Rajya Sabha debate. E.g., Aadhaar Amendment in 2016 was passed as money bill.
5. **Representation and Inclusivity Issues**
   - Women's representation in the Lok Sabha remains low compared to global standards.
   - Opposition voices are often sidelined, with limited time allocated for raising concerns.
6. **Uncodified Privileges and Lack of Transparency**
   - Parliamentary privileges remain uncodified, raising concerns over their misuse.
   - Time for unlisted discussions and questions is often limited, reducing accountability.

SUGGESTED PARLIAMENTARY REFORMS

- **Fix a minimum number of sittings:** Ensuring a minimum number of sittings, such as 120 for the Lok Sabha and 100 for the Rajya Sabha, can increase the parliament's productivity and functioning.
- **Codify Parliamentary Privileges:** Clear codification of parliamentary privileges can prevent their misuse and ambiguity.
- **Review of Anti-Defection law:** In order to revive debate and deliberations in the Parliament, the use of whip can be restricted to no-confidence motion only.
- **Strengthen Departmental Committees and Accountability:** Improving the functionality of departmental committees like longer tenure (instead of the present one year), promoting specialization,
- **Use of technology for virtual meetings:** Leveraging technology for virtual meetings can ensure legislative work continues during crises, like the COVID-19 pandemic.
- **Introduction of Legislative Impact Assessment:** Introducing legislative impact assessments can improve awareness and legal evaluation of proposed laws.

Growth of Cabinet System and Marginalisation of Parliamentary Supremacy **(UPSC 2024)**

- **Concentration of Power:** Cabinet dominance undermines Article 75's collective responsibility.
- **Executive Control Over Legislation:** Executive limits Parliament's independence; only 14 private members' bills passed since 1952.
- **Bypassing of Committees:** Bills like the Citizenship Amendment Act, 2019 bypassed Standing Committees, weakening Article 118's intent.
- **Ordinance Route:** Overuse of ordinances under Article 123 dilutes Parliament's law-making role.
- **Reduced Sittings:** Decline from 677 sittings (1st Lok Sabha) to 274 (17th Lok Sabha) curbs executive oversight under Article 85.
- First Lok Sabha had more work in its hand as country just recently got independence and whole legal-administrative-economic -social structure of the country needed overhaul.

Reasons Why Parliament Remains Significant

- **Legislative Authority:** Parliament still exercises supreme law-making powers.
- **Budgetary Control:** Under Article 265, Parliament's consent is mandatory for taxation, curbing executive excesses.
- **Impeachment Powers:** Parliament can impeach judges (Article 124(4)) and President (Article 61).
- **No Confidence Motion:** Key tool for executive accountability (e.g., 2023 motion over Manipur issue).

PARLIAMENTARY PRIVILEGES

Parliamentary Privileges and their Evolution

Parliament Privileges are special legal immunities given to MPs to ensure free and independent functioning of Parliament.

- **Origin at British Parliament:** Introduced to protect legislators in the House of Commons from arrest and harassment when they criticized the monarchy.
- **Adoption in Indian context:** India's founding fathers provided absolute freedom of speech to parliamentarians within the house, even as citizens' freedom remained restricted. This decision was upheld by the Supreme Court.

Parliamentary Privileges are based on five sources

- Constitutional provisions,
- Various laws made by Parliament,
- Rules of both the Houses,
- Parliamentary conventions,
- Judicial interpretations

- **Power to Codify:** The founding fathers vested the power to codify privileges with Parliament. However, so far, Parliament resisted codification fearing a loss of parliamentary sovereignty. This was highlighted in the P.V. Narsimha Rao Case.

SC Ruling on Parliamentary Privileges

In Sita Soren v. Union of India (2024), a seven-judge constitution bench of the SC overruled its 1998 judgment in the PV Narasimha Rao case. In current judgement the SC said that Legislators cannot claim immunity from prosecution for taking bribes for speech/vote in the house:

Key highlights of Judgement:

- **Bribery is not immune:** MPs/MLAs accused of taking bribes cannot claim any immunity from prosecution under Articles 105 and 194 of the Constitution.
- **Two-fold test:** Assertion of a privilege by an individual MP/MLA would be governed by a Two fold test:
  - Privilege claimed has to be connected to collective functioning of the House, and
  - Its necessity must bear a functional relationship to the discharge of essential duties of a legislator.
- **Jurisdiction of criminal court:** Criminal courts are not excluded from hearing bribery cases against legislators merely because it may also be treated by the House as contempt or a breach of its privilege.
- **Scope of parliamentary privileges:** Purpose of parliamentary privileges to provide legislators platform to "speak" and "vote" without fear is equally applicable to:
  - Elections to the Rajya Sabha and
  - Elections for the President and Vice President.

Article 105:Reasons for the Absence of Legal Codification of the 'Parliamentary Privileges' **(UPSC 2014)**

Reasons for Absence of Codification:

- **Historical Continuity:** Inherited British practice of unwritten privileges.
- **Lack of Political Consensus:** Fear of excessive restriction or misuse.
- **Judicial Interpretation:** Courts regulate privileges through rulings. Eg: *Keshav Singh case (1965) upheld judicial review.*
- **Separation of Powers Concern:** Codification may invite judicial overreach. Eg.: *Raja Ram Pal case (2007) allowed limited judicial scrutiny.*
- **Risk of Misuse if Rigid:** Fixed rules may shield misuse. Eg: *Karnataka Assembly's punishment of journalists (2017).*

Addressing the Problem:

- **Hybrid Model:** Codify core privileges; keep others flexible. Eg: *Australia's Parliamentary Privileges Act (1987).*
- **Independent Commission:** Neutral review of privilege matters. Eg: *UK's Committee on Standards.*
- **Periodic Review:** Time-bound revisions to align with democratic needs.
- **Constitutional Amendment:** Define key privileges with checks, like the First Amendment (1951).
- **Digital Transparency:** Online public access to privilege motions

Provisions that Grant Legislators Immunity from Prosecution

- **Articles 105 & 194:** Define privileges for Parliament and State Legislatures respectively.
- **Freedom of Speech:** MPs/MLAs not liable for anything said or any vote given in the House (subject to rules and Constitution).
- **No Discussion on Judges:** Article 121 bars discussions on conduct of SC/HC judges.
- **Publication Immunity:** No liability for official reports or proceedings published under House authority.
- **Freedom from Arrest:** MPs/MLAs protected from civil arrest 40 days before/after and during session (not in criminal cases).
- **Right to Exclude Strangers:** Ensures free and fair discussions.
- **Parliament Inquiries Barred:** Article 122 prevents courts from probing procedural irregularities in House proceedings.

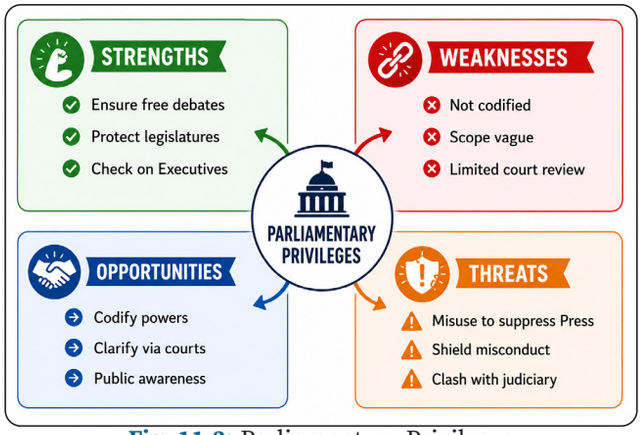


Fig. 11.3: Parliamentary Privileges

- **Privilege on Arrest Info:** House must be informed of a member's arrest, detention, or release in criminal cases.

Regulation of Freedom of Speech in Parliament:

Regulatory Framework

- Freedom of speech in Parliament under Article 105 is not absolute and is subject to parliamentary rules and discipline.
- To ensure orderly debate, dignity of the House, and meaningful deliberation, not to suppress legitimate dissent.
- **Rules of Procedure (Rule 380, Lok Sabha):** Speaker can expunge unparliamentary, defamatory, or indecent words.
- **Parliamentary Conventions:** Restrict sub judice matters, personal allegations, and disrespect to constitutional authorities.
- **Committee of Privileges:** Deals with breaches of parliamentary privileges and ensures accountability.

Challenges:

- Excessive or selective expunction of speech affecting meaning of debates.
- Allegations of procedural misuse for political control.
- Rising ruling–opposition confrontation reducing deliberative quality.

Way Forward:

- Restrict expunction to clearly offensive content only.
- Strengthen parliamentary committees and transparency in procedures.
- Encourage bipartisan respect and healthy debate culture.

ROLE OF OPPOSITION

The essence of a vibrant democracy lies in the constant churning of diverse viewpoints, with the Opposition playing a pivotal role. A strong Opposition stands as a necessary counterbalance to the ruling party, ensuring the plurality of voices, and upholding democratic principles.

Role of Opposition in Indian Democracy

- **Act as the Voice of the Voiceless:** Upholding the views of the people, the Opposition acts as the voice for the unheard, as seen during the extension of PM-Garib Kalyan Ann Yojana during the national lockdown.
- **Ensuring Accountability:** The Opposition holds the government accountable for its actions and adherence to its manifesto, like the combined effort of Opposition parties in 2012 against corruption leading to the framing of Lokpal.

Issues with the Opposition in India

- **Electoral Strength:** Opposition parties, especially the Indian National Congress (INC), in the recent times lack the numerical strength to challenge the ruling party effectively.
- **United Efforts:** The Opposition tends to be divided between party and regional interests, with many remaining silent on issues outside their forte.
- **Defection:** Prioritizing self-interest over national interest leads to political defections, weakening the role of Opposition, as witnessed in the 2019 National elections.

Reforms Needed

- **Legal Reform:** In situations where no party in Opposition secures 55 or more seats, the numerically largest party in the Opposition should be recognized as the leader of the Opposition by the Speaker.
- **Reforms in Status:** The 10% formulation is inconsistent with 'the salary and allowances of leaders of opposition in Parliament Act, 1977', which suggests that the largest Opposition party should get the post.
- **National Interest:** The Opposition should unite across party lines on issues of national or constitutional importance.
- **Strengthening Anti-Defection Law:** Revisiting the anti-defection laws can help curb political defections and strengthen the role of Opposition.
- **Independence of speaker:** For unbiased functioning of the House, speaker need to be beyond and above party politics.

WOMEN IN POLITICS

Current Status

- India ranks **147th globally** (Inter-Parliamentary Union) in women's representation(March 2025) in the Lower House (13.6%).
- **State legislatures average only 9%** women representation.
- **Bihar and Rajasthan** lead with approx 14% women MLAs.

Significance of Women in Politics

- **Gender-sensitive Governance:** Focus on issues like sanitation, SHGs, education.
- **Efficient Leadership:** Example – New Zealand, Germany during COVID-19.
- **Broader Perspectives:** Better representation of social and gender issues.
- **Inclusive Decision-Making:** Responsive to vulnerable groups' needs.
- **Global Commitments:** Aligns with SDG-5 (Gender Equality).
- **More Representative:** Deepening of democracy

Challenges

- **Patriarchal Influence:** '**Sarpanch Pati'** phenomenon limits the real power of elected women.
- **Work-Life Balance:** Domestic duties hinder political engagement.
- **Financial Constraints:** Economic dependency limits participation.
- **Identity Masking:** Women elected often due to family or party, not individual merit.
- **Attitudinal Barriers:** Sexist beliefs diminish women's leadership potential.
- **Safety in Public Sphere:** Politics involves intense participation in public sphere. General safety level will encourage more women to participate in active politics.

Suggested Measures

- **Zipper System:** As in Rwanda – alternate seats reserved for women.[Rwanda ranks **1st out of 183** (IPU) in women's representation(December 2025) in the Lower House (63.8%).
- **Break Stereotypes:** Promote leadership roles for women.
- **Internal Party Democracy:** Mandatory elections within parties. Reserving seats for women within parties and making sure at least 33 % candidates are women.
- **Scale-up Local Leaders:** Elevate women from Panchayats to State/National level.

Steps Taken

- The 106th Constitutional Amendment Act (2023) provides 33% reservation for women in Lok Sabha and State Assemblies.
- 73rd and 74th Constitutional Amendments mandate 33% reservation for women in Panchayats and Urban Local Bodies.
- Several states like Bihar and Madhya Pradesh have increased local body reservations for women to 50%.
- National and State Commissions for Women advocate for greater inclusion in decision-making roles.

ANTI-DEFECTION LAW

- **The 52nd amendment 1985** to the Constitution added the Tenth Schedule which laid down the process by which legislators may be disqualified on grounds of defection. The main intent of the law was to combat "the evil of political defections"
- The Tenth Schedule contains the following provisions for disqualification:

Members of Political Parties	If he voluntarily gives up his membership of such political party
	Abstains from voting in such House contrary to any direction issued by his political party without obtaining prior permission of such party.
Independent Members	If she/he joins any political party after such an election.
Nominated Members	If he joins any political party after the expiry of six months from the date on which he takes his seat in the House.

Importance of Anti-Defecion Law

It was introduced to maintain rule of law, reduced political corruption, and bribery.

- **Increases faith:** Anti-defection Ensures that candidates elected with party support and on the basis of party manifestos remain loyal to the party policies.
- **Reduced horse-trading:** Anti-defection law was brought to curb the power of money after election within the house. The horse-trading and unstable government caused by money power and bribery was said to be rampant in the cross- voting
- **Reduce money power:** It has succeeded in reducing the money power within house voting for passing legislation and the survival of the government.

- **Ensure Stability:** Anti-defection Provides stability to the government by preventing shifts of party allegiance.
- **Party Discipline:** Anti-defection promotes party discipline.

Issues with Anti-Defection Law

- **Affects MPs' Independence:** Restricts freedom of speech; MPs can't take independent stands.
- **Injustice to Constituencies:** MPs can't freely voice local grievances or needs.
- **Compromises Accountability & Efficiency:** Neither ensures stability nor efficient governance.
- **Limits Parliamentary Deliberation:** Weakens debates, risks poorly drafted legislation.
- **Speaker's Bias:** Speaker may misuse power; evident in Arunachal Pradesh, Uttarakhand cases.
- **Undermines Legislators' Role:** Voting on party lines dilutes MPs' representative and legislative roles.
- **No Check on Wholesale Defection:** Law stops individual defection but fails against mass shifts.
- **Flawed Merger Clause:** Focuses on numbers (2/3rd members), not intent or ethics of defection.

Recent Cases Under Anti-Defection Law in India

- **Maharashtra Political Crisis (2022–2024):**
  - The Supreme Court criticized the Maharashtra Assembly Speaker for delaying decisions on disqualification petitions against Chief Minister Eknath Shinde and supporting MLAs.
  - The Court emphasized that such delays undermine the anti-defection law's purpose and directed the Speaker to resolve the matter before the upcoming assembly elections.
- **Himachal Pradesh Rajya Sabha Elections (2024):**
  - Six Congress MLAs were disqualified by the Speaker for cross-voting in the Rajya Sabha elections.
  - These MLAs challenged the disqualification in the Supreme Court, bringing attention to the impartiality and procedural aspects of the anti-defection law.

Steps To Curb Anti-Defection Loopholes

- The Supreme Court has suggested that Parliament should set up an **independent tribunal** headed by a retired judge of the higher judiciary to decide defection cases swiftly and impartially.
- **Time line** to be fixed for speakers to take the decision.
- Decisions under the Tenth Schedule should be made by the President/ Governor on the binding advice of the Election Commission.
- Changes like barring the defectors or legislators who resign from their seat should be barred from contesting election for a sufficient time
- Recently, a Private Member's Bill seeks to reform the 10th Schedule by allowing MPs greater freedom to vote independently, reducing excessive reliance on party whips.
- While the whip system is essential for preventing defections, ensuring stability, and maintaining party discipline, it is criticized for curbing representatives' freedom, suppressing dissent, and weakening deliberative democracy.
- Instances like the Maharashtra political crisis 2022 highlight its limited effectiveness. Reform suggestions (e.g., 170th Law Commission of India Report) recommend restricting whips to crucial votes affecting government survival.
- The role of money can also be curbed by revisiting the provisions of electoral bonds.

Factors Contributing to the Decline of Individual Parliamentarians' Effectiveness in India (UPSC 2019)

- **Anti-Defection Law:** Limits MPs' independent voting (Kihoto Hollohan case, 1992).
- **Executive Dominance:** Ordinances bypass debate (e.g., Farm Laws, 2020).
- **Weak Committees:** Only 16% Bills referred in 17th Lok Sabha (PRS data).
- **Disruptions & Polarization:** Walkouts, adjournments hamper discussions.
- **Lack of Research Support:** No independent legislative research service (2002 NCRWC suggestion).
- **Centralised control and funding:** Individual MPs are dependent on the large funds of political parties. Additionally charisma of party leader often play key role in winning. So, MPs toe party lines.

Consequences of Weak Parliamentary Debate in India

- **Rushed Law-Making:** Bills passed swiftly, often without deep debate.
- **Weaker Deliberative Democracy:** Poor debate affects policy quality.
- **More Ordinances:** Parliament bypassed, MPs sidelined.
- **Regional Concerns Ignored:** E.g., J&K Reorganization Act (2019).
- **Weak Opposition:** Fails to effectively scrutinize government actions.

Role of Anti-Defection Law in Weakening MPs (UPSC 2013)

- **Loss of Autonomy:** MPs risk disqualification for opposing party lines. Eg: Karnataka Political Crisis (2019).
- **Overuse of Whip:** Issued even on non-critical bills, limiting free debate. Eg: CAA Vote (2019).
- **Executive Dominance:** Voice votes rush laws without scrutiny. Eg: Farm Laws Repeal Bill (2021).
- **Weakening of Rajya Sabha:** Party pressure curtails expert intervention. Eg: Tribunal Reforms Act (2021).
- **Fragmented Opposition:** MPs prevented from forming issue-based coalitions.

PRESIDING OFFICER OF LOK SABHA: SPEAKER

- The presiding officer in Indian Parliament, usually the Speaker in Lok Sabha and Chairman in Rajya Sabha. ensures order and decorum during proceedings, presides over sessions, and maintains impartiality while deciding on matters such as voting, rules, and disqualifications. They also play a crucial role in deciding on money bills and convening joint sessions.
- The Speaker of Lok Sabha or State Legislative Assembly is elected from amongst its members and is mentioned in Art 93 to 96 and Art 178 to 181 respectively of the constitution. He is the guardian of powers and privileges of the members, the House as a whole, and its committees.
- The institutions of Speaker originated in India in 1921 under the provisions of **the Government of India Act of 1919 (Montague-Chelmsford Reforms)** and at that time, the Speaker was called the President. The Government of India Act of 1935 changed the nomenclatures of the President of the Central Legislative Assembly to the Speaker.

Functions Performed by Speaker

- **Maintains order and decorum** in the House and ensures time for both government and opposition.
- **Presides over joint sittings** and may convene **secret sittings**.
- **Adjourns/suspends meetings** in case of lack of quorum.
- **Decides on Money Bills** — decision is final.
- **Rules on disqualification** under anti-defection law (subject to judicial review as per Kihoto Hollohan, 1992).
- **Appoints and supervises Lok Sabha committees**, also chairs Business Advisory, Rules, and General Purpose Committees.
- **Protects rights and privileges** of House members.
- **Fixes the agenda** of the House with the PM and Business Committee.
- **Interprets rules of procedure** — Speaker's interpretation is final and binding.

Concerns Relating to Speaker

- **Non-adherence to SOP:** Speakers have acted in defection cases despite pending removal motions; in Nabam Rebia v. Deputy Speaker, the Supreme Court held that the Speaker should not decide disqualification when a motion for his removal is pending.
- **Misuse of Money Bill Provision:** Certification of bills as Money Bills has been controversial; in K.S. Puttaswamy v. Union of India (Aadhaar case), the passage of the Aadhaar Act, 2016 as a Money Bill was challenged for bypassing Rajya Sabha scrutiny.
- **Failure to Maintain Decorum:** Frequent disruptions and adjournments (e.g., repeated logjams during sessions over issues like farm laws repeal debates in 2021) reflect inability to ensure smooth functioning and allegations of bias.
- **Limited Accountability/Review:** Speaker's decisions are generally final under rules, but courts have intervened in exceptional cases; e.g., judicial review allowed in Kihoto Hollohan v. Zachillhu regarding Tenth Schedule decisions.
- **Question of Impartiality:** Though expected to be neutral, Speakers are elected on party tickets; contrast with UK practice where the Speaker of the House of Commons resigns from party affiliation to ensure neutrality

Important Cases and Committees Related to Speaker and Anti-Defection

- In ***Keisham Meghachandra Singh v. Union of India***, the Supreme Court held that the Speaker's decision on anti-defection operates independently and is not subject to approval by the legislature. However, such decisions are open to **judicial review** on grounds like violation of constitutional mandates, mala fides, breach of natural justice, or perversity.
- In ***Kihoto Hollohan v. Zachillhu and Others*** (1992), the Supreme Court upheld the constitutional validity of the Tenth Schedule but ruled that the Speaker or Chairman, while deciding anti-defection cases, acts as a tribunal whose decisions are subject to judicial review. The majority judgment (3:2) emphasized their pivotal role in parliamentary democracy as guardians of the House's rights and privileges, but not beyond the scrutiny of courts.

Committees

- **Dinesh Goswami Committee on electoral reforms (1990):** The issue of disqualification should be decided by the President/ Governor on the advice of the Election Commission
- **Law Commission (170th Report, 1999):** Political parties should limit the issuance of whips to instances only when the government is in danger.
- **Election Commission Constitution Review Commission (2002):** Decisions under the Tenth Schedule should be made by the President/ Governor on the binding advice of the Election Commission.
- **NCRWC:** The power of disqualification of the legislators on grounds of defection should lie with the Election commission and not the speaker.

Reforms for Strengthening Speaker's Impartiality

Reform Area	Suggestion
Institutional Mechanism	Move beyond judicial review; establish a permanent institutional solution for disqualification.
Best Practices – UK Model	❖ A committee of senior legislators assists the Speaker on money bills. ❖ The Speaker resigns from the party post-election to ensure neutrality.
Govt–Opposition Cooperation	Encourage cooperation for smooth functioning of Parliament and to ease the Speaker's role.
Democratic Ethos	The speaker must maintain visible neutrality—justice must be seen to be done.
Disqualification Authority	Shift power from the Speaker to an independent body like the Election Commission.
Legal Amendments	Amend anti-defection laws to allow dissent and promote independent thinking, as seen in mature democracies.

"Once a Speaker, Always a Speaker" **(UPSC 2020)**

"Once a Speaker, Always a Speaker" — derived from Britain, stresses Speaker's lifelong neutrality after election.

Reasons to Adopt:

- **Ensures Political Neutrality:** Shields Speaker from party pressures.
- **Strengthens Institutional Integrity:** Frees Speaker from ruling party influence.
- **Reduces Bias Allegations:** Promotes fair decision-making.
- **Encourages Long-Term Reforms:** Enables structural parliamentary reforms.

Issues with Adoption:

- **Undermines Democracy:** Contradicts India's practice of electing Speaker afresh.
  - *Eg*: New Lok Sabha elects new Speaker ensuring fresh mandate.
- **Lacks Accountability:** Permanent tenure risks arbitrary functioning.
- **Resistance to Reforms:** Lifelong tenure may lead to rigidity.
  - *Eg*: Flexibility needed for procedural changes like Question Hour reforms.

Implications for India:

- **Better Debates:** Nonpartisan Speaker encourages fair discussions.
- **Stronger Scrutiny:** Executive held more accountable.
- **Higher Public Trust:** Reduces perception of procedural bias.
- **Procedural Stability:** Ensures consistency across political changes.

PARLIAMENTARY SCRUTINY

Parliamentary scrutiny is the close examination and investigation of government policies, actions and spending that is carried out by the lower and upper houses of parliament and their committees.

Various Methods of Parliamentary Scrutiny

- **Debates & Discussions:** Enable critical scrutiny of legislation and public issues.
- **Question Hour & Zero Hour:** Ensure executive accountability through direct questioning.
- **Committee System:** Provides detailed examination of bills and policies.
- **Financial Committees:** Estimates Committee improves efficiency; PAC audits expenditure via CAG reports.
- **Ad-hoc Committees:** Investigate specific matters or institutional functioning.
- **Procedural Devices:** Motions like adjournment, censure, and calling attention hold the executive accountable.

Rajya Sabha's Transformation: From 'Useless Stepney Tyre' to a Supporting Organ **(UPSC 2020)**

- **Federal Representation:** Strengthens cooperative federalism by voicing regional interests.
- **Enhanced Committees:** Select Committees (e.g., Surrogacy Bill) improve law quality.
- **Crisis Management:** Active in national debates (e.g., COVID-19 relief discussions).
- **Expert Contribution:** Nominated members like M.S. Swaminathan enriched policy-making.
- **National Interest:** Critical in security matters (e.g., J&K bifurcation approval, 2019).

Factors Behind Transformation

- **Judicial Support:** SC upheld Rajya Sabha's role (Kuldip Nayar case, 2006).
- **Coalition Politics:** Regional parties gained more say.

- **Opposition Strength:** Stalled majoritarian moves (e.g., Land Acquisition Bill, 2015).
- **Improved Media Coverage:** Highlighted impactful debates (e.g., CAA, Article 370).
- **Policy-Oriented Debates:** Discussions on issues like cryptocurrency reforms.

Examples

- **Legislative Scrutiny:** Deeper reviews (e.g., Triple Talaq Bill).
- **Federal Balance:** Stronger regional influence in national policies.
- **Upholding Constitutional Values:** Acts as a constitutional check.
- **Economic Oversight:** In-depth review of bills like GST.
- **National Security:** Meaningful input in defense discussions.
- **Bridging Representation Gaps:** Indirect elections ensure broader democratic voice.

Reasons for Ineffective Parliamentary Scrutiny

- **Not referring bills to the Parliament committees:** While 60% of the Bills in the 14th Lok Sabha and 71% in the 15th Lok Sabha were vetted by the Parliamentary committees, this proportion came down to 27% and 16% in the 16th and 17th Lok Sabha respectively.
- **Decline in the number of sittings:** The 17th Lok Sabha sat for a total of 1,354 hours, which is significantly less than the average for all full-term Lok Sabha.
- **Disruptions during Question Hour:** In the 16th Lok Sabha, question hour has functioned in Lok Sabha for 77% of the scheduled time, while in Rajya Sabha it has functioned for 47%.

Reforms for Effective Parliamentary Scrutiny

- **2nd ARC** also recommends that annual reports submitted by the regulators to Parliament should include the progress on pre-agreed evaluation parameters and should be discussed in the parliamentary committee
- **Periodically examined:** According to the National Commission to Review the Working of the Constitution (NCRWC), DRSCs should be periodically examined so that the committees which have outlasted their utility can be replaced with fresh ones.
- The **opposition should be proactive** in asking the question to the government
- **New parliamentary committees:** As there is increasing complexity in matters of economy and technological progress, there is a need for setting up new parliamentary committees.
- Major reports of all Committees should be discussed in Parliament especially in cases where there is a disagreement between a Committee and the government.
- **Expert support** should be provided to MPs as effective scrutiny depends on their skill and resources.

Key Words

Vibrant democracy, Ad-hoc Committees, Zero Hour, National Commission to Review the Working of the Constitution.

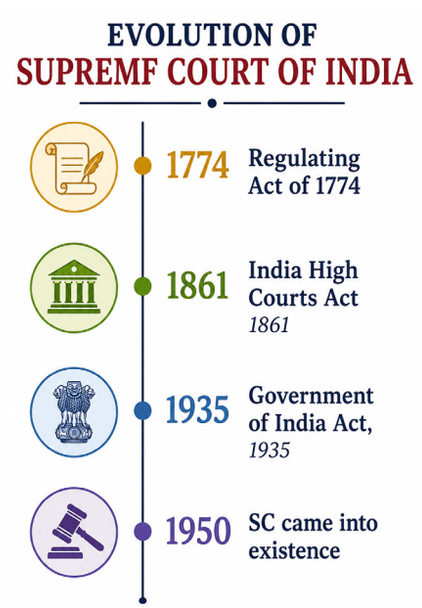
Previous Year Questions	Year
1. The growth of the cabinet system has practically resulted in the marginalization of parliamentary supremacy:" Elucidate.	2024
2. Discuss the essential conditions for exercise of the legislative powers by the Governor. Discuss the legality of re- promulgation of ordinances by the Governor without placing them before the Legislature.	2022
3. Discuss the desirability of greater representation to women in the higher judiciary to ensure diversity, equity and inclusiveness.	2021
4. Rajya Sabha has been transformed from a 'useless Stepney tyre' to the most useful supporting organ in the past few decades. Highlight the factors as well as the areas in which this transformation could be visible.	2020
5. "The reservation of seats for women in the institutions of local self-government has had a limited impact on the patriarchal character of the Indian Political Process." Comment.	2019
6. Individual Parliamentarian's role as the national lawmaker is on a decline, which in turn, has adversely impacted the quality of debates and their outcome. Discuss.	2019
7. The 'Powers, Privileges and Immunities of Parliament and its members' as envisaged in Article 105 of the Constitution leave room for a large number of un-codified and unenumerated privileges to continue'. Assess the reasons for the absence of the legal codification of parliamentary privileges. How can this problem be addressed?	2014

12 Judicial System in India

The Judiciary which is an important organ of the government performs the role of independent dispute resolution. Indian judiciary, one of the most powerful judiciary in the world, has been the nation's moral conscience, speaking truth to political power, upholding the rights of citizens, mediating Centre-state conflicts, providing justice to the rich and poor alike, and on several momentous occasions, saving democracy itself.

SUPREME COURT OF INDIA

The Supreme Court of India consists of the Chief Justice of India and up to 37 other judges, making its maximum sanctioned strength 38 judges. This strength was increased from CJI + 33 judges to CJI + 37 judges through the Supreme Court (Number of Judges) Amendment Ordinance, 2026, which amended the Supreme Court (Number of Judges) Act, 1956. Its structure, powers and functions are governed by Articles 124 to 147 of the Indian Constitution. These provisions detail the appointment, qualifications, jurisdiction, and independence of the judiciary.



Constitutional Court of India

- The Supreme Court, established under Article 124 of the Constitution, serves as the apex judicial body. It holds original jurisdiction in constitutional matters, including disputes between the Union and states, and is entrusted with upholding the Constitution and protecting fundamental rights. Additionally, it possesses the power of judicial review to assess the constitutionality of legislative and executive actions.

Court of Appeal

- As the highest appellate court, the Supreme Court hears appeals from lower courts and tribunals. Under Article 136, it has discretionary power to grant special leave to appeal from any judgment or order passed by any court or tribunal in India. Articles 132 and 133 further delineate its appellate jurisdiction in constitutional, civil, and criminal matters

Challenges and Reforms for the Supreme Court

Challenges	Way Forward
Massive Case Backlog: Over 93300 cases pending as of April 2026.	**Case Management & Technology**: Use of e-filing, video conferencing, and virtual hearings to improve efficiency.
Judicial Activism vs. Judicial Restraint: Ongoing debate on the judiciary's role in governance.	**Strengthening Judicial Independence:** Maintain separation from executive influence.
Uncle Judge Syndrome: Concerns about favouritism in judicial appointments.	E**nhancing Transparency & Accountability**: Transparent appointment processes and accessible judgments.
Judicial-Executive Conflict: Delays in appointments and increasing tensions.	**Institutional Reforms:** Clarify roles and improve coordination between judiciary and executive.
Judicial accountability: Despite transgressions no higher judiciary judge impeached till today.	Judicial Standards and accountability Bill should be reintroduced and passed forming National Judicial Oversight Committee.

Reasons for rise of PIL and the Empowerment of the Indian Supreme Court **(UPSC 2024)**

- **Liberalisation of Locus Standi:** Courts allow petitions from individuals or groups acting in public interest. Eg: *Hussainara Khatoon v. State of Bihar (1979) for undertrial prisoners' rights.*
- **Technological Advancements:** Digital tools improve access to legal services. Eg: *Supreme Court's e-filing system during COVID-19.*

- **Judicial Activism:** PILs compel government action on public issues. Eg: *Vishaka v. State of Rajasthan (1997) on sexual harassment guidelines.*
- **Protection of Marginalised Groups:** PILs protect rights where government actions fall short. Eg: *Bandhua Mukti Morcha v. Union of India (1984) for bonded labourers.*
- **Legal Aid Movements:** Legal aid frameworks boost access for underprivileged citizens. Eg: *Legal Services Authorities Act, 1987.*

Reasons for the Supreme Court Emerging as the Most Powerful Judiciary

- **Expansive Interpretation of Rights:** Broad interpretation of constitutional rights through PILs. Eg: *MC Mehta v. Union of India (1986) on the right to a healthy environment.*
- **Intervention in Governance:** Court's direct involvement in administrative functions. Eg: *Prison reforms, food distribution, environmental regulation.*
- **Scope of Judicial Review:** Court's authority to assess the constitutionality of legislative and executive actions. Eg: *Kesavananda Bharati case (1973) on constitutional amendments.*
- **Global Recognition:** India's proactive use of PILs is internationally recognized. Eg: *Decriminalisation of homosexuality (2018).*
- **Integrated Judiciary:** In federal setup unlike USA where states have own Supreme Courts, India has integrated judiciary.
- **Self appointment:** After second judges case, collegium system emerged (1993) and probably only system where judges appoint themselves.
- **A-136, 142:** Special Leave Petition (A-136) and power to pass any order, decree to do complete justice (A-142) give Supreme Court wide powers.

SIGNIFICANT ROLES THAT JUDICIARY PLAYS

1. **Judiciary as protector of Fundamental rights:** The Constitution provides two ways in which the Supreme Court can remedy the violation of rights.
   - **First,** it can restore fundamental rights by issuing writs of Habeas Corpus, mandamus, etc. (Art-32). The High Courts also have the power to issue such writs (article 226).
   - **Secondly,** the Supreme Court can declare the concerned law as unconstitutional (article 13). (Function as interpreter of the Constitution)

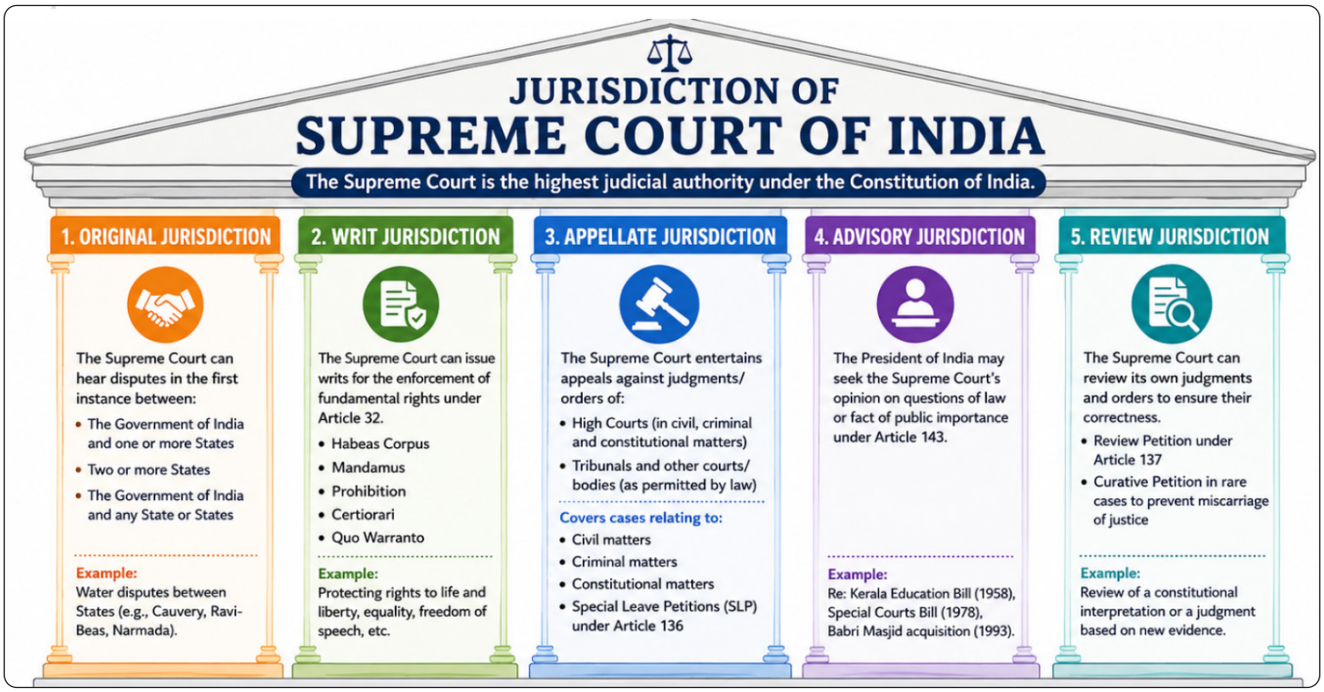


Fig 12.1

2. Judiciary as protector of the constitution and saviour from the arbitrariness of government/state:

Judicial review	**Review** of constitutional amendments, legislation of the Parliament and State Legislatures, subordinate legislation, and administrative action of the Union and State authorities.
Article 142	Allows the Supreme Court in the exercise of its jurisdiction to pass such decree or make such order as is necessary for doing complete justice. E.g. Bhopal gas tragedy case the court had awarded compensation of $470 million to the victims, **to do "complete justice".**
Interpretation of constitution	Under its original jurisdiction, the Supreme Court keeps the government within their limits by judicial interpretations.

3. Judiciary as a Guardian of Checks and Balances: The judiciary in India plays a vital role in maintaining the balance of power between the legislature and the executive. Through judicial review, it ensures that laws passed by the legislature and actions taken by the executive conform to the Constitution. By striking down arbitrary or unconstitutional laws and executive actions, the judiciary upholds the rule of law and protects citizens' rights, thereby acting as a watchdog of democratic governance.

BASIC STRUCTURE DOCTRINE (BSD)

- The **Basic Structure Doctrine** is a **judicial innovation** by the **Supreme Court of India** to **limit Parliament's amending power** under Article 368.
- It ensures that the **core values and foundational principles** of the Constitution remain **untouched**, even by constitutional amendments.
- Evolved primarily through **Supreme Court judgments**, not explicitly mentioned in the Constitution.

Fig. 12.2: Basic Structure

Key Cases in Evolution

- **Shankari Prasad (1951):** Parliament can amend Fundamental Rights.
- **Golaknath (1967):** Parliament cannot amend Fundamental Rights.
- **24th Amendment (1971):** Gave Parliament power to amend any part including FRs.
- **Kesavananda Bharati (1973):** Parliament can amend the Constitution, but not the Basic Structure.
- **42nd Amendment (1976):** Attempt to curb judicial review, enhance Parliament's power.
- **Minerva Mills (1980):** Struck down parts of 42nd Amendment; reinforced BSD.
- **Waman Rao (1981):** Amendments post-1973 subject to BSD test.
- **I.R. Coelho(2007):** Acts placed under 9th schedule post K. Bharti judgement are subject to judicial review in the context of BSD.

Significance of Basic Structure Doctrine

- Preserves constitutional identity and ensures India remains democratic and secular.
- Checks arbitrary amendments by Parliament.
- Ensures judicial oversight on constitutional changes.
- Reinforces independence of judiciary (e.g., NJAC struck down in 2015 for violating BSD).

Criticism of Basic Structure Doctrine

- Not textually mentioned in the Constitution.
- Vague and subjective, leading to inconsistent interpretations.
- Dilutes legislative supremacy and limits Parliament's amending power.
- Judicial overreach concerns due to wide discretion.

- Former VP Jagdeep Dhankhar has criticised the Basic Structure Doctrine as an instance of judicial overreach that curtails the sovereign amending power of Parliament. In contrast, Vice President M. Venkaiah Naidu has emphasised the need for institutional balance, viewing constitutional interpretation as a means to preserve harmony between the Legislature and the Judiciary.
- On the other hand, Chief Justice D. Y. Chandrachud has described the doctrine as the "North Star" of constitutional interpretation, highlighting its role in safeguarding the Constitution's core identity while setting limits on Parliament's power to amend it.

I.R Coelho Case (2007) **(UPSC 2016)**

- **Reaffirmation of the Basic Structure Doctrine:** Laws violating basic structure are subject to judicial review, even in the Ninth Schedule.
- **Doctrine of Prospective Overruling:** Laws added to the Ninth Schedule after April 24, 1973, can be struck down if they violate fundamental rights; pre-1973 laws remain valid.
- **Judicial Review:** Judicial review is part of the basic structure and cannot be removed.
- **Ninth Schedule & Fundamental Rights:** Laws in the Ninth Schedule are subject to judicial review if they violate fundamental rights.
- **Separation of Powers Upheld:** Judiciary has the power to check legislative actions, maintaining constitutional balance.

Judicial Review as a Key Feature of the Constitution

- **Guardian of the Constitution:** Ensures laws adhere to constitutional principles. Eg: *NJAC Case (2015).*
- **Checks on Parliament's Amending Power:** Prevents dilution of the Basic Structure.
- **Protection of Fundamental Rights:** Prevents violation of citizens' rights. Eg: *Aadhaar Case (2018).*
- **Balances Separation of Powers:** Maintains constitutional equilibrium among the branches of government. Eg: *Tribunals Reforms Case (2021).*
- **Preserves Democratic Integrity:** Prevents majoritarianism and upholds the rule of law. Eg: *Electoral Bonds Case (2024*).

COMPARATIVE ANALYSIS OF JUDICIARY: INDIA, USA AND UK

Aspect	India	USA	UK
Judicial System	Integrated system: Supreme Court, High Courts, and Subordinate Courts	Double system: Federal and State courts	Integrated system
Jury System	Does not exist	Allowed	Present
Judicial Appointment	Collegium system with greater role to judiciary	President nominates, Senate confirms (greater role to elected reps)	Judicial appointments by Commission with parliamentary primacy
Retirement Age for Judges	Supreme Court: 65 years; High Court: 62 years	Judges serve for lifetime	Not specified
Original Jurisdiction	Confined to federal cases	Federal cases + naval, maritime, ambassadors	Not applicable
Appellate Jurisdiction	Constitutional, civil, and criminal cases	Only constitutional cases	Not applicable
Bench strength to decide cases	Single judge bench to no upper limit. For constitutional bench minimum 5 judges.	All judges sit together	Not specified
Advisory Jurisdiction	Yes	No	Not applicable
Change in Jurisdiction	Can be enlarged by Parliament	Limited to constitutional provisions	Limited by parliamentary supremacy
Control over Subordinate Courts	Power of judicial superintendence over HCs	No such power due to separate system	Parliament is supreme
Judicial Review	Due process of law after Maneka Gandhi case	Due process of law followed	Due process of law, limited judicial review

Convergence and Divergence in Indian and UK Judicial Systems **(UPSC 2020)**

Convergence:

- **Writ Jurisdiction:** India (Articles 32, 226) and UK use writs like certiorari and mandamus (Civil Procedure Rules, 1998).
- **Judicial Independence:** India safeguards it constitutionally; UK strengthened it via the Constitutional Reform Act, 2005 and creation of the UK Supreme Court (2009).
- **Separation of Powers:** India mandates it (Directive Principles Article 50); UK moved towards it after abolishing the Lord Chancellor's role (2005).
- **Recognition of LGBTQ+ Rights:** India decriminalized homosexuality in *Navtej Singh Johar (2018), while the UK did so in Dudgeon v United Kingdom* (1981).

Divergence:

- **Judicial Review:** India reviews primary laws (*Kesavananda Bharati and Article* 13, 32), UK only reviews secondary laws. After Maneka Gandhi case Indian Judicial review is closer to USA.
- **Judicial Accountability:** UK uses softer disciplinary tools, the responsibility for ensuring judicial discipline is a joint responsibility of the judiciary and the executive.; India relies on impeachment.
- **Appointments:** India–Collegium system; UK–Judicial Appointments Commission (2006).
- **Contempt Powers:** India retains "scandalising the court"; UK abolished it (2013).
- **Jury System:** UK retains jury trials, while India abolished them after the Nanavati case (1959)

Procedure Established by Law	Due Process of Law
Borrowed from the British.	Borrowed from the USA.
Checks if a law exists, is valid, and properly enacted.	Also checks if the law is fair and just.
Relies on the wisdom of the legislature.	Relies on judicial conscience too.
Courts can strike laws only on procedural grounds.	Courts can strike laws on both procedural and substantive grounds.
Protects against executive arbitrariness. **Example:** In A. K. Gopalan v. State of Madras (1950), preventive detention law was upheld because it followed due legislative procedure, even though it affected personal liberty.	Protects against both executive and legislative arbitrariness. **Example:** In Maneka Gandhi v. Union of India (1978) (India's shift towards due process), the Supreme Court held that the "procedure" must be fair, just, and reasonable, expanding Article 21.

Special Leave Petition: Upholding Justice through Supreme Court's Discretion

- A Special Leave Petition (SLP), governed by Article 136 of the Indian Constitution, empowers the Supreme Court to grant special permission to appeal against judgments from any court or tribunal, ensuring justice in exceptional cases.
  - Recently, the Supreme Court dismissed an SLP filed by the Income Tax Department due to a significant delay of 422 days, emphasizing the importance of adhering to procedural timelines and the Court's discretion in entertaining such petitions.
  - This underscores the SLP's role as a vital tool for correcting miscarriages of justice while highlighting the necessity for timely and judicious use of this provision.

Issues with SLP (Special Leave Petition)

- **High volume:** SLPs constitute over **40% of SC cases**, burdening the judiciary.
- **Dilution of constitutional role:** SC's time is diverted from constitutional matters to routine appeals.
- **Delays:** Slows down the delivery of justice and leads to pendency.
- **Discretionary misuse:** Overuse affects consistency and legal clarity.

Principle of Natural Justice

The **Principle of Natural Justice** means fairness in decision-making. It includes two key rules: everyone should get a chance to be heard, and no one should decide a case where they have a personal interest. It ensures justice.

- An authority shall act bona fide (in good faith) without any bias.
- No man should be punished without being heard
- No man shall be the judge of his own case.
  - **Maneka Gandhi vs. GOI, 1978:** Article 21 incorporates principles of natural justice.
  - **Central Inland Water Transport Corporation Ltd. vs. Brojo Nath Ganguly, 1986:** PNJ are implicit to the right of equality under Article 14.

JUDICIAL PENDENCY

- Judicial pendency refers to the accumulation of unresolved cases in the courts over time, posing a serious challenge to the delivery of timely justice in India.
- With millions of cases pending across various levels of the judiciary—from subordinate courts to the Supreme Court—this issue hampers public trust, delays redressal, and burdens the legal system.
- As of April 2026, the Supreme Court alone had over 93,300 pending cases, highlighting the scale of the issue.
- According to the National Judicial Data Grid (NJDG), over 4.9 crore cases in subordinate courts and more than 64 lakh cases in various High Courts remain pending.
- On average, civil cases take 4.4 times longer and criminal cases 6 times longer to resolve compared to European countries.
- The Law Commission (2009) estimated that, at the existing judge strength, it would take 464 years to clear the pendency. Similarly, the NITI Aayog (2018) projected that it would take over 324 years to address the backlog without substantial reforms.

Reasons for Pendency

Personnel	❖ As on May 1, 2026, out of the total sanctioned strength of 1,122, the high courts were functioning with 797 judges, leaving 325 – or over 26% posts vacant. ❖ There are currently 4,827 vacant posts at various levels in the lower judiciary. ❖ 20 judges/million population (Law commission recommend 50/million) ❖ India has only about 21 judges per million population, compared to 150 in USA.
Administrative	❖ More than 50% of cases violate the rule of 3 adjournments per case. ❖ Supreme Court works on average 188 days despite the rule mandating a minimum of 225 days. ❖ **Special leave petition (Article136)** comprises 40% of the court's pendency. ❖ Lawyers colluded with corruption especially at subordinate levels in order to drag the case.
Infrastructure	❖ Existing infrastructure could accommodate only 15,540 out of sanctioned 20,558 judicial officers. ❖ 0.09% of GDP spent on court infrastructure. ❖ Old technologies used in administration increase the time of litigation.
Other	❖ **Delayed Investigations:** Lack of modern and scientific tools has resulted in a handicapped police investigation. ❖ The Centre and the States were responsible for over 46% of the pending cases.

Steps to Reduce Pendency

- **120th Law commission:** Appoint efficient and experienced judges as Ad-hoc judges (Article 128 and Article 224A)
- **Law Commission and Supreme Court in Vasantha Case:** Separate Supreme Courts function into the court of appeal and constitutional court.
- The Law Commission of India (1987) recommended increasing the number of judges to 50 per million people.
  - This was reiterated by the Supreme Court (2001) and the Standing Committee on Home Affairs (2002).
- **Increasing court productivity:**
  - Increase the number of working days.
  - Strict codes of conduct for judicial officers to ensure the adequate performance of duties.
  - Business process reengineering.
  - Deployment of modern technology: NJDG under e-court; Big data analytics of cases.
  - Online filing of cases.
- **Supreme Court's Directive on Ad-Hoc Judges:**
  - In January 2025, the Supreme Court allowed High Courts to appoint ad-hoc judges (up to 10% of sanctioned strength) to reduce criminal case backlog and improve judicial efficiency.

Various Recommendations about Court Vacations

- **2000:** The **Justice Malimath Committee**, suggested that the Supreme Court work for 206 days, and High Courts for 231 days every year, keeping in mind the long pendency of cases.
- **2009:** The **Law Commission**, in its 230th report had suggested that court vacation be cut down by 10-15 days across all levels of judiciary to help deal with pending cases.
- **2014:** The **Supreme Court** notified its new Rules, it said that the period of summer vacation shall not exceed seven weeks from the earlier 10-week period.

- **Three-pronged approach** as recommended by Justice Ramana:
  - Improving judicial infrastructure through the use of e-platforms and setting up of more courts
  - Disputes settlement at the pre-litigation stage through counselling.
  - Strengthening the existing Alternative Dispute Resolution (ADR) mechanism.
- **Grouping of cases:** Cases of specific types having high pendency shall be identified and a special committee shall be appointed for the same. E.g. Recently the court recommended a panel to clear cheque bounce cases which constitutes almost 30% to 40% of cases in trial courts.

Do you know?

Black Coat Syndrome: In September 2024, President Droupadi Murmu addressed the issue of "Black Coat Syndrome," referring to the anxiety citizens face while navigating the judicial system. She emphasized the need to reduce delays, adjournments, and complex procedures to make justice more accessible. The President urged the judiciary to improve public trust by ensuring timely and efficient justice, particularly for marginalized communities.

- **Legal Information Management and Briefing System (LIMBS)** is a web-based application created by the Department of Legal Affairs under the Ministry of Law and Justice, to make the legal data available at one single point and streamline the procedure of litigation matters conducted on behalf of the Union of India.
- **Alternative Dispute Resolution mechanisms** like Arbitration, Conciliation, Lok Adalats etc. should be promoted by judges. Further, legal services authorities, such as, NALSA, SALSA, DALSA and TALSA, can generate awareness.
- **AIJS:** A centralized recruitment system for district and subordinate judges to ensure adequate staffing and improve court efficiency.

JUDICIAL APPOINTMENTS

Constitutional Provision Related to Appointment

- **Article 124 (2): Appointment of SC judges**
  - **CJI-** By President after consulting such judges of the SC and HC as the President deems necessary.
  - **Other Judges**- By President after consulting CJI and other SC and HC judges as he considers necessary.
- **Article 217: Appointment of HC judges**
  - **Chief justice of HC:** BY President after consultation with CJI and Governor of the state concerned.
  - **Other Judges:** By President after consultation with CJI and Governor of the concerned state and chief justice of concerned HC.

Collegium System

A committee of the Chief Justice of India, four senior judges of the Supreme Court take decisions related to appointments of Supreme Court judges and transfer of HC judges. For the appointment of HC judges the collegium includes :

1. The Chief Justice of India and two senior-most judges of the Supreme Court.
2. The Chief Justice of the concerned High Court and two senior-most judges of that High Court are consulted.

Lacunae in Collegium System & Way Forward

- **Extra-constitutional nature:** Evolved through Supreme Court Advocates-on-Record Association judgments, not explicitly in the Constitution. This calls for a more formal framework like an independent body.

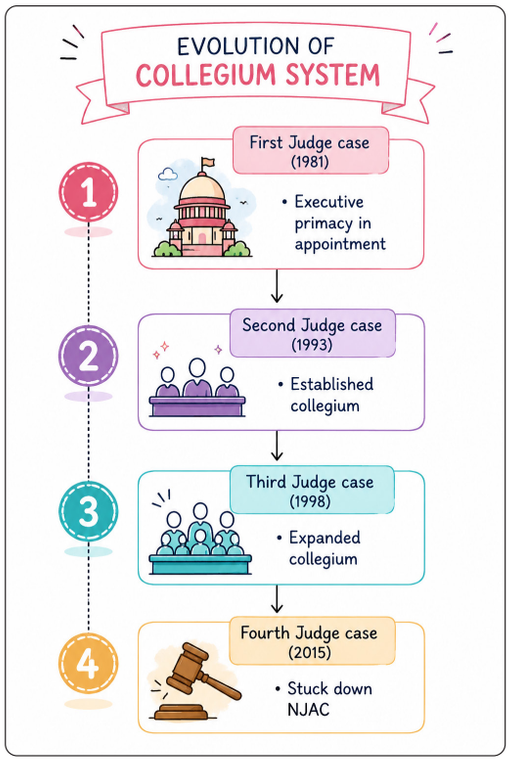


Fig. 12.3: Evolution of Collegium System

- **Opacity:** Lack of transparency in selection and elevation. There is need for clear criteria and public disclosure of reasons.
- **Nepotism risk:** Highlighted in Law Commission (230th Report, 2009). It requires merit-based, objective selection standards.
- **Vacancies & delays:** Around 250+ High Court vacancies (2025). There is need for time-bound appointments.
- **Imbalance of power:** Reduced executive role under Article 74. It requires balanced consultation between judiciary and executive.
- **Merit vs seniority issue:** Inconsistent elevation standards based on seniority. Need to adopt merit-cum-seniority approach.
- **Accountability gap:** No external oversight. There is need for greater institutional accountability and transparency mechanisms.

NATIONAL JUDICIAL APPOINTMENTS COMMISSION (NJAC)

- The National Judicial Appointments Commission (NJAC) was proposed to replace the current collegium system for judicial appointments, aiming for greater transparency and accountability. It sought to involve both the judiciary and the executive in the appointment process, ensuring a more balanced and inclusive approach.
- In April 2025, former Union Law Minister Ashwani Kumar emphasized that the current collegium system for judicial appointments is outdated and needs reform. He advocated for revisiting the National Judicial Appointments Commission (NJAC) or exploring alternative mechanisms to ensure a more transparent and accountable process.

Supreme Court's Judgement on NJAC Act, 2014: A Critical Examination (UPSC 2017)

Justification of the Judgment

- **Violation of Judicial Independence:** NJAC undermined judicial independence by giving the executive a larger role in appointments (Fourth Judges Case, 2015).
- **Basic Structure Doctrine:** Judicial independence is part of the Basic Structure, which cannot be altered.
- **Undermining the Collegium System:** NJAC sought to replace the Collegium, essential for judicial autonomy.
- **Influence of Executive:** Inclusion of the Law Minister and non-judicial members was seen as encroachment on judicial primacy. Govt. is the largest litigant in the court.
- **Lack of Safeguards:** NJAC lacked transparency and fairness in judicial appointments, leading to its unconstitutionality.

Criticism of the Judgment

- **Opaque Collegium System:** The judgment upheld the criticized Collegium System for its secrecy and lack of transparency.
- **No Effective Checks:** Failed to provide an alternative to address Collegium's flaws.
- **Judiciary's Dominance:** Critics argue it undermines separation of powers and promotes favoritism.
- **Public Opinion Overruled:** The SC's decision ignored broad parliamentary support and state ratification.
- **Missed Reforms:** The SC could have balanced judicial independence with necessary reforms.

INDIA VS USA: JUDICIAL APPOINTMENT: (UPSC 2025)

- In India, Supreme Court judges are appointed through the **Collegium system**, where the CJI and senior judges have primacy, ensuring strong judicial independence but limited transparency and accountability.
- In contrast, in the USA, judges of the **Supreme Court of the United States** are nominated by the President and confirmed by the Senate, making the process more transparent and democratically accountable but also highly politicised due to ideological influence.

Basis	India (Collegium)	USA (Presidential System)
Authority	Judiciary-led	Executive + Senate
Transparency	Low (opaque decisions)	High (public hearings)
Accountability	Weak	Strong democratic oversight
Political influence	Low formally	High (party-based)
Independence	High	Moderate
Speed of appointment	Often slow	Relatively structured but politicised
Risk	Nepotism, opacity	Ideological polarisation

CONSTITUTIONAL MORALITY: BALANCE BETWEEN JUDICIAL INDEPENDENCE & ACCOUNTABILITY (UPSC 2025)

Constitutional morality refers to adherence to the **core constitutional values of liberty, equality, dignity, and rule of law**, ensuring that institutions act in the spirit of the Constitution.

Balancing Judicial Independence & Accountability

- In **Kesavananda Bharati (1973)**, the Supreme Court protected judicial independence through the Basic Structure Doctrine while binding all organs to constitutional limits.
- In the **Supreme Court Advocates-on-Record Association (2015)** (NJAC case), the Court struck down executive dominance in appointments to safeguard independence but also stressed transparency in the collegium system.
- In **Maneka Gandhi (1978)**, the Court ensured fairness in procedure, making judicial interpretation accountable to constitutional reasonableness.
- Further, in **Navtej Singh Johar (2018)** and **Shayara Bano (2017)**, the Court applied constitutional morality to uphold rights over social practices, showing that judicial independence operates within constitutional accountability.

ALL INDIA JUDICIAL SERVICE

The concept of All India Judicial Service (AIJS) was first recommended by the 14th Law Commission Report in 1958. Subsequent reports, including the 116th Law Commission Report, have reiterated the need for such a service to ensure uniformity and efficiency in judicial appointments across the country

Rationale for AIJS

- **Addressing Judicial Vacancies:** India faces a significant backlog of cases, partly due to vacancies in the judiciary. A centralized recruitment process could expedite appointments and reduce delays.
- **Ensuring Uniform Standards:** AIJS would establish consistent criteria for selection, training, and promotion, enhancing the quality and integrity of the judiciary nationwide.
- **Promoting Diversity and Inclusivity:** A national-level examination could attract talent from diverse backgrounds, promoting inclusivity and representation in the judiciary.
- **Reducing Influence and Nepotism:** Centralized recruitment can minimize local influences and nepotism, ensuring merit-based appointments.

REMOVAL OF JUDGES

Constitutional Provision for Removal

- **Article 124(4):** Judge of SC can be removed only by the President.
- **Ground:** 'proved misbehavior' or 'incapacity' only after a motion to this effect is passed by both the Houses of Parliament by a special majority.

Concerns in Removal Procedure

- **Vagueness:** Lack of clarity as terms like misbehavior is undefined and open to interpretation.
- **Lengthy process:** Cumbersome and tedious Impeachment process → virtually no accountability of judges.
- **Against separation of power:** Three members committee to investigate is headed by CJI or the SC judge. This leads to judges removing the judges' situation.
- **Lack of Transparency:** Secrecy in the procedure of committee.
- **The judge continues to hold the post:** Both the Constitution and the Judges (Inquiry) Act of 1968 → silent on whether a judge facing an impeachment motion should recuse from judicial work or not.
  - The Judge during an investigation is not prohibited from discharging duties in court.
- **Politicization:** e.g. Congress abstained from voting on the motion for removal of Justice V. Ramaswami resulted in failure of the process.

Way Forward

- **Transparency in Appointment:** As listed in MoP integrity shall be the primary criteria.-> only judges of high calibre and impeccable integrity are appointed to the higher courts.
- **The Judges (Inquiry) Bill, 2006:** proposed the National Judicial Council (NJC) to conduct inquiries into allegations of incapacity or mis-behaviour by High Court and Supreme Court judges by people.
- **Greater Internal regulation:** Prompt disciplinary actions on misconduct. ->National Judicial Oversight Committee should be created by parliament to scrutinize the complaints and investigation.

JUDICIAL ACCOUNTABILITY

Judicial accountability describes the view that judges should be held accountable in some way for their work. This could be public accountability i.e. getting approval from voters in elections or accountability to another political body like a Governor or legislature.

Need of Judicial Accountability

- **To uphold public trust:** Recent remarks like asking a rape victim to marry a rapist, prioritizing cases of some people for hearing, and delaying others erodes trust in the judiciary.
- **Judicial Appointment:** The collegium system results in judges appointing judges with virtually no role of executive and legislature.
- **Conflict of Interest:** CJI decides master of rolls despite himself being a party in a case. **E.g**. Recent press conference by four senior-most judges against CJI..
- **Conduct of judges:** Allegations of corruption on Justice Ramaswami, Allegation of sexual harassment on Justice Ranjan Gogoi raises a question on the character of CJI.
- **Opacity in operation:** Under the blanket of judicial independence judiciary restricts outside body's involvement in the investigation of corruption cases and sets up in-house mechanisms.
- **Judicial overreach:** Activism towards citizen grievances has encroached on a line of overreach. E.g. National anthem case, Highway liquor ban.
- **Judicial Independence:** Without accountability, Judicial independence can be used for the personal benefit of judges, and not for the protection of the rule of law, and the rights of citizens.
- **Judicial oversight:** Judiciary monitors and ensures that executive actions and legislation adhere to constitutional principles and protect individual rights.

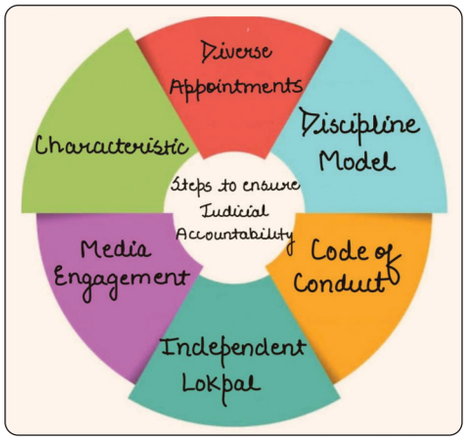


Fig. 12.4: Steps to Ensure Judicial Accountability

Constitutional Morality: Balance between Judicial Independence & Accountability (UPSC 2025)

- Constitutional morality refers to adherence to the core constitutional values of liberty, equality, dignity, and rule of law, ensuring that institutions act in the spirit of the Constitution.

Balancing Judicial Independence & Accountability

- In Kesavananda Bharati (1973), the Supreme Court protected judicial independence through the Basic Structure Doctrine while binding all organs to constitutional limits.
- In the Supreme Court Advocates-on-Record Association (2015) (NJAC case), the Court struck down executive dominance in appointments to safeguard independence but also stressed transparency in the collegium system.
- In Maneka Gandhi (1978), the Court ensured fairness in procedure, making judicial interpretation accountable to constitutional reasonableness.
- Further, in Navtej Singh Johar (2018) and Shayara Bano (2017), the Court applied constitutional morality to uphold rights over social practices, showing that judicial independence operates within constitutional accountability.

Steps Taken to Ensure Judicial Accountability

- Adoption of a charter '**Restatement of Values of Judicial Life**' by Supreme Court in 1997 and **Bangalore Principles of Judicial Conduct in 2002**.
- The Supreme Court (SC) approves live-streaming of court proceedings.
- **Draft Memorandum of Procedure, 2016:**
  - Include "merit and integrity" as "prime criteria" for the appointment of judges.
  - Permanent secretariat in Supreme Court for maintaining records of High Court judges
- **SC vs Subhash Chandra Agrawal case:** CJI is declared as a public authority under the RTI act.
- **Other measures:** Media engagement, Independent Lokpal, and Code of Conduct for Judiciary.

Judicial Independence: A Prerequisite for Democracy **(UPSC 2023)**

Constitutional Provisions Ensuring Judicial Independence in India:

- **Article 124:** Governs Supreme Court judge appointments based on merit, ensuring independence.
- **Articles 214 & 215:** Establish High Courts with independent judicial functioning.
- **Article 50:** Mandates judiciary-executive separation, upheld in Kesavananda Bharati case.
- **Articles 121 & 211:** Prohibit legislative discussion on judges' conduct, preserving autonomy.
- **Articles 125 & 221:** Judges salary, terms of service etc. can not be adversely changed after appointment
- **Articles 32 & 226:** Grant judicial review powers to the Supreme Court and High Courts (e.g., NJAC Act struck down in 2015).

- **Article 112 (3) (d), A-113, 202(3)(d) and 203:** Expenditure and allowance of SC and HC judges are charged expenditure on Consolidated fund of India and respected states.
- **Article 146 and 229:** Chief justice and India and Chief justice of respective courts have power to appoint officers of the court and largely control term s of their service. Further expenses of the SC and HC are charged on the respective consolidated funds of India and the states.
- **Security of Tenure:** Judges serve until age of 62 (High Courts) and 65 (Supreme Court), preventing arbitrary removal Strong impeachment procedure A - 124 (4) and 217.

Judicial Independence: A Prerequisite for Democracy:

- **Rule of Law:** Ensures uniform application of laws (Kesavananda Bharati case upheld the basic structure).
- **Protection of Rights:** Safeguards fundamental rights (Habeas Corpus case during Emergency).
- **Fair Trials:** Ensures unbiased justice (Nirbhaya case upheld fair trial despite public pressure).
- **Accountability:** Holds power structures in check (NJAC case reinforced judicial autonomy).
- **Public Faith:** Strengthens democracy's trust (Right to Privacy judgment aligned with global standards)

JUDICIAL ACTIVISM AND JUDICIAL OVERREACH

Aspect	Judicial Activism	Judicial Overreach	Judicial Restraint
Definition	Proactive role by judiciary to ensure constitutional duties are fulfilled.	Unreasonable interventions by judiciary into executive/ legislative functions.	Judiciary avoids interfering in government functions.
Usage	Used to correct wrongs and uphold citizens' rights.	Excessive intervention undermining separation of powers.	Maintains separation of powers, avoids unnecessary interference.
Examples	Suo-motu cases, banning liquor near highways.	Directing new policies or decisions, like restoring the internet in Kashmir.	Restraining from interfering in anti-defection law decisions.
Famous Cases	2G Scam verdict, PIL on road safety.	Banning fire crackers during Diwali. Did not consider administrative feasibility of such decision.	Aravali Golf v. Chander Hass & Anr. (2007)

Solutions To Judicial Activism, Overreach and Restraint

Aspect	Judicial Activism	Judicial Overreach	Judicial Restraint
Preventing Excessive Intervention	Set guidelines for intervention (e.g., SC's role in environmental protection).	Limit judicial intervention in executive matters.	Strengthen grievance redressal (e.g., local bodies for road safety).
Ensuring Accountability	Ensure transparency (e.g., publicizing collegium decisions).	Introduce checks to curb arbitrary actions (e.g., 2G scam verdict).	Maintain oversight while respecting limits (e.g., SC in Kesavananda Bharati case).
Balancing Power	Promote collaboration with the executive/ legislature (e.g., NHRC oversight).	Limit judicial influence on politics (e.g., anti-defection law).	Protect independence without avoiding duty (e.g., SC's intervention in public interest cases).
Judicial Independence	Support activism with responsibility (e.g., SC's environmental cases).	Prevent overreach into executive/legislative domains (e.g., limiting judicial policy-making).	Uphold constitutional rights (e.g., SC ruling on Right to Privacy).
Strengthening Legal Framework	Clear legal frameworks (e.g., Right to Information Act interpretation).	Set legal boundaries for involvement (e.g., limiting judicial involvement in policy).	Encourage necessary intervention (e.g., SC's restraint in anti-defection cases).

CONTEMPT OF COURT

Contempt of Courts Act, 1971 defines contempt of Court as Civil contempt and criminal contempt.

Constitutional Provision

- **Article 129 and 215**: Powers SC and HC as a court of record including the power to punish for contempt of itself.
- **Article 142(2):** Enables the Supreme Court to investigate and punish any person for its contempt.

Need of Contempt Power

- **Upheld court honour:** Judiciary rests on the trust of people. **Pritam Lal v. The High Court of M.P** SC held that it is the duty of the Court, to punish the contempt act to preserve its dignity.
- **Rule of Law:** Disobedience of court's order violates the principle of Rule of Law. Hence contempt power holds together the basic structure of the Constitution.

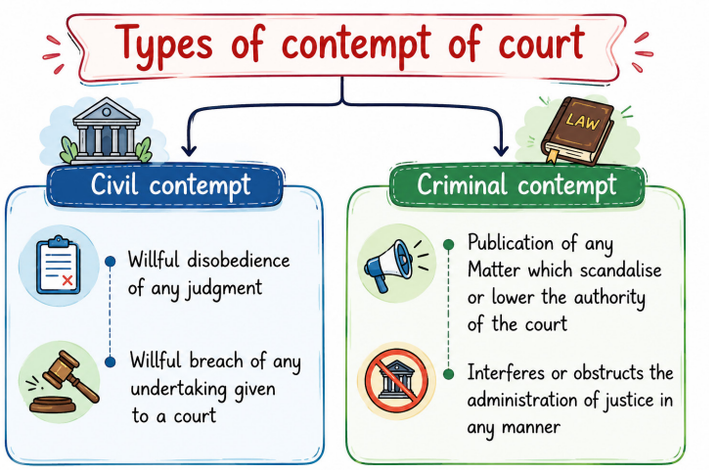


Fig. 12.5: Types of Contempt of Court

- **Equality before law:** Tool against the rich and the powerful by forcing compliance to the court orders.
- **Independence of the judiciary:** Protection from the opinion of public and media trials.
- **Reasonable restrictions:** Article 19(1) of the Constitution provides contempt of court as a reasonable restriction for curbing the freedom of speech and expression.
- **Law Commission (274th report):** Several inbuilt safeguards to protect against its misuse. **E.g**. Section 13 of the Contempt of Courts Act, 1971 : If the degree of harm is slight and beneath notice, the court won't punish for contempt
- **Interference in justice Administration: Brahma Prakash Sharma v State of Uttar Pradesh->**It is not necessary to specifically prove that an actual interference with the administration of justice has been committed in contempt of court case.
- **Defences against Contempt of Court:** Fair criticism (PN Dua v. Shiv Shankar, 1988), truth as defense (Subramanian Swamy v. Arun Shourie, 2014), responsible media reporting (Sahara India Real Estate v. SEBI, 2012 and Wikimedia Foundation Inc. v. ANI Media Pvt. Ltd. (2025), and maintaining public trust (Brahma Prakash Sharma v. State of UP, 1954) are key principles in contempt of court cases.

Contempt of Court: Criticism and Way Forward

Aspect	Arguments Against	Way Forward / Solutions
Free Speech & Accountability	Criticism of the judiciary ensures accountability in democracy.	Clear distinction between fair criticism and obstruction of justice.
Vague Grounds	Terms like "scandalizing the court" are subjective and prone to misuse.	Define contempt more precisely to reduce arbitrariness.
Violation of Natural Justice	Judges act as judges in their own cause, violating fair trial norms.	An independent judicial panel can review contempt cases.
Global Practices	In the USA, public discussion of the judiciary is protected to uphold democratic values.	Adopt global best practices that support judicial dignity without gagging speech.
Delay in Proceedings	Cases drag beyond the limitation period, defeating the purpose.	Strict enforcement of one-year limit and timely disposal.

MUGLAONKAR PRINCIPLES

The Mulgaonkar Principles, from the Supreme Court case In Re: S. Mulgaokar (1978), emphasize judicial restraint in using contempt powers, especially against criticism, aiming to balance judicial authority with freedom of expression.

Key Mulgaonkar Principles

- **Exercise of Restraint:** The judiciary should use its contempt powers sparingly and only when necessary to uphold the administration of justice.
- **Tolerance of Criticism:** Fair and reasonable criticism of the judiciary, even if outspoken, should not be met with contempt proceedings.

- **Avoidance of Hypersensitivity:** Judges should not be overly sensitive to criticism and must maintain composure in the face of public scrutiny.
- **Protection of Judicial Process:** Contempt action is warranted when criticism poses a real threat to the judicial process or public confidence in the judiciary.

WOMEN IN JUDICIARY

- Women remain significantly underrepresented in India's judiciary. In the Supreme Court of India, only 11 women judges have been appointed since 1950, with no Dalit or tribal woman judge so far.
- In High Courts, women constitute about 13.4% of judges (State of the Judiciary Report, 2023), and several High Courts such as Manipur, Meghalaya, Tripura, Patna, and Uttarakhand have no women judges.
- At the subordinate court level, women's representation has seen significant improvement, rising from 27.6% in 2018 to 36.3% in 2023, indicating a positive trend towards gender diversity in the judiciary. ex In Rajasthan Judicial services, 2024 68% recruited judges are women.

Reasons for Lower Representation of Women

- **Social Factor:** Long and inflexible work hours in law, combined with familial responsibilities, force many women to drop out of practice and they fail to meet the requirement of continuous practice.
- **Seniority Principle:** This principle is followed in case of appointments to the higher judiciary. However, strict adherence to this also discourages more women appointments.
- **Lack of judicial infrastructure:** The absence of restrooms, child care facilities etc,. It was found in a survey of 6000 trial court rooms, that about 22% of them do not have washroom facilities for women.
- **No Women Reservation:** Many states have a reservation policy for women in the lower judiciary, which is missing in the High Courts and Supreme Court.

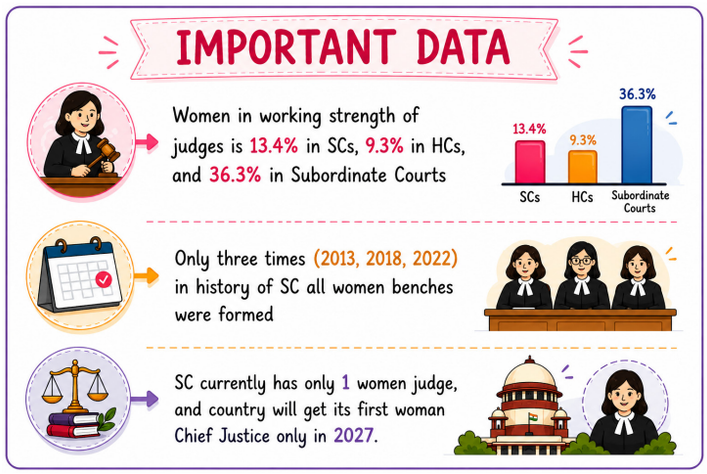


Fig. 12.6: Data Related to Women in Judiciary

- **Eligibility criteria for entrance exams:** A major barrier to women's recruitment as district judges is the eligibility criteria to take the entrance exams.
  - Lawyers need to have 7 years of continuous legal practice and be in the age bracket of 35-45.
- **Low Representation of Women in Litigation:** Number of women advocates is still low, reducing the pool from which women judges can be selected.
- **Patriarchal society:** According to a study by the International Commission of Jurists (ICJ) the lower representation of women in the judiciary is often due to gender stereotyping.
- **Glass Ceiling:** Institutional barriers limit women's promotion to senior roles.

Desirability of Greater Representation of Women in Higher Judiciary **(UPSC 2021)**

- **Gender Diversity:** Women judges bring diverse perspectives to legal interpretations.
  Eg: Justice Indu Malhotra's dissent in the Sabarimala case (2018) on religious freedom and gender equality.
- **Gender Equity:** Ensures fairer judgments in family law, harassment, and gender rights.
  Eg: Justice Hima Kohli's rulings on domestic violence and women's inheritance rights.
- **Inclusiveness:** Prevents male-dominated perceptions of the judiciary.
  Eg: Justice Leila Seth's role in legal reforms for equal property rights for daughters.
- **Challenging Institutional Biases:** Women in leadership roles counter patriarchal biases.
  Eg: Justice Leila Seth's contributions to gender equality in legal reforms.
- **Encouraging Women in Legal Profession:** More women judges inspire female lawyers.
  Eg: Justice BV Nagarathna, set to be India's first woman Chief Justice in 2027.

Hurdles to Greater Representation:

- **Glass Ceiling:** Institutional barriers limit women's promotion to senior roles.
- **Opaque Appointment Process:** The collegium system lacks gender-sensitive criteria, hindering women's rise.
- **Work-Life Balance & Social Norms:** Traditional family duties deter women from long judicial careers. Eg: Justice R. Banumathi on societal norms restricting women's career progression.
- **Low Representation in Bar Councils:** Fewer women in senior advocate roles restrict their entry to higher judiciary. Eg: Supreme Court's 33% reservation for women in the Supreme Court Bar Association's executive committee.

Way Forward for Women Representation in the Judiciary

- **Effective long-term plan:** Collation of data of prospective women candidates in the lower judiciary, revisiting appointment criteria to ensure marginalized section women representation.
- **Gender sensitization:** Judges of **"old school"** and **"patriarchal"** in outlook, **should be sensitized to prevent them from** passing orders objectifying women in sensitive cases.
- **Retaining women in Profession:** Governments should rationalize salary and allowances of lower judiciary and provide security of income to female lawyers to reduce uncertainty.
- **Societal mindset:** Judges and lawyers shall be judged on merit and not on gender.
- **Reservation:** Higher judiciary should also have horizontal reservation for women such as subordinate judiciary without diluting merit.

Knowledge Nuggets

Justice BV Nagarthna is in line to be the first female Chief Justice of India.

FAST TRACK COURTS

- Recently, the Law Minister presses for accelerating the setting up Fast-Track Courts (FTCs) and Fast-Track Special Courts (FTSCs).
- FTCs and FTSCs are dedicated courts expected to ensure swift dispensation of justice.
- **Article 247** - Parliament to establish certain additional courts for the better administration of laws made by it or of any existing laws with respect to a Union List.

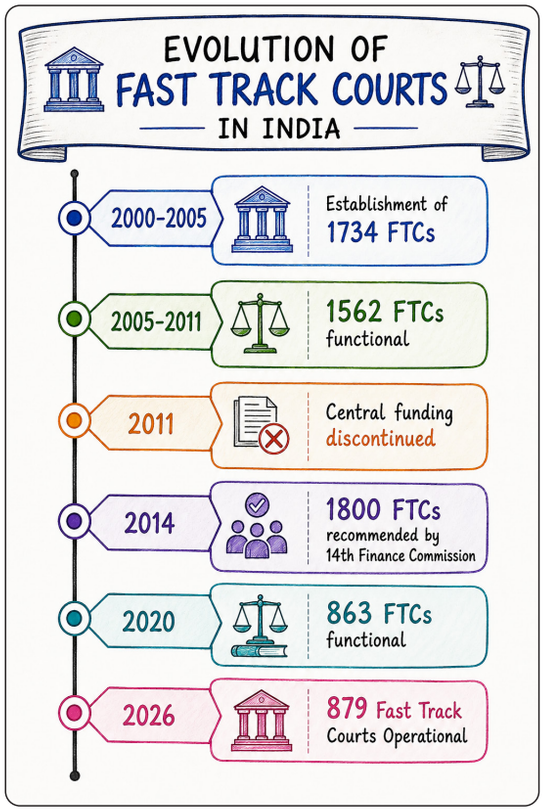


Fig. 12.7:

Advantages of Fast Track Courts (FTC)

- **Reducing Pendency:** FTCs have solved millions of cases to reduce the burden on other courts.
- **Judicial efficacy:** Simplified procedure → High case clearance rate and speedy trial rate → increases Judicial efficacy.
- **Promote specialization:** FTCs are established to handle specific types of cases. This enables the appointment of experts in that field as judges.
- **Consistency and Predictability:** FTCs have high-performance rates and are stable and steady. It renders justice with high accuracy.
- **Act as a deterrent:** speedy justice acts as an effective deterrence in reducing crime in society.
- **Increase in effectiveness:** Speedy justice results in enhanced efficiency and effectiveness of our judicial system, promoting people's confidence in the justice delivery mechanism in India.

Issues Faced by Fast Track Courts (FTC)

- **Systemic issues:**
  - An insufficient number of FTCs and judges compared to cases to be handled. E.g. Delhi FTCs have only one or two judges.
  - **Ad-Hocism**: Instead of establishing to address pendency, established based on specific incidents.
- **Heavy workload:** Increasing cases assigned without increasing number of judges -> Increased pendency in FTCs
- **No special or speedier procedure:** Usual delay like the regular courts. NCRB (2018): 78% out of 28,000 trials done in FTCs took more than a year to complete.

- **Lack of infrastructure:** Often housed in an existing court and various equipments needed to conduct video and audio recordings of victims → Reduces the effectiveness
- **Financial constraints:** SC in **Brij Mohan Lal case**- continuation of FTCs is in the state domain with their funds. E.g. As per PRS date(March 2019) 56% of the States and UT had no FTCs.
- **Lack of Coordination:** Tribunals → managed by different ministries. Fast-track courts and special courts → under different judicial bodies, with little coordination or uniformity among them.

Way Forward for Fast Track Courts (FTC)

- **Capacity building and improving infrastructure:** Appointment of additional judges, making FTCs permanent, dedicated courtrooms, technological facilities, etc shall be the priority.
  - Suggested by the Supreme Court, the ad-hoc judges and support staff should be granted permanent appointments shall be a priority.
- **Modern technologies:** Tools like Big data analysis, AI shall be used to ensure better grouping of cases and decide priority.
- **Sensitizing State Governments:** Conference of Chief Ministers and Chief Justices, the State in consultation with Chief Justices of HC → establish a suitable number of FTCs and provide adequate funds.
- **Coordination:** FTCs and special courts → under different judicial bodies with little coordination → a lead agency to be established by Central and State Governments to streamline the functioning of courts systematically.
- **Holistic approach:** Police reforms to improve investigation, Special procedure for speedy disposal of cases.

Fast Track Special Courts: Strengthening Justice for Women and Children

The Fast Track Special Courts (FTSCs) scheme, extended till March 2026, plays a crucial role in delivering swift justice in cases of rape and POCSO Act offences.

- These courts aim to address the pendency of heinous crimes against women and children through focused judicial attention.
- As per news reports, FTSCs have significantly expedited case disposal, enhancing public trust in the justice system.
- The extension underscores the government's commitment to victim-centric justice and timely legal redressal, a critical step toward ensuring safety, deterrence, and empowerment.

REGIONAL BENCH OF SUPREME COURT

Recently, the Parliamentary Standing Committee on Personnel, Public Grievances, Law and Justice informed the Parliament about the government's acceptance of its recommendation to establish regional benches of the Supreme Court (SC).

- The recommendations were made in the 133rd report of the Parliamentary Standing Committee titled, 'Judicial Processes and Their Reform'.
- SC of India may invoke Article 130 of the Constitution for establishing its regional benches at four or five locations in the Country.
- The interpretation of Constitution and Constitutional matters may be dealt with at Delhi and the regional benches may decide appellate matters.
- The appellate benches' decisions should be treated as final, and it should not be treated as another layer of the judiciary.

Need for Regional Benches

- **Inclusive Justice delivery: Article 39A** directs states to make provisions to ensure that no person shall be deprived of getting justice.
- **Accessibility:** For the poor and people living in far-off places like the north-east access to SC seats in Delhi is less.
- **High Pendency:** As per NJDG approx 65,000 cases are pending in SC and disposal of appeals takes many years.
- **Constitutional court:** Cases decided by constitution benches (i.e. 5+ judges) have declined from about 15% (1950s) to 0.12% (last decade). With regional benches, SC in Delhi can only hear matters of constitutional law.
- **Economic growth:** More prosperous states have higher civil litigation rates. But Judicial backlogs discouraged civil case filings -> regional bench is a step-in right direction.

Recommended by Various Committees

- **Parliamentary standing committees** in 2004,2006 and 2008 recommended the same.
- **Supreme Court (1986):** Establishment of National Court of Appeal with regional Benches at Chennai, Mumbai, and Kolkata.
- **V. Vasantha Kumar case, 2016** the SC referred the matter to a Constitutional Bench for the decision on the National Court of Appeal.

Law Commission's Recommendations on Regional Benches of SC

- **95th Report of Law Commission (1984):** SC should consist of two Divisions, namely, Constitutional Division and Legal Division.
- **229th Report of Law Commission (2009):** Recommended setting up,
  - Constitution Bench at Delhi
  - Four Cassation Benches in the Northern region at Delhi, the Southern region at Chennai/Hyderabad, the Eastern region at Kolkata and the Western region at Mumbai.

Concerns with Regional Benches

- **May dilute superiority of the SC decisions:** Fundamental change in the character of SC and its aura as Apex court.
- **Affect integrated judiciary system:** In 2010, CJI and 27 judges had rejected law commission recommendations for regional Benches citing this reason.

Way Forward for Regional Benches

- **Balanced Expansion:** Establish regional benches in a phased manner, prioritizing regions with the highest case pendency, while ensuring that it does not lead to overextension of judicial resources.
- **Standardized Framework:** Develop clear guidelines and a uniform framework for the functioning of regional benches to ensure consistency in judicial practices and interpretations across the country.
- **Infrastructure and Technology Investment:** Ensure adequate investment in infrastructure, technology, and human resources to support regional benches, while maintaining the quality and efficiency of judicial services.
- **Strengthen Lower Courts:** Alongside regional benches, focus on strengthening district and lower courts through training, capacity-building, and technology integration to address the root causes of case delays.

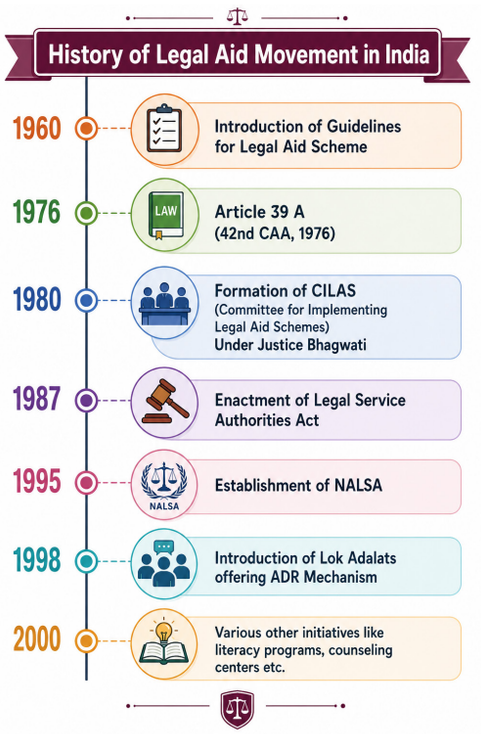


Fig. 12.8:

NALSA

Parliamentary Standing Committee submitted its Report on "Review of the working of Legal aid under the Legal Services Authorities Act, 1987"

- The National Legal Services Authority (NALSA) has been constituted under the **Legal Services Authorities Act, 1987** to monitor and evaluate the implementation of legal aid programs and to lay down policies and principles for making legal services available under the Act.
- **Constitutional basis: Article 39A** provides for free legal aid to the poor and weaker sections of the society and ensures justice for all. Right to legal representation is part of free and fair procedure under A-21. **Articles 14 and 22(1)** make it obligatory for the State to ensure equality before the law and a legal system that promotes justice based on equal opportunity to all.
- **Main functions:** State Legal Services Authorities, District Legal Services Authorities, Taluka Legal Services Committees discharge the following main functions on regular basis -
  - To provide free and competent legal services to the eligible persons.
  - To organize Lok Adalats for amicable settlement of disputes.
  - To organize legal awareness camps in the rural areas.

- Providing Compensation to the Victims of Crime
- Promoting dispute settlements

❖ **Persons eligible for getting free legal services includes:** Women and children, Members of SC/ST; Industrial workmen; Victims of mass disaster, violence, flood, drought, earthquake, industrial disaster; Disabled persons; Persons in custody; Persons whose annual income does not exceed Rs. 1 lakh (in the Supreme Court Legal Services Committee the limit is Rs. 5,00,000/-); Victims of Trafficking in Human beings or beggar.

Challenges Faced in Ensuring Free Legal Aid

❖ **Lack of awareness** among people about their basic rights of free legal aid.

❖ **Free aid vs Quality:** There is a perception that free service doesn't provide quality services.

❖ **Human resources:** Dearth of enough lawyers to deliver free legal aid by the legal services authorities.

❖ **Lack of motivation:** Though lawyers are assigned to provide legal aid and paid with public funds, they lack interest in their clients. This hampers the quality of arguments by lawyers.

❖ **Demand for money:** Assigned lawyers compel many innocent clients to pay additional amounts of money to them, even though services are free.

Fig. 12.9: Key Programmes of NALSA

❖ **Inefficiency:** The system for free legal aid is not very streamlined and standardized. This has resulted in inefficient delivery of free legal aid.

Way Forward

❖ **Encourage more lawyers** to deliver free legal supplemented with an awareness campaign to inform people about free legal aid.

❖ **The use of ICT**, Big data analytics, etc can minimize the average time between application for legal aid and lawyer assigned time which at present is 11 days nationally.

❖ **Incentivising lawyer** for free legal aid with a decent salary and other additional perks like a priority in any appointment process

❖ **International experience**: For seamless delivery of free legal aid, countries like South Africa, Kenya, etc. categorized it as "essential services".

❖ SDG-16 seeks to "Promote peaceful and inclusive societies for sustainable development, provide access to justice for all and build effective, accountable and inclusive institutions at all levels. The role played by NALSA and its networks assist in achieving the same.

Government Initiatives for Legal Aid

❖ Designing Innovative Solutions for Holistic Access to Justice in India **(DISHA)**

❖ **Nyaya Bandhu Platform:** Facilitate connection between Pro Bono Advocates and registered beneficiaries, encouraging Pro Bono culture among law students, advocates, and law schools.

❖ **Tele-Law Service:** Connect beneficiaries with lawyers via tele/video conferencing, available in 2.5 lakh Gram Panchayats across 766 districts.

❖ **Legal Aid Defence Counsel System (LADCS):** Initiated by NALSA, ensures efficient legal aid in criminal cases by engaging fulltime lawyers across 676 districts nationwide, mirroring public defender systems in developed countries.

JUDICIAL INFRASTRUCTURE IN INDIA

The Chief Justice of India proposed creation of a National Judicial Infrastructure Authority of India (NJIAI).

❖ An efficient "judicial infrastructure" means providing equal and free access to justice. This could be realised through a "barrier-free and citizen-friendly environment.

❖ It includes the physical premises of courts, tribunals, lawyers' chambers, digital and human resources infrastructure etc. that are essential to ensure timely dispensation of justice.

Reasons for the Poor Judicial Infrastructure in India

❖ **Low budgetary allocation:** India spends only about 0.09% of its GDP to maintain the judicial infrastructure.

- A 2016 report published by the Supreme Court showed that existing infrastructure could accommodate only 15,540 judicial officers against the all-India sanctioned strength of 20,558.

❖ **Lack of planning:** The infrastructure is overburdened as the future needs are not adequately addressed during the construction itself.

- **Complex Financing:** The financing judicial infrastructure requires coordination between various departments of the state government including the district collectorate, the Public Works Department and the Finance Ministry.
- **Delay and Underutilisation of resources:** The primary responsibility of infrastructure development for the subordinate judiciary rests with the State Governments. Some of the States are either delaying the process or not giving their share of money as a contributing share.
- **Judiciary's dependence on the Executive:** The project design, monitoring and execution of the infrastructure, mainly the building infrastructure remains the sole prerogative of the Public Works Departments (PWD).

Need for Reforms in Judicial Infrastructure

- **High Pendency:** There is a huge backlog of over 4.5 crore pending cases.
- **Issues with enforcing Contracts:** Ease of doing business in India is severely constrained by the inability to enforce contracts or laws, lengthy and costly litigation and arbitration processes, and archaic legislations.
- **Digitization of Judiciary:** In the backdrop of COVID 19 pandemic and the shift towards digital mode, it is all the more important to ensure modernization of judicial infrastructure in the country. At present, **73% of courtrooms** have no video-conferencing facility.
- **Lack of accountability:** In the absence of a dedicated special purpose vehicle or body for the purpose of enhancing judicial infrastructure, nobody is willing to take responsibility to execute infrastructure projects.

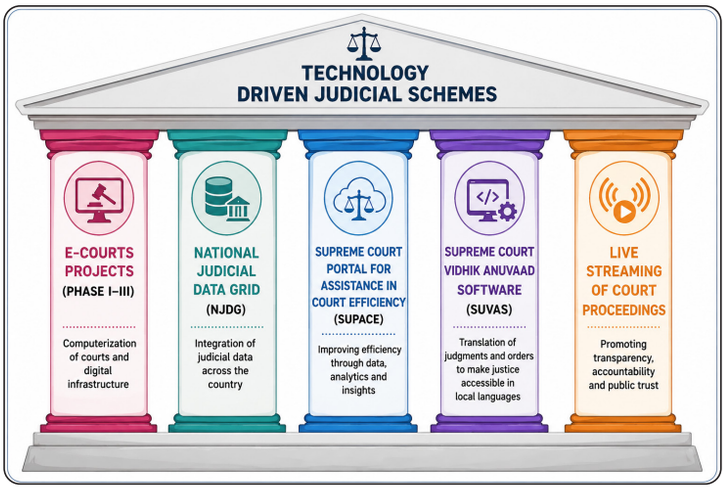


Fig. 12.10: Technology Driven Judicial Schemes

- **Underutilisation of funds:** Some states transfer part of the funds for non-judicial purposes. Out of total ₹981.98 crore sanctioned in 2019-20 under CSS, only ₹84.9 crore was utilised by a combined five States, rendering the remaining 91.36% funds unused.

Key Words

National Judicial Infrastructure Authority of India, Sarkaria Commission report, President's Rule, Underutilisation of funds, State Emergency/Constitutional Emergency, Digitization of Judiciary, Rule of Law, Equality before law, Reasonable restricts, Proportional Punishment, mens rea, public trust, Contempt of court, Judicial overreach, Restatement of Values of Judicial Life, locus standi, public interest litigation.

Previous Year Questions	Year
1. Explain the reasons for the growth of public interest litigation in India. As a result of it, has the Indian Supreme Court emerged as the world's most powerful judiciary?	2024
2. The judicial systems in India and the UK seem to be converging as well as diverging in recent times. Highlight the key points of convergence and divergence between the two nations in terms of their judicial practices.	2020
3. Judicial Legislation is antithetical to the doctrine of separation of powers as envisaged in the Indian Constitution. In this context justify the filing of a large number of public interest petitions praying for issuing guidelines to executive authorities.	2020
4. Critically examine the Supreme Court's Judgement on 'National Judicial Appointments Commission Act, 2014' with reference to appointment of judges of higher judiciary in India.	2017
5. Discuss the desirability of greater representation to women in the higher judiciary to ensure diversity, equity and inclusiveness	2021

13 Dispute Redressal Mechanism

Dispute redressal mechanisms in India offer non-judicial ways to resolve conflicts through institutions like Lok Adalats, Nyaya Panchayats, Family Courts, and Consumer Courts. They emphasize mediation and mutual agreement over adversarial outcomes. These systems aim to make justice more accessible, reduce court delays, and improve overall efficiency. Their focus is on fair resolution rather than a winner-takes-all approach.

ALTERNATIVE DISPUTE RESOLUTION (ADR)

ADR means any procedure, agreed to by the parties of a dispute, in which they use the services of a neutral party to assist them in reaching an agreement and avoiding litigation.

Advantages of ADR

- According to Law Commission Report 222, ADR mechanisms provide speedy, less expensive and flexible dispute resolution compared to courts.
- **Continuing Relationship:** No Feeling of winning and losing among parties and grievances getting redressed → More likely to preserve goodwill.
- **Improved Enforcement:** As per World Bank (WB) ease of doing business average days for enforcement of contracts was reduced by more than 2 months.
- **Greater Compliance:** The parties' involvement in the process creates greater commitment to the result so that compliance is more likely.
- **Saving Forex reserves:** Significant amounts of forex are lost on arbitration in foreign countries like Singapore.

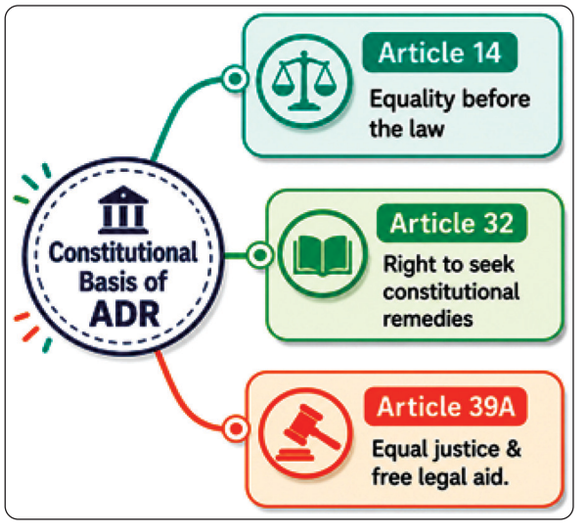


Fig. 13.1: Constitutional Basis of ADR

Challenges in ADR and their Respective Solutions

- **Lack of Awareness –** Addressed through ADR training, legal education, and awareness campaigns.
- **Scepticism About ADR Outcomes –** Tackled by promoting e-Lok Adalats, success stories, and transparent procedures.
- **Voluntary Nature –** Handled through legal reforms and incentives to boost ADR participation.
- **Alleged Arbitrator Bias –** Mitigated by quality control, ethical codes, and accountability standards.
- **Limited Jurisdiction –** Solved by establishing specialised centres and expanding legislative scope.

Launch of Arbitration Bar of India

- In May 2024, the Indian arbitration system gained significant attention with the launch of the Arbitration Bar of India (ABI), aimed at promoting excellence in Alternative Dispute Resolution (ADR). The ABI seeks to strengthen India's position as a global arbitration hub by offering networking and professional development opportunities for ADR practitioners.

ADR TECHNIQUES

1. Conciliation	Conciliation = Non-adjudicatory process + Neutral conciliator + Active involvement of conciliator + Settlement suggestions (propose + formulate + reformulate)
2. Arbitration	Arbitration = Neutral arbitrator + Binding & enforceable decision → Speedy & Fair disposal. Governed by Arbitration & Conciliation Act, 1996, covers domestic & international arbitration 2015 & 2019 amendments
3. Mediation	Mediation = Third-party facilitation + Mediator bridges parties + Applicable Statutes (Family Courts Act + Hindu Marriage Act) + Common in matrimonial & civil cases
4. Negotiation	Negotiation = Self-resolution by parties + Informal & Direct process + Optional third-party encouragement + Used in petty, family & industrial disputes

Arbitration & Conciliation (Amendment) Act, 2021

The 2021 Amendment, the third to the Arbitration Act 1996, aims to promote a pro-arbitration regime but has raised concerns:

- **Challenges:**
  - **Ambiguous Terms:** Broad, undefined terms like "fraud" and "corruption" can be misused to delay enforcement.
  - **Unclear Evidence Threshold:** Lack of clarity on the prima facie evidence needed for fraud claims.
  - **Automatic Stay:** Blanket stays on awards can encourage frivolous allegations and delay enforcement, hurting ease of doing business.
  - **Delay & Costs:** New applications under Section 36(2) can cause further delays and burden courts.
  - **Qualifications of Arbitrators:** Deletion of Schedule 8 removes clarity; could affect quality if not properly regulated.
  - **Enforcement Issues:** Weak enforcement of contracts may impact investor confidence and initiatives like Make in India.

Arbitration and Conciliation (Amendment) Bill, 2024

Aim: Boost institutional arbitration, reduce court intervention, ensure timely arbitration.

- **Key Features of Draft Bill:**
  - **Omission of Conciliation:** Act renamed Arbitration and Conciliation Act, 1996 to the Arbitration Act, 1996. Arbitration Act, 1996; This change reflects the integration of conciliation provisions into the Mediation Act, 2023.
  - **Emergency Arbitrator:** To grant interim relief before tribunal formation.
  - **Institutional Focus:** Preference for institutional over ad-hoc arbitration.
  - **Arbitration Council of India (ACI):** Power to create model rules and recognize institutions.
  - **Video Conferencing:** Virtual arbitration proceedings permitted.
  - **Appellate Arbitral Tribunal:** To hear appeals against arbitral awards.

LOK ADALAT

- **Philosophy:** Lok Adalat is a unique system developed in India. It means people's court and is based on Gandhian principles.
  - It encompasses negotiation, mediation and conciliation as tools to settle disputes between the parties.
  - First Lok Adalat camp in post-independence was organized in Gujarat in 1982.
- **Jurisdiction:** the cases (or disputes) which are pending in a court or which are at the pre-litigation stage (not yet brought before a court).
  - Some cases taken up in Lok Adalats are Matrimonial/Family Disputes, Criminal (compoundable offences) cases, Land Acquisition cases etc.
  - Offences which are non-compoundable (serious in nature) under any law fall outside the purview of the LA.
- **Present Status:** The Institution of Lok Adalats has been given statutory status under the Legal Services Authorities Act 1987.
- **Organising authority:** The State/District Legal Services Authority or SC/HC/Taluk Legal Services Committee may organize Lok Adalats.
- **Members:** Lok Adalat members consist of a judicial officer (Chairman), a lawyer (advocate) and a social worker.
- **Power of civil court:**
  - Lok Adalats have the same powers as vested in Civil Courts under Bharatiya Nyaya Sanhita, 2023, Bharatiya Nagarik Suraksha Sanhita, 2023 and Bharatiya Sakshya Adhiniyam, 2023.
  - No appeal shall lie to any court against the award of the Lok Adalat.
  - One of the advantages of Lok Adalat is that a number of disputes between different parties can be settled in one go without wasting much time.
- **Mobile Lok Adalat systems:** Revolutionary changes are also happening in the administration of Lok Adalats with the introduction of mobile Lok Adalat systems to bring justice to the doorsteps of the needy and poor.

Distinction between Lok Adalats and Arbitration Tribunals (UPSC 2024)

Aspect	Lok Adalats	Arbitration Tribunals
Nature of Disputes	Minor civil, family, petty criminal cases. Eg: Land, matrimonial disputes.	Commercial, contractual disputes. Eg: Vodafone tax case.
Legal Basis	Legal Services Authorities Act, 1987.	Arbitration and Conciliation Act, 1996.

Voluntary Nature	Mutual consent required.	Based on pre-agreement/contract.
Appointment	Chaired by judicial officers.	Arbitrators chosen by parties.
Cost Efficiency	No court fees, highly economical.	Fees involved for arbitrators and lawyers.
Appeal Process	No appeal after settlement.	Awards can be challenged on limited grounds.
Speed	Resolved swiftly, often in a single sitting.	Longer, depends on case complexity.
Jurisdiction	Civil and minor criminal (compoundable offences). Eg: Motor accident claims.	Only civil/commercial matters. Eg: Family asset disputes, contracts.

Quasi-Judicial Bodies: Features and examples **(UPSC 2016)**

Definition: These are the bodies interpreting laws, adjudicating disputes, imposing penalties within a specific domain. It acts as a bridge between the executive and judiciary.

- **Key Features and Examples:**
  - **Adjudicatory Role:** Resolve domain-specific disputes. Eg: National Green Tribunal (NGT) penalized industries polluting Ganga.
  - **Limited Jurisdiction:** Handle only defined case types. Eg: Central Administrative Tribunal (CAT) handles government service disputes.
  - **Penalty Power:** Levy fines, no criminal sentencing.
  - **Independent Decision-Making:** Autonomous, follow constitutional/statutory norms. Eg: Central Information Commission (CIC) enforces RTI disclosures.
  - **Simplified Legal Procedures:** Easier, faster justice than regular courts.
  - **Faster Dispute Resolution:** Eases court burden. Eg: TDSAT (Telecom dispute settlement appellate Tribunal) quickly settles telecom disputes.
  - **Appeal Mechanism:** Decisions appealable in higher courts. Eg: The Income Tax Appellate Tribunal (ITAT) rulings can be appealed in High Courts.

Quasi-judicial bodies ease court workload and deliver specialized justice. Strengthening autonomy, efficiency, and public outreach is vital for their effectiveness.

GRAM NYAYALAYAS

Evolution of Gram Nyayalayas

Law Commission in the 114th report recommended establishing them with the following purpose:

- More humane and accessible justice delivery to the most marginalized sections
- Reduce around 50 % of case pendency in subordinate courts
- Reduce workload on higher tiers of the judiciary.
- **Gram Nayalayas Act, 2008:** It was expected to set up 5000 Gram Nyayalayas and the Central Government allocated about Rs.1400 crores as assistance to the States/UTs.
- **The uniqueness of Gram Nyayalayas:**
  - **Mobile courts:** presided over by Nyayadhikaris (judicial officer equivalent of Judicial Magistrates of the first class.)
  - **Appointed:** By the state governments in consultation with its High Court
  - **Powers:** Of both criminal and civil courts and their judicial competence was to be limited to disputes specified in the first and second schedules of the act
  - **Aim:** For the settlement of disputes using reconciliation.
  - **Not bound by the rules of evidence:** Under the Indian Evidence Act of 1872, but subject to rules framed by respective HCs and guided by the principles of natural justice.
  - **Appeal:** To the District Court in civil cases and Sessions Court in criminal cases.
  - **Established:** At headquarters of every Panchayat at the intermediate level or a group of contiguous panchayat in a district where there is no panchayat at the intermediate level

Do you know?

As per the Department of Justice Gram Nyayalaya Dashboard, 489 Gram Nyayalayas have been notified, out of which 337 are operational across the country. As per the latest parliamentary data, 337 operational Gram Nyayalayas had disposed of 4,11,071 cases till 30 June 2025

Reason for Poor Functioning of Gram Nyayalaya

- **Overlapping jurisdiction:** Presence of regular courts at Taluka level reduces their necessity.
- **Low priority by States:** Despite ~₹1400 crore allocation, states have sidelined implementation. Supreme Court questioned the feasibility of Gram Nyayalayas, highlighting that only 314 out of the targeted 2,500 are operational, raising concerns about infrastructure and resource allocation.
- **Poor fund utilisation:** Lack of proposals from states leads to slow use of central funds.
- **Human resource shortage:** Inadequate judicial officers, notaries, and support staff.
- **Lack of clarity:** Uncertainty about their role vis-à-vis existing forums like labour and family courts.
- **Low awareness:** Limited awareness among litigants, lawyers, and police affects usage.

TRIBUNALS (PART XIV- A; ARTICLE 323A, 323B)

Tribunals are quasi-judicial bodies meant for speedy, affordable, and decentralized resolution of disputes, especially in areas like administration and taxation. They were introduced through the 42nd Constitutional Amendment Act, 1976, based on the Swaran Singh Committee's recommendations.

Dimension	Article 323-A	Article 323-B
Purpose	Administrative Tribunals.	Tribunals For Other Matters
Established By	Only By Parliament	Both By Parliament And State
Hierarchy	No	May Be Created

Advantages of Tribunals

- **Flexibility:** Not restrained by rigid rules under the Civil Procedure Code and the Indian Evidence Act and follow the principles of Natural Justice.
- **Relief to Courts:** Relief to overburdened ordinary courts of law.
- **Less Expensive:** Less formal and a faster way to resolve disputes than the traditional court.
- **Legally binding decisions:** Same powers as a civil court, viz., issuing summons and allowing witnesses to give evidence. Its decisions are legally binding on the parties, subject to appeal.
- **Technical expertise:** Provision to appoint expert members who play a critical role in the adjudication of matters demanding technical expertise.

National Green Tribunal (NGT)

The **National Green Tribunal (NGT)**, established in 2010 under the NGT Act, adjudicates environmental disputes and ensures the enforcement of legal rights related to the environment.

- It follows principles of natural justice and offers speedy, specialized remedies.
- Key judgments include the **Art of Living case (Yamuna floodplain damage), closure of illegal industries in Delhi**, and **ban on sand mining without clearance**.
- **Sterlite Copper Plant Case, Tamil Nadu (2018):** NGT set aside the Tamil Nadu government's closure order of the **Sterlite plant in Thoothukudi**, but later the Supreme Court stayed this decision. It raised questions on environmental compliance and industrial rights.
- **Volkswagen Emission Case (2019):** NGT imposed a ₹500 crore fine on **Volkswagen** for using cheat devices in diesel vehicles, harming air quality—reinforcing environmental accountability of multinational corporations.
- NGT plays a vital role in balancing development and ecological sustainability.

Concerns with Tribunals

- **Against the separation of powers:** It has both administrative and judicial members.
  - In Madras Bar Association v. Union of India**,** the Supreme Court struck down the provision mandating a minimum age of 50 years and a four-year tenure for tribunal members.
  - It held these conditions violated the principles of **separation of powers**, **judicial independence**, **rule of law**, and **Article 14** of the Constitution.
  - In February 2025, the Supreme Court of India held that Foreigners Tribunals cannot review their own decisions, ensuring finality and legal certainty in citizenship matters.
- **Conflict of Interest:** Appointments by executive and executive is also the largest litigant in the country.
- **Undermining Judicial Authority:** Largely replaced HC for disputes under the various Acts. Appeal against the appellate tribunal, directly go to SC, side-stepping the HC.
- **Increasing Pendency:** Average pendency is 3.8 years (pendency in High Courts is 4.3 years)

- **Overlapping Jurisdiction:** Tribunals function under various ministries and departments creating confusion about the management of the tribunals. Also, multiple tribunals perform similar functions.
- **Delayed awards: Cauvery Interstate water dispute tribunal** was established in 1990 and took 17 years to pronounce its judgment in 2007. This was further challenged in the Supreme Court. This reflects the very purpose of the tribunal as a quick dispute-resolution mechanism.
  - For example: National Company Law Tribunal (NCLT) and National Company Law Appellate Tribunal (NCLAT) face severe delays, with 67% of insolvency cases exceeding the 330-day timeline under the IBC.

Tribunals in India: Balancing Specialization and Judicial Authority **(UPSC 2018)**

How Tribunals Curtail the Jurisdiction of Ordinary Courts

- **Parallel Authority:** Tribunals act as specialized alternatives, shifting jurisdiction from courts. *Eg*: AFT (Armed forced Tribunal) handles defense matters, limiting the High Court role.
- **Limited Appeals:** Bypass High Courts in appeal chains. *Eg*: NCLT → NCLAT → Supreme Court directly.
- **Executive Influence:** Government-dominated appointments raise independence concerns. *Eg*: SAT (Securities Appellate Tribunal) appointments by executive.
- **Weak Enforcement:** Lack contempt powers, affecting compliance. *Eg*: DRT (Debt Recovery Tribunal) cannot punish for contempt.

How Tribunals Complement Ordinary Courts

- **Reducing Backlog:** Fast-track cases, easing court burden. *Eg*: CAT handles service disputes.
- **Expert Decision-Making:** Specialized members ensure informed rulings. *Eg*: NGT includes environmental experts.
- **Judicial Oversight:** Tribunal rulings still under Supreme Court review. *Eg*: NCLT (National Company Law Tribunal) decisions appealable.
- **Faster, Cost-Effective Justice:** Provide quicker, affordable resolutions.
- **Coexistence:** Supplement courts, not replace them.

Tribunals must be restructured per the 272nd Law Commission and L. Chandra Kumar ruling, ensuring autonomy and preserving judicial review, to truly complement ordinary courts.

Way Forward

- **Appointment:** Nodal agency under law ministry to ensure uniformity in the appointment, tenure, and service conditions of all members appointed in the tribunals.
- **Vacancy:** Filled preferably within six months before occurrence by initiating the procedure well in time.
- **Selection of the members:** impartial with minimal involvement of government agencies. Separate Selection Committee, for both judicial and administrative members.
- **Tenure:** Chairman - 3 years / 70years and Vice-Chairman and Members -> 3 years/ 67 years.
- **Accessibility:** benches in different parts of the country ideally where the HC are situated.
- **Aligning with the basic structure:** tribunal order may be challenged before the Division Bench of the HC having territorial jurisdiction over the Tribunal.
- **For the administration:** Creation of an independent body called **National Tribunals Commission.**

Central Administrative Tribunal: Evolution into an Independent Judicial Authority **(UPSC 2019)**

Establishment of Central Administrative Tribunal (CAT)

- **Exclusive Jurisdiction:** Handles central government employees' service matters. Eg: Covers recruitment, promotions, transfers.
- **Speedy Disposal:** Reduces service dispute backlog in courts. Eg: 80% of such cases shifted from High Courts (Ministry Report).
- **Specialized Adjudication:** Judicial and administrative experts ensure informed decisions. Eg: Headed by former High Court judges.

CAT as an Independent Judicial Authority

- **Judicial Independence:** Rulings prevail over departmental decisions. Eg: L. Chandra Kumar Case (1997).
- **Binding Decisions:** Binding unless challenged in High Court/Supreme Court. Eg: Kendriya Vidyalaya Sangathan (2023) upheld the CAT decision.
- **Power of Contempt:** Can penalise for non-compliance like regular courts.
- **Increased Autonomy:** Insulated from executive interference.
- **Higher Appeal Recognition:** SC increasingly affirms CAT interpretations.

Though CAT has strengthened as a judicial body, further reforms like digitization, streamlined case management, and stronger institutional accountability are vital for enhancing autonomy and swift grievance redressal.

Tribunal Reforms Act, 2021 – SC Ruling (2025)

Aspect	Provision in 2021 Act	Supreme Court Ruling (2025)
Tenure	The Act fixed a 4-year tenure for Chairpersons and Members.	The Court held this unconstitutional and directed that a minimum 5-year tenure is necessary to ensure independence.
Minimum Age	A minimum age of 50 years was prescribed for appointment.	The Court struck this down, stating that younger eligible advocates cannot be excluded solely on age.
Appointments	The Act enhanced the role of the executive in appointments.	The Court reaffirmed that judicial primacy in selection committees is essential for tribunal independence.
Service Conditions	The Central Government was empowered to decide salaries and service rules.	The Court held that excessive executive control violates separation of powers.
Tribunal Independence	Allowed administrative control of ministries over tribunals.	The Court ruled that tribunals must be functionally independent of the executive.
Re-enactment Issue	Reintroduced provisions earlier struck down by the Court.	The Court termed this an impermissible legislative override violating constitutional supremacy.

Directions: The **Supreme Court of India** directed the government to establish a **National Tribunal Commission within four months** to ensure independence, transparency, and uniform functioning of tribunals.

Rationale: Protect judicial independence & judicial review (basic structure) and prevent executive dominance and ensure fair tribunal functioning

Tribunals (Rationalisation) 2021 (UPSC 2025)

- **Need:** Administrative tribunals are needed as they provide **speedy, specialised, and less expensive justice**, especially in technical areas like service and taxation matters. They also help in **reducing the burden on regular courts** and improving access to justice.
- **Reforms:** The **Tribunal Reforms Act, 2021** rationalised tribunals by **abolishing/merging several bodies** and introduced uniform rules on **4-year tenure, age limits, and executive-dominated appointments**, aiming at efficiency but raising concerns of **excessive executive control**.
  - In L. Chandra Kumar (1997), the **Supreme Court of India** held that tribunals are **subordinate to High Courts** and judicial review is part of the basic structure.
- **Recent Changes:** Later, SC (2025) struck down key provisions of the 2021 Act, especially **short tenure and age restrictions**, and reaffirmed **judicial primacy in appointments**, directing creation of a **National Tribunal Commission**.
- Thus, tribunals are necessary for expertise and speed, but must balance **efficiency with independence and constitutional safeguards.**

Key Words

Armed Forces Tribunal, Swaran Singh Committee, Conflict of interest, L. Chandrakumar's case, Digital India mission, Srikrishna Committee.

Previous Year Questions	Year
1. Comment on the need of administrative tribunals as compared to the court system. Assess the impact of the recent tribunal reforms through rationalization of tribunals made in 2021.	2025
2. How far do you agree with the view that tribunals curtail the jurisdiction of ordinary courts? In view of the above, discuss the constitutional validity and competency of the tribunals in India.	2018
3. What is the quasi-judicial body? Explain with the help of concrete examples.	2016
4. What are the major changes brought in the Arbitration and Conciliation Act, 1996 through the recent Ordinance promulgated by the President? How far will it improve India's dispute resolution mechanism?	2015

14 Local Self Government

Local self-government in India empowers local bodies to govern their jurisdictions, fostering democratic values and grassroots development. It ensures effective governance, citizen participation, and delivery of essential services at the local level.

MAJOR COMMITTEES ON LOCAL SELF GOVERNMENT IN INDIA

Year	Committee Name	Key Recommendation
1957	Balwant Rai Mehta Committee	Recommended 3-tier Panchayati Raj System
1978	Ashok Mehta Committee	Recommended 2-tier system (Zilla Parishad and Mandal Panchayat)
1985	G.V.K. Rao Committee	Strengthening planning and administrative role of PRIs
1986	L.M. Singhvi Committee	Recommended constitutional status for Panchayati Raj
2001	H.K. Patil Committee (Karnataka)	Suggested greater devolution to local bodies
2007	Second Administrative Reforms Commission, Report on Local Governance	Emphasized effective decentralization and role clarity between tiers

FUNCTIONS OF LOCAL SELF GOVERNMENT IN INDIA

- **Common Functions:** Both rural and urban bodies manage basic amenities (water, sanitation, waste), health, education, welfare schemes, roads, and disaster relief.
- **Panchayati Raj (Art. 243G):** Focus on rural development (e.g., MGNREGA), agriculture promotion, and social justice via Nyaya Panchayats.
- **Municipalities (Art. 243W):** Handle urban planning, housing, slum improvement, transport, and trade regulation

Role of Local Bodies and Pros & Cons of Merging Rural and Urban Local Bodies **(UPSC 2024)**

Role of Local Bodies in Providing Good Governance:

- **Decentralised Decision-Making:** Article 243G empowers Panchayats for autonomous local governance. Eg: Maharashtra's Gram Panchayats in Jalyukt Shivar Abhiyan.
- **Enhanced Community Engagement:** Article 243A enables Gram Sabhas for participatory decision-making. Eg: Kerala's Gram Sabhas in local budgeting.
- **Inclusion of Marginalised Sections:** Article 243D ensures seat reservations for women and SC/STs. Eg: 45.6% PRI members are women (2024 RBI Report).
- **Resource Management:** Panchayats manage natural resources under Article 243G.
- **Service Delivery Localization:** Municipalities (Article 243W) manage health, education, and local services.

Pros of Merging Rural and Urban Local Bodies	Cons of Merging Rural and Urban Local Bodies:
❖ Integrated development and balanced regional growth. ❖ Cost reduction through elimination of redundancies. ❖ Fair resource distribution across regions. ❖ Improved efficiency in service delivery.	❖ Rural needs may be neglected due to urban focus. ❖ Rural political representation could weaken. ❖ Funds may be skewed towards urban areas. ❖ Complexities in aligning regulatory frameworks.

GOVERNMENT EFFORTS FOR EMPOWERING PRI

- **Property Rights:** SVAMITVA Scheme ensures rural property ownership through drone-based mapping and records.
- **Capacity Building (RGSA):** Rashtriya Gram Swaraj Abhiyan strengthens PRI capacities via training and institutional support.
- **Digital Governance:** e-Gram Swaraj enhances transparency, accountability, and monitoring of Panchayats.
- **Participatory Planning:** Gram Panchayat Development Plan promotes bottom-up planning with people's participation.
- **Capacity Building (CB-PSA):** Capacity Building Panchayat Sashaktikaran Abhiyan trains elected representatives for effective planning and implementation.

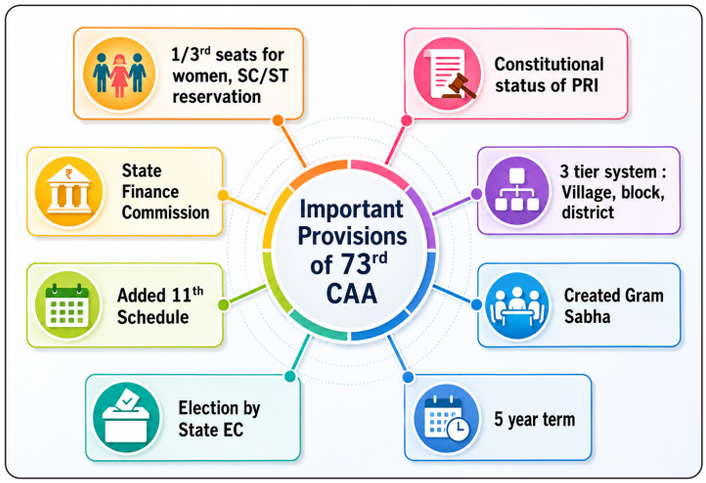


Fig. 14.1: Important Provision of 73rd CAA

Knowledge Nuggets

The "Panchayat Devolution Index" (February 2025)

The Ministry of Panchayati Raj released a landmark report titled "Status of Devolution to Panchayats in States – 2024."

- **Ranking:** States were ranked based on how much power they actually shifted to local bodies across six dimensions (Finances, Functions, Functionaries, etc.).
- **Highlights:** Karnataka maintained a leadership position, while Uttar Pradesh showed significant improvement in empowering local officials.

ISSUES AND CHALLENGES FACED BY PANCHAYATI RAJ INSTITUTIONS

The Economic Survey 2017-18 highlighted the **"low equilibrium trap"** faced by **Panchayati Raj Institutions (PRIs)**. It noted that **decentralization has not translated into actual devolution**, as panchayats often lack **funds, functions, and functionaries**. This limits their effectiveness, reinforcing a cycle where weak performance leads to low trust and further neglect by higher levels of government.

1. **Funds-Related Challenges:**
   - **Inadequate Funds:** Dependency on state devolutions; own fund base is weak.
   - **Limited Revenue Powers:** Hesitancy in levying or revising local taxes.
   - **State Finance Commissions (SFCs):** Delay in constitution; 15th FC mandated after March 2024, no grants shall be released to State that has not complied with the Constitutional provisions in respect of the SFC.
   - **Reluctance to Tax Locals:** PRIs avoid taxing locals to maintain popularity.
2. **Functions-Related Challenges:**
   - **Poor Devolution of Powers:** Key functions like water and sanitation still handled by state departments.
   - **Weak District Planning Committees (DPCs):** Not functionally empowered in most states.
   - **Token Representation of Women:** 50% reservation exists, but many women serve as proxies for male relatives.
3. **Functionaries-Related Challenges:**
   - **Low Manpower:** Staff is inadequate; many are on deputation from higher departments and lack local accountability.
   - **Lack of Accountability Mechanisms:** Weak audit and transparency systems; 15th FC mandated online disclosure of accounts.
   - **Delayed Elections:** Frequent delays weaken grassroots democracy (e.g., MP, Haryana, TN).
   - **Political Interference:** Increasing politicization; PRIs function as extensions of state-level political parties.

Note: As per RBI Report 2024 & 2nd ARC on 3Fs: Functions, Funds, Functionaries challenges faced by local bodies in India.

Strength of Local Institutions Shifted from their Formative Phase of 'Functions, Functionaries and Funds (UPSC 2020)

Strength and Sustenance of Local Institutions:

- **Functions:** PRIs (29 subjects) and ULBs (18 subjects) handle areas like health, education, and rural development.
- **Functionaries:** Elected representatives and administrative staff ensure decentralized decision-making.

- **Funds:** Financial resources come from Central and State Finance Commissions, plus local revenue sources (property taxes, user charges).

Shift to Contemporary Stage:

- **Outcome-Based Governance:** Focus on measurable results. *Eg*: Indore's waste management model.
- **Technology-Driven Service Delivery:** Digital tools enhance transparency and efficiency.

  Eg: eGramSwaraj for record-keeping and citizen engagement.
- Participatory Decision-Making: Gram Sabhas involve citizens in planning and social audits.

Critical Challenges:

- **Limited Fiscal Autonomy:** Dependence on state and central transfers limits local initiative.
- **Delayed Funds:** Finance Commission grants are often delayed, reducing autonomy.
- **Capacity Deficit:** Lack of training for elected representatives affects effective governance.
- **Bureaucratic Hurdles:** Excessive approvals delay development.
- **Gender and Social Disparities:** Proxy leadership undermines women's participation despite reservations

Finances Mechanisms of Panchayats and Municipality

- **Grants:** By Centre (Article 280) and State Government
- Devolution from State Government based on State FC.
- **Loans:** From State Government
- Internal Resource Generation (tax and non-tax)
- **Programme-Specific Allocation:** Under Centrally Sponsored Schemes and Additional Central Assistance.

Importance of the Panchayat System (UPSC 2018)

- **Democratic Decentralization:** Panchayats bring governance closer to citizens, encouraging self-rule and participation.
- **Local Administration:** Manage essential services like roads, sanitation, and water supply, ensuring efficient delivery.
- **Revenue Collection:** Collect local taxes, fees, and fines to fund development activities.
- **Rural Development:** Implement programs like MGNREGA and PM Awas Yojana at the grassroots level.
- **Disaster & Resource Management:** Play a key role in disaster relief and local resource management.
- **Boosting Rural Economy:** Support self-employment, SHGs, and entrepreneurship.

  Eg: The Lijjat Papad SHG became a nationwide success.
- **Alternative Financing Sources for Panchayats:**
  - **Own Tax Revenue:** Improve property, profession, and entertainment tax collection.
  - **Non-Tax Revenue:** Fees from services like markets, sanitation, and licenses.
  - **CSR Funds:** Utilize corporate social responsibility funds for rural projects.
  - **Asset Monetization:** Lease or commercialize vacant land and community assets.
  - **External Borrowing:** Access loans or bonds for capital projects with state approval.
  - **Government Incentives:** Link grants to performance metrics like e-governance.

Way Forward

- **Capacity Building:** Offer regular training to enhance skills of Panchayat members.
- **Technological Integration:** Use digital platforms for financial transparency and monitoring.
- **Policy Reforms:** Simplify procedures for loans and collaborations with private sectors.
- **Strengthening Accountability:** Establish audit mechanisms and citizen feedback systems.
- **Sustainable Financing:** Explore municipal bonds and crowd-funding for community projects.
- **Fiscal Federalism in True Spirit:** The 2nd ARC had recommended that there should be a clear-cut demarcation of functions of each tier of the government. The Fifteenth Finance Commission (XV FC) in its interim report for 2020-21 and final report for 2021- 2026 recommended an amount of Rs. 60750 crore and Rs. 236805 crore respectively for all three tiers of panchayats.

16th Finance Commission:

- **The government recently outlined grants for the 2026–2031 period:** ₹4.35 lakh crore has been recommended for Rural Local Bodies.
- **Performance Grants:** A significant portion is now "tied" to performance, meaning local bodies must prove they are improving service delivery and transparency to get full funding.
- **Financial Empowerment:** Panchayats need to be empowered to levy and collect taxes, tolls, user charges, fees, etc., along with other activities to enhance their Own Source of Revenue.

Digital Governance:

- **Digital Panchayats (e-Governance):** eGramSwaraj is a work-based accounting application for PRIs to improve planning and financial management. eGramSwaraj-PFMS Interface (launched 2018) integrates with Public Financial Management System for online payments, transparency, and accountability.
- **Smart Gram Panchayat Initiative:** Smart Gram Panchayat aims to digitize rural governance using connectivity solutions. Uses PM-WANI to expand Wi-Fi access in Gram Panchayats. Promotes digital inclusion, better service delivery, and reduced rural-urban digital divide.

Some Important Facts:

1. **Digital Adoption:** As of March 2026, over 96% of Gram Panchayats (approx. 2.54 lakh) have uploaded their development plans online via the eGramSwaraj platform.
2. **Property Cards:** Under the SVAMITVA scheme, drone mapping reached a milestone in December 2025, with over 2.76 crore property cards generated for rural homeowners, providing them with legal "Records of Rights."
3. **Payment Transparency:** Nearly 92% of Panchayats now process all payments through the digital PFMS (Public Financial Management System), reducing corruption.

ROLE OF WOMEN IN PANCHAYATI RAJ INSTITUTION

For women, almost one-third of all constituencies have been set aside. Additionally, it promotes and guarantees women's involvement in public life. It aims to develop a fundamentally sound national policy for women.

Impact of Women's Reservation in Local Self-Government Institutions (UPSC 2019)

Positive Outcomes and Empowerment:

- Women become more powerful and have their economic, social, and political status in society elevated with the implementation of the reservation system in Panchayati raj institutions.
- **Higher Representation:** Reservation has increased women's participation in local governance.

  Eg: 46% of Panchayat seats held by women (MoPR, 2022).
- **Better Governance Focus:** Women prioritize issues like education, healthcare, and sanitation.
- **Inspiring Political Aspirations:** Grassroots leadership encourages more women to contest elections. (Panchayat se Parliament 2.0 Initiative)
- **Gender-Sensitive Policies:** Women leaders push for social welfare policies. Eg: Anti-liquor movements and gender budgeting in Kerala.

Limited Impact on the Patriarchal Character of Indian Politics:

- **'Sarpanch Pati' Syndrome:** Women often act as proxies, with real power held by male relatives.
- **Lack of Decision-Making Power:** Women face resistance from male bureaucracies and social norms.
- **Limited Political Pipeline:** Women are underrepresented in state and national politics.

  Eg: Lok Sabha women's representation is 13.6% (2024).
- **Socio-Cultural Barriers:** Patriarchal norms restrict women's mobility and governance roles.
- **Gendered Violence & Harassment:** Women face intimidation and threats, deterring political participation.

Contribution of Women in Panchayati Raj Institutions: Empowerment and Leadership

1. **Supreme Court Judgment (2024):** The Court addressed gender bias, particularly the removal of female Sarpanches, emphasizing the need to uphold women's authority in local governance.
2. **Women Panchayat Leaders at UN (2024):** Indian women Panchayat leaders showcased their leadership at the United Nations, focusing on their transformative work in local governance.
3. **Women in Haryana and Rajasthan:**
   - **Chhavi Rajawat (Rajasthan)**: A Harvard-educated Sarpanch, Rajawat is known for her efforts in transforming rural Rajasthan through initiatives focused on education, healthcare, and infrastructure development.
   - **Suranlekha (Haryana)**: A prominent woman leader from Haryana, Suranlekha has led her Panchayat by promoting women's rights, better sanitation, and community welfare.

Proxy Representation In Panchayati Raj Institutions

- Recently an advisory committee submitted a report titled "Transforming Women's Representation and Roles in Panchayati Raj Systems and Institutions: Eliminating Efforts for Proxy Participation" to the Ministry of Panchayati Raj, recommending strict penalties for male relatives who unlawfully exercise power on behalf of elected women representatives.
- Additionally, the Ministry launched the "Sashakt Panchayat Netri Abhiyan," featuring digital content like "Asli Pradhan Kaun?" to raise awareness and promote genuine women leadership at the grassroots level

EDUCATIONAL QUALIFICATION CRITERIA FOR PANCHAYAT AND ULB POLLS

Rajasthan government proposed educational qualification criteria for Panchayat and ULB polls, reflecting debates on electoral reforms and governance quality at the grassroots.

Pros

- Improved governance quality: Minimum education may help elected representatives better understand schemes, budgeting, and administration.
- Better decision-making: Can enhance efficiency in planning, record-keeping, and use of digital governance tools.
- Reduced proxy politics: May discourage dummy candidates in some cases and improve accountability.

Cons

- Against democratic inclusion: Violates the spirit of universal adult suffrage and equality by excluding large sections of rural and marginalised population.
- No guarantee of good governance: Education alone does not ensure integrity, leadership, or commitment to public service.
- Risk of elite capture: May favour already privileged groups, weakening grassroots representation and social justice.

THE MUNICIPALITIES

Recently, the Capacity Building Commission (CBC) in collaboration with MoHUA organized a National Workshop on Capacity Building of ULBs to foster a unified approach to capacity building ULBs across India.The Workshop marked the launch of key initiatives, i.e.,

- Annual Capacity Building Plan (ACBP) to enhance the capabilities of MoHUA.
- ACBP for 6 pilot ULBs i.e. Ahmedabad, Bhubaneswar, Mysuru, Rajkot, Nagpur, and Pune

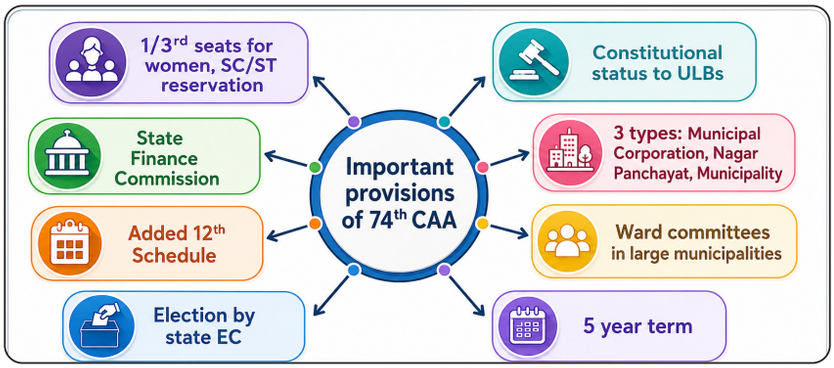


Fig. 14.2: Important Provision of 74th CAA

Municipal Corporations

- Municipal Corporations, the apex urban local bodies in India responsible for governance in large cities, were in focus in November 2024 due to civic issues and administrative delays in cities like Delhi and Mumbai. These bodies manage urban infrastructure, sanitation, water supply, and public health.
- In its 2023-24 report on municipal finances, the Reserve Bank of India (RBI) highlighted that Indian municipalities generated only 0.6% of the GDP in revenue—substantially lower than the central government's 9.2% and state governments' 14.6%.
- This stark gap reflects the severe fiscal constraints faced by Urban Local Bodies (ULBs), limiting their capacity to drive urban infrastructure and service delivery. The data underscores an urgent need for comprehensive fiscal decentralization and financial empowerment of ULBs to ensure effective urban governance and sustainable development.

The VB-G RAM G Act, 2025

- In early 2025, the Viksit Bharat-Guarantee for Rozgar and Ajeevika Mission (Gramin) Act replaced the old MGNREGA.
  1. **Increased Guarantee:** It raised the guaranteed employment from 100 to 125 days per year.
  2. **Local Planning:** It mandates that all projects must be planned through "Viksit Gram Panchayat Plans," giving local bodies more control over building durable assets like water security and climate-resilient infrastructure

Impact of Local Self-Government

- **Decentralisation of Power:** Local self-governance enables decision-making at grassroots level, improving policy relevance.
- **Community Participation:** Ward Committees provide a platform for citizens to voice concerns and suggest improvements.
- **Effective Service Delivery:** Village Panchayats ensure better delivery of services like water supply and sanitation.
- **Grassroots Development:** District Planning Committees prepare need-based district development plans.

Do you know?

Urban Local Bodies (ULBs) in India significantly contribute to the national Gross Domestic Product (GDP), with cities contributing over 60% of India's GDP, despite occupying only 3% of the country's land.

❖ **Empowerment of Marginalised:** Reservation for SCs, STs, and women ensures inclusive participation and representation.

Reluctance of States to Empower Urban Local Bodies (ULBs) Functionally **(UPSC 2023)**

❖ **Decentralization Issues:** States hesitant to devolve real powers; ULBs lack autonomy. Eg: ULBs often lack financial and administrative control.
❖ **Manpower Shortage:** Lack of skilled personnel affects urban management.
❖ **Parallel Structures:** SPVs under Smart Cities Mission bypass ULBs in planning and execution.
❖ **Waste Management Challenges:** Limited authority leads to inefficiencies. Eg: Deonar dumping ground crisis, Mumbai.

Reluctance to Empower ULBs Financially:

❖ **Dependence on Grants:** Heavy reliance on state/central grants causing instability.
❖ **Financial Mismanagement:** Misuse of funds. Eg: Gurugram Municipal Corporation corruption case (2022).
❖ **Weak State Finance Commissions:** Few functional commissions to support ULB funding.
❖ **Limited Property Tax Powers:** States restrict ULBs' autonomy. Eg: Karnataka's restrictions on property tax rates.
❖ **Limited Bond Market Access:** Few ULBs like Pune use municipal bonds successfully.
❖ **GST Compensation Issues:** Post-GST, ULB revenues shrank, causing financial strain.

Necessity of Empowering ULBs:

❖ Enables efficient governance and service delivery.
❖ Improves policy execution of urban programs.
❖ Promotes financial self-sufficiency.
❖ Strengthens citizen-centric, transparent administration

Issues and Solutions in Municipalities

Issue	Solution
Lesser Functional Autonomy of ULB	Encourage the transfer of 12th Schedule functions, funds, and functionaries to ULBs by state governments.
Low Revenue Generation	Strengthen property tax collection through better land records, valuation techniques, and reduce exemptions.
Concentration of Power	Decentralize power within urban bodies and ensure broader representation of different sectors.
Poor Link with Urban Citizens	Promote enhanced citizen participation, activating Ward Committees and area sabhas, and using technology for feedback.
Lack of Economic Integration	Establish City Economic Councils in larger cities to streamline business-government interactions and boost investments.
Weak Financial Systems	Strengthen ULB finances through fiscal decentralization, PPPs, market-oriented revenue models, and better financial accountability.
Untimely elections	Despite the SC-specific direction in Suresh Mahajan v. State of Madhya Pradesh (2022) State governments do not hold timely elections. Hence, elections should be conducted timely to strengthen Indian democracy.

Measures taken for capacity building of ULBs

❖ **National Urban Digital Mission:** It aims to create a shared digital infrastructure working across three pillars of 'People, Processes and Platform' to provide a framework for digital governance in the country.
❖ **Jawaharlal Nehru National Urban Renewal Mission (JNNURM):** Focuses on efficiency in urban infrastructure and service delivery mechanisms, community participation, and accountability of ULBs/ Parastatal agencies towards citizens.
❖ Urban Local Bodies in Bihar reported revenue crossing ₹908 crore in FY 2025-26, indicating improved financial performance and revenue mobilisation at the local level important for service delivery and urban governance reforms.
❖ The Assam CM handed over appointment letters to urban technical officers, boosting technical manpower for urban infrastructure and services relevant to capacity building in urban local bodies using Unified Municipal Portal.
❖ **Municipal Bonds:** These are financial instruments that municipal corporations and other associated bodies in India issue to raise funds. Example: In 2017, **Pune** became the first city after SEBI's 2015 guidelines to successfully issue municipal bonds.

- According to a recent ICRA report, over ₹2,600 crore has been raised since FY2018, reflecting rising investor confidence and government push for urban financial reforms. With FY2025–26 projections crossing ₹1,500 crore, municipal bonds are emerging as a key tool for empowering cities financially.

Decentralization of Power in India Changed the Governance Landscape at the Grassroots (UPSC 2022/2017)

Impact of Decentralization on Grassroots Governance:

- **Empowerment of Local Institutions:** PRIs and ULBs now constitutionally empowered for local decision-making. *Eg*: Improved primary education and health services.
- **Increased Citizen Participation:** Boosts accountability and inclusivity in governance.
- **Better Welfare Scheme Implementation:** Local bodies align schemes with regional needs.
- **Faster Resolution of Local Issues:** Quick response on sanitation, water, and infrastructure. *Eg*: Zero Waste Initiative, Alappuzha, Kerala.
- **Strengthened Local Economy:** Supports SHGs, cooperatives, and rural livelihoods. *Eg*: Kudumbashree program, Kerala.

Persisting Challenges:

- **Financial Dependence:** PRIs and ULBs rely heavily on grants.
- **Political and Bureaucratic Interference:** Reduces local autonomy.
- **Capacity Deficit:** Lack of administrative and technical skills among representatives.
- **Social and Gender Barriers:** Marginalized groups and women face participation hurdles.
- **Weak Accountability:** Corruption and poor transparency persist.

Key Words

Panchayat pati raj system, Capacity Building Commission, State Finance Commission, Decentralization of Power, Community Participation, Ward Committees, District Planning Committees, Functional Autonomy, City Economic Councils, value capture techniques, medium-term fiscal plans, Open Cities Framework.

Previous Year Questions	Year
1. Analyse the role of local bodies in providing good governance at local level and bring out the pros and cons of merging the rural local bodies with the urban local bodies.	2024
2. The states in India seem reluctant to empower urban local bodies both functionally as well as financially." Comment.	2024
3. To what extent, in your opinion, has the decentralization of power in India changed the governance landscape at the grassroots?	2022
4. The strength of local institutions in India has shifted from their formative phase of 'Functions, Functionaries and Funds to the contemporary stage of 'Functionality'. Highlight the critical challenges faced by local institutions in terms of their functionality in recent times.	2020
5. "The reservation of seats for women in the institution of local self-government has had a limited impact on the patriarchal character of the Indian political process". Comment.	2019
6. Assess the importance of the Panchayat system in India as a part of local government. Apart from government grants, what sources can the Panchayats look out for financing developmental projects?	2018
7. "The local self-government system in India has not proved to be an effective instrument of governance". Critically examine the statement and give your views to improve the situation.	2017
8. In the absence of a well-educated and organized local level government system, `Panchayats' and 'Samitis' have remained mainly political institutions and not effective instruments of governance. Critically discuss.	2015
9. Many State Governments further bifurcate geographical administrative areas like Districts and Talukas for better governance. In light of the above, can it also be justified that smaller States would bring in effective governance at State level? Discuss.	2013

15 Comptroller and Auditor General of India

The Comptroller and Auditor General (CAG), appointed under Article 148 of the Indian Constitution, plays a crucial role in ensuring transparency and accountability in government finances. The CAG's independence is safeguarded by a fixed tenure of six years or until the age of 65, with removal only through a special parliamentary resolution. The CAG audits Union and State government finances, submits reports to the President or Governor, and ensures legal compliance by disallowing improper expenditures. It also sets accounting standards and advises the government on public finance matters, making it essential for fiscal responsibility and good governance. **(UPSC 2018)**

DUTIES AND POWER OF CAG

These are laid down by the Parliament in the CAG (Duties, Powers and Conditions of Service) Act, 1971.

CAG Audits following Government Accounts	Constitutional Provisions For CAG
❖ Central government expenditure from the Consolidated Fund of India (CFI), Contingency Fund of India, and the Public Account of India. ❖ State government and UT's (with a legislative assembly) expenditures from the Consolidated Fund of the state, the Contingency fund of the state, and the public account of the state. ❖ Central and state government departments: All trading, manufacturing, profit & loss accounts, balance sheets, and other subsidiary accounts. ❖ Bodies substantially financed from the Central or state revenues. ❖ Government companies.	❖ **Article 148**: broadly deals with appointment, oath and conditions of service of the CAG. ❖ **Article 149:** CAG shall perform such duties and exercise such powers as may be prescribed by or under law by Parliament. ❖ **Article 150**: It advises the President about the prescription of the form in which the accounts of the union and the states shall be kept. ❖ **Article 151**: Reports of the CAG relating to the accounts of the Union shall be submitted to the President, who shall cause them to be laid before each House of Parliament. ➢ Similarly, reports of the CAG relating to the states shall be submitted to the Governor of the state who shall cause them to be laid before the state legislature. ❖ **Acts as a guide, friend, and philosopher** of the Public Accounts Committee of the Parliament.

In India	In Britain
❖ India's CAG is "comptroller" only in name as it only performs an auditing role. ❖ The audit is done only after the expenditure is made. I.e. only an Ex-post facto audit is done. ❖ CAG is not a member of the Parliament.	❖ CAG performs the role of both; auditor and controller. ❖ No money can be withdrawn by the public exchequer without CAG's approval. ❖ CAG is a member of the House of Commons.

Independence of CAG

❖ **Salary and other service conditions:** Determined by the Parliament and the same cannot be altered to the disadvantage of the CAG after his/her appointment.

❖ **Expenses:** The administrative expenses of the office, salaries, allowances, and pensions are charged upon CFI.

❖ **Administrative powers:** Conditions of service of people serving in the Indian Audit and Accounts Department (whose head is the CAG) and the administrative powers of the CAG are prescribed by the President after consultation with the CAG.

❖ **Security of tenure:** Appointed by the President by warrant under his hand and seal. He has a tenure of 65 years or 6 years whichever is earlier.

❖ **Removal:** By the President under the same procedure as a Supreme Court judge can be removed.

❖ **Post-retirement office:** Not eligible for further office under both; Central or State Government.

❖ **No minister can represent the CAG:** in the Parliament (both Houses) and no minister can be called upon to take any responsibility for any actions done by him.

Role of CAG in Ensuring Legality and Propriety of Expenditure **(UPSC 2024)**

Ensuring Legality of Expenditure:

1. **Constitutional Mandate:** CAG audits expenditures from the Consolidated Fund of India, ensuring legal compliance under Article 266.
2. **Audit Reports:** CAG publishes annual reports on financial and operational integrity.
3. **Compliance with Laws:** Ensures government transactions adhere to legal requirements (e.g., GST compliance audit).
4. **Financial Oversight:** CAG detects mismanagement, like in the Commonwealth Games (2010) procurement irregularities.
5. **Public Accountability:** Findings are reviewed by the Public Accounts Committee (e.g., 2G spectrum case).

Ensuring Propriety of Expenditure:

1. **Value for Money Audits:** Ensures government programs deliver value (e.g., Clean Ganga Mission audit).
2. **Transparency in Spending:** CAG promotes transparency by publishing audit results (e.g., Delhi Metro Rail audit).
3. **Advisory Role:** Provides policy advice (e.g., Railway Board fare pricing recommendations).
4. **Safeguarding Public Interest:** Ensures PSUs are managed efficiently (e.g., Air India audit).
5. **International Standards:** Adheres to global audit practices.

CAG's Role in Auditing Policy Implementation and Overstepping **(UPSC 2016)**

Arguments Against CAG Overstepping:

1. **Separation of Powers:** CAG's role is limited to financial audits, not policy evaluation, which falls under the executive's domain.
2. **Political Neutrality:** Scrutinizing policy could lead to accusations of political bias (e.g., CAG's spectrum allocation report).
3. **Alternative Oversight:** Bodies like PAC, CVC, and Lokpal are more suited for policy review.
4. **Administrative Delays:** Excessive scrutiny could hinder decision-making efficiency.
5. **Judicial Precedents:** Courts have confined CAG's role to auditing finances, not policy (e.g., Association of Unified Telecom Service Providers case).

Arguments Supporting CAG's Role:

1. **Performance Audit Mandate:** CAG can assess the efficiency of government schemes.
2. **Ensuring Accountability:** Public funds must be scrutinized to align outcomes with goals.
3. **Constitutional Mandate:** Article 149 allows CAG to audit efficiency, effectiveness, and economy.
4. **Prevention of Mismanagement:** CAG audits deter corruption and wasteful expenditure (e.g., PDS audit).
5. **Impact on Policy:** CAG's findings can guide better policy design

Limitation of Office of CAG

- **Appointment:** The appointment of CAG is the complete discretion of the executive which limits its role of holding the executive accountable.
- **The auditor general and not comptroller:** Its report is post-facto, i.e. it can audit expenditures only when they are done.
- **Limited usefulness:** Auditors know what is auditing, and not administration; it is a highly pedestrian function with a narrow perspective and very limited usefulness.
- **Exceeding mandate:** It has been criticized for exceeding the mandate sometimes. For E.g. reports on 2G and coal block allocations had outlandish or sensational figures of losses or corruption.
- **Limited resources:** Shortage of manpower and increment in responsibility results in very few accounts actually being audited annually.
- **Discourage risk-taking:** CAG while looking into the 'wisdom, faithfulness, economy' of policy, may not consider practical problems of administration.
- **Independence:** Conflict of interest arises as former secretaries (usually IAS) are appointed as CAG which compromises the independence of the institution.
- **Secret expenditure**: CAG cannot ask for particulars of expenditure in some matters and has to accept a certificate from the competent administrative authority.
- **Intentional obstruction in audits**: Delayed supply of crucial documents to the auditors and sometimes even that is denied.
- **No Defined Qualifications:** There are no legally or constitutionally mandated eligibility requirements for the CAG's appointment.
- **Unrecognised Personnel:** The legal status of the Indian Audit and Accounts Department's staff is not formally established by statute.

Key Findings of Recent CAG Reports (2022–2024)

- **Railways (2022):** Highlighted a sharp fall in passenger earnings and inefficiencies in freight operations and asset utilization.
- **Smart Cities Mission (2023):** Flagged delays in project implementation and underutilization of funds across several cities.
- **Swachh Bharat Mission (2023):** Exposed ghost beneficiaries and incomplete infrastructure like toilets and waste systems.
- **National Health Mission:** Found gaps in fund utilization, shortfall in health infrastructure, and poor monitoring.
- **Rural Road Development (PMGSY):** Reported delays in road completion, quality issues, and inflated progress reports.
- A recent (2026) audit by the Comptroller and Auditor General of India (CAG) has revealed that nearly half of the lakes in Jammu and Kashmir have disappeared since 1967, raising concerns about a growing ecological crisis in the region.
- In a December 2025 report to the UP Assembly, the CAG flagged massive financial mismanagement and poor implementation of the DDUGJY and SAUBHAGYA schemes, leading to losses totaling thousands of crores."
- **MGNREGS:** Identified payment delays, Aadhaar-related exclusions, and mismatches in job demand and supply.
- **Ayushman Bharat (2023):** Flagged fake beneficiaries, cashless service violations, and failure to meet HWC targets.

CAG State Finances Audit Report (FY 2023-24)

- Fiscal Stress & Debt Levels: State financial health is under significant pressure, with total debt reaching ₹67.87 lakh crore (23% of GSDP).
- Notably, 18 states breached the 3% fiscal deficit limit set by the 15th Finance Commission, indicating a widespread struggle to maintain fiscal discipline.
- Structural Rigidities & Dependency
- Frozen Budgets: "Fiscal space" for new development is disappearing, as 60% of revenue is consumed by committed costs (salaries, pensions, and interest).
- Central Reliance: States now depend on the Union for 30% of their revenue (up from 21% a decade ago), making local budgets highly vulnerable to national economic volatility.

Imbalanced Spending & "Shadow" Accounting

- **Consumption vs. Growth:** Spending is heavily skewed toward daily operations (83%) rather than asset building (16%). In states like Punjab and Andhra Pradesh, debt is being used for survival (daily expenses) rather than investment.
- **Transparency Gaps:** The CAG flagged "Shadow Budgeting," where misclassification of funds obscures the true depth of financial distress.
- **Recommendation:** To eliminate reporting discrepancies, the CAG has ordered a universal standardization of expenditure classifications across all states, to be fully implemented by FY 2027-28.

Key Words

First-mile' Connect, Delimitation Commission, bulwarks of the democratic system of government, Contingency Fund of India, philosopher of the Public Accounts Committee, warrant under his hand and seal, Indian Audit and Accounts Department,'wisdom, faithfulness, economy' of policy.

Previous Year Questions	Year
1. The duty of the Comptroller and Auditor General is not merely to ensure the legality of expenditure but also its propriety." Comment.	2024
2. "The Comptroller and Auditor General (CAG) has a very vital role to play." Explain how this is reflected in the method and terms of his appointment as well as the range of powers he can exercise.	2018
3. Exercise of CAG's powers in relation to the accounts of the Union and the States is derived from Article 149 of the Indian Constitution. Discuss whether an audit of the Government's Policy implementation could amount to overstepping its own (CAG) jurisdiction.	2016

16 NCSC, NCST and NCBC

- The National Commissions for Scheduled Castes (NCSC), Scheduled Tribes (NCST), and Backward Classes (NCBC) are constitutional and statutory bodies established to safeguard the rights and promote the welfare of historically marginalized communities.
- The 89th Constitutional Amendment Act, 2003 bifurcated the former National Commission for Scheduled Castes and Scheduled Tribes into two separate bodies: the NCSC and the NCST.

GENERAL FUNCTIONS OF NCSC/NCST/NCBC

- **Investigate and monitor** all matters concerning constitutional and other legal safeguards for SC, ST and OBC communities.
- **Inquire into specific complaints** wrt the deprivation of rights of the SC, ST and the OBCs.
- **Participate and advise** on the planning aspect wrt socio-economic development and evaluate the progress under the Union or a state.
- **Send Annual reports** to the President upon the working of safeguards for the SC, ST and OBC communities.
- **Recommend measures** to the Union and the states for the effective implementation of safeguards and measures for the protection, welfare, and socio-economic development of these sections.
- **Online complaints**: Complaints of atrocities against SC can now be registered with the NCSC via its online portal.
- **Special courts**: A key monitoring activity performed by the Commission relates to the setting up of special courts for the speedy trial of offences committed under the Civil Rights Act and the Prevention of Atrocities Act.
- **Collect Statistics**: And comments on the statistics pertaining to cases under the Protection of Civil Rights Act, 1955 and the Scheduled Castes and the Scheduled Tribes (Prevention of Atrocities) Act, 1989.
- **Law implementation**: These commissions monitor the implementation of the various legal provisions in force for the welfare and protection of the SC, ST and OBC communities.

SPECIFIC FUNCTIONS OF NCST

- **Conferring ownership** rights of minor forest produce (MFP) to STs living in forest areas.
- **Measures for the development of tribals** and to work for more viable livelihood strategies.
- **Seek Cooperation and involvement** of tribals in the protection of forests and undertaking social afforestation.
- Take measures to ensure full implementation of PESA,
- **Safeguard the rights** of the tribal communities over different resources like- water resources, mineral resources etc. as per the law.
- **Improve the efficacy** of rehabilitation measures taken for the tribals displaced by development projects.
- Take measures to reduce and ultimately eliminate the practice of shifting cultivation by tribals.

LIMITATIONS OF CONSTITUTIONAL BODIES TO PROTECT VULNERABLE SECTIONS

- **"Toothless Tigers" Syndrome:** Despite having the powers of a Civil Court (summoning, evidence on oath), the commissions' recommendations remain advisory. Governments are not legally bound to implement them, only to explain why they didn't in a memorandum.
- **Administrative Dependence:** Commissions rely on the very Ministries they are supposed to monitor for their budget and staffing.
- **Reactive vs. Proactive:** Use of suo motu powers (acting on their own) has dropped. In 2024-25, less than 5% of cases were taken up without a formal complaint.
- **The "Sub-Classification" Challenge:** Post the August 2024 SC Verdict, the Commissions now face the massive task of helping states generate "empirical data" to justify sub-quotas for Madigas (Telangana), Valmikis (Punjab), etc.

Role of NCSC in Reservation of SC in Minority Institutions **(UPSC 2018)**

The National Commission for Scheduled Castes (NCSC) plays a key role in protecting the rights of Scheduled Castes (SCs) in India but faces limitations in enforcing reservation in religious minority institutions due to constitutional provisions.

Constitutional Provisions for Reservation:

- **Social Justice Mandate:** Articles 15(4), 15(5), and 16(4) provide reservations to SCs, promoting equality.
- **Reservation in Public Employment:** Article 16(4A) extends reservation to promotions for SCs/STs.

Reservation in Minority Institutions:

- **Exemption from Reservation:** Article 15(5) excludes minority institutions from implementing SC, ST, and OBC reservations.
- **Right to Establish Institutions:** Article 30(1) grants minorities autonomy in managing educational institutions, free from state-imposed reservations.

NCSC's Role and Limitations:

- **Advisory Role:** NCSC can investigate and monitor SC welfare but cannot enforce policies in minority institutions.
- **Autonomy vs. Affirmative Action:** The conflict between minority rights and affirmative action is a legislative matter, beyond NCSC's authority.
- **Legal Precedents:** The Supreme Court supports the autonomy of minority institutions under Article 30(1), exempting them from mandatory reservations.

102ND CONSTITUTIONAL AMENDMENT ACT

- **It added a new Article 338-B,** which granted constitutional status to NCBC.
- It enlarged the functions of NCBC to safeguard the interests of the socially and educationally backward classes more effectively. **(UPSC 2022)**

Positives of Granting Constitutional Status	Concerns that Remain
❖ **Giving more teeth:** Constitutional status increases the stature of NCBC as a constitutional body will be better placed to ensure the welfare of BCs. ❖ **Greater objectivity:** Article 342A makes it mandatory to take the Parliament's concurrence for adding or deleting any community in the backward list. ➢ The misuse of creamy criteria by certain sections will be reduced. ❖ **Annual report:** The constitution obliges central and state governments to provide valid reasons for not acting on the report of the committee. ❖ **Grievance redressal:** NCBC will have an exclusive function with all power of civil courts; enabling it to ensure justice for backward classes. ❖ **Wider responsibility:** NCBC with an additional scope can look beyond reservation, to ensure holistic development and advancement.	❖ **Non-binding recommendation:** This may lead to reduced priority towards the report of NCBC and its budget allocations. ❖ **No power to define:** NCBC has no authority to define "backwardness". Hence, it cannot address the demands of various castes to be included as BCs. ❖ **Composition:** No exclusive provision for the appointment of experts in the body and leaves it to the discretion of the executive without any mention of qualification. ❖ **Revision of BC list:** Article 338B (5) is silent on the periodic revision of the BC list and the role played by NCBC. ❖ **Multi-dimensional challenges:** Mere constitutional status can't solve diverse issues like skewed representation and cornering of benefits by few BC castes, etc. ❖ **No link with Art 340:** Article 340 ensures the welfare and protection of BCs have not been linked with Article 338B. ❖ **Increased Workload:** Expanded powers bring a heavier workload, with limited resources affecting efficiency (e.g., backlog of OBC inclusion/exclusion cases). ❖ **Implementation Delays:** Bureaucratic delays hinder the implementation of NCBC's recommendations. ❖ **Legal Scrutiny:** NCBC decisions face judicial challenges, causing delays (e.g., Supreme Court's ruling on Maharashtra's OBC reservations).

ISSUES FACED BY COMMUNITIES

- **Increased atrocities:** Over 47,000 complaints have been filed with the National Commission for Scheduled Castes (NCSC) since 2020, according to an RTI reply in 2024. Key issues include caste-based atrocities and land disputes.
- **Delay in Justice:** The government revealed in Parliament that over 3.07 lakh cases are currently pending in courts under the SC/ST (Prevention of Atrocities) Act, 1989. (NCRB)
- The conviction rate remains low at approximately 24–28% for SC-related atrocities.
- **Tribal eviction:** NCSTs have been ineffective in stopping the eviction of STs due to development projects.
  - **E.g.** Rejection of more than 5 lakh tribals' claim.
- **Economic deprivation:** Visible by the failure to uphold the spirit of FRA,2006 and depriving access to minor forest produce in the name of "protected forests".
- **Vanishing cultural identity:** As many as 250 tribal languages have disappeared (report by Peoples Linguistic Survey of India).

Performance Evaluation of NCSC and NCST

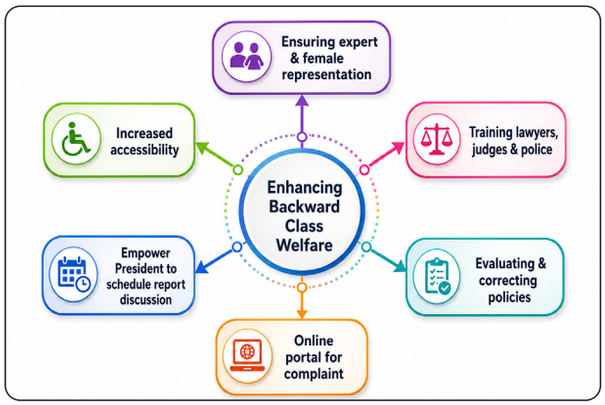


Fig. 16.1: Enhancing Backward Class Welfare

- **Institutionalized response:** A system of liaison officers and special SC and ST cells in all central ministries and public sector enterprises are a welcome step.
- **Social development:** Both bodies ensure improvement in literacy and related development, and have taken a special interest in female literacy rates.
- **Focus on PESA & FRA:** In 2025, the NCST took suo motu cognizance of several land-grabbing cases in the Hasdeo Arand region, emphasizing that the Commission's role includes monitoring the "Forest Rights Act (2006)" and "PESA (1996)" implementation.
- **High pendency:** The NCSC alone is dealing with an estimated 35,000+ pending complaints as of early 2026, a significant jump from the 21,882 reported in 2015. The NCSC launched an AI-integrated portal to track the status of complaints in real-time, aiming to reduce the "Shadow Pendency" of cases stuck in state-level bureaucratic loops.
- **Delayed appointment:** As of 2025-26, the NCST is grappling with severe manpower shortages. Out of 124 sanctioned posts, only 54 are filled (over 50% vacancy). Critical roles like Superintendent of Police and Law Officer remain vacant.
- **Services Safeguards Wing:** The complaints are mostly wrt promotions, discrimination and harassment, the conduct of departmental enquiries, transfers, etc.
- Experts argue that the NCST has become a "post office," merely forwarding complaints to state governments without exercising its Civil Court powers to summon and penalise non-compliant officials.

Constitutionalization of a Commission and NCW's Role in Gender Justice **(UPSC 2020)**

The National Commission for Women (NCW), which currently functions as a statutory body under the NCW Act, 1990.

Steps for Constitutionalizing the National Commission for Women (NCW):

1. **Drafting the Amendment Bill:** A Constitutional Amendment Bill is prepared under Article 368.
2. **Introduction in Parliament:** The bill is introduced in either House of Parliament.
3. **Parliamentary Approval:** The bill must be passed by a special majority in both Houses.
4. **State Ratification (if required):** If it affects the federal structure, half of the states must ratify the bill.
5. **Presidential Assent:** The President signs the bill to make it law.
6. **Insertion into the Constitution:** A new Article or Schedule is added to grant NCW constitutional status (e.g., Article 338B for NCBC).

Benefits of Granting Constitutional Status to NCW:

1. **Stronger Legal Mandate:** A constitutional NCW would have binding powers over enforcement agencies (e.g., NHRC's enforceable directives).
2. **Greater Autonomy:** It would operate independently from government influence, ensuring impartial investigations (e.g., ECI's autonomy).
3. **Judicial Review Power:** Constitutional backing would allow NCW to challenge violations directly in courts (e.g., SC/ST Commission's legal standing).
4. **Improved Policy Influence:** A stronger NCW could drive gender-sensitive laws and ensure gender-inclusive budget allocations (e.g., NCBC's role in OBC quota expansion).
5. **Mandatory Government Compliance:** Authorities would be legally required to act on NCW's recommendations (e.g., CAG's influence on government action).

Additional Measures for Strengthening NCW:

1. **Enforcement Powers:** Grant penal authority to enforce compliance with NCW's recommendations (e.g., NHRC's ability to summon officials).
2. **Dedicated Budget Allocation:** Ensure independent financial resources for policy advocacy and interventions (e.g., Nirbhaya Fund for women's safety).
3. **Regional Offices:** Expand NCW's presence at state and district levels (e.g., National Legal Services Authority's state cells).
4. **Legal Integration:** Integrate NCW into the law-making process and gender-based case monitoring (e.g., NCBC's impact on OBC reservation).

National Commission for Women Tackle the Problems at both Public and Private Spheres **(UPSC 2017)**

NCW's Role in Public Sphere:

- **Legal Advocacy:** Recommends gender-sensitive law reforms (e.g., 2021 proposal on Indecent Representation Act).
- **Workplace Harassment:** Monitors compliance; acted during MeToo movement.
- **Safety & Security:** Advises on women's safety policies.
- **Cyber Protection:** Intervenes in digital harassment cases.
- **Law Monitoring:** Reviews and suggests improvements in gender law enforcement.

NCW's Role in Private Sphere:

- **Domestic Violence Aid:** Offers legal, shelter support (e.g., WhatsApp helplines during COVID-19).
- **Marriage & Divorce Rights:** Ensures fair treatment.
- **Property Rights:** Promotes awareness on women's inheritance rights.
- **Social Awareness:** Campaigns against dowry, forced marriages.
- **Counseling Support:** Provides psychological and legal help.

ISSUES IN NEWS

Sub-Classification within SC's and ST's

In a landmark 2024 verdict, the Supreme Court upheld the constitutional validity of sub-classification within Scheduled Castes (SCs) and Scheduled Tribes (STs), thereby overruling the 2004 E.V. Chinnaiah judgment.

- **Key Logic:** The Court recognised that the SC/ST category is not a "homogenous" block. Some sub-castes remain significantly more backward and are "pushed out" by relatively advanced groups within the quota.
- This ruling allows States to distribute reservation benefits more equitably among sub-groups, aiming to ensure that the most marginalized within these communities are not left behind. It marks a shift from formal equality to substantive equality in the Indian affirmative action framework.
- **Requirement:** Sub-classification must be based on empirical data and is subject to judicial review.
- **"Creamy Layer" for SC/ST:** A revolutionary (though non-binding) observation by several judges suggested that the "Creamy Layer" principle should be extended to SCs and STs to ensure benefits reach the genuinely needy.

Supreme Court on OBC Creamy Layer

- In March 2026, the Supreme Court delivered a landmark judgment (in Union of India v. Rohith Nathan) clarifying the decades-long confusion over the "Creamy Layer" identification for Other Backward Classes (OBC).
- The Supreme Court ruled that parental status (rank), not just total salary, must be the primary filter for the OBC Creamy Layer.

Pros

- **Fixes "Status Inequality":** Eliminates the unfair bias where PSU/Private sector wards were barred by salary, while government wards with similar social standing remained eligible.
- **Upholds Social Intent:** Reaffirms that reservations address social backwardness; high salaries shouldn't disqualify those who haven't achieved "elite" social status.
- **Merit for PSUs:** Allows talented children of middle-management PSU staff to finally access the quota benefits previously blocked by pay-scale inflation.

Cons

- **Wealth Dilution:** Critics argue that wealthy families (e.g., low-rank employees with high private income) might now "crowd out" the genuinely poor.
- **Equivalence Hurdles:** Identifying which private/PSU jobs equal "Group A or B" government posts is administratively complex and prone to errors.
- **Intra-OBC Gap:** There is a risk that the "most backward" groups will lose out to the relatively affluent who are now newly eligible under the "status-only" rule.

Key Words

Socially and educationally backward classes, Creamy layer, Atrocities, Protected forests, Subcategorise SCs.

17 UPSC and SPSC

The Union Public Service Commission (UPSC) and State Public Service Commissions (SPSCs) are constitutional bodies established under Articles 315 to 323 of the Indian Constitution. They ensure merit-based, impartial recruitment to civil services at the Union and State levels. These commissions play a pivotal role in maintaining administrative neutrality and efficiency, forming the backbone of India's democratic and federal governance structure.

COMPARATIVE ROLE OF UPSC AND SPSC

UPSC	SPSC
❖ **Composition**: consists of a chairman and other members appointed by the President of India. ❖ **Strength**: Discretion of the President. Usually 9 to 11. ❖ **No qualifications** are prescribed for membership except 50% of members should have held office for at least ten years under the Government of India or the state government. ❖ **Term**: Six years/ 65 years of age; whichever reached earlier.. ❖ **Removal:** By President on the ground of adjudging an insolvent, paid employment outside the duties, unfit due to infirmity of mind or body. ❖ For misbehaviour - By the President on the inquiry of the Supreme Court.	❖ **Composition**: consists of a chairman and other members appointed by the Governor of state. ❖ **Strength**: Discretion of the Governor of the respective State. ❖ **No qualifications** are prescribed for membership except 50%of members should have held office for at least ten years under the Government of India or the state government. ❖ **Term**: Six years/62 years of age; whichever is reached earlier. ❖ **Removal:** The President can remove the members and chairman on the same grounds and in the same manner as he can remove a chairman or a member of the UPSC.

INDEPENDENCE OF COMMISSION

- **Conditions of service:** Determined by the President (by the Governor for SPSC) & cannot be varied to the disadvantage of the members after their appointment.
- **Expenses:** salaries, allowances, and pensions are charged by the Consolidated Fund of India and are not subject to the vote of Parliament.
- **Security of tenure:** Chairman and members can be removed by orders of the President only on the grounds specified in the constitution.
- **Post-retirement:** The chairman of UPSC is not eligible for further employment with the Union or the state government in any capacity.
  - SPSC chairman can be appointed chairman/member of UPSC or member of UPSC. But not eligible for any other employment.
  - Members of UPSC (other than the chairman) are eligible to be appointed as chairman of any SPSC or UPSC.
  - A member of an SPSC is eligible to be appointed as chairman of an SPSC or UPSC; or member of a UPSC.

FUNCTIONS AND LIMITATIONS

Functions of UPSC	Limitations
❖ **Watchdog of merit system:** It conducts examinations for appointments to the all-India services and the central services. ❖ **Assists the states** in framing and operating schemes of joint recruitment for any services for which candidates possessing special qualifications are required.	❖ **Supreme Court judgments:** since they have the force of the law; can limit UPSC or SPSC. ❖ **Non-binding provisions:** The government can act without consultation with UPSC and the aggrieved public servant has no remedy in court.

- **Serves needs of a state:** On Governor's request and with the President's approval.
- **Consulted for the following matters of personnel management:**
  - **Methods of recruitment**, promotion, and transfer to civil service and for civil posts.
  - **All disciplinary matters** affecting a person serving under the Government of India in a civil capacity.
  - **Reimbursement claims** of legal expenses incurred by a civil servant in defending legal proceedings instituted against him in respect of acts done in the execution of his duties.
  - **Temporary appointments** exceeding 1 year and on regularisation of appointments.
  - To **grant an extension** of service and re-employment of certain retired civil servants.
- SPSC is consulted by the Governor while framing rules for appointment to judicial service of the state (other than the posts of district judges).
- Selection by the UPSC does not confer any right to the post upon the candidate. The name recommended is only a recommendation.
- **UPSC is not consulted on the following matters:**
  - **Making reservations** for any backward class in appointments.
  - Consider the claims of SC /ST in making appointments to services and posts.
  - For Selections for chairmanship or membership of commissions or tribunals, posts of the highest diplomatic nature, and the bulk of group C and group D services.
  - For a temporary appointment, if a person isn't likely to hold the post for more than a year.
- **Classification of services**, pay and service conditions, cadre management, training, etc.

UPSC 2026 REFORMS

The 2026 UPSC reforms represent a fundamental transition toward a more technology-driven, transparent, and meritocratic recruitment process. By integrating digital security with streamlined service allocation, the Commission aims to optimize the pipeline of civil servants while reducing administrative friction.

Key Administrative Reforms

- **Digital Infrastructure:** The introduction of the **Universal Registration Number (URN)** and a four-stage centralized application framework ensures seamless data management.
- **Security & Authentication:** Mandatory real-time facial authentication at exam centers and live photo capture effectively neutralize the risk of impersonation.
- **Service Allocation:** A new **rotational cadre system** replaces legacy zonal preferences, ensuring officers are distributed across regions with greater objectivity.
- **Attempt Constraints:** Strict "improvement attempt" rules—requiring specific training exemptions—limit the phenomenon of "serial seat-blocking."

Benefits and Challenges

Benefits	Challenges
Systemic Objectivity: Centralized, rule-based allocation reduces discretionary bias.	**Logistical Dependency:** Relies heavily on state governments providing accurate vacancy data by strict deadlines.
Enhanced Security: URNs and biometrics provide a robust defense against exam malpractice.	**Rigidity:** The absence of correction windows and strict service rules leaves zero margin for aspirant error.
National Integration: Annual state-group rotation fosters diverse regional exposure and a broader national perspective.	**High-Stakes Pressure:** Rigid "all-or-nothing" career paths may deter mid-career professionals from pursuing the services.
Pipeline Efficiency: Accelerated allocation timelines ensure faster induction into active administrative duty.	**Adjustment Friction:** Candidates accustomed to traditional zone-based systems face a steep learning curve.

Key Words

All India Services, Infirmity of mind or body, Consolidated Fund of India, Watchdog of merit system, Cadre management.

18 Election in India

Elections in India form the cornerstone of its democratic framework, ensuring periodic renewal of the people's mandate. Conducted at both national and state levels, they uphold the principle of representative governance.

ELECTION COMMISSION OF INDIA

The Election Commission of India (ECI) is a permanent and independent Constitutional body established under Article 324 of the Constitution.

- The ECI is provided with the power of superintendence, direction, and control of elections to the Lok Sabha, Rajya Sabha, State Legislative Assemblies, State Legislative Councils, and the offices of the President and Vice President of the country.
  - It is not concerned with the elections of panchayats and municipalities in the states. For that, the Constitution of India provides for a separate State Election Commission.

Independence of ECI

- **Security of tenure:** Chief election commissioner can be removed from his office except in the same manner and on the same grounds as a judge of the Supreme Court.
  - Other election commissioners cannot be removed except on the recommendation of the chief election commissioner.
- **Condition of Service:** The service conditions of the chief election commissioner cannot be varied to his disadvantage after his appointment.

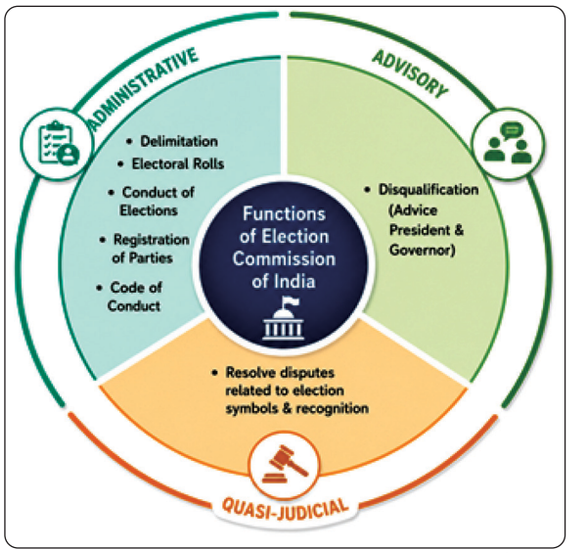


Fig. 18.1: Functions of Election Commission of India

Article 329(B) and Poll Process

Recently, the Election Commission invoked Article 329(b) in the Supreme Court to prevent judicial intervention during the ongoing election process.

- As per this Article, elections can only be challenged through election petitions after results are declared. In Ponnuswamy v. Returning Officer (1952), the Supreme Court upheld this, ruling that courts cannot interfere once elections are notified.

Challenges Faced by the Election Commission of India

- **Allegation of Partisanship:** Accusations of bias, such as giving clean chits to high-profile MCC violators.
- **Limited Powers:** Cannot de-register political parties or exercise contempt powers despite Article 324.
- **Weak Enforcement:** Lacks authority to act against appeals for votes on caste/religion lines.
- **Politicization:** No post-retirement restrictions, risking conflict of interest.
- **Non-Transparent Appointments:** Selection of CEC and ECs is influenced by the ruling government.
- **Criminalization of Politics:** Inadequate control over money power and criminal candidates.
- **EVM-VVPAT Trust Issues:** Concerns over transparency despite repeated clarifications by ECI.
- **Intra-party Democracy:** No express provisions or powers to enforce democratic functioning within parties.
- **Electoral Roll Manipulation Allegations:** Concerns were raised regarding **sudden additions to voter lists** during recent elections (notably in Maharashtra), prompting debates over transparency in **electoral roll management**.
  - Such developments underscore the need for **real-time public access**, **technological safeguards**, and **third-party audits** of electoral data.
- **Unequal Removal Process:** CEC has strong tenure protection; ECs can be removed on CEC's recommendation only.

- **Other Concerns:**
  - **No Fixed Tenure:** Risk of political interference and lack of stability.
  - **Post-Retirement Appointments:** Raises doubts over neutrality and possible conflict of interest.
  - **Lack of Transparency & Accountability:** Decision-making often questioned.
  - **Conflict of Interest:** Perception issues hurt public trust.
  - **No Prescribed Qualifications:** No clear criteria on experience/expertise.
  - **Weak Enforcement Powers:** Limits ECI's ability to curb electoral malpractices.

Way Forward for ECI

- **Enhance Independence and Impartiality:** Ensure transparent and impartial selection processes for Election Commissioners, reducing government influence.
- **Strengthen Powers:** Grant the ECI additional authority, including deregistration powers and proactive action against violations of the Model Code of Conduct.
  - Legal Backing for MCC and ECI must be given some teeth.
- **Proactive Enforcement:** Empower the ECI to take proactive action against caste and religion-based campaigning.
- **Inner-Party Democracy and Financial Regulation:** Promote reforms to enforce transparency and accountability within political parties.
- **Post-Retirement Employment Restrictions:** Implement restrictions on post-retirement employment to prevent conflicts of interest.
- **EVM Security and Trust-Building:** Improve EVM security measures and engage stakeholders to build trust.

Electoral Reforms Proposed by ECI (2016)

- **Simultaneous Elections:** Lok Sabha and State Assembly elections to be held together to reduce cost and administrative burden.
- **State Funding of Elections:** To curb black money and ensure level playing field among candidates.
- **Disqualification of Criminal Candidates:** Bar candidates from contesting once charges are framed in serious offences.
- **Strengthening NOTA:** Empowering NOTA to trigger re-elections if it gets the highest votes.
- **Transparency in Political Funding:** Regulation of anonymous donations, corporate contributions, and electoral bonds.
- **Compulsory Voting:** Proposed to increase voter turnout and civic responsibility.
- **Use of Technology:** Introduction of VVPATs and proposal for biometric identification to prevent fraud.
- **Inclusive Voting:** Provisions for NRIs, persons with disabilities, and migrant workers to ease voting access.

Important Committees Related to Electoral Reforms

Year	Committee / Commission	Focus / Recommendations
1974	Tarkunde Committee	Recommended measures to curb electoral malpractices and ensure free and fair elections.
1975	J.P. Committee	Set up by Jayaprakash Narayan to suggest reforms for strengthening the electoral system.
1983	Vohra Committee	Highlighted the nexus between crime and politics; recommended measures to curb criminalization of politics.
1990	Dinesh Goswami Committee	Focused on comprehensive electoral reforms, especially transparency in election funding and procedural improvements.
1993	Vohra Committee (Report)	Reiterated concerns regarding crime-politics nexus and suggested institutional coordination to address it.
1998	Indrajit Gupta Committee	Recommended partial state funding of elections to reduce the influence of money power.
2000	National Commission to Review the Working of the Constitution (NCRWC)	Headed by M.N. Venkatachaliah; Examined electoral reforms within broader constitutional review.
2004	Jeevan Reddy Committee	Reviewed electoral laws and recommended reforms for improving legal clarity and effectiveness.
2005	Second Administrative Reforms Commission (ARC)	Headed by Veerappa Moily; emphasized electoral reforms, ethics in governance, and accountability.
2010	Tankha Committee	Focused on reforms in election laws and improving electoral processes.
2012	J.S. Verma Committee	Suggested amendments in criminal law, including provisions affecting electoral candidates and accountability.
2023	Ram Nath Kovind Committee	High-level committee on Simultaneous Elections (One Nation, One Election).

Appointment Process Under Scrutiny

- The **Chief Election Commissioner and Other ECs (Appointment, Conditions of Service, and Term of Office) Act, 2023** replaced the earlier selection mechanism by SC.
  - In the **Anoop Baranwal case (2023)**, the Supreme Court held that the **CEC and ECs would be appointed by a panel** comprising the **Prime Minister, Leader of Opposition, and Chief Justice of India** until a law is enacted. Earlier, appointments were made by the **President on the advice of the Prime Minister-led Council of Ministers**.
- In the 2023 act, the **Chief Justice of India was removed** from the appointment committee, raising questions over **independence and checks-and-balances**.
- A **constitutional challenge** to the law is currently pending in the **Supreme Court**, highlighting a critical moment for institutional credibility.

Recommendation

- **2nd ARC Recommendation:** Set up a collegium with PM, Speaker, LoP, Law Minister, and RS Deputy Chairman for appointments.
- **Supreme Court (March 2023 Verdict):** Selection by committee of PM, LoP in Lok Sabha, and Chief Justice of India.
- **Constitutional Safeguards:** Extend removal protection to all ECs, not just CEC.
- **Fair Elevation:** Senior-most EC to be promoted as CEC to ensure impartiality.

IMMUNITY OF CHIEF ELECTION COMMISSIONER & ELECTION COMMISSIONERS

Context: The Supreme Court has agreed to examine the constitutional validity of immunity granted to the Chief Election **Commissioner (CEC) and Election Commissioners (ECs)** under the **Chief Election Commissioner and Other Election Commissioners Act, 2023.**

Key Provision (Section 16 of the Act)

- Section 16 provides **life-long immunity from civil and criminal proceedings** for acts done in discharge of official duties.
- It states that **no court shall entertain or continue any civil or criminal proceedings against a person who is or was the CEC or an EC for any act, word, or decision taken while performing official duties.**

This provision aims to ensure **independent functioning of the Election Commission**, but raises concerns about **accountability**.

Arguments in Favour of the Provision	Arguments Against the Provision
Ensures Institutional Independence: Immunity protects CEC/ECs from political pressure and retaliatory litigation, enabling unbiased decision-making.	**Violation of Constitutional Principles:** Parliament cannot grant such immunity when even the Constitution framers did not provide it to other constitutional authorities.
Prevents Frivolous Litigation: Prevents misuse of courts by powerful stakeholders to harass election authorities.	**Comparison with Judiciary:** Judges of constitutional courts do not enjoy life-long immunity, making this provision disproportionate.
Facilitates Free and Fair Elections: Enables officials to take firm and impartial decisions without fear of legal consequences.	**Doctrine of Equality (Article 14):** Blanket immunity undermines equality before law.
Functional Necessity: Similar protections exist for acts done in official capacity, ensuring smooth discharge of duties.	**Misuse of Article 324(2):** Article deals with appointment, not immunity, making extension constitutionally questionable.
Continuity of Electoral Process: Avoids disruption of elections due to litigation against officials.	**Threat to Free and Fair Elections:** May disturb level playing field and allow unchecked actions by authorities.

POLITICAL PARTIES AND THE ELECTION COMMISSION OF INDIA

The Election Commission of India (ECI) serves as the **guardian of democracy** and plays a crucial role in regulating political parties in the country. It acts as a watchdog, monitoring party finances, overseeing elections, and taking measures to maintain a level playing field for all political entities.

Role of the Election Commission of India in Regulating the Political Parties

- **Registration and Recognition:** ECI's authority to register political parties ensures equal compliance with election conduct rules.

- **Allocation of Symbols:** ECI allows exclusive symbols to recognized parties and provides a list of free symbols for non- recognized parties.
- **Model Code of Conduct:** The code prevents the party in power from gaining unfair advantages during elections, coming into force from the announcement of the election date.
- **Ceiling on Election Expenditure:** ECI sets limits on expenditure to prevent undue influence, mandates separate accounts, and non-reporting can lead to disqualification.
- **Financial Transparency:** Registered parties must submit audited reports under section 29C of RPA,1951 to prevent misuse of tax-free donations.
- **Appointments of Observers:** ECI appoints general and expenditure observers to ensure a free and fair electoral process.

Steps Required to Improve Effectiveness

- **Power to Deregister Political Parties:** Granting the ECI the authority to deregister parties under the RPA,1951 can create a deterrence effect.
- **Transparency in Political Funding:** The effectiveness of instruments like Electoral bonds, resulting in skewed donations, necessitates a re-evaluation.
- **Principle of Precedence:** Ensuring consistent actions by the ECI for similar electoral offenses, irrespective of the party involved.
- **2nd ARC Recommendation:** Establishing a Collegium comprising key stakeholders for appointment recommendations of the Chief Election Commissioner and Election Commissioners.
- **Independence of ECI:** Ensuring constitutional security of tenure for all three election commissioners and debarment from post-retirement positions to reduce executive interference in ECI.
- In India's multi-party democracy, effective regulation of political parties by the Election Commission is essential to ensure fair competition, prevent misuse of concessions, and uphold electoral integrity.

Indian Party System **(UPSC 2016)**

India's party system is marked by contradictions and paradoxes:

Contradictions:

- **Regionalism vs. Nationalization:** Regional parties dominate state politics, but national parties like BJP are expanding.
- **Coalition Politics vs. Majoritarianism:** Coalition politics thrives, yet the ruling party often adopts a strong majoritarian stance.
- **Electoral Federalism vs. Centralization:** States elect diverse representatives, but power is centralizing through Governors and agencies.
- **Inner-Party Democracy vs. High Command Culture:** Parties claim democracy but follow a high-command structure.
- **Anti-Defection Law vs. Political Defections:** The law aims to curb defections, but engineered defections continue.

Paradoxes:

- **Democratic Mandate vs. Electoral Autocracy:** Free elections exist, but opposition faces suppression.
- **Digital Campaigning vs. Misinformation:** Social media aids campaigns but spreads fake news.
- **Youth Participation vs. Dynastic Politics:** More youth enter politics, yet dynastic families control key parties.
- **Rise of Third Front vs. Unstable Alliances:** Third Fronts face ideological clashes and instability.
- **Public Mobilization vs. Political Apathy:** High voter turnout contrasts with youth apathy towards active politics.

India's party system reflects the tension between democratic ideals and political realities, with a need for balancing national and regional interests.

SIMULTANEOUS ELECTIONS - ONE NATION, ONE ELECTION

A High-Level Committee (HLC) headed by **Ramnath Kovind**, former President of India, was constituted in September 2023 to examine the issue of holding simultaneous elections for the Lok Sabha, State Legislative Assemblies and local bodies of all States. The Constitution (129th Amendment) Bill, 2024, and The Union Territories Laws (Amendment) Bill, 2024, introduced to give effect to "One Nation One Election" referred to the Joint Parliamentary Committee.**(UPSC 2017)**

In Favour of Simultaneous Elections	Against Simultaneous Elections
Policy Paralysis: Frequent application of the Model Code of Conduct disrupting government functions and civic life.	**Practical difficulties:** Resistance from political parties due to adjustments in assembly terms.
Resource Savings: Potential benefits of utilizing the same booth for both elections.	**Constitutional hurdles:** Lack of fixed tenures for Lok Sabha and state assemblies.
Social Harmony: Escalation of communalism and casteism during election periods.	**Anti-federalism:** Influence of national issues on state elections and vice versa.

- **Sustainable Development:** Focus on long-term reforms due to the reduced frequency of elections.
- **Global Experiences:** Implementation of simultaneous elections in countries like South Africa and Sweden.
- **Invisible Socio-Economic Costs:** Undetermined impact on education, welfare schemes, and resource allocation during election duties.
- **Engagement of Security Forces:** Diversion of armed police forces from other internal security responsibilities.
- **Reduces accountability:** Frequent elections keep politicians connected with voters.
- **Grassroots economy:** Job creation and economic boost during elections.
- **False arguments related to MCC:** Misconceptions about restrictions on new schemes.
- **Against multiparty democracy:** Blurred distinction between state and national elections.
- **Inconsistent with Westminster democracy and federalism:** Impact on the dissolution of governments and political shifts.
- **The disadvantage to regional parties:** Dominance of national parties and disadvantage for regional parties.
- **Alternative reforms:** Expenditure caps, state funding, shorter poll durations, and enhanced security measures.

Recent Developments and Recommendations

- **Election Commission of India, First Annual Report (1983):** Recommended holding simultaneous elections for the House of the People (Lok Sabha) and the Legislative Assemblies of States.
- **Law Commission (170th Report, 1999):** Suggested simultaneous elections for Lok Sabha and State Assemblies, with results delayed until the Assembly's term ends (gap not exceeding six months).
- **Parliament Standing Committee on Personnel, Public Grievance and Law & Justice (79th Report):** Proposed two-phase synchronized elections — some Assemblies to go with Lok Sabha midterm, others at the end of their term.
- **NITI Aayog (Discussion Paper, 2017):** Recommended phase-wise synchronization of tenures of Lok Sabha and State Assemblies.
- **Law Commission (Draft Report, 2018):** Advised synchronizing elections by advancing/postponing timings in some states and holding elections twice within five years.

Reforms Suggested by Committees for One Nation One Elections **(UPSC 2024)**

- **Strengthening Electoral Participation:** Encouraging greater voter turnout and simplifying the voter registration process is essential to fostering a more inclusive democracy. Eg: Dinesh Goswami Committee (2010) suggested enhancing electoral participation.
- **Addressing Political Corruption:** Tackling the nexus between criminals and politicians enhances voter trust and engagement. Eg: The Vohra Committee (1993) highlighted electoral reforms as a remedy for tackling political corruption.
- **Curbing Electoral Expenditure:** To ensure a level playing field and prevent undue influence on electoral outcomes. Eg: The 2nd ARC emphasised on curbing electoral expenses to maintain the fairness of elections.
- **Improving Election Integrity:** Strengthening mechanisms that ensure transparency in the electoral process. Eg: The Election Commission of India and the Law Commission have advocated for reforms for enhancing transparency and integrity.
- **Ensuring Inclusivity in Voting:** Ensuring that marginalised groups have equal access to voting is critical for a truly representative democracy. Eg: The National Commission to Review the Working of the Constitution (2000) advocated for inclusive electoral practices to accommodate the needs of marginalised communities.

EVM AND ASSOCIATED ISSUES

An Electronic Voting Machine (EVM) is a device used to record votes electronically, replacing traditional paper ballots in Indian elections. It ensures quick, tamper-proof, and efficient voting and counting processes.

Legal provision: Section 61A of the Representation of the People Act, 1951 empowered the Commission to use voting machines. (This amendment was made in 1988).

Advantages of EVMs

- **Accuracy & Speed:** Ensures error-free vote counting and quick result declaration.
- **Transparency:** Displays total and party-wise votes, strengthening electoral integrity.
- **Secrecy & Security:** Maintains vote secrecy and deters booth capturing with tamper-proof design.
- **Cost-Effective:** Reduces paper use, cutting costs and environmental impact.
- **Reduced Human Error:** Eliminates issues like invalid or miscounted paper ballots.

Concerns with EVMs

- **Lack of Verifiability:** Critics argue absence of paper trail hinders auditability.
- **Voter Secrecy Risks:** Booth-wise results may compromise anonymity.

- **Storage & Transport Issues:** Risks of tampering during transit or storage.
- **Tech Failures:** Susceptible to glitches or hardware issues.
- **Global Reversals:** Nations like Germany and the Netherlands reverted to paper ballots citing trust issues.

ECI Initiatives to Enhance Trust in EVMS

Initiative	Key Points
VVPAT Integration	VVPAT is used with EVMs for transparent vote verification at all polling booths.
VVPAT Slip Counting	VVPAT slips counted in a sample of polling stations for additional accuracy.
EVM Challenge	Open challenge for political parties to prove EVM tampering, ensuring credibility.
Inclusive Procedures	Political parties involved in FLC, randomization, mock polls, and sealing of EVMs.
RVM for Migrants	Prototype Remote Voting Machine to allow migrants to vote without traveling.
Voter Education (SVEEP)	Awareness campaigns to educate voters on EVMs and boost electoral participation.
C-VIGIL	C-VIGIL is a mobile app by the Election Commission of India that allows citizens to report election violations in real-time with evidence.

Challenges Before the Election Commission Regarding EVM Trustworthiness **(UPSC 2018)**

Challenges:

- **EVM Tampering Allegations:** Claims of manipulation undermine public confidence.
- **Discrepancies in Vote Count:** Mismatch between votes cast and counted raises concerns.
- **Lack of Transparency:** Limited public access to EVM audits fuels suspicion.
- **Misinformation:** Rumors about hacking spread via social media.
- **VVPAT Integration:** Logistical challenges in integrating VVPAT systems with EVMs.

Measures to Ensure Trust:

- **Enhanced VVPAT Auditing:** Increased verification, as seen in the 2019 SC order.
- **Independent Audits:** Regular third-party audits of EVMs to address security concerns.
- **Public Awareness Campaigns:** Educating voters and using tools like the 'cVigil' app.
- **Stronger Legal Frameworks:** Laws against misinformation.
- **Technological Upgradation:** Continuous improvement to address new threats.

VVPAT

Voter Verifiable Paper Audit Trail (VVPAT) is an independent system attached to Electronic Voting Machines (EVMs) that allows voters to verify that their vote has been cast correctly. It prints a slip with the candidate's name and symbol, visible to the voter for 7 seconds before dropping into a sealed box. Introduced in a phased manner since 2013, VVPATs are now used in all Lok Sabha and Assembly elections. It enhances transparency and trust in the electoral process by allowing cross-verification of EVM results.

Various Judgements of Supreme Court: In its 2013 ruling in the case of *Subramanian Swamy v. Election Commission of India,* the Court held that "a paper trail is an indispensable requirement of free and fair elections." Later, in 2019, while dealing with a plea seeking 50% cross-verification of EVM votes with VVPAT slips in each Assembly constituency, the Court favored an increase in the number of polling stations in which VVPAT verification would be done from one per Assembly constituency or segment to five

Recent Judgment of Supreme Court on VVPAT: While refusing a revival of paper ballots, the Supreme Court on April 26, 2024, upheld the electronic voting machine (EVM) polling system and underscored the need to "exercise care and caution" when raising questions about the integrity of the electoral process. It also declined the petitioners' demand to direct 100% cross-verification of votes cast on EVMs with the accompanying Voter Verifiable Paper Audit Trail (VVPAT) paper slips. Only 5% of EVM-VVPAT counts are currently randomly verified in any Assembly constituency.

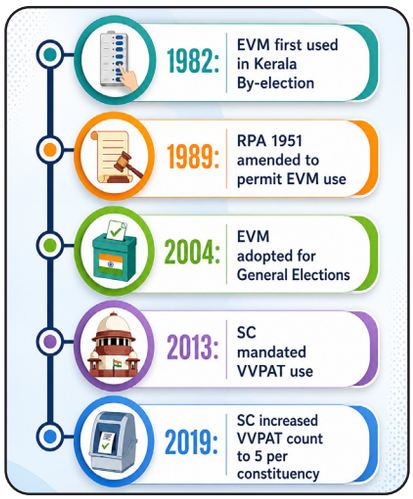


Fig. 18.2: Journey of EVM-VVPAT

Way Forward to Enhance EVM Credibility and Transparency

- **Procedural change:** Implement a system where voters receive a printed paper and drop it in the ballot box.

- **Manual counting:** Mandate manual verification if the winning margin is less than 10% instead of resorting to court cases.
- **Supreme Court:** Increase the VVPAT verification rate from one to five random EVMs per constituency.
- **Totalizer Machines:** Improve voting secrecy by counting votes from multiple polling booths together instead of booth-wise results.
- **Safety demonstration:** Organize a hackathon, as done in 2017, to challenge individuals to demonstrate the hacking of EVMs.
- **Human resources:** Provide comprehensive training to all ECI staff to handle any issues that may arise with EVMs at polling stations.

Knowledge Nuggets

Paper Slip for Voter + Manual Count if Margin <10% + VVPAT Verification (5 EVMs) + Totalizer Use + EVM Hackathon + Staff Training

NOTA

- The introduction of the None of the Above (NOTA) option in India in 2013 came as a result of a Supreme Court judgment in the People's Union for Civil Liberties (PUCL) vs. Union of India case. The Supreme Court mandated the use of NOTA in direct elections for the Lok Sabha and state assemblies.
- Since its implementation, NOTA has gained significant popularity among Indian voters and has even received more votes than the winning margin in some elections. In Indore, Madhya Pradesh, (Lok Sabha Constituency) 2024 elections NOTA received over 2 lakh votes—highest ever in any constituency. Though counted, NOTA votes are deemed 'invalid' and do not affect election outcomes; the candidate with the next highest votes wins.

Arguments in Favour	Arguments Against
❖ **Expression of Dissatisfaction:** NOTA allows voters to express their dissatisfaction by rejecting all the candidates if they find them unsuitable for the position. ❖ **Encouraging Better Candidates:** NOTA acts as a catalyst for political parties to field better candidates who are more capable and have a clean image, as parties aim to avoid losing votes from dissatisfied voters. ❖ **Increased Voter Participation:** NOTA can boost voter participation by providing an option for voters who were previously disinterested or felt compelled to vote for undeserving candidates. ❖ **Fundamental right:** NOTA allows people to exercise their freedom of expression and right to liberty by expressing consent or discontent to candidates. ❖ **Moral pressure:** NOTA enables voters to voice their dissatisfaction with unsuitable candidates, exerting moral pressure on political parties to field better candidates.	❖ **Symbolic gesture without electoral impact:** NOTA is seen as a symbolic gesture without electoral value, as the candidate with the most votes is declared the winner regardless of NOTA votes. ❖ **Limited solution to voter dissatisfaction:** NOTA fails to address the root cause of voter dissatisfaction, which lies in the lack of good candidates, offering only a rejection option without resolving the problem. ❖ **Potential for voter apathy:** NOTA can contribute to voter apathy by allowing voters to abstain from voting if they find no suitable candidates, potentially reducing voter participation and weakening democracy. ❖ **Vulnerability to misuse:** NOTA can be manipulated by political parties to influence election results by fielding weak candidates and encouraging supporters to vote for NOTA, potentially splitting opposition votes.

MODEL CODE OF CONDUCT (MCC)

Model Code of Conduct (MCC) is a set of guidelines issued by the Election Commission of India (ECI) to regulate the behavior of political parties and candidates during elections. The Model Code of Conduct was first introduced by the Election Commission in the assembly election in Kerala in 1960. In 1962, the Election Commission introduced the Model Code of Conduct for general elections. The guidelines of the Model Code of Conduct were made stricter by the Election Commission in 1991 after repeated flouting of norms by political parties.

Challenges

- **Challenges of the Digital Age:** The Model Code of Conduct fails to adequately address the challenges posed by digital platforms, allowing the spread of fake news and hate speech.
- **Limited Enforcement Power:** The Model Code of Conduct lacks legal enforceability, enabling political parties and candidates to violate it without facing significant consequences.
- **Lack of Clarity:** The Model Code of Conduct lacks clarity on issues like the use of government resources, leading to confusion and inconsistent enforcement.

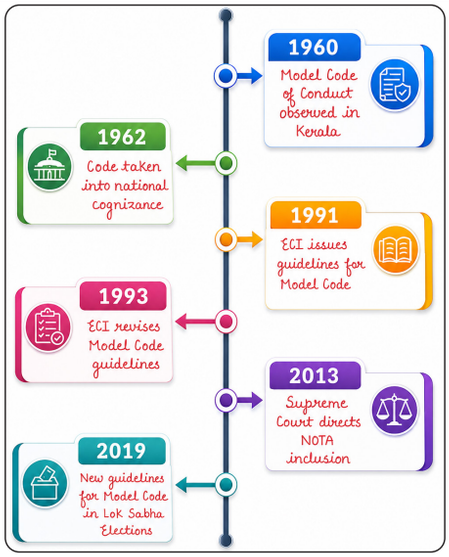


Fig. 18.3: Evolution of Model Code of Conduct

- **Time-Bound Effectiveness:** The Model Code of Conduct is time-bound, losing its effectiveness once the elections are concluded, allowing for pre and post-election violations without repercussions,
- **Limited Scope:** The Model Code of Conduct only covers the conduct of political parties and candidates during elections, overlooking crucial areas like campaign finance regulation.
- **Loopholes:** The Model Code of Conduct has several loopholes that political parties and candidates can exploit. For example, the Code does not prohibit the use of religion or caste in election campaigns, which can lead to communal and divisive politics.

Legal Enforceability of MCC: Standing Committee's Recommendation

The Standing Committee on Personnel, Public Grievances, Law and Justice recommended making the MCC legally binding and recommended that the MCC be made a part of the RPA 1951.

Benefits of Legal Backing:

- **Accountability:** Legal backing would deter unethical conduct by parties and candidates.
- **Democratic Strengthening:** Ensures free, fair, and transparent elections.
- **Rule of Law:** Prevents misuse of power and promotes lawful conduct.
- **Feasibility Concern:** ECI opposes legal status due to the time-bound nature of elections vs lengthy judicial process.
- **Consistency:** Uniform application of MCC across regions and cases.
- **Clarity:** Clear legal definition of violations enables better enforcement.

Way Forward

- **Strengthening penalties:** The Election Commission of India (ECI) can consider strengthening penalties for violations of the Model Code of Conduct. **For example**, in the 2019 Lok Sabha elections, the ECI disqualified a candidate for three years for violating the Code by seeking votes in the name of religion.
- **Improved monitoring:** The ECI can improve its monitoring mechanisms to detect violations of the Model Code of Conduct. **For example**, in the 2019 Lok Sabha elections, the ECI used mobile apps to monitor election campaigns and detect violations of the Code.
- **Addressing loopholes:** The ECI can address the loopholes in the Model Code of Conduct by updating its provisions to include a ban on the use of religion or caste in election campaigns. **For example**, in the 2019 Lok Sabha elections, the ECI issued guidelines to political parties to refrain from using the armed forces for political propaganda.
- **Awareness campaigns:** The ECI can launch awareness campaigns to educate voters and political parties about the Model Code of Conduct and its provisions. **For example**, in the 2019 Lok Sabha elections, the ECI launched a voter awareness campaign called "SVEEP" to encourage voter participation and promote ethical voting.

ELECTION FUNDING

The process by which political parties raise funds for their campaigns and activities, including reaching out to voters, is known as election funding. Concerns have been raised by the Supreme Court about the potential misuse of funds obtained through electoral bonds for purposes such as supporting terrorism or instigating violent protests.

Challenges with Election Funding

- **Opacity in funding sources:** According to a report by the Association for Democratic Reforms (ADR), political parties in India receive a high proportion of their income from unknown sources, indicating issues with electoral funding. This lack of transparency makes it difficult to track the flow of money and identify potential sources of corruption.
- **Escalating campaign expenses:** Elections in India are costly, requiring political parties and candidates to gather substantial funds for campaigning. This can result in the influence of affluent donors and the adoption of unlawful means to finance political activities.
- **Transparency challenges:** The Indian political funding system lacks transparency, making it challenging to hold parties and candidates accountable. Uncertainty surrounds the origins of donations, with many contributions made anonymously.
- **Limited Public Funding:** Although the government provides some funding for election-related expenses, the amount of public funding available is restricted. Consequently, political parties and candidates rely on private donations, potentially leading to the influence of wealthy donors.

Electoral Bonds Verdict: A Landmark Judgment

On 15 February 2024, the Supreme Court struck down the Electoral Bonds Scheme as unconstitutional, citing violations of voters' right to information. The scheme, which allowed anonymous political donations through bonds, was criticized for promoting opacity in political funding. The Court also invalidated related amendments to the RPA, Companies Act, and IT Act, emphasizing transparency and accountability in electoral democracy.

State Funding of Elections

State funding implies providing financial support to political parties or candidates from the public exchequer to conduct elections, reducing their dependence on private donations.

Need for Regulating State Funding

1. **Transparency & Accountability:** Ensures clean campaign financing and reduces opacity in political funding. Example: Election Commission's 1998 report recommended partial state funding with strict auditing.
2. **Curbing Influence of Money Power:** Limits corporate or vested interest influence over policy decisions. Example: ADR reports show high correlation between funding and policy favours.
3. **Level Playing Field:** Encourages fair competition, especially for smaller/regional parties.
4. **Reducing Black Money & Corruption:** Helps combat illicit funding and cash-based campaigning. Example: Law Commission of India (255th Report) stressed electoral integrity through funding reforms.

Challenges in State Funding

1. **Lack of Effective Disclosure Mechanisms:** Weak financial oversight may still allow underreporting and misuse.
2. **Cronyism & Policy Capture:** Risk of state funds benefiting certain parties disproportionately.
3. **Financial Burden on Taxpayers:** Public money might be misused, especially during times of fiscal stress.
4. **Uneven Electoral Landscape:** Uniform funding norms may not suit diverse regional parties or needs. Example: In India's multi-party system, equitable disbursement remains complex.
5. **Threat to Party Autonomy & Free Speech:** Over-regulation may hinder ideological diversity and political expression.

Important Committees

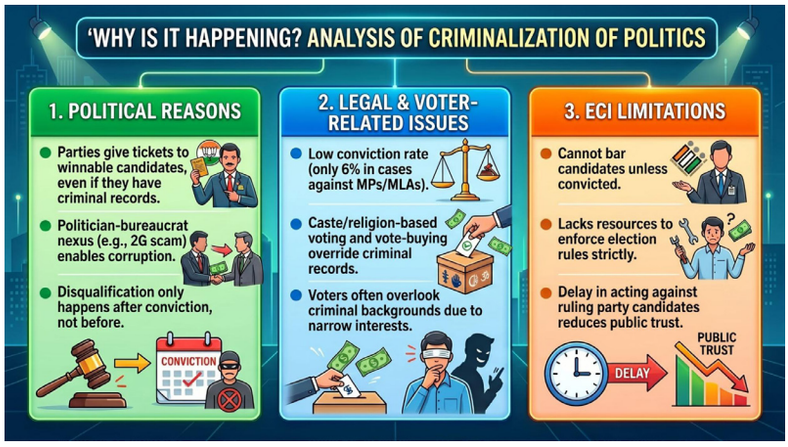
- **Indrajit Gupta Committee:** on State Funding of Elections (1998): Recommended partial state funding in the form of limited indirect subsidies for candidates and recognized parties.
- **Law Commission Report on Electoral Reforms (1999):** Advocated partial state reimbursement of election expenses to recognized parties and candidates to reduce corruption.
- **Second Administrative Reforms Commission Report (2008)**: Endorsed state funding of elections as part of a package of reforms to tackle corruption and criminalization in politics.
- **National Commission to Review the Working of the Constitution (2001)**: Recommended state funding of elections as an anti-corruption measure if certain transparency conditions are met.

Way Forward

- **Digital transactions:** Implementing a complete shift to digital transactions for political donations to enhance transparency and reduce the influence of illicit funding.
- **Limiting anonymous donations:** Restricting anonymous donations to a maximum of 20% to curb the potential corporate-political nexus.
- **Transparency through RTI:** Bringing political parties under the purview of the Right to Information (RTI) Act, similar to practices in Bhutan and Germany, to ensure transparency in their functioning.
- **National electoral fund:** Establishing a national electoral fund where donors contribute, and funds are distributed among parties based on their performance in the previous elections.
- **State funding of elections:** Exploring the recommendation from the Second Administrative Reforms Commission (2nd ARC) for state funding of elections, considering the high costs involved.
- **Expenditure cap on political parties:** Imposing a cap on the expenditure of political parties, calculated as a multiplication of half of the maximum prescribed limit for individual candidates and the total number of candidates fielded.

CRIMINALIZATION OF POLITICS

It refers to people with criminal backgrounds entering politics, contesting elections, and becoming MPs or MLAs.



What are the Consequences?

- **Weakens democracy** – Money and muscle power dominate.
- **Poor governance** – Bad laws, corrupt administration, and exclusionary policies.
- **Reduces voter choice** – Fair elections get compromised.
- **Damages institutions** – Parliament, judiciary, and rule of law lose credibility.
- **Promotes a culture of violence and lawlessness** in public life.

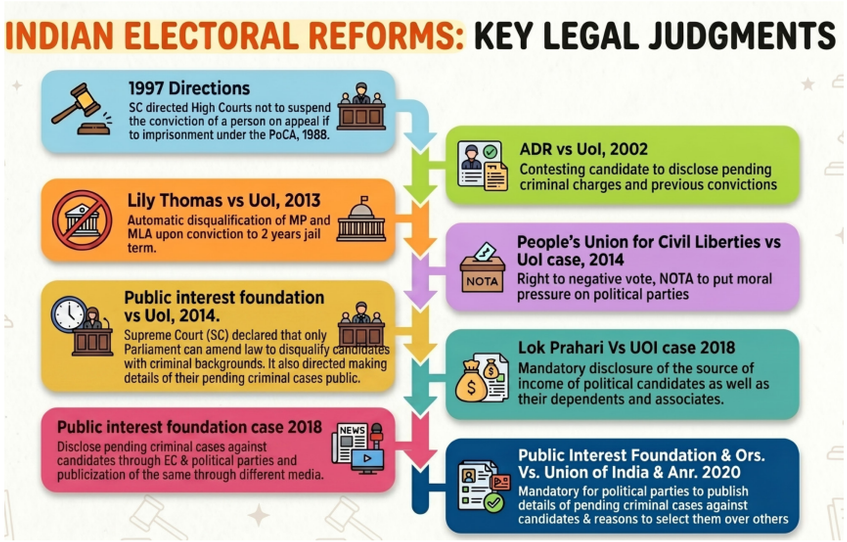
ADR 2025 Report: Key Highlights

- **Criminal MLAs**: 45% of 4,092 MLAs have criminal cases; 29% face serious charges like murder, rape, and crimes against women.
- **Top States**: Andhra Pradesh (79%), Kerala & Telangana (69%) lead in criminal MLAs.
- **Heinous Charges**: 54 MLAs for murder, 226 for attempted murder, 127 for crimes against women.
- **Education**: Delhi (100%) most educated MLAs; Jharkhand lowest (68%).
- **Wealth**: AP (36%) tops in billionaire MLAs.
- **Gender**: 23% of women MLAs face criminal cases.
- **Parties**: Regional parties worse than national parties in criminal MLAs.

Efforts to Curb Criminalization of Politics

- **EC Measures:** Mandatory affidavits on criminal records, seizure of black money via flying squads, rejection of convicted candidates, and voter awareness through SVEEP.
- **Legal Reforms Needed:** Amend RPA to disqualify candidates at charge-framing stage, fast-track trials within a year, and enforce automatic disqualification.
- **Party Reforms:** Ensure internal democracy to prevent control by convicted leaders.
- **State Funding:** Reduce money power in elections as suggested by expert committees.
- **Right to Recall & Contest Bar:** Allow voters to recall non-performers and bar those with serious charges.
- **Law Commission Suggestions:** Stricter penalties for false affidavits and declaring them a corrupt practice.

Steps Taken by Supreme Court



Constitution (130th Amendment) Bill, 2025

- The Bill proposes removal of the **Prime Minister, Chief Ministers, and Ministers** if they are **detained for serious criminal offences**.
- It applies to **Union, States, and Union Territories (including Delhi)**.
- Objective: To address **criminalisation of politics** and to ensure **ethical governance and constitutional morality**.

Key Provisions

- **Removal Based on Detention:** The Bill amends Articles 75, 164, and 239AA to provide that a Minister detained for **30 consecutive days** for offences punishable with **five years or more imprisonment shall be removed from office**.
- **Automatic Cessation of Office:** If no formal advice for removal is given, the concerned Minister shall **automatically cease to hold office on the 31st day of detention**.
- **Special Provision for PM and CM:** The Prime Minister or Chief Minister must **resign after 30 days of detention**, failing which they shall **automatically cease to hold office from the 32nd day**.
- **Reappointment Clause:** A removed or resigned Minister, Prime Minister, or Chief Minister may be **reappointed after release**, subject to the discretion of the **President or Governor**.
- **Extension to Union Territories:** The provisions are extended to Union Territories through amendments to the **Government of Union Territories Act, 1963 and the Jammu & Kashmir Reorganisation Act, 2019**.

Significance

- **Constitutional Morality:** Upholds ethical standards in public office.
- **Public Trust:** Ensures executive is free from individuals facing serious charges.
- **Institutional Clarity:** Clarifies tension between **"pleasure doctrine" and "aid & advice."**
- **Uniform Accountability:** Applies the same standards across **Union, States, and UTs**.

Challenges and Concerns

- **Presumption of Innocence:** Removal based on detention, not conviction. Goes beyond RPA, 1951 (which disqualifies after conviction of ≥ 2 years).
- **Conflict with RPA Framework:** Creates parallel disqualification mechanism. May lead to legal inconsistency and judicial scrutiny.
- **Political Misuse:** Risk of using investigative agencies to detain opposition leaders.
- **Federalism Concerns:** Governor's role in removal may strain **Centre–State relations**.
- **Judicial Scrutiny:** May violate Basic Structure doctrine and Natural justice (no trial before removal)
- **Governance Instability:**Frequent removal and reappointment may lead to Policy discontinuity and Cabinet instability.

Way Forward

- **Judicial/Parliamentary Safeguards:** Independent review of detention before removal.
- **Time-Bound Trials:** Fast-track courts for cases involving Ministers.
- **Political Reforms:** Parties should deny tickets to candidates with serious charges.
- **Cooperative Federalism:** Ensure consultation between Centre and States.

Additional Information

- **Right to Recall:** It is a tool of direct democracy whereby the electorate has the power to remove the elected officials **before the expiry of their terms.** A particular percentage of voters (Usually 50%) have to give in writing that they have to initiate proceedings. This is followed by a secret ballot. If it receives a specified limit (Usually 2/3 rd votes) then the person stands removed from his position.
  - **Examples in India:** In 2001, **Madhya Pradesh** amended its Panchayati Raj Act; voters now could recall non-performing elected representatives after two and a half years in office.
  - In 2020, The **Haryana Assembly** passed a significant Bill which provides the right to recall members of Panchayati Raj institutions if they fail to perform their duties.

Electoral Literacy Initiatives By ECI

- **Electoral Literacy Clubs (ELCs):** ELCs engage school, college, and rural students through interactive activities to raise awareness about electoral rights and the voting process, fostering a culture of electoral participation.
- **SVEEP Programme:** This initiative educates voters about the electoral process, including name registration, corrections, and deletions in the Electoral Roll.
- **ENCORE Software:** ECI's ENCORE platform simplifies candidate nominations by allowing online form submissions, affidavit verification, and appointments with Returning Officers, streamlining the election management process.

INTERNAL PARTY DEMOCRACY

Intra party democracy in Indian political parties is essential for fostering internal accountability, inclusive decision-making, and the overall health of the democratic process within political organizations. Internal party democracy means to uphold the decision of the majority of the party members, in accordance with their respective constitution.

The lack of democratic functioning of the parties is mainly manifested in two fundamental aspects:

- **Not open and inclusive Procedure:** The procedure for determining the leadership and composition of the parties is not completely open and inclusive. This adversely impacts the constitutional right of all citizens to equal political opportunity to participate in politics and contest elections.
- **Centralized mode of functioning:** The centralized mode of functioning of the political parties and the stringent **anti- defection law** of 1985 deters party legislators from voting in the national and state legislatures according to their individual preferences.

Whip System and Internal Party Democracy

- The **whip system in India**, while essential for maintaining party discipline in legislatures, often curtails individual legislators' freedom to vote based on conscience or constituency interests. This undermines **internal party democracy**, as elected representatives are bound to follow party lines rather than engage in open debate or dissent.
- Parties rarely allow internal deliberation before issuing whips, concentrating decision-making in the hands of top leadership. Strengthening internal democracy would require reforms in the whip system to allow greater space for individual voices within parties.

Way Forward for Political Cleanliness

- **Reform Anti-Defection Law:** Amend to allow dissent except during crucial votes like no-confidence motions
- **Promote Intra-Party Democracy:** Encourage internal elections within parties (like U.S. primaries) to reduce high-command control.
- **Ensure Financial Transparency:** Mandate timely submission of expenditure reports by parties to ECI.
- **Inclusive Representation:** Provide reservations for women and backward classes in candidate lists.
- **Empower ECI:** Grant ECI power to investigate violations and enforce compliance.
- **Penal Provisions:** Allow ECI to deregister parties not conducting free and fair internal elections.

POLITICS OF FREEBIE

In February 2026, a Supreme Court bench led by CJI Surya Kant criticized the "freebies" culture in Tamil Nadu Power Distribution Corporation Limited v. Union of India, warning that unregulated, pre-election handouts—like free electricity—threaten long-term economic growth and nation-building by worsening state deficits.

The Reserve Bank of India (RBI) in a bulletin in June 2022 defined 'freebies' as "a public welfare measure that is provided free of charge. It includes provisions like free electricity, water, public transportation, the waiver of outstanding utility bills, and farm loan waivers.

Concerns with Excessive Freebies

- **Tax Burden on States:** Freebies add to state debt, limiting funds for critical welfare programs. Example: Punjab's electricity subsidy takes up 16% of its revenue.
- **Contradiction to Constitutional Principles:** Promises made without financial backing violate constitutional duties.
- **Fiscal Shrinkage:** Freebies are funded through debt, breaching fiscal management rules and increasing state deficits.
- **Unequal Advantage in Elections:** Targeted freebies for specific groups undermine fairness in elections.
- **Decline in Social Sector Spending:** Despite increased resources, states are cutting back on essential areas like health and education.
- **Environmental Impact:** Free electricity leads to excessive groundwater use, causing long-term ecological damage, especially in Punjab and Haryana.

Challenges in Curtailing Freebie Culture

- **Lack of Regulatory Power:** The Election Commission lacks authority to regulate promises made by political parties.
- **No Financial Viability Assessment:** Political parties often do not clarify how they will fund their populist promises.
- **Voter Information Deficit:** Voters often do not consider the financial implications of freebies, leading to unchecked promises.

Supreme Court Response

- **Judgment Shift:** The Supreme Court recently proposed a body to address freebies, marking a shift from its 2013 decision in S. Subramaniam Balaji vs Tamil Nadu, where it did not consider election promises as corrupt practices.
  - Upheld welfare freebies as aligned with Directive Principles.
- The Ashwini Upadhyay case (ongoing) challenges freebies in elections.
- The Election Commission demands transparency, urging parties to reveal funding sources for such promises.
- In February, 2025, Supreme Court Judge Justice B.R. Gavai questioned whether unchecked distribution of freebies was fostering dependency among the poor, discouraging them from working and integrating into the mainstream, thus hindering national development.
  - He remarked, "Are we creating a parasitic mindset where people, due to these benefits, avoid work and contribution?"

Way Forward

- **Voter Responsibility:** Voters must be cautious and inquire about the financial sustainability of promises.
- **Empowering ECI:** The Election Commission needs more authority to regulate the use of public funds for political promises.
- **Model Manifesto:** ECI could introduce responsible promise-making measures under the MCC.
- **Welfare Spending Limits:** Capping welfare spending to a percentage of state GDP or revenue could ensure better fiscal discipline.
- **Tracking Social Sector Funding:** Allocate more resources to health and education to bridge the gap with other developing nations

Welfare Vs Freebies

- **Welfarism** involves long-term, constitutionally backed support like PDS, MGNREGA, and health/education schemes to build human capital.
- **Freebies**, like free power or debt waivers, are short-term handouts that distort markets, weaken credit culture, and reduce work incentives, as noted by the Supreme Court.

AI AND ELECTIONS

Artificial Intelligence (AI) refers to the simulation of human intelligence in machines that are programmed to think like humans and mimic their actions. It includes technologies like machine learning, pattern recognition, big data, self algorithms etc.

Significant Potential of AI in Elections

- **Increased Voter Engagement:** AI can spread awareness via social platforms, helping voters understand issues and candidates, leading to greater engagement.
- **Promoting Inclusiveness:** AI apps like Bhashini can offer information in multiple languages and assist disabled voters, making the process more accessible.
- **Election Transparency and Security:** AI can ensure transparent advertising, restrict misinformation, and monitor polling processes using machine learning to maintain election integrity.
- **Strengthened Democracy:** The ECI uses AI for online voter registration and voter list access, creating awareness and addressing grievances through technology and social media.

Challenges	Description	Actions Taken by India	Way Forward
Misinformation & Disinformation	Deepfakes and AI-generated content can harm reputations and undermine trust in democratic institutions.	The government issued advisories to digital platforms to prevent misinformation during elections.	Establish a legal framework for AI regulation, focusing on transparency and data protection.
Social Media Amplification	Social media platforms amplify misinformation risks due to reduced fact-checking teams.	The government is engaging with platforms to minimize misinformation risks in elections.	Strengthen collaborations with tech companies to ensure electoral integrity.
Microtargeting	AI can manipulate voter preferences through targeted ads, undermining election fairness.	Ongoing advisories and partnerships to ensure fair play in campaigns.	Introduce regulations for transparency in targeted political ads.
Privacy Concerns	Data breaches and unauthorized access to personal information due to large-scale AI processing.	IT Act Section 66E addresses privacy violations, with penalties for deepfakes.	Enhance data protection laws for AI systems in elections.
Erosion of Trust	AI-generated content can lead to widespread distrust in the authenticity of information.	Government addressing trust issues through advisories and collaborations to ensure election integrity.	Launch public awareness campaigns on the risks of AI misinformation.
No Specific Law	Lack of laws to address AI-related crimes like deepfakes and misinformation.	Government finalizing a legal framework and collaborating with Google-ECI to prevent false content.	Implement a clear regulatory framework to address deepfakes and AI-related crimes.

Key Words

Erosion of Trust, Freebies, Encore, internal party democracy, dynastic politics, criminalisation of politics, MCC, 2ND ARC, Misinformation, microtargeting, Systematic Voters' Education and Electoral Participation (SVEEP), Misinformation & Disinformation

Previous Year Questions	Year
1. In the light of recent controversy regarding the use of Electronic Voting Machines (EVM), what are the challenges before the Election Commission of India to ensure the trustworthiness of elections in India?	2018
2. Simultaneous elections to the Lok Sabha and the State Assemblies will limit the amount of time and money spent in electioneering but it will reduce the government's accountability to the people' Discuss.	2017
3. To enhance the quality of democracy in India the Election Commission of India has proposed electoral reforms in 2016. What are the suggested reforms and how far are they significant to make democracy successful?	2016

❖ ❖ ❖

19 Delimitation Commission

The Delimitation Commission in India is a **statutory body** responsible for determining the boundaries of various constituencies in the country for the purpose of elections.

About Delimitation

- It is the process of redrawing boundaries and fixing the number of seats in Lok Sabha and State Assemblies.
- Conducted by an independent **Delimitation Commission** under **Article 82**, as per a law enacted by Parliament.

- **Appointment:** The Delimitation Commission in India is appointed by the President and works in collaboration with the Election Commission of India (ECI).
- **Composition:** It comprises a retired Supreme Court judge, the Chief Election Commissioner, and the respective State Election Commissioners.
- **Authority:** It is a high-powered body with its orders having the force of law and cannot be challenged in court.
- **Reporting:** The commission's orders are presented before the Lok Sabha and State legislative assemblies, but modifications are not permitted.

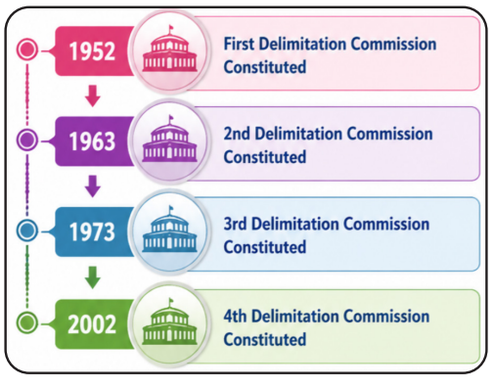


Fig. 19.1: Milestones in India's Delimitation Process

Functions of the Delimitation Commission

- **Boundary Determination:** Determines the boundaries and number of constituencies, ensuring population equality among them.
- **Seat Allocation for SC/ST:** Decides on the allocation of seats for Scheduled Castes (SC) and Scheduled Tribes (ST) in areas with significant SC/ST populations (as per Articles 330 and 332).
- **Readjusting the representation of territorial constituencies:** Readjust the representation of territorial constituencies in the Lok Sabha (House of People) and Legislative Assemblies based on the latest population census statistics.
- **Recommendations and Public Participation:** Publishes draft recommendations in the Gazette of India, state gazettes, and regional media. Conducts public hearings to consider public opinions, incorporating modifications as necessary.
- **Majority Decision:** Adopts the majority decision in case of dissent among Commission members.

Judicial Review of Delimitation

- **SC in Kishorchandra Rathod case:** Held that constitutional courts can review Delimitation Commission's orders if they are *manifestly arbitrary* or violate *constitutional values*.
- **Gujarat HC's earlier stance:** Dismissed a petition citing **Article 329(a)**, which bars courts from interfering in electoral matters.
- **SC in Meghraj Kothari case:** Clarified that judicial interference isn't completely barred—it can be allowed to prevent undue delay, not to halt the electoral process.
- **DMK v. State of T.N:** Rejected a total bar on judicial review; courts can intervene in cases of **mala fide or arbitrary** use of power.

84th Constitutional Amendment Act (2002)

- **Delimitation Freeze:** The 84th Amendment froze the delimitation of Lok Sabha and State Assembly seats until the first Census after 2026.
- **Objective and reasons**:
  - **For Population Stabilization:** Keeping in view the progress of family planning programmes in different parts of the country, the Government, as part of the National Population Policy strategy, decided to extend the freeze on undertaking fresh delimitation up to the year 2026 as a motivational measure to enable the State Government to pursue the agenda for population stabilization.

International Practices

- **In a federation like the U.S, the** number of seats in the House of Representatives (the equivalent of our Lok Sabha) has been capped at 435 since 1913. The seats among the States are redistributed after every Census through the **'method of equal proportion'.** This does not result in any significant gain or loss for any of the States.
- **In the European Union (EU) Parliament** which consists of 720 members, the number of seats is divided between 27 member countries based on the principle of '**degressive proportionality'**. Under this principle, the ratio of population to the number of seats shall increase as the population increases.

Significance of the Delimitation Commission

- **Equitable representation:** Ensures nearly equal population per constituency (e.g., aligning seats in Bihar and Kerala to represent similar numbers), upholding the principle of "one vote, one value."
- **Fair regional balance:** Prevents regional over-representation and ensures a level political playing field.
- **Identifying reserved seats:** Allocates SC/ST-reserved constituencies—e.g., Nagina (SC) in Uttar Pradesh or Bastar (ST) in Chhattisgarh.

Criticism of the Delimitation Commission

- **Population Control Bias:** States promoting family planning risk having their seats reduced, while states with less emphasis on population control may gain more seats.
- **Outdated Seat Allocation:** Delimitation done in 2008 was based on the 2001 census, but the total number of seats remained unchanged since 1971, leading to a disparity between population growth and representation.
- **Constitutional Seat Limits:** Because there are fewer seats available (550 for the Lok Sabha and 250 for the Rajya Sabha), fewer representatives can effectively represent larger populations.
- **Unequal Representation:** Fixed seat allocation and population growth lead to unequal representation, impacting the voice and influence of growing populations.

THE 2026 DELIMITATION, WOMEN'S RESERVATION & SEAT AUGMENTATION PLAN

- The government plans to increase Lok Sabha seats from 543 to 816 by 2029 to fast-track the 33% Women's Reservation based on 2011 Census.

Key Strategy:

- **Pro-Rata Increase or Uniform Expansion:** Rather than redrawing boundaries based on new, uneven population growth, seats will increase by 50% across all states.
- **Relative Stability:** By keeping the state-wise ratio constant (e.g., UP moves from 80 to 120, Tamil Nadu moves 39 to 59), the government aims to avoid "punishing" Southern states for successful population control.
- **Quota Capacity:** This expansion creates the room needed to accommodate the 33% Women's quota and increased SC/ST reservations.

Core Concerns

- **Outdated Data:** Relying on the 2011 Census ignores 15 years of rapid urbanisation and migration.
- **Fiscal Inequality:** Even with proportional seats, states fear losing their influence over national tax-sharing (Finance Commission) and policy priorities.
- **Parliamentary Quality:** An 800+ member house may become chaotic, making effective legislative debate more difficult. Proposed

Way Forward

- **Multi-Factor Formulas:** Include TFR (fertility rates), HDI, and tax contribution in the seat-allocation formula rather than relying only on population.
- **Strengthen Federalism:** Give the Rajya Sabha more power to act as a permanent safeguard for state interests.
- **Transparency:** Include all regional parties and experts in the Commission to prevent gerrymandering accusations.

Key Words

Unequal Representation, Population Control Bias, Fair Regional Distribution, Disenfranchisement and Economic Contributions, responsible for Equitable Representation.

20 Attorney General of India

The Attorney-General of India, appointed under Article 76 of the Constitution, is the highest law officer and chief legal adviser to the Government of India. Qualified to be a Supreme Court judge, the Attorney-General advises the government on legal matters, represents it in the Supreme Court and other courts, and performs legal duties assigned by the President.

RIGHTS, RESPONSIBILITIES & LIMITATIONS OF ATTORNEY-GENERAL OF INDIA: (UPSC 2019 & 2025)

Rights of the Attorney General

1. **Right of Audience:** Entitled to appear in all courts across India.
2. **Parliamentary Participation:** Under Article 88, can attend and speak in either House of Parliament or any committee thereof, though without voting rights.
3. **Legal Advisory:** Assists in drafting complex legislation and represents the government during presidential references to the Supreme Court under Article 143.
4. **Privileges:** Enjoys the same immunities and parliamentary privileges as a Member of Parliament.

Duties of the Attorney-General

1. **Legal Advisor to the Government:** Advises the Union Government on legal matters referred by the President. *Example: Gave legal opinion during constitutional amendments or major reforms like GST implementation.*
2. **Performs Legal Functions Assigned by the President:** Includes drafting legal documents, giving opinions, and participating in important legal proceedings.
3. **Government Representation in Courts:** Appears on behalf of the Union in the Supreme Court and High Courts. *Example: Represented the Centre in matters like Aadhaar, CAA, and NRC cases.*
4. **Assists under Article 143:** Participates when the President refers a question of law to the Supreme Court for advisory opinion.
5. **Upholds Constitutional Responsibility:** Ensures legal positions taken by the Government align with constitutional principles.
6. **Constitutional Interpretation:** Clarifies legal ambiguities (e.g., Right to Privacy case, Aadhaar).
7. **International Guidance:** Provides advice on global treaties (e.g., Paris Climate Agreement).
8. **Parliamentary Role:** Assists in law-making processes (e.g., electoral reforms).
9. **Legal Reforms:** Suggests improvements in laws and judicial processes

Role as the Lawyer

1. **Representation in Courts:** Represents the government in major cases (e.g., NJAC case).
2. **Defends Government Policies:** Argues for executive decisions (e.g., Rafale deal).
3. **Constitutional Disputes:** Handles Centre-State conflicts (e.g., Delhi control case).
4. **International Legal Representation:** Assists in global disputes (e.g., Kulbhushan Jadhav).
5. **Public Interest Cases:** Represents constitutional morality (e.g., Triple Talaq, Section 377 decriminalization).

Limitations on the Attorney-General

1. **Cannot Act Against the Government:** Not permitted to advise or appear in court against the Union Government. *Maintains institutional integrity and avoids conflict of interest.*
2. **Restricted Role in Criminal Cases:** Cannot represent private parties or accused in criminal cases without prior government permission.
3. **Bar on Private Engagements without Approval:** Needs explicit government consent to join boards of companies, PSUs, or advise statutory bodies.
4. **No Executive Authority:** Not a cabinet minister; cannot influence government policy decisions.
5. **Tenure:** Holds office at the "pleasure of the President," lacking fixed tenure, which can impact institutional independence.

Key Words

Legal Duties, Discharging Constitutional and Legal Functions, Grievance Redressal, Spreading Awareness, Constitutional Safeguards.

Previous Year Questions	Year
1. "The Attorney General of India plays a crucial role in guiding the legal framework of the Union Government and ensuring sound governance through legal counsel." Discuss his responsibilities, rights and limitations in this regard.	2025
2. The Attorney-General is the chief legal adviser and lawyer of the Government of India. Discuss.	2019

21 National and State Human Rights Commission

NHRC is a **statutory body established in 1993** under the legislation, the **Protection of Human Rights Act, 1993.** It is the **watchdog of human rights** in the country. It was established in conformity with the Paris Principles (1991) adopted for the promotion and protection of human rights.

FUNCTIONS AND CHALLENGES OF NHRC

Functions

- It has all the powers of a civil court while trying a suit under the Code of Civil Procedure, 1908.
- Inquire into human rights violations by public servants suo-motu or based on petitions.
- Intervene in court cases involving human rights violations.
- Review legal safeguards and recommend effective implementation.
- Study international human rights treaties and promote research and literacy.
- Visit jails to assess inmate conditions and suggest reforms.
- Review factors inhibiting human rights and encourage NGO efforts.

Role played by NHRC

- Issued guidelines on prison reforms, custodial deaths, and manual scavenging.
- Criticized laws like POTA and TADA for misuse.
- Extended focus to socio-economic rights, e.g., addressing poverty in Odisha's Kalahandi.

How NHRC acts as a Complement to the Judiciary and Other Institutions **(UPSC 2014)**

- **Investigative & Advisory Role:** It has the power to investigate human rights violations, conduct inquiries, and recommend actions to authorities.
- **Oversight of Government Agencies:** Monitors police actions, jails, and custodial violence.
- **Policy Advocacy:** Influencing lawmaking and governance reforms by pushing for legislative and regulatory changes that address societal needs. E.g.: NHRC's recommendations shaped the Juvenile Justice Act, 2000.
- **Awareness Generation:** Conducts campaigns to educate citizens and officials. E.g.: NHRC's initiative for open Online Courses on Human Rights.

Protection of Human Rights (Amendments) Act, 2019

The Protection of Human Rights (Amendment) Act, 2019 was enacted to enhance the inclusivity, efficiency, and compliance of the National Human Rights Commission (NHRC) and State Human Rights Commissions (SHRCs) with international standards, particularly the Paris Principles.

Key Amendments

- **Expanded Eligibility for Chairperson Positions:** Previously, only a former Chief Justice of the Supreme Court could be appointed as the NHRC Chairperson. The amendment allows a former Supreme Court Judge to also be eligible. Similarly, for SHRCs, the eligibility extends to former High Court Judges, not just Chief Justices.
- **Increased and Diversified Membership:** The number of NHRC members with human rights expertise increased from two to three, mandating that at least one member be a woman.
- **Inclusion of Additional Statutory Bodies:** The amendment designates the Chairpersons of the National Commission for Backward Classes, the National Commission for Protection of Child Rights, and the Chief Commissioner for Persons with Disabilities as deemed members of the NHRC, broadening its representational scope.
- **Reduced Tenure for Commission Members:** The term for the Chairperson and members of both NHRC and SHRCs has been reduced from five years to three years, with eligibility for reappointment.
- **Extended Jurisdiction of SHRCs:** State Commissions are now empowered to address human rights issues in Union Territories, except for Delhi, which remains under the NHRC's purview.

Challenges Faced by NHRC [UPSC 2021]

- **Lack of Enforcement Power:** Its recommendations are not binding which acts as a major hurdle.
- **Dependence on Police for Investigation:** The police, being part of the executive branch of government, may be hesitant to investigate cases involving state authorities or their allies..
- **Political Interference:** Government-appointed members raise impartiality concerns towards people against ruling government ideologies. E.g: Alleged bias in NHRC's response to the 2019 student protests crackdown.
- **Lack of Coordination with Other Accountability Bodies:** NHRC's work often overlaps with institutions like Lokpal, and CVC, leading to inefficiencies.
- **Staff Issues:** Many officers are on deputation, creating conflicts of interest.
- **Global Criticism:** Global Alliance for National Human Rights Institutions (GANHRI) deferred NHRC's accreditation over issues like political interference, poor civil society cooperation, and lack of diversity.
- **Limitations:** Cannot investigate cases after one year, and is excluded from dealing with armed forces' violations or personal law cases.

Remarks Regarding NHRC

- **Soli Sorabjee:** NHRC is an illusion with no practical relief.
- **Supreme Court:** Called it a "toothless tiger."
- **Lack of Investigation Mechanism:** Dependent on governments for investigations.
- **Non-binding Orders:** Government often rejects NHRC recommendations.
- **Limited Infrastructure:** Reduced staff despite rising cases, leading to delays.

Way Forward

- **Enforceable Powers:** Decisions of NHRC should be made enforceable.
- **Commission's composition**: Greater representation to civil society, human rights activists, etc. Instead of ex-bureaucrats. This will ensure the independent functioning of the body.
- **Ahmadi commission recommendations**: Remove one-year ceiling to take cases by NHRC. Also, the term of the Armed force shall not include paramilitary forces.
- **Independent staff:** And dedicated investigating team to ensure timely disposal of cases.
- **Coordination mechanism:** Need to establish coordination mechanism between NHRC and SHRC.
- **Diversify the role of NHRC:** Towards new emerging concerns like rights of LGBT, industries and human rights, environmental impact on human rights, etc.

Recent NHRC Initiatives (2023–2025)

1. **Foxconn Gender Bias Case (2025):** Ordered reinvestigation into Foxconn for allegedly denying jobs to married women—highlighted employment discrimination.
2. **Judicial Custody Deaths (2024):** Recommended ₹4.5 crore compensation in 89 cases—flagged custodial safety lapses.
3. **Anti-Human Trafficking Push (2024):** Directed states to appoint senior nodal officers to combat trafficking after reports from Rajasthan.
4. **Public Engagement via Competitions:**
   - Short film and photography contests on LGBTQ+ rights, caste, women's rights, etc.
   - Aimed at spreading human rights awareness.
5. **Human Rights Education:**
   - Internships and training programs for students and legal professionals, including one in Manipur.

Key Words

Enforceable Powers, Coordination mechanism, investigation mechanism, Political interference, Insufficient action, Global Alliance of National Human Rights Institutions (GANHRI).

Previous Year Questions	Year
1. Though the Human Rights Commissions have contributed immensely to the protection of human rights in India, yet they have failed to assert themselves against the mighty and powerful. Analyzing their structural and practical limitations, suggest remedial measures.	2021
2. The National Human Rights Commission (NHRC) in India can be most effective when its tasks are adequately supported by other mechanisms that ensure the accountability of a government. In light of the above observation assess the role of NHRC as an effective complement to the judiciary and other institutions in promoting and protecting human rights standards.	2014

22 Central and State Information Commission

The Central and State Information Commissions are statutory bodies established under the Right to Information (RTI) Act, 2005. They play a pivotal role in upholding citizens' right to access information, thereby promoting transparency and accountability in governance.

- While the Central Information Commission (CIC) deals with complaints and appeals related to central public authorities, the State Information Commissions (SICs) perform a similar function for state public authorities.

Functions	Challenges
❖ Inquiry into complaints and disciplinary action against information officers: ➢ Unable to submit information request due to non-appointment of a Public Information Officer. ➢ Refused requested information not received a response to an information request within the specified time limits. ➢ Fees charged are unreasonable. ➢ Feels that information given is incomplete, misleading, or false. ❖ **Suo-moto power**: It can order an inquiry into any matter if there are reasonable grounds ❖ **Powers of a civil court** while inquiring. ❖ **Examine any record:** All public records must be given to the CIC during inquiry for examination. ❖ Secure compliance to its decisions from the public authority. ❖ **Promote good governance:** CIC promotes citizen participation in governance and promotes transparency and accountability in governance.	❖ **Delayed appointments:** As per the RTI, since 2014 CIC was functioning without a Chief Information Commissioner for more than 400 days and has not functioned at full strength for more than 4 years. ❖ **Bureaucratization:** Despite RTI providing for the appointment of experts from various fields, CIC and IC are occupied by retired bureaucrats. ❖ **Pendency:** As per the report by Satark Nagrik Sangathan more than 2.2 lakh RTI cases are pending at the Central and State Information Commissions (ICs). ❖ **Delayed case disposal:** As per the report by Satark Nagrik Sangathan CIC takes an average of 388 days to dispose of a case from the date that it was filed before the commission. ❖ **Poor judgments:** Government officials in very low numbers of cases face any punishment for violating the laws.

Impact of RTI (Amendment) Act, 2019 on Autonomy of Information Commission [UPSC 2020]

- **Tenure & Salary Control:** Central Government now determines tenure and salary of CIC and ICs (earlier fixed and at par with ECs), increasing scope for executive influence.
- **Removal Vulnerability:** Control over service conditions may make commissioners susceptible to executive pressure, affecting independent decision-making.
- **Appointment Implications:** Though process unchanged, indirect control may discourage competent candidates and enable greater executive influence in selection.
- **Public Trust Deficit:** Perceived erosion of autonomy may reduce credibility of Information Commissions, weakening RTI as a tool of transparency.

Issues highlighted by Satark Nagrik Sangathan Report

- **Missing during Covid-19 pandemic:** 21 Out of the total 29 studied ICs, were not holding any hearings
- **Absence of a centralized database** of RTI applicants at the central or state level leads to inaccurate annual RTI reports and analysis.
- **No adequate authority:** The Act did not give adequate authority to the ICs to enforce their decisions.
- **Inadequate Trained PIOs and First Appellate authority:** This results in breaking the 30 days timeline for providing information as due to lack of proper training PIOs are not able to provide the information in a time bound manner.
- **No punishments:** Government officials do not face any penalty for lack of their duty or improper behavior.

Right to Information Framework

The **Right to Information Act, 2005** is a landmark legislation that institutionalizes **transparency, accountability, and participatory governance** in India.

- It empowers citizens to access information held by public authorities, thereby strengthening **democratic oversight and rule of law**.
- At a deeper level, RTI transforms governance from a **"culture of secrecy" to a "culture of justification"**, where the state becomes answerable to citizens.

Objectives of the RTI Act, 2005

- Promote **transparency and openness** in governance
- Ensure **accountability of public authorities**
- Reduce **corruption and arbitrariness in decision-making**
- Empower citizens through **informed participation in democracy**

RTI transforms governance from **secrecy-based administration to information-driven accountability system**, strengthening **substantive democracy**.

Three-Tier Structure of RTI Mechanism

- The RTI framework provides a **structured and time-bound grievance redressal system**, where the **Central/Public Information Officer (CPIO/PIO) acts as the first point of contact and is responsible for providing information within prescribed timelines**.
- If the applicant is not satisfied, the **First Appellate Authority (FAA) hears appeals against the decisions of the PIO and ensures internal accountability within departments**.
- At the final level, **Information Commissions, including the Central Information Commission (CIC) and State Information Commissions (SICs), act as final appellate authorities to decide disputes related to information access**.

Concerns with RTI Act

- **Delay in Appointment of Information Commissioners**
  - Chronic delays by Centre and States in filling vacancies in CIC and State Information Commissions.
  - As of 2024, 8 vacancies in CIC, 23,000+ appeals pending.
  - Many State Commissions have been defunct since 2020; some stopped accepting petitions.
  - **SC Observation:** In Anjali Bhardwaj & Ors. v. Union of India (2019), the Supreme Court directed timely appointments and emphasized diversity and transparency in selecting ICs, not just appointing ex-bureaucrats.
- **Lack of Transparency and Autonomy**
  - RTI (Amendment) Act, 2019 allows Centre to decide ICs' tenure and salaries, undermining institutional independence.
  - Appointments dominated by retired civil servants raise doubts about impartiality.
- **Poor Implementation and Access Issues**
  - Inconsistent rules across states; some lack online RTI portals.
  - Citizens are often forced to file first and second appeals due to poor quality of initial responses by PIOs.
  - **Example:** Variations in RTI rules affect accessibility—e.g., language barriers, offline-only processes in some states.
- **Privacy vs. Transparency Conflict**
  - RTI Act (Section 8(1)(j)) allowed disclosure of personal data if public interest justified it.
  - DPDP Act, 2023 now prohibits such disclosures, shielding public officials from scrutiny.
- **Exemptions under RTI**
  - Laws like the Official Secrets Act, 1923, Indian Evidence Act, 1872 (now Bharatiya Sakshya Adhiniyam), and AIS Conduct Rules, 1968 allow officials to withhold information, limiting transparency under the RTI Act, 2005.

Key Words

Inadequate Training, good governance, Suo-moto power, Bureaucratization, Pendency.

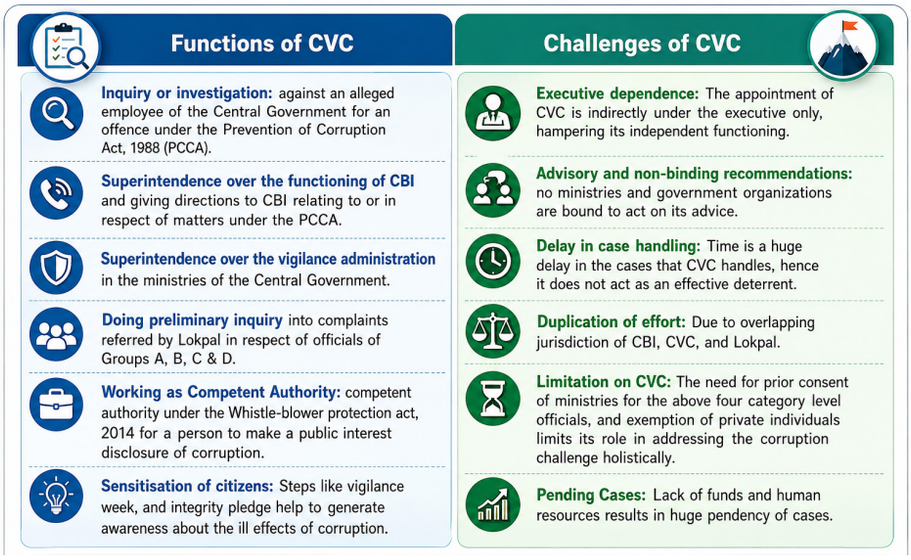
Previous Year Questions	Year
1. "Recent amendments to the Right to Information Act will have a profound impact on the autonomy and independence of the Information Commission".	2020

23 Central Vigilance Commission (CVC)

The Central Vigilance Commission (CVC) is an apex governmental body in India that is responsible for addressing issues related to corruption and promoting transparency and integrity in public administration. CVC was established in 1964 by an executive resolution on the recommendation of the **Santhanam Committee.** In 2003, the Parliament conferred a statutory status on the CVC. It is the main agency for preventing corruption in the Central government.

ABOUT CVC

- **Appointment:** By the President by the warrant under his hand and seal on the recommendation of a three-member committee (PM+ Home minister + the Leader of the Opposition in the Lok Sabha).
- **Removal:** By President only on the grounds of proved misbehaviour or incapacity and after a inquiry of Supreme Court find these to be true. (Some other circumstances like crimes of moral turpitude, undischarged insolvent, infirmity of mind or body, paid employment outside govt. etc.)
- **Composition:** Central Vigilance Commissioner + Maximum two vigilance commissioners.
- **Fixed Tenure:** 4 years/ 65 years whichever is earlier and ineligible for further employment under the Central or a state government.
- **Fixed salary, allowances, and service conditions:** It is similar to the Chairman of UPSC (in the case of chief vigilance commissioner) and similar to a member of UPSC (in the case of vigilance commissioner).
- **Independent staff:** CVC has its Secretariat, Chief Technical Examiners' Wing, and a wing of Commissioners for Departmental Inquiries.



Way Forward

- Ensure the **independence of the commission**.
- **Timely appointment** of CVC and VCS and ensure diversity in commission composition.
- **Adequate funding:** There should be adequate funds to ensure modern infrastructure for efficient functioning.
- **Adoption of modern technology** like AI, Big Data and digitization of functioning.
- **Avoid overlapping jurisdictions** of various agencies like Lokpal, and CBI by ensuring role clarity.

Key Words

Independence, Adequate funding, overlapping jurisdictions, Sensitization of citizens, Competent Authority.

24 Union Executive and State Executive

The organ of the government that primarily looks after the function of implementation and administration is called the executive. While the heads of government and their ministers, saddled with the overall responsibility of government policy, are together known as the political executive, those responsible for day to day administration are called the permanent executive.

COMPARISON OF UNION EXECUTIVE AND STATE EXECUTIVE

Union Executive	State Executive
❖ Articles 52 to 78 in Part V of the Constitution deal with the Union executive. ❖ The Union executive consists of the President, the Vice- President, the Prime Minister, the council of ministers and the attorney general of India. ❖ The President is the nominal executive head whereas the PM is the real executive head. ❖ Executive power of the Union is vested in the President, and is exercised by him either directly or through officers subordinate to him in accordance with the Constitution (Article 53). ❖ The President has to act in accordance with aid and advice of the council of ministers headed by the prime minister (Article 74).	❖ Articles 153 to 167 in Part VI of the Constitution deal with the state executive. ❖ The state executive consists of the Governor, the Chief Minister, the council of ministers and the advocate general of the state. ❖ The Governor is the chief executive head of the state. But, like the President, he is a nominal executive head (titular or constitutional head). CM is the real executive head. ❖ The executive power of the state is vested in the Governor and it is exercised by him either directly or through officers subordinate to him in accordance with this Constitution (Article 154). ❖ The Governor has to act in accordance with aid and advice of the council of ministers headed by the CM, except his discretionary functions (Article 163).

THE PRESIDENT OF INDIA

The President is the head of the Indian State. He is the first citizen of India and is a symbol of solidarity, unity, and integrity of the nation. The President of India, though largely a ceremonial head, plays a vital constitutional role with certain independent powers:

1. **Guardian of the Constitution:** The President acts as the custodian of the Constitution, ensuring that governance adheres to constitutional provisions and values.
2. **Discretion in Coalition Era:** In situations like hung Parliaments or coalition governments, the President exercises discretionary power in appointing the Prime Minister, ensuring political stability.
3. **Emergency Powers:** During national, state, or financial emergencies, the President assumes vast powers to safeguard national interest, acting on Cabinet advice.
4. **Check on Arbitrary Laws:** The President can withhold assent, return a bill (except Money Bills), or seek reconsideration, providing a check on hasty legislation.

Fig. 24.1: Presidential Veto Powers

Veto Powers of President

The President has the veto power i.e., he can withhold his assent to the bills, over the bills passed by the Parliament & state legislatures.

- ❖ The President of India is vested with three—absolute veto, suspensive veto and pocket veto. The USA has qualified veto as well, but the Indian President lacks it.
- ❖ The veto power is conferred on the President/ Governor to prevent hasty and ill-considered legislation by the Parliament/state legislature, to prevent a legislation which may be unconstitutional and to ensure additional layer of check and scrutiny.

President of India not Merely a Rubber Stamp

- ❖ The President has a constitutional right to seek information from the Prime Minister under Article 78 of the Constitution. Further it can send back a decision taken by a minister for the reconsideration by Council of Ministers.
- ❖ During his tenure, **President K. R. Narayanan** exercised referral power two times.
  - ➢ He returned the advice of the Cabinet for its reconsideration regarding the imposition of the President's rule in the States of U.P. and Bihar during the Gujral and Vajpayee governments respectively and saved those governments.

Impeachment of the President of India

- **Reason for Impeachment:** The President can be removed for **'violation of the Constitution'**.
- **Impeachment Resolution:** It can be initiated by either House of Parliament. These charges should be signed by one-fourth members of the House (that framed the charges), and a 14 days' notice should be given to the President.
- **2/3rd majority of the total membership in the first House (where the process has been initiated):** After the impeachment resolution is passed by a majority of two-thirds of the total membership of that House, it is sent to the other House, which should investigate the charges.
- **2/3rd majority of the total membership in the second House:** The President is removed from office as of the date the impeachment resolution is passed if the other House also upholds the allegations and votes in favor of it by a majority of two-thirds of its members.

Issues with Impeachment of President of India

- The term **'violation of constitution'** is a very vague term & has not been defined anywhere in the constitution'.
- Elected members of legislative assemblies have no role to play in impeachment proceedings while they have a role in election of the President.
- Nominated members of Parliament have the right to vote in case of impeachment, while no voting right in election of President.
- Procedure & authority to investigate the charges against the President have not been specified nor any definite time period has been specified.

Criticism of the Office of the President

- **Limited Authority:** Acts largely as a ceremonial head, bound by the advice of the Council of Ministers.
- **Indirect Election:** Lack of direct public mandate questions democratic legitimacy.
- **Discretionary Powers Misuse:** Controversial use in appointing Prime Ministers, vetoing bills, or imposing President's Rule.
- **Politicized Elections:** Partisan influence undermines the office's non-partisan nature.

President's Rule in India

- **President's Rule in India** is imposed under Article 356 of the Constitution when the President, on receipt of the Governor's report or otherwise, is satisfied that the constitutional machinery in a state has broken down. A-365 provides for assumption by the President of breakdown of constitutional machinery if states fail to follow legal directions given by the Union Executive.
  - It was recently imposed in **Manipur**, after the CM's resignation and no party was able to form the government leading to the breakdown of the constitutional machinery. After nearly a year under President's Rule, **Yumnam**
  - **Khemchand Singh** takes oath as Chief Minister of Manipur.
  - This provision is meant as a last resort, to ensure governance in a state where the elected government is unable to function. However, it has often been criticized for being misused for political reasons.

Impact of President Rule on State Legislature and Executive

- **Executive Authority:** The state's Council of Ministers, including the Chief Minister, is dismissed. The executive powers are transferred to the President, who exercises them through the Governor or appointed administrators
- **Legislative Authority:** The state legislature is either dissolved or suspended. During this period, the Parliament assumes the power to legislate on matters pertaining to the state.

Constitutional Safeguard

- **Parliamentary Approval:** A proclamation of President's Rule must be approved by both Houses of Parliament within two months. If approved, it can continue for six months and may be extended, with parliamentary approval, up to a maximum of three years under certain conditions.

President Rule and Judicial Review

- **Phase 1 (Till 1982):** Limited judicial intervention and the President's Rule being largely uncontested. State of Rajasthan,1997 (Janta Party removed 9 state governments) upheld minimal judicial scrutiny, and A.K. Roy (1982) emphasized that mala fide actions could be reviewed but nothing beyond that.
- **Phase 2 S.R. Bommai case (1994):** In the S.R. Bommai case (1994), the Supreme Court laid down important safeguards to prevent the political misuse of Article 356. It ruled that the imposition of President's Rule is subject to judicial review, ensuring accountability in its application. The Governor's report recommending President's Rule must be based on objective facts and clearly justify the claim of a constitutional breakdown. The Court held that Article 356 should be used only in genuine constitutional crises, not for political gain.
- **Phase 3 (2005 to present):**
  1. In Ramehwar Prasad vs. Union of India (2006) case, court declared Declared dissolution of Bihar Assembly as unconstitutional. Governor actions should be based on Constitutional principles and not political bias.
  2. The Supreme Court restored the dismissed government, ruling that the Governor's actions were unconstitutional. Governor to act on the advice of Council of Ministers and any deviation from it is unconstitutional.

- States often oppose it as it undermines federalism, suspends democratic processes, and centralizes power.
  - The **Sarkaria and Punchhi Commissions** recommended using Article 356 sparingly and with strict checks.
  - While it is necessary in exceptional circumstances, its overuse weakens the spirit of cooperative federalism and constitutional democracy.

THE VICE PRESIDENT OF INDIA

The Vice-President occupies the second highest office in the country. The Vice-President is the ex-officio Chairman of the Rajya Sabha, ensuring orderly conduct and adherence to constitutional provisions. He oversees the Rajya Sabha Secretariat and performs ceremonial references on important occasions. In the event of a Presidential vacancy, he acts as the President for up to six months, exercising full Presidential powers and privileges during this interim period.

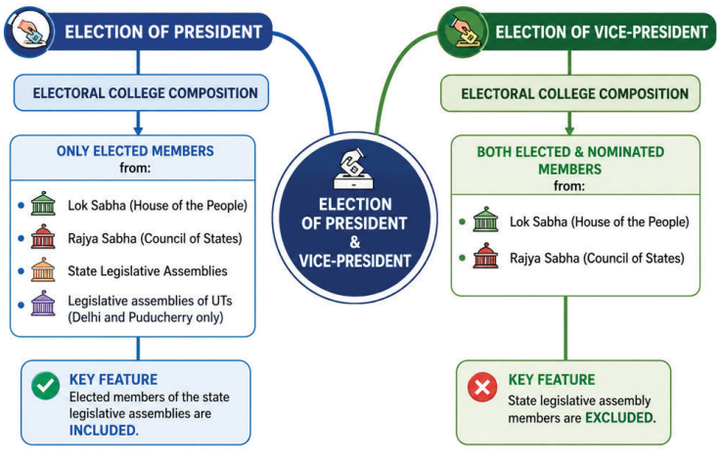
Role of Vice-President as Chairman of Rajya Sabha (UPSC 2022)

- Serves as the ex-officio Chairman of the Rajya Sabha and ensures smooth functioning of the House.
- Presides over the sessions and maintains order and decorum in the Rajya Sabha.
- Has the authority to take disciplinary action against members violating rules or disrupting proceedings.
- Decides on points of order raised by members during the sessions.
- Refers bills, resolutions, and motions to the appropriate parliamentary committees for detailed examination.
- Exercises a casting vote in case of a tie during voting.
- Represents the Rajya Sabha in relations with the President, Lok Sabha, and other authorities.

Criticism of Office of Vice President and Removal of Vice President

- As Chairperson of Rajya Sabha, the Vice President is sometimes criticised for perceived political bias and lack of neutrality.
- Political affiliation may affect impartial conduct of House proceedings, especially during contentious debates.
- Removal: Under Article 67, the Vice President may be removed by a resolution passed by an effective majority in Rajya Sabha and agreed to by a simple majority in Lok Sabha

ELECTIONS OF PRESIDENT & VICE-PRESIDENT



India And France President (UPSC 2022)

- In **India**, the President is elected indirectly by an **Electoral College** comprising elected MPs and MLAs of states and UTs with legislatures, using proportional representation **with a single** transferable vote.
- In France, the President is elected through direct universal suffrage in a two-round system. If no candidate gets a majority in the first round, a second round is held between the top two.
- While India's process reflects a parliamentary democracy, France's direct election signifies its semi-Presidential system
- The two-round system is an electoral method used to elect a single winner, typically in Presidential elections. If no candidate secures an absolute majority in the first round, a second round is held between the top two candidates. It ensures broader legitimacy and majority support.
- Proportional Representation with Single Transferable Vote (STV) allows voters to rank candidates in order of preference. If a candidate achieves the required quota of votes, they are elected; surplus votes are transferred based on preferences. This system ensures fair representation and is used in India's Rajya Sabha and Presidential elections.

TERM, QUALIFICATION & REMOVAL OF THE PRESIDENT AND THE VICE PRESIDENT

	President	Vice – President
Qualification	He should be citizen of India, completed 35 age, qualified for election as a member of the Lok Sabha	He should be a citizen of India, completed 35 years, qualified for election as a member of the Rajya Sabha.
Conditions of office	Should not be a member of either House of Parliament or a House of the state legislature Should not hold any office of profit under the government.	Should not be a member of either House of Parliament or a House of the state legislature Should not hold any office of profit under the government.
Electoral College	Elected MPs + elected MLAs of States, Delhi and Puducherry.	All MPs of both Houses, elected and nominated.
Term	5 years	5 years
Resignation	To Vice President	To President
Removal	By a process of impeachment for 'violation of the Constitution.	He can be removed by a resolution introduced and passed by effective majority in Rajya Sabha and simple majority in Lok Sabha.
Re-election	Eligible for re-election	Eligible for re-election

DIFFERENCES BETWEEN THE INDIAN AND USA PRESIDENTIAL ELECTIONS

Aspect	India	USA
Method of Election	Indirect election by an electoral college of MPs and MLAs.	Indirect election by an electoral college of state electors chosen by the public.
Electoral College Composition	Elected members of Parliament (MPs) and State Legislative Assemblies (MLAs); excludes nominated members.	Electors chosen by each state's voters based on the popular vote.
Voting System	Proportional representation with a single transferable vote system.	Winner-takes-all system in most states (except Maine and Nebraska).
Role of the Public	Citizens vote indirectly for MLAs/MPs, who then elect the President.	Citizens vote directly for Presidential electors in their state.
Weightage of Votes	Weighted votes for MPs and MLAs based on population and number of constituencies.	Equal representation in the Senate; population-based representation in the House.
Term Duration	5 years (renewable indefinitely).	4 years (renewable once under the 22nd Amendment).

THE GOVERNOR OF STATE

- The head of the state is the Governor and the executive power of the state is vested in him.
- He is appointed by the President of India who holds the office during the pleasure of the President.
- Appointment (Article 155): He is appointed by the President by warrant under his hand and seal. In a way, he is a nominee of the Central government.

Term of Governor (Article 156)

- A Governor holds office for a term of five years; However, this term of five years is subject to the pleasure of the President.
- He can resign at any time by addressing a resignation letter to the President.
- In B.P. Singhal vs. Union of India (2010), clarified that while the Governor can be removed at the President's pleasure, the decision must not be arbitrary, capricious, or mala fide.
- The Constitution does not lay down any grounds upon which a Governor may be removed by the President.

Qualification (Article 157)

- **Provided in Constitution:** He should be a citizen of India and he should have completed the age of 35 years.
- **Two Conventions developed regarding appointment of Governor:**
  - He should be an outsider, that is, he should not belong to the state where he is appointed, so that he is neutral to local politics.

- In order to ensure the efficient operation of the state's constitutional machinery, the President is obligated to consult the Chief Minister of the affected state before choosing the Governor.

❖ **Other conditions (similar to President):**
- He should not be a member of either house of the Parliament or house of the state legislature.
- He should not hold any office of profit under the government.

Nominated v/s Elected Governor

The debate over nominated versus elected Governors revolves around federalism and democratic accountability.

❖ Nominated Governors align with the parliamentary system, ensuring neutrality and central oversight, while avoiding electoral costs.

❖ However, critics argue that this system often leads to central interference, misuse of office, and undermines the federal spirit.

❖ An elected Governor, though more democratic and locally rooted, may politicize the office and clash with the Chief Minister, by creating two power centres, disturbing state stability.

❖ Thus, while nomination ensures control and continuity, election enhances autonomy but risks confrontation.

POWERS OF PRESIDENT & GOVERNOR

Executive Powers

President	Governor
❖ All executive actions of the Government of India are formally taken in his name. ❖ He appoints the prime minister and the other ministers. They hold office during his pleasure. ❖ He appoints the attorney general of India and determines his remuneration. The attorney general holds office during the pleasure of the President. ❖ He appoints the Judges of the S.C and H.C, C.A.G, the chief election commissioner and other election commissioners, the chairman and members of the UPSC, the Governors of states, the chairman and members of finance commission etc. ❖ He can appoint a commission to investigate into the conditions of SCs, STs and other backward classes. ❖ He can appoint an inter-state council to promote Centre–state and interstate cooperation. He directly administers the union territories through administrators appointed by him ❖ He has the authority to designate any place as a scheduled area and to oversee the administration of both scheduled and tribal territories.	❖ All executive actions of the government of a state are formally taken in his name ❖ He appoints the Chief Minister and other ministers. They also hold office during his pleasure. He also appoints Tribal Welfare ministers in the states of Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha. ❖ He appoints the advocate general of a state and determines his remuneration. The advocate general holds office during the pleasure of the Governor ❖ He appoints the state election commissioner and determines his conditions of service and tenure of office, He appoints chairman and members of the state public service commission. ❖ He can recommend the imposition of constitutional emergency in a state to the President. ❖ He acts as the chancellor of universities in the state. He also appoints the vice-chancellors of universities in the state. ❖ The Governor of the state has special responsibilities with respect to tribal population in the scheduled area under the fifth schedule.

Legislative Powers

President	Governor
❖ He can summon or prorogue the Parliament and dissolve the Lok Sabha. He can also summon a joint sitting of both the Houses of Parliament. ❖ He can address the both houses assembled together and can send messages to the houses and shall address at the commencement of the first session after each general election and at the first session of each year. ❖ He nominates 12 members of the Rajya Sabha from amongst persons having special knowledge or practical experience in literature, science, art and social service.	❖ He can summon or prorogue the state legislature and dissolve the state legislative assembly. He can exercise discretion when no party has a clear majority or during a constitutional crisis, ensuring stability and smooth governance in the state. **(UPSC 2022)** ❖ He can address the state legislature both houses assembled together(If L. council exist) and can send messages to the houses and shall address at the commencement of the first session after each general election and the first session of each year. ❖ He nominates one-sixth of the members of the state legislative council from amongst persons having special knowledge or practical experience in literature, science, art, cooperative movement and social service.

❖ He decides on questions as to disqualifications of members of the Parliament, on the grounds given in Art. 102(1) in consultation with the Election Commission whose opinion is binding. ❖ His prior recommendation or permission is needed to introduce certain types of bills in the Parliament Ordinance making power on subjects on which parliament can legislate. ❖ He can make regulations for the peace, progress and good government of the Andaman and Nicobar Islands, Lakshadweep, Dadra and Nagar Haveli and Daman and Diu. ❖ Veto powers with regards to state (referred bills) and central legislations. ❖ He lays the reports of the Comptroller and Auditor General, Union Public Service Commission, Finance Commission, and others, before the Parliament	❖ He decides on the question of disqualification of members of the state legislature on the grounds given in A- 102(1) in consultation with the Election Commission whose opinion is binding. ❖ Prior recommendation needed to introduce bills like Money bill. Further can refer bills for the Presidents consideration. Ordinance making power related to subjects on which state can legislate. ❖ He can promulgate ordinances when the state legislature is not in session. However such ordinance must be laid before the Legislature upon reassembly and ceases after six weeks unless approved. (UPSC 2022) ❖ Veto Power with regard to state legislations. ❖ He lays the reports of the State Finance Commission, the State Public Service Commission and the Comptroller and Auditor-General relating to the accounts of the state, before the state legislature.

Note: In January 2020, the Anglo-Indian reserved seats in the Parliament and State Legislatures of India were discontinued by the 126th Constitutional Amendment Bill of 2019, when enacted as the 104th Constitutional Amendment Act, 2019.

Financial Powers

President	Governor
❖ Money bills can be introduced in the Parliament only with his prior recommendation. During Financial emergency can give directions to reserve money bills of states for Presidents consideration. ❖ He is to lay before the Parliament the annual financial statement (the Union Budget). ❖ No demand for a grant in Lok Sabha can be made without his recommendation. ❖ He can make advances out of the contingency fund of India to meet any unforeseen expenditure. ❖ He constitutes a finance commission after every five years to recommend the distribution of revenues between the Centre and the states.	❖ Money bills can be introduced in the state legislature only with his prior recommendation. ❖ He sees that the Annual Financial Statement (state budget) is laid before the state legislature. ❖ No demand for a grant in the Vidhan Sabha can be made without his recommendation. ❖ He can make advances out of the Contingency Fund of the state to meet any unforeseen expenditure. ❖ He constitutes a finance commission after every five years to review the financial position of the panchayats and the municipalities.

Judicial Powers

President	Governor
❖ He appoints the Chief Justice and the judges of Supreme Court and High Courts ❖ He can grant pardon, reprieve, respite and remission of punishment, or suspend, remit or commute the sentence of any person convicted of any offence related to Court Martial, Death Penalty and any law to which executive power of Union extends.	❖ He is consulted by the President while appointing the judges of the concerned state High Court. ❖ He can pardon, reprieve, respite, remit, suspend or commute the punishment/sentence of any person convicted of any offence against any law to which executive power of state extends.

President's Pardon Power — India vs USA [UPSC Mains 2025]

Aspect	India: President's Pardon Power	USA: President's Pardon Power
Constitutional Source	Article 72, Constitution of India	Article II, Section 2, U.S. Constitution
Scope	Court-martial cases, offences against Union law, and all death sentences	Federal offences only, not state offences
Forms of Clemency	Pardon, commutation, remission, respite, reprieve	Pardon, commutation, remission of fines, reprieve

Decision-making	Acts on aid and advice of Council of Ministers	Personal discretion of the President (advised but not bound)
Death Sentence Clemency	Can consider mercy in all death sentence cases; Governors also have powers under Article 161	For federal death sentences only; state death sentences handled by Governors
Judicial Review	Subject to limited judicial review on grounds like arbitrariness or mala fide	Generally not reviewable; very limited constraints

Preemptive Pardons

- Preemptive pardons are pardons granted **before any trial or conviction**, and sometimes even before formal charges are filed.
- Preemptive pardons are **constitutionally permitted** in the United States.
  - A notable example is **President Ford's pardon of Richard Nixon** for any offences he "committed or may have committed."
- Preemptive pardons are **not recognized in the same manner** in India.
  - Mercy is generally considered after conviction and sentencing, usually post-appeal. Preventive or blanket pre-charge pardons are not the practice.

Other Powers of President

Diplomatic Powers	Military Powers	Emergency Powers
❖ The international treaties and agreements are negotiated and concluded on behalf of the President. However, they are subject to the approval of the Parliament. ❖ He represents India in international forums and affairs and sends and receives diplomats like ambassadors, high commissioners, and so on.	❖ He is the supreme commander of the defense forces of India. In that capacity, he appoints the chiefs of the Army, the Navy and the Air Force. ❖ He can declare war or conclude peace, subject to the approval of the Parliament.	❖ The Constitution gives extraordinary powers to the President to promulgate the following three types of emergencies: ➢ National Emergency (Article 352); ➢ President's Rule (Article 356 & 365); ➢ Financial Emergency (Article 360).

PRIVILEGES AND IMMUNITIES ENJOYED BY PRESIDENT & GOVERNOR (ARTICLE 361)

Article 361 of the Constitution grants the President and Governors certain privileges and immunities to ensure the dignity and independence of their offices. They are not answerable to any court for actions taken in the exercise of their official duties (Art. 361(1)). No criminal proceedings can be initiated or continued against them while in office (Art. 361(2)), nor can they be arrested or imprisoned (Art. 361(3)). However, civil proceedings in their personal capacity are allowed with prior notice of two months (Art. 361(4)). These safeguards uphold the constitutional authority and smooth functioning of high offices and are exceptions to the Rule of Law.

COMPARISON OF VETO POWER OF PRESIDENT & GOVERNOR

President	Governor
❖ The **President** can give assent, withhold, or return an ordinary bill for reconsideration; but for money bills, he can only assent or withhold, not return. He has no role in constitutional amendment bills except for ratification.	❖ The **Governor** can assent, withhold, return, or reserve an ordinary bill for the President. Once reserved, the Governor has no further role. For money bills, he can assent, withhold, or reserve them but cannot return them. Constitutional amendment bills are not within the scope of state legislatures.

Pocket Veto: Supreme Court's Stance

- In April 2025, the Supreme Court addressed concerns over the indefinite withholding of assent to state bills by the President and Governors, a practice often termed as "pocket veto."
- The Court clarified that the Indian Constitution does not permit such indefinite inaction under Articles 200 and 201.
- Specifically, the President is required to decide on a bill referred under Article 201 within three months, providing written reasons if assent is withheld. Similarly, Governors must act promptly on bills presented to them, as the term "shall declare" in Article 200 mandates timely decision-making.

ORDINANCE MAKING POWER OF THE PRESIDENT & GOVERNOR

- The Constitution empowers the **President (Article 123) and the Governor (Article 213)** to promulgate ordinances when Parliament or the State Legislature, respectively, is not in session and immediate legislative action is needed.
- Ordinances issued by the President or the Governor have the same force as laws passed by the legislature, but they are temporary and must be approved within six weeks of the legislature reassembling.
- The ordinance must relate to subjects within the legislative competence of Parliament or the State Legislature, and it cannot amend the Constitution or violate Fundamental Rights.
- The President or the Governor can withdraw the ordinance at any time before it is approved by the legislature.
- Ordinances must be laid before both Houses of Parliament/Legislature and must be approved within six weeks of reassembly. If not approved within the six weeks, the ordinance ceases to operate.
- The Governor needs the President's instructions before issuing an ordinance that affects matters requiring prior Presidential assent under the Constitution.
- The power to issue ordinances is **subject to judicial review;** courts have held that repeated re-promulgation without legislative approval is unconstitutional.
- The Supreme Court, in landmark cases like **D.C. Wadhwa (1987) and Krishna Kumar Singh (2017),** clarified that ordinances are not a substitute for law-making and must comply with constitutional principles.
- In essence, ordinance-making is an emergency provision, meant to fill legislative gaps temporarily, and should be exercised cautiously and with accountability.

Ordinance Power: Rationale, Judicial Stand, and Need for Responsible Use (UPSC 2015, 2022)

Rationales for Ordinance Power:

- **Emergency action:** Allows immediate lawmaking when urgent issues arise and the legislature is not in session.
- **Public order and safety:** Enables quick measures to protect public interest when legislative delay could be harmful.
- **Expedited lawmaking:** Bypasses lengthy procedures to ensure prompt enactment of necessary laws.

Supreme Court's Approach:

- In D.C. Wadhwa case (1987), the Court criticized excessive ordinance use, holding it against the constitutional scheme, to be used only in exceptional circumstances.
- In Krishna Kumar Singh case (2017), the Court ruled that repromulgation is unconstitutional and emphasized legislative scrutiny of ordinance reasons.

Responsible Use of Ordinance Power

- The Supreme Court upheld the constitutionality of ordinance-making power. It stressed that ordinances must be used judiciously and only in exceptional situations.
- Repealing the ordinance power would remove an essential tool to address urgent and unforeseen circumstances.
- Instead of repeal, responsible use within the constitutional framework must be ensured.
- To preserve constitutional integrity, legislatures and courts must serve as effective checks on executive overreach.

PARDONING POWER OF THE PRESIDENT & GOVERNOR

Articles 72 and 161 empower the President and Governors to grant pardon, commute, remit, respite, or reprieve sentences. These executive powers are meant to correct judicial errors or provide relief from harsh punishment.

- In **Maru Ram (1980) and Dhananjoy Chatterjee (1994),** the Supreme Court held that the President must act on the advice of the Council of Ministers.
- In **Epuru Sudhakar (2006),** the Court ruled that such decisions are subject to judicial review on grounds like arbitrariness, mala fide intent, or lack of application of mind.
- Pardon fully absolves the convict, commutation changes the type of punishment, remission reduces the sentence, respite delays execution under special conditions, and reprieve temporarily stays execution.

Difference Between Pardoning Powers of President & Governor

President	Governor
❖ He can pardon, reprieve, respite, remit, suspend or commute the punishment/sentence of any person convicted of any offense against any law to which executive power of Union extends. ❖ He can pardon, reprieve, respite, remit, suspend or commute a death sentence. ❖ He has pardoning power in respect to punishment or sentence by a court-martial.	❖ He can pardon, reprieve, respite, remit, suspend or commute the punishment/sentence of any person convicted of any offence against any law to which executive power of state extends. ❖ He can pardon, reprieve, respite, remit, suspend or commute a death sentence only related to state laws and exercise of this power is subject to President power under a-72. Further if there is interest of Union govt, then President Pardoning power supersedes. ❖ He doesn't possess any such power.

Delays in President's Decision on Mercy Petitions (UPSC 2014)

President has the power to grant pardons and commute sentences under Article 72 of the Constitution but there is no time limit specified for deciding mercy petitions, leading to delays.

Arguments for Specifying a Time Limit

- **Right to Speedy Justice:** Delay may violate the right to speedy justice, which is part of the right to life and personal liberty under Article 21.
- **Humanitarian Concerns:** Long delays cause mental agony for convicts awaiting a decision, contributing to the "death row phenomenon."

Arguments against Specifying a Time Limit

- **Complexity of Cases:** Capital punishment cases are serious and complex, requiring thorough review. A time limit may rush this process.
- **Political Implications:** Mercy decisions can have significant political consequences, and setting a time limit could force hasty, unconsidered decisions.

DISCRETIONARY POWERS OF THE PRESIDENT & GOVERNOR

- The Governor has both situational and constitutional discretion but the President has only situational discretion.
- After the 42nd Constitutional Amendment (1976), ministerial advice has been made binding on the President, and can send it back once for reconsideration (44th amendment) but no such provision has been made with respect to the Governor.

President	Governor
❖ Appointment of Prime Minister when no party has a clear majority in the Lok Sabha or when the Prime Minister in office dies suddenly and there is no obvious successor. ❖ Dismissal of the council of ministers when it cannot prove the confidence of the Lok Sabha. ❖ Dissolution of the Lok Sabha if the council of ministers has lost its majority.	❖ Appointment of a Chief Minister in situations where no party has a clear majority in the state legislative assembly or when an incumbent Chief Minister passes away unexpectedly and no obvious candidate can take his place. ❖ Dismissal of the council of ministers when it cannot prove the confidence of the state legislative assembly. ❖ Dissolution of the state legislative assembly if the council of ministers has lost its majority.

Discretionary Powers of Governor

- **Governor has constitutional discretion in the following cases:**
  - Reservation of a bill for the consideration of the President.
  - Recommendation for the imposition of the President's Rule in the state.
  - While exercising his functions as the administrator of an adjoining union territory (in case of additional charge).
  - Determines the amount payable by the Government of Assam, Meghalaya, Tripura and Mizoram to an autonomous Tribal District Council.
  - Seeking information from the Chief Minister with regard to the administrative and legislative matters of the state.

ISSUES RELATED TO GOVERNOR

- **Arbitrary removal:** The arbitrary removal of the Governor before the expiration of his tenure has also been an important issue in the recent past.
- **Rehabilitative appointments:** The position has been reduced to becoming a retirement package for politicians for being politically faithful to the government of the day.
- **Abuse of position:** There are various examples of the Governor's position being abused, usually by the ruling party at the Centre.
- **Misuse of discretionary powers:** Governor's discretionary powers to invite the leader of the largest party/alliance to form the government has often been misused.
- **Misuse of power under Art. 356:** The imposition of President's rule (Art.356) in case of breakdown of constitutional machinery in a State has been frequently misused by the central government.
- **Mere rubber stamp or puppet:** Governor is bound by the aid and advice of his council of ministers.

Recent Examples:

- The Governor refused to read some parts of the Governor's address which was prepared by the State govt in **Tamil Nadu.**
- **In Maharashtra**, The Governor removed the Governor's rule and administered oath to a CM who did not have majority support in the house.
- The **WB Assembly passed a Bill** for replacing the Governor from the position and making the Chief Minister the Chancellor of State Universities
- Dispute with state government over the approval of various Bills in **Kerala, similar issue is in Telangana as well.**

RECOMMENDATION OF SARKARIA COMMISSION

- **Related to Article 356:**
  - Art. 356 should be used in very rare cases when it becomes unavoidable to restore the breakdown of constitutional machinery in the State. It should be used as a matter of last resort.
  - Before taking action under Art. 356, a warning should be issued to the state government that it is not functioning according to the constitution.
- **Related to Governor:**
  - Governors should be appointed in consultation with the Chief Minister of the State, Vice-President of India and the Speaker of the Lok Sabha.
  - His tenure of office must be guaranteed and should not be disturbed except for extremely compelling reasons
- **Others:**
  - When the President withholds his assent to the state bills, the reasons should be communicated to the state government.
  - The procedure of consulting the Chief Minister in the appointment of the state Governor should be prescribed in the Constitution itself.
  - The Governor cannot dismiss the council of ministers so long as it commands a majority in the assembly

PUNCHHI COMMISSION RECOMMENDATION WITH RESPECT TO GOVERNOR

- **Governor's Role:** Fixed 5-year tenure; selection by a neutral committee; should not return to politics post-tenure; removal in consultation with CM.
- **President's Rule:** Use Article 356 sparingly and only after exploring all options; provide written justification.
- **Government Formation:** Clear guidelines for Governors in hung assemblies—prefer pre-poll alliances first.
- **Reservation of Bills:** Governors should reserve bills only in rare, constitutional cases.

Previous Year Questions	Year
1. Compare and contrast the President's power to pardon in India and in the USA. Are there any limits to it in both countries? What are 'preemptive pardons'?	2025
2. Critically examine the procedures through which the Presidents of India and France are elected.	2022
3. Discuss the role of the Vice–Presidents of India as the chairman of the Rajya Sabha.	2022
4. Discuss the essential conditions for exercise of the legislative powers by the Governor. Discuss the legality of re-promulgation of ordinances by the Governor without placing them before the Legislature.	2014
5. Resorting to ordinances has always raised concern on violation of the spirit of separation of powers doctrine. While noting the rationales justifying the power to promulgate ordinances, analyze whether the decisions of the Supreme Court on the issue have further facilitated resorting to this power. Should the power to promulgate ordinances be repealed?	2015
6. Instances of the President's delay in commuting death sentences has come under public debate as denial of justice. Should there be a time limit specified for the President to accept/reject such petitions? Analyze	2014

25 Prime Minister and Chief Minister

The **Prime Minister/Chief Minister** is the *real executive* (de facto). The PM/CM is the head of the Government.

APPOINTMENT OF PM & CM

The Constitution does not lay down a detailed procedure for appointing the PM or CM.

- **Article 75:** PM shall be appointed by the President.
- **Article 164:** CM shall be appointed by the Governor.

However, the President/Governor cannot appoint anyone arbitrarily. Personal discretion may be exercised in two situations:

1. **Hung House:** When no party secures a clear majority, the President/Governor usually invites the leader of the largest party or coalition to form the government and prove majority within a set timeframe. *Example*: In 1979, President Neelam Sanjiv Reddy appointed Charan Singh as PM after the fall of the Janata Party government.
2. **Sudden Death of PM/CM:** If the sitting PM/CM dies and there is no obvious successor, the President/Governor may appoint an interim leader, who must later prove majority.

Example: In 1984, President Zail Singh appointed Rajiv Gandhi as PM after Indira Gandhi's assassination; he was later unanimously elected by his party.

Important Judgements

- **Delhi HC (1980):** The requirement that a candidate for prime minister demonstrate his or her majority in the Lok Sabha is not mandated by the Constitution. The President may first name him as prime minister before requesting that he demonstrate his majority in the Lok Sabha within a reasonable amount of time. (CM) The same.
- **SC (1997):** A person who is not a member of either House of Parliament may be chosen prime minister for a period of six months, during which time he must join either House of Parliament in order to retain his position. (Also true of CM).

POWERS & FUNCTIONS OF PM & CM (UPSC 2001)

Power & Functions of PM w.r.t. Parliament	Power & Functions of CM w.r.t. State Legislature
❖ The PM is the leader of the Lower House (Lok Sabha)	❖ The CM is the leader of the state legislative assembly
❖ He advises the President with regard to summoning and proroguing of the sessions of the Parliament.	❖ He advises the Governor with regard to summoning and proroguing of the sessions of the state legislature.
❖ He can recommend dissolution of the Lok Sabha to the President at any time.	❖ He can recommend dissolution of the legislative assembly to the Governor at any time.
❖ He announces government policies on the floor of the House.	❖ He announces government policies on the floor of the House

Power & Functions of PM w.r.t President	Power & Functions of CM w.r.t. Governor
❖ PM is the principal channel of communication (Art. 78) between the President and the CoM	❖ CM is the principal channel of communication (Art. 167) between the Governor and CoM.
It is the duty of the PM: ❖ To communicate to the President all decisions (Art. 78) of the CoM. ❖ To furnish information relating to the administration and proposal for legislation as the President may call for.	**It is the duty of the CM**: ❖ To communicate to the Governor all decisions (Art. 167) of the CoM, ❖ To furnish such information relating to the administration as the Governor may call for and

❖ If the President so requires, to submit for the consideration of the CoM matter on which a decision has been taken by a minister but which has not been considered by the council. ❖ Regarding the appointment of significant authorities like the Chairperson and members of the UPSC, Attorney General of India, Comptroller and Auditor General of India, and so on, the PM recommends the President.	❖ If the Governor so requires, to submit for the consideration of the CoM any matter on which a decision has been taken by a minister but which has not been considered by the council. ❖ Regarding the appointment of significant authorities like the Advocate General, the chairman and members of the state public service commission, the state election commissioner, and others, CM provides advice to the Governor.

Power of PM/CM in relation to Council of Ministers

- ❖ PM/CM recommends persons who can be appointed as ministers by the President/Governor.
- ❖ The President/Governor can appoint only those persons as ministers who are recommended by the PM/CM
- ❖ He allocates and reshuffles various portfolios among the ministers.
- ❖ He can ask a minister to resign or advise the President/Governor to dismiss him in case of difference of opinion.
- ❖ He presides over the meeting of CoM and influences its decisions.
- ❖ He guides, directs, controls and coordinates the activities of all the ministers.
- ❖ His death or resignation from office can bring the collapse of the CoM.

OTHER POWERS AND FUNCTIONS OF PRIME MINISTER

- ❖ With respect to the **Cabinet**, the PM is the chief architect of the Council of Ministers—selecting members, allocating portfolios, convening cabinet meetings, and steering their agenda. This role allows the PM to shape government policy and maintain cohesion among ministers.
- ❖ In the domain of **planning and crisis management**, the PM serves as the crisis manager-in-chief at the political level, especially during national emergencies. He also chairs the National Disaster Management Authority, coordinating efforts to manage disasters and ensure a swift governmental response.
- ❖ Regarding **Cabinet Committees**, the PM sets up these powerful sub-groups within the cabinet to streamline decision-making in specific areas. These include vital committees on political affairs, economic affairs, and appointments, each of which is generally chaired by the PM when he is a member.
- ❖ In terms of **external affairs**, the PM plays a decisive role in formulating and directing foreign policy. This domain is often closely handled by the PM, and a strong international image can enhance his stature at home as well. Diplomatic engagements, international negotiations, and global forums are key areas where the PM's leadership is particularly visible.
  - ➢ Recent example: In mid-2024, following the formation of a coalition government at the Centre, the Prime Minister retained control over key portfolios and maintained continuity in international engagements, ensuring policy consistency and administrative stability during a politically sensitive period.

OTHER POWERS AND FUNCTIONS OF CHIEF MINISTER

- ❖ At the state level, the CM functions as the executive head. In relation to the **State Cabinet**, the CM recommends the appointment of ministers to the Governor, allocates portfolios, and presides over cabinet meetings. He plays a crucial role in driving state-level policy and administration.
- ❖ Other significant responsibilities include the CM's membership in national platforms like the **Inter-State Council** and the **Governing Council of NITI Aayog**, both of which are chaired by the Union PM. The CM also chairs the **State Planning Board** and serves as the **Vice-Chairperson of the concerned Zonal Council** on a rotational basis—facilitating regional cooperation among neighboring states.
- ❖ The CM also leads the state's response to crises and disasters, acting as the **Chairperson of the State Disaster Management Authority (SDMA)**.
  - ➢ Recent example: In response to the severe floods in Assam in July 2024, CM Himanta Biswa Sarma led the state's disaster management efforts, coordinating relief operations and mobilizing resources to assist affected communities, demonstrating the CM's critical role in crisis management.

Key Words

Oaths of office, Conduct of business, real executive authority (de facto executive), loss of confidence, coalition, state Disaster Management Authority (SDMA),

26 Council of Ministers

The Constitution outlines the Council of Ministers only broadly—**Articles 74 & 75** for the Centre and **163 & 164** for the States—without detailing the full structure of the parliamentary system. Much is shaped by convention and executive discretion. The size and structure of the Council are decided by the PM/CM based on need. As per the **91st Amendment Act, 2003**, the number of ministers cannot exceed **15%** of the total strength of the Lok Sabha or State Assembly.

CATEGORIES OF MINISTERS

The Cabinet Ministers	The Ministers of State	Deputy Ministers
❖ The cabinet ministers head the important ministries of the central/state government like home, defense, finance, external affairs and so forth. ❖ They are members of the cabinet, attend its meetings and play an important role in deciding policies	❖ The ministers of state can either be given independent charge of departments or can be attached to cabinet ministers. ❖ They are not members of the cabinet and do not attend the cabinet meetings unless specially invited when something related to their departments are considered by the cabinet.	❖ They are not given independent charge of departments. They are attached to the cabinet ministers and assist them in their administrative, political and parliamentary duties. ❖ They are not members of the cabinet and do not attend cabinet meetings.

Responsibility of Ministers: Individual & Collective

❖ **Individual Responsibility** (Articles 75 & 164):

❖ Ministers hold office during the pleasure of the President/Governor, but can be removed only on the advice of the PM/CM.

- ➢ If a minister under-performs or differs with the PM/CM, they can be asked to resign or be dismissed.

❖ **Collective Responsibility**:

❖ A core feature of parliamentary democracy—ministers act as a team. The entire council must resign if a **no-confidence motion** is passed in the Lok Sabha/State Assembly (as per Articles 75 & 164). It is said that they swim and sink together.

- ➢ Even ministers from the legislative council must resign.
- ➢ Cabinet decisions bind all ministers, even if they disagreed in the meeting. If a minister cannot support a decision, they are expected to resign—e.g., Dr. B.R. Ambedkar resigned in 1953 over the Hindu Code Bill.

Key Words

Swim or Sink together, collective responsibility, parliamentary system, Hindu Code Bill in 1953, Ninety-First Amendment Act, 2003.

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27 Cabinet System in India

A smaller body called cabinet is the nucleus of the council of ministers. It consists of only the cabinet ministers. It is the real center of authority in the center/state government.

ROLE OF CABINET

- It is the highest decision-making authority in our politico-administrative system.
- It is the chief policy formulating body of the Central/state government.
- It is the supreme executive authority of the Central/state government.
- It is the chief coordinator of Central/state administration.
- It is an advisory body to the President/Governor and its advice is binding on him.
- It is the chief crisis manager and thus deals with all emergency situations.
- It deals with all major legislative and financial matters.
- It exercises control over higher appointments like constitutional authorities and senior secretariat administrators.
- It deals with all foreign policies and foreign affairs (central Cabinet).

Kitchen Cabinet

It is an informal body consisting of the Prime Minister and two to four influential colleagues in whom he has faith and with whom he can discuss every problem. It advises the prime minister on important political and administrative issues and assists him in making crucial decisions. It is composed of not only cabinet ministers but also outsiders like friends and family members of the prime minister.

Shadow Cabinet

The concept of a Shadow Cabinet, prominent in the UK, refers to a group of senior opposition leaders who scrutinize and mirror the portfolios of government ministers.

- While India does not have an institutionalized shadow cabinet, major opposition parties occasionally designate spokespersons for key ministries to ensure accountability.
- However, the idea remains informal and underutilized due to India's multi-party dynamics and lack of formal recognition in the parliamentary setup.

Merits of Shadow Cabinet	Demerits of Shadow Cabinet
❖ Enhances accountability by offering structured opposition scrutiny.	❖ May increase political confrontation and reduce space for bipartisan work.
❖ Helps prepare alternative leadership and policy ideas within opposition.	❖ Lacks constitutional or legal recognition in Indian parliamentary practice.
❖ Encourages policy-based debates and informed criticism in Parliament.	❖ Difficult to implement uniformly due to India's coalition and regional party dynamics.

Criticism of Cabinet System and Decline of Parliamentary Supremacy (UPSC Mains 2024)

- The cabinet committee system concentrates decision-making in a small group of ministers, reducing full cabinet deliberation and weakening the principle of **collective responsibility (Article 75)**.
- Executive dominance over legislation limits Parliament's independence, reflected in the fact that only **14 Private Members' Bills have been passed since 1952**.
- Important bills are sometimes passed without scrutiny by **Parliamentary Standing Committees** (e.g., Citizenship Amendment Bill, 2019), undermining legislative oversight under **Article 118**.
- Decline in parliamentary sittings reduces executive accountability, with average sittings falling from **~135 days (1st Lok Sabha) to ~55 days (17th Lok Sabha)**, contrary to the spirit of **Article 85**.

Thus, while cabinet committees improve efficiency, the growing dominance of the cabinet system raises concerns about reduced transparency, inclusiveness, and weakening of parliamentary supremacy.

Cabinet Committees

Cabinet committees are smaller groups within the cabinet, set up by the PM/CM as per administrative needs. Their number, names, and composition vary. Though not mentioned in the Constitution, they are backed by the Rules of Business. They can be standing (permanent) or ad hoc (temporary). These committees either assist the cabinet in decision-making or take decisions themselves, subject to cabinet review.

- **Advantages:**
  - Reduce cabinet workload and save time.
  - Enable detailed policy discussions and better coordination.
  - Promote effective use of ministerial expertise.
  - Support collective responsibility and curb arbitrary actions.
- **Disadvantages:**
  - Don't cover all crucial policy areas.
  - Act only when referred matters by ministers or cabinet.
  - Irregular meetings may hinder continuous policy review and monitoring.

Cabinet Size and Government Efficacy **(UPSC 2014)**

The cabinet size affects the functioning of the government. It should balance the workload and be manageable for the Prime Minister. The relationship between cabinet size and government efficacy is often debated.

Advantages of a Larger Cabinet:

- Ensures diverse representation, especially in a country like India with its varied social and political groups.
- Example: UPA government (2004-2014) had a large cabinet to represent coalition partners, regions, and social groups, aiding comprehensive policy-making.

Disadvantages of a Larger Cabinet:

- Can lead to inefficiency, with complex coordination and delayed decision-making.
- Blurred lines of responsibility among ministers.
- Example: The United Front government (1990s) had a large cabinet but was often criticized for slow policy-making.

A smaller cabinet promotes faster decision-making, while a larger one ensures broader representation and better workload management. However, efficiency is crucial, and the Prime Minister must ensure that the cabinet size is manageable for effective coordination and policy execution. The key lies in balancing these factors to ensure the cabinet supports the government's smooth functioning without becoming unwieldy.

Do you know?

- Jawaharlal Nehru's first cabinet had only 15 ministers, enabling swift decision-making during India's early years.
- The 91st Constitutional Amendment (2003) limited cabinet size to 15% of Lok Sabha members or Legislative assemblies (but not less then 12) address oversized cabinets.

Key Words

Kitchen Cabinet, supreme executive authority, chief coordinator, governmental functioning, effective deliberation, politico-administrative system.

Previous Year Questions	Year
1. The growth of the cabinet system has practically resulted in the marginalisation of parliamentary supremacy" Elucidate.	2022
2. The size of the cabinet should be as big as governmental work justifies and as big as the Prime Minister can manage as a team. How far the efficacy of a government then is inversely related to the size of the cabinet? Discuss	2014

28 Ministries of Government

The Constitution of India establishes a parliamentary form of government modeled on the British system, where the Council of Ministers, led by the Prime Minister, functions as the real executive authority.

- Article 74 mandates that the Council of Ministers shall aid and advise the President, and this advice cannot be challenged in any court.
- Article 75 makes the Council collectively responsible to the Lok Sabha and limits its size to 15% of the Lok Sabha's strength, as per the 91st Amendment Act of 2003. It also embodies the principle of individual ministerial responsibility to the President.
- Additionally, Article 77 empowers the President to make rules for the convenient transaction of the government's business.

HIERARCHY OF MINISTERS IN INDIA

The Council of Ministers consists of three categories of ministers, namely, cabinet ministers, ministers of state, and deputy ministers. The difference between them lies in their respective ranks, emoluments, and political importance.

Cabinet Minister	Other Ministers
❖ They are members of the cabinet, attend its meetings and play an important role in deciding policies. Thus, their responsibilities extend over the entire gamut of the Central government. ❖ They used to have responsibility for important portfolios like the Home ministry etc.	❖ These are ministers other than cabinet ministries. ❖ These ministries are headed by the Minister of State.

PARLIAMENTARY SECRETARIES

- He is a parliamentarian who helps a senior minister with duties. They usually have the rank of Minister of State, enjoy the same privileges, and are tasked with working for a government agency. The appointment of parliamentary secretaries must adhere to the 15% ceiling.

Reasons for Appointment	Criticism
❖ **Article 75 and 164:** According to Articles 75 and 164, parliamentary secretaries are not ministers because they are not appointed either by the President or Governor nor given the oath of office and secrecy. ❖ **Increased workload:** They assist ministers to discharge function successfully despite the increased workload, something that many states and the Parliament have done, and the SC supported this in the UC Raman case. ❖ **Constitutional power:** The legislature has the authority to enact legislation exempting any officeholder. ❖ **No independent charge:** They are simply tied to ministers in order to carry out their duties; they are not given any further authority.	❖ **Against Separation of Powers**: If a legislator becomes executive then he/she cannot function independently. ❖ **Misuse of Article 102:** This allows parliament to exclude offices from the provision of office of profit. The exclusion of Parliamentary secretaries results in a drain of public money due to oversized cabinet, and political opportunism due to arbitrary use of amendments ❖ **Against public interest:** They are not administered an Oath of Secrecy. Yet they have access to information that may threaten public interest and national security and breed corruption. ❖ **Violation of Constitutional spirit**: By excluding it from the definition of ministers, the office of the Parliamentary Secretary is misused to circumvent the 15% ceiling strength of the council of ministers. (10% in the case of Delhi). ❖ **Political motive**: They are misused to fulfill the political aspirations of MPs who couldn't get a Ministerial position.

Key Words

Constitutional power, Separation of Powers, Violation of Constitutional spirit, public interest, Political motive.

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29 Parliamentary Committees

Parliamentary committees are an essential part of the legislative process, as they provide a platform for detailed scrutiny of legislative proposals, policies, budgets, and other matters. These committees consist of Members of Parliament (MPs) from various political parties, working in a non-partisan manner to ensure efficient functioning of the parliamentary system. **(UPSC 2018)**

STRUCTURE OF PARLIAMENTARY COMMITTEE SYSTEM (UPSC 2023)

- **Powers:** Derived from Article 105 (privileges of Parliament members) and Article 118 (rules for conducting business).
- **Membership:** Comprised of Parliament members, sometimes with expert advisors.
- **Standing Committees:** Permanent committees that examine bills, budgets, policies, etc.
  - 24 Departmentally Related Standing Committees (DRSCs), each focusing on a ministry.
- **Financial Committees:** Focus on budgetary and financial matters.
  - **Public Accounts Committee (PAC):** Examines audit reports from the Comptroller and Auditor General (CAG).
  - **Estimates Committee (EC):** Examines expenditure estimates in the budget.
  - **Committee on Public Undertakings (COPU):** Reviews public sector undertakings' performance.
- **Select Committees:** Temporary committees formed for specific bills or issues.
- **Joint Committees:** Composed of members from both Lok Sabha and Rajya Sabha, formed for specific issues.
- **Ad Hoc Committees:** Temporary committees for specific tasks or inquiries.

Why Committees are Useful? (UPSC 2018)

- **Expertise:** MPs gain specialized knowledge to scrutinize proposals effectively.
- **Detailed Scrutiny:** Committees offer in-depth analysis that is not possible in full sessions.
- **Time Management:** Help in managing the Parliament's workload by preparing reports.
- **Non-partisan Approach:** Encourage cooperative work across political parties.
- **Stakeholder Consultation:** Involve experts and the public for diverse perspectives.
- **Accountability:** Hold the government accountable for its policies and spending.

However, **challenges to parliamentary committees** include a dip in bill referrals (Eg., RTI & UAPA Amendments 2019 were not sent to parliamentary committees), member absenteeism, lack of expertise, politicization, short tenures, and non-binding nature of their recommendations, which limits follow-through in Parliament debates. Less than 20% of Bills referred to Committees during 17th Lok Sabha which is lower than corresponding figures for the previous three Lok Sabhas.

Role of Financial Committees in the Institutionalisation of the Indian Parliament (UPSC 2023)

- **Scrutiny of Government Expenditure:** Financial committees examine government spending to ensure accountability.
- **Expert Consultations:** These committees consult experts to understand complex issues better. Example: Economists and industry experts were consulted during the formulation of the GST Bill to ensure a comprehensive tax system.
- **Cross-Party Deliberations:** Financial committees facilitate discussions across parties, promoting cooperation.
- *Example:* Consensus-building during GST Bill discussions in the Rajya Sabha Standing Committee saw members from different parties working together.
- **Accountability and Transparency:** Committee reports promote transparency in government actions. Example: The PAC's detailed report on the Rafale deal emphasized the importance of government accountability.
- **Focused Discussions:** Committees provide a platform for in-depth exploration of specific issues. Example: Detailed deliberations on the Insolvency and Bankruptcy Code helped refine its provisions.
- **PAC headed by a opposition MP:** This ensures unbiasedness in scrutinising CAG reports holding government accountable and strengthens essence of parliament as an institution.

Financial committees have significantly contributed to the institutionalization of the Indian Parliament, ensuring that it remains a vital institution in upholding democratic principles.

Role of Estimates Committee (UPSC 2018)

- **Examine Expenditure:** Reviews government expenditure estimates and suggests savings.
- **Evaluate Performance:** Assesses the effectiveness and efficiency of government programs.
- **Ensure Accountability:** Ensures funds are used efficiently and for their intended purpose.
- **Provide Recommendations:** Recommends improvements for better government expenditure management.
- **Non-Ministerial Members:** Composed of non-ministerial MPs to ensure unbiased review.

Role of Public Accounts Committee (PAC) (UPSC 2017)

- **Examination of Accounts:** The PAC reviews government accounts to ensure public funds are spent as per the approved budget, holding the government accountable for financial decisions.
- **Investigation of Financial Irregularities:** It investigates financial irregularities, mismanagement, or corruption highlighted by the CAG's reports, identifying responsible parties and recommending corrective actions.
- **Recommendations for Improvements:** Based on the CAG's findings, the PAC provides suggestions to enhance the efficiency and effectiveness of public spending.
- **Non-partisan Nature:** The PAC is made up of members from both the ruling and opposition parties, ensuring impartiality and objectivity in holding the government accountable and since 1967 as convention is headed by a opposition MP.
- Notable examples include the 2G Spectrum case and Coal Allocation scam, where PAC questioned irregularities and recommended reforms.

By examining the CAG's audit reports, investigating financial irregularities, and recommending improvements, the PAC ensures that public funds are utilized efficiently and effectively, promoting transparency and good governance.

Cabinet Committee on Security (CCS)

- The Cabinet Committee on Security (CCS) is the apex decision-making body on India's national security, defense policy, and nuclear matters. Chaired by the Prime Minister, it includes key ministers: Home, Defence, Finance, and External Affairs.
  - It handles issues like defense procurement, internal security, and strategic affairs.

Department-Related Standing Committees (DRSCs) (UPSC 2019)

- They were established in 1993, there are currently 24 DRSCs, each consisting of 31 members from both Lok Sabha and Rajya Sabha.
- They examine bills, budgets (Demand for Grants), and policy implementation. For instance, the Standing Committee on Defence scrutinized defence procurement policies, while the Committee on Health evaluated the government's COVID-19 response.
- These committees enhance legislative oversight and ensure accountability.

Way Forward

The NCRWC suggested steps to improve parliamentary committees, including extending DRSC tenure to two years for better subject handling, adopting best practices like ministerial briefings and clear criteria for referring bills, avoiding overlapping functions by assigning financial oversight to DRSCs, providing institutional research support for in-depth policy analysis, and conducting periodic performance reviews for timely course correction.

Key Words

Periodic review, Financial prudence, Engaging stakeholders, politicization of meetings, consensus-building.

Previous Year Questions	Year
1. Explain the structure of the Parliamentary Committee system. How far have the financial committees helped in the institutionalisation of Indian Parliament?	2023
2. Do Department -related Parliamentary Standing Committees keep the administration on its toes and inspire reverence for parliamentary control? Evaluate the working of such committees with suitable examples.	2019
3. Why do you think the committees are considered to be useful for parliamentary work? Discuss, in this context, the role of the Estimates Committee.	2018
4. Discuss the role of the Public Accounts Committee in establishing accountability of the government to the people.	2017

30 Representation of People Act

REPRESENTATION OF THE PEOPLE ACT, 1950

The RPA 1950 lays the groundwork for the electoral framework in India. It primarily deals with the preparation and revision of electoral rolls for parliamentary, state, and local body elections. It defines who is eligible to vote, with the key criterion being Indian citizenship and attainment of 18 years of age. The Act also provides for the allocation of seats in the Lok Sabha and State Legislative Assemblies, as well as the delimitation of constituencies, ensuring fair representation based on population. It empowers the Election Commission of India to supervise the preparation of electoral rolls and appoint electoral registration officers. It also lays out the provisions for the reservation of seats for Scheduled Castes and Scheduled Tribes in Parliament and state legislatures. Thus, the RPA 1950 is instrumental in creating a fair and inclusive electoral base.

REPRESENTATION OF THE PEOPLE ACT, 1951

The RPA 1951 complements the 1950 Act by detailing the actual conduct of elections. It governs the procedures related to the nomination of candidates, polling, counting of votes, and declaration of election results. The Act also lays down the qualifications and disqualifications for contesting elections, including provisions against corrupt practices and electoral offences like bribery, undue influence, and booth capturing. It provides the legal basis for challenging election results through election petitions, with the judiciary acting as the forum for resolving such disputes. Furthermore, the Act empowers the Election Commission to supervise and direct elections, ensuring free and fair conduct. Over the years, various amendments—such as those banning convicted individuals from contesting elections—have been made to strengthen the integrity of the democratic process.

Significance of RPA

- **Democratic Implementation:** Fills constitutional gaps (e.g., Rajya Sabha terms), strengthening democratic processes.
- **Ensures Equality:** One electoral roll and single registration uphold equal voting rights.
- **Decriminalization of Politics:** Disqualification provisions curb criminal elements in politics.
- **Transparency:** Asset declaration and voter rights enhance candidate accountability.
- **Free & Fair Elections:** Defines corrupt practices and empowers electoral officers.

Challenges of RPA

- **Ruling Party Advantage:** No clear rules to curb misuse of power and funds. Ex: BJP receiving disproportionately large number of electoral bonds.
- **Criminalization Persists:** 43% of current MPs face criminal charges despite disqualification rules.
- **Social Media Misuse:** Undermines silence period and enables targeted campaigning.
- **No De-registration Power:** ECI can't de-register inactive or dummy parties.
- **Lack of Autonomy:** ECI relies on government machinery, affecting impartiality.

PROVISIONS REGARDING DISQUALIFICATIONS IN RPA, 1951

Section 8: Disqualification upon Conviction

- **8(1):** Conviction under serious laws (e.g. UAPA, POTA, PCA) leads to disqualification for 6 years from conviction (whether fined or imprisoned).
- **8(2):** Disqualification for offenses like hoarding, adulteration, and violation of Dowry Prohibition Act.
- **8(3):** Any other offense with ≥ 2 years' imprisonment leads to disqualification for 6 years post-release.

Other Disqualifications

- Engaging in corrupt practices.
- Dismissal from govt service for corruption/disloyalty.
- Having govt contracts or holding managerial posts in companies with ≥25% govt stake.
- Failure to submit election expense account.

Remedies

- **Section 11:** Approach Election Commission for relief (except in corrupt practice cases).
- **Section 116A:** Appeal to Supreme Court if disqualification arises from a High Court election petition.

Disqualification from Voting

- 6-year ban for offenses like bribery, impersonation, promoting enmity, ballot tampering, or destroying nomination papers.

Need for Simplification of Disqualification Process Under RPA (UPSC 2020)

- **Timely Resolution:** A simplified process will ensure faster decisions, preventing delays in disqualifying guilty candidates and maintaining the integrity of elections.
- **Legal Clarity:** Clear and straightforward rules will assist courts and election officials in applying the law consistently and fairly, reducing confusion and loopholes.
- **Deterrence Effect:** Swift and effective disqualification will act as a strong deterrent against corrupt practices among candidates.
- **Public Trust:** A transparent, fair, and efficient disqualification process will enhance public confidence in the electoral system and strengthen democracy.

However, simplifying the disqualification process should not compromise the rights of candidates to a fair hearing and the opportunity to present their case. It is essential to strike a balance between streamlining the process and ensuring that the principles of natural justice are upheld.

Key Judgements & Recommendations on Disqualification of Legislators

- The Supreme Court in **Lily Thomas v. Union of India case, 2013** held the provision that disqualification of a member of Parliament & State Legislature shall not take place until three months from the date of conviction, giving time to file appeal as unconstitutional & provided for immediate disqualification on conviction.
- In 2013, the Patna High Court forbade anybody in judicial or police detention from contesting an election.
- The recommendations of the **244th report of the Law Commission** should be implemented, i.e. disqualification at the stage of framing of charges along with other legal safeguards to curb criminalisation of politics.

Election Dispute Under RPA, 1951 (UPSC 2022)

The Representation of the People Act, 1951 provides for conduct of elections and resolution of disputes related to elections to Parliament and State Legislatures.

1. **Procedures to decide election disputes:**
   - **Filing Petition:** Any voter or candidate can file an election petition under Section 81 within 45 days of the election result.
   - **Jurisdiction:** High Court hears disputes for elections of M.LA and MP; Supreme Court hears disputes for the President and Vice President elections.
   - **Trial:** A single judge, nominated by Chief Justice, tries the petition following Civil Procedure Code and Evidence Act.
   - **Decision:** Court examines evidence and declares the election valid, void, or may order re-election (Section 98, 99).
2. **Grounds to declare an election void (Section 100):**
   - **Corrupt Practices:** Bribery, undue influence, promoting enmity, use of religious symbols.
   - **Irregularities in Votes:** Improper reception, refusal, or rejection of votes that affect the election result.
   - **Non-Compliance:** Violation of constitutional provisions or the Act materially affecting the result.

REGISTRATION OF POLITICAL PARTIES

The Election Commission of India classifies political parties into three categories: national party, state party, and registered unrecognized party. The Election Symbols (Reservation and Allotment) Order, 1968 outlines the criteria for recognition as a national or state party. To be recognized as a national or state party, a political party must meet specific conditions such as securing a certain percentage of votes or winning a minimum number of seats in elections.

National Party	State Party
6% valid votes in Lok Sabha or Legislative Assembly election in 4 or more states + 4 Lok Sabha seats	6% valid votes in Legislative Assembly elections in state + 2 Assembly seats
	6% valid votes in Lok Sabha elections in state + 1 Lok Sabha seat
2% Lok Sabha seats from at least 3 states	3% or 3 Legislative Assembly seats, whichever is more
	1/25 Lok Sabha seats
State party in 4 states	8% valid votes in Lok Sabha or Legislative Assembly elections in a state

The following political parties registered with the Election Commission are considered Registered Unrecognized Parties:

- Unrecognized parties are newly registered parties that have not received a sufficient percentage of votes in Assembly or General Elections to become state parties, and parties that have never contested elections since being registered.

Benefits to Recognised Political Parties

Candidates from recognized political parties are exempt from requiring proposers during nominations. These parties receive equitable broadcast/telecast time based on past performance and free electoral roll copies. Star campaigners' travel expenses are not included in election expenses, and their candidates get reserved symbols. In case of a death of recognised political party candidate, polls are adjourned for that constituency.

VOTER'S RIGHT TO KNOW

- **Right to Information:** A candidate has to furnish information about the following in his nomination paper, whether:
- He is accused of any offense punishable with imprisonment for two years or more, where charges are framed by a competent court;
- He is convicted of any offense and sentenced to imprisonment for one year or more.
- Section 75A mandates that elected candidates declare their and their family's assets and liabilities to the Speaker/ Chairman within ninety days of taking the oath.
  - The Speaker/Chairman can create rules for compliance, with violations treated as breaches of privilege.
- Section 77 requires candidates to maintain a detailed account of election expenses, submitted to the district election officer within thirty days of the election result.
  - Travel expenses of star campaigners are excluded from the candidate's expenditure.

Supreme Court Ruling on Right to Information of Electors

Case	Supreme Court Ruling
Association for Democratic Reforms v. Union of India, 2002	The candidate has to furnish information regarding any criminal antecedent, educational qualification and assets.
People's Union for Civil Liberties v. Union of India, 2003	Voters have a fundamental right to know the relevant qualifications of candidates for office, including information about their income and assets. Accordingly, Section 33B of the RPA, 1951, which stated that candidates could not be compelled to disclose any information about themselves other than their criminal records, was held unconstitutional.
Resurgence India Case, 2013	Made it compulsory for Returning Officers to reject those nomination papers which are accompanied by incomplete/blank affidavits.
Krishnamurthy v. Sivakumar & Ors, 2015	The Supreme Court ruled that a candidate's criminal antecedents (particularly egregious crimes) must be disclosed at the time of filing the nomination paper, as required by law.
Lok Prahari v. Election Commission, 2018	The Supreme Court directed that the Centre alter the guidelines as well as the disclosure form presented by candidates along with their nomination papers to include a source of income for themselves as well as their spouses and dependents.

CORRUPT PRACTICES [UPSC 2025]

Provisions regarding corrupt practices in RPA, 1951: Section 123 of the Act defines corrupt practices -

- **Promotion of enmity or hatred:** The encouragement of hostility or hatred amongst different classes of Indian citizens on the basis of religion, race, caste, community, or language.
- **Commission of sati or its glorification:** The propagation of the practice or the commission of sati or its glorification.
- **Bribery:** any gift, offer or promise by a candidate or his agent to any person to stand or not to stand or to withdraw or not to withdraw from being a candidate or to vote or refrain from voting.
- **Undue influence:** direct or indirect interference with the free exercise of any electoral right. It includes threatening any election candidate or elector.
- **Religious appeal:** The appeal based on his religion, race, caste, community, or language, or the appeal to religious or national symbols, such as the national flag or the national emblem.
- **Obtaining assistance from any government official:** Obtaining aid (other than voting) from gazetted officers, stipendiary judges and magistrates, members of the armed forces, excise officers, revenue officers, and so on.
- **Booth capturing:** In the 2019 general elections, a polling agent in Faridabad was arrested over video of 'booth capture'.
- **False publication:** The publication of any false statement of fact in relation to the personal character or conduct of any candidate.
- **Contravention of authorizing expenditure:** The incurring or authorizing of expenditure in contravention of the 'Account of election expenses and maximum limit' prescribed under Section 77 of RPA, 1951.
- **Use of any vehicle or vessel for the free conveyance of any elector:** (other than the candidate himself, the members of his family or his agent) to or from any polling station.

Note: The Supreme Court in ***Abhiram Singh's case, 2017*** held that election is a secular exercise and an appeal for votes during elections on the basis of religion, caste, race, community or language amounts to a 'corrupt practice'.

DISPROPORTIONATE ASSET GROWTH AND 'UNDUE INFLUENCE'[UPSC 2025]

- The issue of disproportionate increase in assets of legislators raises an important question regarding whether such wealth accumulation can be treated as **'undue influence' under the RPA, 1951**.
- The determination depends on whether there is a **direct link between asset growth and interference with voters' free choice**, as the law focuses on **electoral impact rather than mere accumulation of wealth**.

Yes, It Can Constitute Corrupt Practice (When Linked to Voter Interference)

- **Bribery through Cash-for-Votes:** If unexplained assets are used to fund bribery, it amounts to **bribery and undue influence**.
- **Threats or Coercion:** Wealth used to threaten or influence community leaders interferes with **voter choice**.
- **Use of Agents for Inducements:** If associates distribute gifts or incentives using such assets, it becomes a **corrupt practice**.
- **Funded Defamation and Fake News:** Use of money to spread misinformation or defamatory content to manipulate voters falls under **corrupt practices**.

No, Not by Itself

- **Mere Asset Increase:** A rise in assets, even if disproportionate, is not automatically **undue influence**.
- **No Direct Impact on Voter Choice:** Undue influence requires **interference with free will**, which asset growth alone does not establish.
- **Outside RPA Domain:** Disproportionate assets are primarily dealt under Prevention of Corruption Act, Income Tax laws and Benami transactions laws.
- **Requirement of Evidence:** Without proof that assets were used to **bribe, coerce, or manipulate voters,** it cannot be termed a corrupt practice.

ELECTORAL OFFENSES

Electoral Offenses listed in RPA, 1951: Chapter III of RPA, 1951 provide the following electoral offenses

- **Disturbances at public meetings:** For the purpose of preventing the transaction of the business.
- **Publication of results of exit polls:** Publication and dissemination of results of exit polls, etc from the beginning of the election to half an hour after the polls
- **Printing material:** Printing of pamphlets, posters, etc. without the names and addresses of the printer and the publisher.
- **Promoting hatred between classes:** Promoting class enmity in connection with elections based on religion, race, caste, community, or language.
- **Providing false information:** concealing information in his nomination paper or affidavit:
- **Holding public meetings exceeding authorized time:** During the period of forty-eight hours ending with an hour fixed for the conclusion of the poll
- Booth capturing, Defacing, damaging, or removing any list, notice, or other document affixed by or under the authority of a returning officer, etc.
- Failure to maintain voting secrecy. Officers, etc., are not allowed to campaign for candidates or influence votes.
- The removal of ballot papers from voting places.

Other Offenses

❖ Canvassing in or around a voting place on election day.	❖ On the day of the election, disorderly conduct at or near voting places.
❖ Misconduct at the polling booth.	❖ Failure to follow the voting procedure.
❖ Breach of official duty in relation to an election.	❖ Election agents, polling agents, and counting agents are government employees.
❖ Bringing a firearm to or near a polling place.	❖ Employees are not given paid time off on election day.
❖ On election day, no one may sell, give or distribute liquor.	

COMPULSORY VOTING IN INDIA

The **Election Commission announced Assembly elections (April–May 2026)**. Simultaneously, the **Supreme Court raised concerns regarding compulsory voting**, highlighting its relevance in electoral reforms.

Meaning and Position in India

- **Compulsory voting** refers to a system where **eligible citizens are legally required to vote** in elections.
- Non-compliance may attract penalties (fine or sanctions) and Administrative consequences. It shifts voting from a **right to a legal duty**.

- **In India, No constitutional or statutory provision** for compulsory voting. Voting is treated as a **right under Article 326 (universal adult suffrage)**, not a duty
- The **Law Commission (255th Report, 2015)** noted that compulsory voting increases turnout by **~7% on average**.
- **Dinesh Goswami Committee (1990):** Rejected compulsory voting and Suggested **awareness and electoral reforms** instead.

Arguments in Favour

- **Ensures Universal Participation:** Leads to more **inclusive and representative outcomes**.
- **Reduces Influence of Money and Muscle Power:** When turnout is high, manipulation becomes difficult.
- **Encourages Political Awareness:** Citizens become more engaged with political issues.
- **Improves Quality of Democracy:** Moves towards **participatory democracy**.

Arguments Against

- **Violation of Freedom of Choice:** Right to vote also includes the **right not to vote**.
- **Practical Implementation Challenges:** Difficult in a large and diverse country like India due to Migration, Lack of documentation and Accessibility issues.
- **Risk of Forced or Random Voting:** Citizens may vote **without informed choice**, reducing the quality of democracy.
- **Administrative Burden:** Monitoring compliance and enforcing penalties is **costly and complex**.
- **Ethical Concerns:** Democracy should be based on **voluntary participation**, not coercion.

Way Forward

- Focus on **increasing voluntary participation**, not coercion
- Strengthen Electoral infrastructure and Voter education
- Use **technology-driven solutions** (digital voter services)
- Address **trust deficit in political system**

VOTING RIGHTS TO NON-RESIDENT INDIANS THROUGH POSTAL BALLOT

ETPBS (Electronically Transmitted Postal Ballot System) is the Election Commission of India's IT initiative for postal voting, allowing Service Voters to receive and return ballots electronically. Voters can now register as Service Voters online through a secure portal with OTP and PIN for confidentiality. A unique QR Code prevents duplicate votes. After the 2014 Lok Sabha elections, a committee recommended offering NRIs additional voting options like e-postal ballots and proxy voting, alongside in-person voting.

Existing Process for NRIs

- **Voting rights introduced in 2011:** Voting rights for NRIs were introduced only in 2011, through an amendment to the Representation of the People Act 1950.
- **NRI can vote in his constituency:** An NRI can vote in the constituency located in his/her place of residence, as mentioned in the passport.
- **Can vote only in person:** He/she can only vote in person and will have to produce her passport in original at the polling station for establishing identity.

Challenges

- **Identification of voters:** Questions regarding the identity of voters can be raised as representatives of political parties may not be present at the venue of voting.
- **Policing and security:** The EC will have to come up with ways to ensure how these venues can be policed and secured.
- **Model Code of Conduct:** Foreign governments are not bound to maintain a silence period before polling, so it will have to be discussed how MCC is not breached.

Way Forward

- **Need to address logistical challenges:** As per the Ministry of External Affairs, "huge logistical challenges" need to be addressed and "a realistic assessment of requirements" needs to be made before the proposal is implemented.
- **Voting facilitation at embassies are insufficient:** Actual voting facilitation, voter identification, and voting locations in the event that embassies and consulates are insufficient to accommodate all voters.

RIGHT TO RECALL IN INDIA

Recently, a **Rajya Sabha MP proposed the Right to Recall** in Parliament, arguing that voters should have the power to remove **non-performing representatives before completion of their term**.

Meaning and Concept

- The **Right to Recall** is a democratic mechanism that allows voters to **remove an elected representative before the expiry of their fixed tenure**.

- It is usually initiated through a recall **petition** signed by a specified percentage of voters and followed by a **recall vote.**
- If the majority supports removal, the representative is **removed from office**.

Judicial Perspective

- **Mohan Lal Tripathi v. DM Rae Bareilly (1993):** Supreme Court upheld **recall at the local level**.
- **Smt. Ram Beti v. District Panchayat Raj Adhikari (1998):** Allahabad High Court stressed the need for **safeguards against misuse**.
- **State of MP v. Shri Ram Singh (2000):** Supreme Court emphasized **accountability**, but cautioned against **political instability**.
- Judiciary supports recall in principle but highlights the need for **institutional safeguards**.

Status of Right to Recall in India

- **No Constitutional Provision:** MPs and MLAs **cannot be recalled** under the Constitution.
- **Representation of the People Act, 1951:** Provides removal only through Disqualification and Conviction.
- **Local Body Level (Existing Practice):** Several states allow recall of elected representatives at local level -Madhya Pradesh, Chhattisgarh, Bihar etc

Arguments in Favour of Right to Recall

- **Strengthens Accountability:** Keeps representatives continuously responsive to voters.
- **Reduces Criminalisation and Corruption:** Fear of removal discourages misuse of office.
- **Enhances Democratic Participation:** Moves beyond periodic elections to **continuous citizen control**.
- **Improves Governance Quality:** Incentivizes performance-oriented politics.

Arguments Against Right to Recall

- **Political Instability:** Frequent recall attempts may lead to **governance disruption**.
- **Misuse by Political Opponents:** Can be used as a **tool of harassment or vendetta politics**.
- **Populism and Short-Termism:** Representatives may prioritize **short-term popularity over long-term policy decisions**.
- **Administrative and Financial Burden:** Conducting recall elections involves **high cost and logistical challenges**.
- **Voter Fatigue:** Frequent elections may reduce **public participation and seriousness**.

Way Forward

- Introduce **pilot models at local or state levels** before national expansion
- Fix **minimum tenure before recall can be initiated**
- Ensure **high threshold for recall petitions** to prevent misuse
- Combine with Electoral reforms andTransparency measures
- Strengthen **existing accountability tools** like RTI, Anti-defection law and Election Commission oversight.

Key Words

Vernacular languages, Facilitate Feedback Mechanism, Electronically Transmitted Postal Ballot System, False publication, Booth capturing, Bureaucratisation of politic, free and fair elections, Stringent guidelines, Lacunae in paid NEWS, Hits the bottom of democracy, money power, false information, exit polls, Bias & False News

Previous Year Questions	Year
1. Discuss the 'corrupt practices' for the purpose of the Representation of the People Act, 1951. Analyze whether the increase in the assets of the legislators and/or their associates, disproportionate to their known sources of income, would constitute 'undue influence' and consequently a corrupt practice.	2025
2. Discuss the procedures to decide the disputes arising out of the election of a Member of the Parliament or State Legislature under The Representation of the People Act, 1951. What are the grounds on which the election of any returned candidate may be declared void? What remedy is available to the aggrieved party against the decision? Refer to the case laws	2022
3. "There is a need for simplification of procedure for disqualification of persons found guilty of corrupt practices under the Representation of Peoples Act" Comment.	2020
4. On what grounds a people's representative can be disqualified under the Representation of Peoples Act, 1951? Also, mention the remedies available to such a person against his disqualification.	2019

31 Comparison of the Indian Constitutional Scheme with Other Countries

INDIA AND USA

Attributes	USA	India
Nature of the Constitution	❖ The United States Constitution is the first drafted and shortest constitution in history. ❖ With only seven articles and twenty-seven amendments, the United States Constitution is a highly restrictive instrument.	❖ India's Constitution is the world's longest- written constitution. ❖ It consists of 448 articles in 25 parts, 12 schedules, and 5 appendices.
Nature of federalism	❖ The USA is an **unbreakable union of unbreakable nations.** Because the federal government and the states each have their own constitutions and do not interfere with each other's operations. ❖ Symmetrical federalism: Equal representation for all states in the Senate under symmetrical federalism. ❖ The legislative federation is heavily influenced by the states. For residual subjects, there is no elaborate mechanism provided.	❖ India is an indestructible union of destructible states. ❖ There is only one Constitution in India, and it forbids the Central government from interfering with state government operations. ❖ For example: Reserving state bills for the President's approval, Appointing Governors, and imposing the President's rule in the states. ❖ Asymmetrical federalism: States have been given representation in Rajya Sabha in accordance with their population. ❖ The Seventh Schedule of the Indian Constitution divides legislative power between ❖ The federal and state governments. There are residual rights for the legislature.
Government Structure **Impeachment of the President**	❖ A Presidential system of government in which the electorate chooses the head of state. ❖ The President has great authority and is not subject to the House of Congress. ❖ The American President's term is four years long, and he is only permitted to serve in that capacity twice. The President has a valid veto. ❖ Treason, bribery, and high crimes of a misdemeanor are the reasons.	❖ India now has a parliamentary system of government. ❖ The executive branch of the Indian government is led by the President of India. He is indirectly chosen by the state and federal legislatures and is not answerable to the Parliament. The term of office for the Indian President is five years. ❖ He is eligible to be elected any number of times. There is no qualified veto available to the President. ❖ In contrast to the US, the Indian Constitution does not provide a deadline for the President to sign a bill. ❖ In the Indian Constitution, there is a system of impeachment for constitutional violations.
Office of the Vice-President	❖ A Vice President may become a President because of a vacancy in the office of the President. ❖ He is the Ex-officio chairperson of the Senate and has a casting vote.	❖ The office of the Indian Vice President is modeled on the US office, with some differences. ❖ For example he can hold the office of President in case of a vacancy only till the new President is not elected.
Citizenship	❖ Citizenship is governed by the 14th Amendment and follows jus soli; anyone born on U.S. soil generally gets citizenship. Dual citizenship is permitted. Naturalisation is usually available after 5 years of residence, or 3 years if married to a U.S. citizen. Citizenship may be revoked in cases of fraud or serious security concerns.	❖ Citizenship is governed by the Citizenship Act, 1955 and mainly follows jus sanguinis; birthright citizenship is conditional on parentage. Dual citizenship is not permitted, and acquiring foreign citizenship leads to loss of Indian citizenship. Naturalisation requires 12 years' residence, including 1 year immediately before application. OCI gives limited overseas rights, not full citizenship.

Attributes	USA	India
Legislature **Fundamental rights**	❖ It consists of two houses: House of Representatives and the Senate. **House of Representatives:** ❖ One of the weakest lower houses in the world. ❖ It consists of 435 members. ❖ Representation of people may differ in number from different states. **Senate:** ❖ The body is permanent ❖ The world's most powerful upper house. ❖ Ordinary bills, amendment bills, and money bills all fall under its jurisdiction. ❖ Senators serve six-year terms. Every two years, one-third of the members/Senators leave and are elected directly ❖ The terms of the Legislature and the Executive are both fixed and independent of one another. ❖ A member of the Executive cannot be a member of the Legislature. ❖ No one's life or freedom can be taken away in the United States without "due process of law." ❖ Due process refers to the requirement that the substance and practice of the law be just, equal, and equitable, as determined by the judiciary. ❖ No restrictions on Fundamental rights and the judiciary overtime evolved reasonable restrictions through precedents & judgements.	❖ The House of Representatives and Senate are very much similar to the Lok Sabha and Rajya Sabha of India, respectively except that Rajya Sabha members are elected indirectly by state legislative assemblies. ❖ In India, the executive comes from the legislature and falls under its ambit. ❖ The President is a member of the Union Executive. However, since the President must act with the support and counsel of the Council of Ministers, the Prime Minister and the latter constitute the genuine executive. ❖ A person's life and liberty can be taken away in India according to the "procedure established by law" but now it has moved closer to USA position post Maneka Gandhi Judgement. ❖ The phrase "procedure defined by statute" gives the legislature broad discretionary power to limit liberty.
Checks and Balances	❖ The doctrine of separation of powers is enshrined in the US Constitution. ❖ Through judicial oversight of executive and legislative actions, the judiciary keeps an eye on the other branches of government. Senate approves appointment to S.C and act as a house to convict and remove President on impeachment.	❖ In India the executive and legislature are tightly interwoven and the judiciary is acting somewhat independently.
Emergency	❖ The American Constitution does not use the term "emergency," but it does state that the writ of Habeas Corpus may be suspended in the event of rebellion and invasion of public safety.	❖ An emergency may be declared in India if there is a war or armed rebellion. ❖ All fundamental rights, with the exception of the right to life (Article 21), may be suspended in an emergency.
Judiciary	❖ Judges are appointed by the President and confirmed by the Senate, and they are removed by the Congress and the President by impeachment. ❖ The President controls their salaries & emoluments. ❖ Judges of the Supreme Court are appointed without regard to any qualifications.	❖ India, on the other hand, employs a collegium method for appointing judges to the higher judiciary.
Amendment of the Constitution	There are two ways to amend the Constitution: **1. Proposed by the Congress & ratified by the States:** ❖ Amendment to be passed by 2/3rd majority of both the Houses. ❖ To be ratified by the State Legislatures of at least 3/4th of the States. **2. Proposed by States & ratified by the States:** ❖ 2/3rd of the States should pass a resolution to this effect. ❖ They will communicate with the Congress. The Congress will call the convention. ❖ In the convention, it has to be ratified by 3/4th of the States.	❖ India's amendment process is simple and flexible. ❖ In India, only the Parliament has the authority to initiate constitutional amendments, and 1/2 of the states ratify C.A Bill if it is related to one or more of the subjects listed under A-368(2). In others it has no say. ❖ Although some of the Articles may be amended with a simple majority, others require a special majority, and some Articles require ratification by more than half of the States.

INDIA AND BRITAIN

Nature	❖ In the UK, there is no formal written constitution. There is no formal or codified version of the British Constitution. ❖ It was never framed by a constituent assembly. ❖ The British Constitution is a **flexible constitutional structure.** ❖ Since there is no distinction between a constitutional legislation and an ordinary law, it can be passed, changed, or repealed by a **Simple Majority** (50% of the members present and voting) of the Parliament.	❖ The Indian constitution is codified into various parts and schedules. ❖ The Indian Constitution, in contrast, is **both flexible as well as rigid.** ❖ Thus the Indian Constitution is federal with unitary aspects, unitary with federal elements, and quasi-federal in nature.
Nature of state	❖ The British Parliament, a **sovereign body,** has all of the government's powers.	❖ Federal nature. **Powers are shared** by the national and state governments.
Sovereignty of Parliament	❖ The only legislative body in the nation having limitless legislative authority is the British Parliament. Any statute may be passed, amended, or repealed by it. ❖ The legitimacy of legislation enacted by the British Parliament cannot be decided by the courts.	❖ Schedule 7 lists out various subjects of legislation in Union, Concurrent and State list. Where common jurisdiction, parliament power supersedes. ❖ Judiciary effectively controls parliament and a complete mechanism of separation of power exists in India.
Executive	❖ It is **made up of** the Civil Servants Privy Council, the Permanent Executive of the Council of Ministers (CoM), the King and the Prime Minister. ❖ The executive has **individual legal responsibility.**	❖ An executive is similar except In India, there is no individual legal responsibility. ❖ The Executive is made up of Ministers and Bureaucrats.
Nature of head of the state	❖ A constitutional monarchy which is not incompatible with democracy. ❖ The King does **not have any discretionary authority.** He/she is referred to as **'Golden Zero.'** ❖ King is said to have **complete immunity** and is unable to commit any wrongdoing.	❖ Constitutional Republic where President is the ceremonial head of the state and acts according to the aid and advice of the council of ministers. ❖ The President can be impeached if he or she violates the Constitution.
Judiciary	❖ Judicial review is limited to the procedural aspect. Rule of law is protected by the fact that judges can only be dismissed from office for cause, for **serious** misbehavior and in accordance with a protocol that has been developed. ❖ **Judges appointed by Judicial appointment commission. For removal,** it is necessary to obtain the approval of both Houses of Parliament.	❖ The **idea of 'Basic Structure'** and incorporation of due process law makes its judicial review more wider going beyond procedure. ❖ **Appointment by Collegium system** and removal is very much similar to the UK's model.
Legislature	❖ **The British Parliament is divided into two chambers:** the House of Lords, whose authority is unfixed, and the House of Commons, whose membership is set at 650. ❖ **Amendments:** It may be proposed by the House of Lords and approved by them. But it only has limited authority; if it rejects a piece of law, it can only delay passage for up to a year. Members to House of Lords appointed on the advice of PM and many are appointed for lifetime.	❖ Bicameral legislature with fixed seats in both houses. ❖ The House of Lords is very much similar to the Rajya Sabha and the House of Commons is similar to the Lok Sabha in status. But apart from money bill in almost other matters Rajya Sabha is equivalent Lok sabha. Rajya sabha members are indirectly elected by state legislatures and act as federal chamber.
Speaker	❖ **Once a Speaker, always a Speaker is the rule in the United Kingdom.** It denotes that a Speaker's local constituency is uncontested. ❖ When a person is appointed Speaker, he formally resigns from his political party.	❖ No such provisions/conventions in India. It is not **necessary for the Speaker to resign** from his party.

Prime Minister	❖ In Britain, it is customary for the prime minister to solely be a member of the House of Commons.	❖ The PM can be a member of either House of Parliament.
Shadow cabinet	❖ Shadow cabinet members from the opposition party hold a similar portfolio as the minister.	❖ No provision for a shadow cabinet.

INDIA AND FRANCE

Attributes	France	India
Nature	❖ It has a **unitary form of government** and a semi-Presidential government.	❖ India is a **Parliamentary form of democracy** with the President as its nominal head.
Law Making Power	❖ The French Parliament **lacks dominant law- making.** ❖ The legislature has a list of subjects on which it should pass legislation, while the President makes the law on the rest of the issues.	❖ Law making is in the domain of legislature and residuary subjects are in the scope of Parliaments legislative power and **President has Ordinance making power only.**
Parliament	❖ The French Parliament is bicameral, consisting of two houses: **National Assembly and the Senate.** ❖ The National Assembly's significantly greater powers than the Senate's make the French bicameral system an unequal one. ❖ **The Senate cannot be dissolved.**	❖ Rajya Sabha has Limited power as compared to Lok Sabha in matters of Money Bill. ❖ For ordinary bills and constitutional amendments they are on equal footing. In addition Rajya sabha has special powers under A-249, A-312 and removal of Vice President.
Secularism	❖ **Follows the rigid principle of secularism:** The state does not support religious activities but also does not interfere in private religious practices. ❖ It **prohibits any visible religious symbols in public spaces.** This model leaves no scope for the idea of the state-supported religious reforms.	❖ Indian secularism respects all religions equally and is the best example of **positive secularism.**
Amend-ment	❖ Both the Houses of Parliament have to pass a resolution by a 3/5th majority. ❖ So rigid in nature The President may also choose to refer to the amendment to the people by referendum.	❖ Blend of flexible and rigid. No provisions like referendums etc.
President	❖ The President is elected for a fixed term (5 years). The President shall be elected by an absolute majority of votes polled **(Second Ballot system**). ❖ **The High Court of Justice** will inquire about the impeachment of the President.	❖ **No such bod**y in India President's impeachment follows constitutional provisions and parliament is a body to do so.
Prime Min-ister	❖ The French Prime Minister is an advisor to the President **(concept of cohabitation).** ❖ Between the two positions, there is a division of functions rather than a division of power. ❖ The French President is in charge of foreign affairs and domestic issues. ❖ The PM, on the other hand, is in charge of the countries day-to-day operations.	❖ The real head of the government is the prime minister.
Judiciary	❖ The **High Council of Justice** nominates the judges. ❖ The President and members of the judiciary are in charge of this body. ❖ **Two type of Courts:** Judicial (civil and criminal matters) and Administrative Courts (public law matters). Council of State is the highest administrative court, while the Court of Cassation is the highest judicial court. ❖ The President is also referred to as the **"Guardian of the Judiciary."**	❖ The higher judiciary employs a **collegium method for appointing judges** to the higher judiciary. ❖ Common unified judicial system. After 42nd C.A.A seprate administrative tribunals can be set up but appeals lies to High Courts and Supreme Court. ❖ **Oath is administered by the President** and the impeachment process completes under the oversight of the Parliament.

INDIA AND JAPAN

Attribute	Japan	India
Nature	❖ The Constitution ensures a **parliamentary form of government** and a number of basic liberties. ❖ According to its provisions, the **Emperor of Japan serves as "the symbol of the State** and of the unity of the people" and performs only ceremonial duties without having any formal authority. Japan is unitary state according to its constitution.	❖ Both have a **written constitution.** ❖ India has a **flexible and rigid** constitution, compared to Japan's rigorous one. ❖ India is federal in nature
Legislature	❖ The **Diet,** which comprises the House of Representatives and the House of Councillors, has legislative authority. ❖ Members of Japan's Upper House serve six-year terms, and each year, half of the members leave the chamber.	❖ The Parliament is the highest legislative body in both countries. ❖ The **No-Confidence motion** caused the House to be dissolved, much like in India. ❖ Rajya sabha member have 6 year term with 1/3rd retiring every second year.
Executive	❖ The Emperor, under the direction of the Diet, **appoints the Prime Minister**, who serves as the head of the executive branch and appoints ministers. ❖ He must be both a **civilian and a member of one of the Diet's houses.**	❖ In India PM is appointed by President and minsters are **appointed by the President on the advice of the PM.**
Judiciary	❖ The Supreme Court and lower courts are given judicial authority. Japan is typically regarded in academic studies as a **constitutional monarchy with a civil law system.** ❖ The Diet appoints judges.	❖ Japan and India share comparable laws regarding the **appointment, removal, and fixed retirement age of judges.**

Key Words

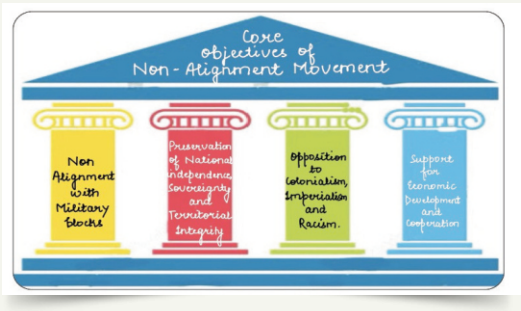
Unbreakable union of unbreakable nations., indestructible union of destructible states, constitutional violations, Shadow cabinet, constitutional monarchy, positive secularism, Democratic Centralism, The Diet, constitutional monarchy with a civil law system.

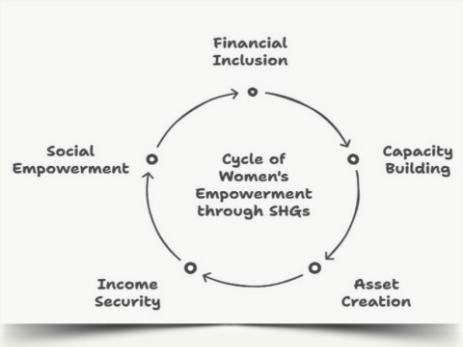
Previous Year Questions	Year
1. Compare and contrast the British and Indian approaches to Parliamentary sovereignty.	2023

❖ ❖ ❖

PILLAR DIAGRAM

- **Details:** A foundation (base) supporting multiple pillars, each representing a key element or factor contributing to the overall structure.
- **Used For:** Pillars of Good Governance, Sustainable Development Goals (SDGs) etc.



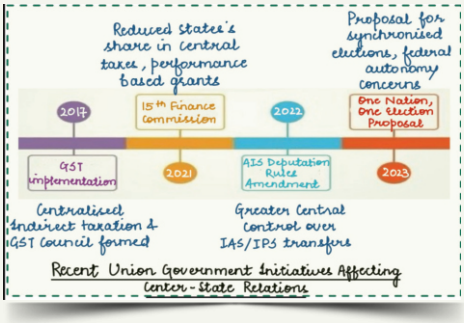


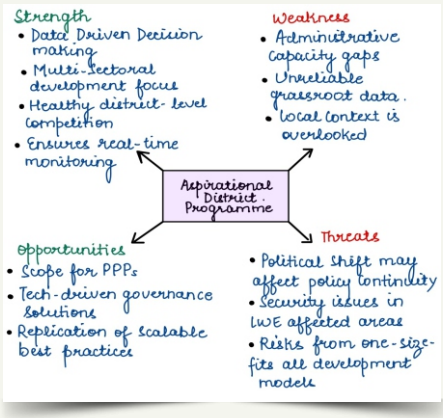
CIRCULAR FLOW DIAGRAM

- **Details:** A circle showing movement or recycling of elements.
- **Used For:** Women empowerment through SHG's, Circular economy, Consequences of gender injustice etc.

TIMELINE DIAGRAM

- **Details:** Linear flow of key events or reforms.
- **Used For:** Historical events, policy evolution etc.



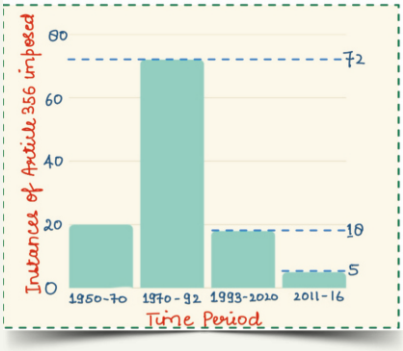


SWOT ANALYSIS

- **Details:** 2x2 matrix showing strengths, weaknesses, opportunities, and threats.
- **Used For:** SWOT of Local Governance System etc.

BAR CHART

- **Details:** Comparative representation of data.
- **Used For:** Article 356 imposition, Total no of Women judges over the years, Crime rate over the years etc.



NOTE: *In Mains answer writing, diagrams are powerful tools. They simplify complex ideas, conserve space, and reflect structured thinking, making your answers stand out. To help you, we've created* ***10 easy-to-use diagram formats*** *tailored to different question types. However, always remember that diagrams cannot substitute content; they are meant to complement your answer. Hence, use them wisely.*

PW ONLYIAS

SRIJAN MAINS PROGRAM+ 2026

AIR 02

HARSHITA GOYAL

2024

AIR 08

RAJ KRISHNA JHA

2024

AIR 08

PAKSHAL SECRETRY

2025

DELIVERING CONSISTENT RESULTS OVER THE YEARS

FEATURES

- GS Value Addition Classes
- Personalised Mentorship (24x7 Doubt Room)
- Test Series & Daily Answer Writing
- Fast Evaluation & Feedback
- Mains-Oriented Current Affairs Classes
- Optional Subject Support (Additionally Paid)

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